THE INDIAN STAMP ACT, 1899

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THE INDIAN STAMP ACT, 1899

ACT NO. 2 OF 1899[1]

[27*th January*, 1899.]

An Act to Consolidate and amend the law relating to Stamps.

WHEREAS it is expedient to consolidate and amend the law relating to Stamps. It is hereby enacted as follows:—

CHAPTER I

PRELIMINARY

1. Short title, extent and commencement.—(*1*) This Act may be called the Indian Stamp Act, 1899.

[2][(*2*) It extends to the whole of India [3]***:

Provided that it shall not apply to [4][the territories which, immediately before the 1st November, 1956, were comprised in Part B States] (excluding the State of Jammu and Kashmir) except to the extent to which the provisions of this Act relate to rates of stamp-duty in respect of the documents specified in Entry 91 of List I in the Seventh Schedule to the Constitution].

(*3*) It shall come into force on the first day of July, 1899.

2. Definitions.—In this Act, unless there is something repugnant in the subject or context,—

[5][(*1*) **Allotment list.—**"allotment list" means a list containing details of allotment of the securities intimated by the issuer to the depository under sub-section (*2*) of section 8 of the Depositories Act, 1996 (22 of 1996);

(*1A*) "banker" includes a bank and any person acting as a banker;]

(*2*) **Bill of exchange.**—"bill of exchange" means a bill of exchange as defined by the Negotiable Instruments Act, 1881, (26 of 1881), and includes also a hundi, and any other document entitling or purporting to entitle any person, whether named therein or not, to payment by any other person of, or to draw upon any other person for, any sum of money;

(*3*) **Bill of exchange payable on demand.** —"bill of exchange payable on demand" includes—

(*a*) an order for the payment of any sum of money by a bill of exchange or promissory note, or for the delivery of any bill of exchange or promissory note in satisfaction of any sum of money, or for the payment of any sum of money out of any particular fund which may or may not be available, or upon any condition or contingency which may or may not be performed or happen;

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1. For Report of the Select Committee, *see* Gazette of India, 1898. Pt. -V, p. 231: and for Proceedings in Council, *see* 1898, Pt. VI, pp. 10 and 278; and Gazette of India, 1899, Pt. VI, p 5.
   This Act has been partially extended to Berar Laws Act, 1941 (4 of 1941) and has been declared to be in force in the Sonthal Parganas by the Sonthal Parganas Settlement Regulation (3 of 1872), s. 3, as amended by Reg. 3 of 1899, s. 3; in the Angul District by the Angul Laws Regulation, 1936 (5 of 1936), s. 3 and Sch; and in Panth Piploda by the Panth Piploda Laws Regulation, 1929 (1 of 1929), s. 2.
   Under s. 3(a) of the Scheduled Districts Act, 1874 (14 of 1874) the Act has been declared to be in force in the Scheduled Districts of Ganjam, Vizagapatam and East Godavary, *see* Notification No. 121, dated 25th April, 1927, Fort St. George Gazette, 1927, Pt. I, p. 684. It has also been extended under ss. 5 and 5A of the same Act, with certain modifications to the districts of the Khasi and Jaintia Hills, the Garo Hills, the Lushai Hills and the Naga Hills and the North Kachar sub-division of the Kachar district, the Mikir Hill Tracts in the Sibsagar and Nowgong districts and the Lakhimpur Frontier Tract, *see* Notification No. 1541.- F(*a*), dated 10th April; 1930. Assam Gazette 1930.Pt. ii, p. 700.
   Extended to Dadra and Nagar Haveli by Reg. 6 of 1963, s. 2 and Sch. 1: to Goa, Daman and Diu by Reg. 11 of 1963, s. 3 and to Laccadive, Minicoy and Amindivi Islands by Reg. 8 of 1965, s. 3 and Schedule.
2. Subs. by Act 43 of 1955, s. 3, for sub-section (*2*) (w.e.f. 1-4-1956).
3. The words "except the State of Jammu and Kashmir" omitted by Act 34 of 2019, s. 95 and the Fifth Schedule (w.e.f. 31-10- 2019).
4. Subs. by the A.O. (No. 2) 1956, for "Part B States".
5. Subs. by Act 7 of 2019, s. 12, for clause (*1*) (w.e.f. 1-7-2020).[Earlier notified w.e.f. 9-1-2020 followed by 1-4-2020]

(*b*) an order for the payment of any sum of money weekly, monthly or at any other stated period; and

(*c*) a letter of credit, that is to say, any instrument by which one person authorises another to give credit to the person in whose favour it is drawn;

(*4*) **Bill of lading**.— "bill of lading" includes a "through bill of lading", but does not include a mate's receipt:

(*5*) **Bond**.— "bond" includes—

(*a*) any instrument whereby a person obliges himself to pay money to another, on condition that the obligation shall be void if a specified act is performed, or is not performed, as the case may be;

(*b*) any instrument attested by a witness and not payable to order or bearer, whereby a person obliges himself to pay money to another; and

(*c*) any instrument so attested, whereby a person obliges himself to deliver grain or other agricultural produce to another;

[1][but does not include a debenture;]

(*6*) **Chargeable**.—"chargeable" means, as applied to an instrument executed or first executed after the commencement of this Act, chargeable under this Act, and, as applied to any other instrument, chargeable under the law in force in [2][India] when such instrument was executed or, where several persons executed the instrument at different times, first executed;

(*7*) **Cheque**.—"cheque" means a bill of exchange drawn on a specified banker and not expressed to be payable otherwise than on demand;

[3][(*7A*) "clearance list" means a list of transactions of sale and purchase relating to contracts traded on the stock exchanges submitted to a clearing corporation in accordance with the law for the time being in force in this behalf;

(*7B*) "clearing corporation" means an entity established to undertake the activity of clearing and settlement of transactions in securities or other instruments and includes a clearing house of a recognised stock exchange;]

[4]* * * * * *

(*9*) **Collector**.—"Collector" —

(*a*) means, within the limits of the towns of Calcutta, Madras and Bombay, the Collector of Calcutta, Madras and Bombay, respectively, and, without those limits, the Collector of a district; and

(*b*) includes a Deputy Commissioner and any officer whom [5][the [6][State Government]] may, by notification in the Official Gazette, appoint in this behalf;

(*10*) **Conveyance**.—"conveyance" includes a conveyance on sale and every instrument by which property, whether moveable or immovable, is transferred *inter vivos* and which is not otherwise specifically provided for by schedule I;

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1. Added by Act 7 of 2019, s. 12 (w.e.f. 1-7-2020). [Earlier notified w.e.f. 9-1-2020 followed by 1-4-2020]
2. Subs. by Act 43 of 1955, s. 2, for "the States" (w.e.f. 1-4-1956).
3. Ins. by Act 7 of 2019, s. 12 (w.e.f. 1-7-2020). [Earlier notified w.e.f. 9-1-2020 followed by 1-4-2020]
4. Cl. (*8*) omitted by the A.O. 1937.
5. Subs. by the A.O. 1937, for "the L.G.".
6. Subs. by the A.O. 1950, for "collecting Government".

[1][(*10A*) **debenture.—**"debenture" includes—

(*i*) debenture stock, bonds or any other instrument of a company evidencing a debt, whether constituting a charge on the assets of the company or not;

(*ii*) bonds in the nature of debenture issued by any incorporated company or body corporate;

(*iii*) certificate of deposit, commercial usance bill, commercial paper and such other debt instrument of original or initial maturity upto one year as the Reserve Bank of India may specify from time to time;

(*iv*) securitised debt instruments; and

(*v*) any other debt instruments specified by the Securities and Exchange Board of India from time to time;

(*10B*) "depository" includes—

(*a*) a depository as defined in clause (*e*) of sub-section (*1*) of section 2 of the Depositories Act, 1996 (22 of 1996); and

(*b*) any other entity declared by the Central Government, by notification in the Official Gazette, to be a depository for the purposes of this Act;]

(*11*) **Duly stamped**. —"duly stamped", as applied to an instrument, means that the instrument bears an adhesive or impressed stamp of not less than the proper amount and that such stamp has been affixed or used in accordance with the law for the time being in force in [2][India]:

(*12*) **Executed and execution**. — "executed" and "execution" used with reference to instruments, mean "signed" and "signature" [1][and includes attribution of electronic record within the meaning of section 11 of the Information Technology Act, 2000 (21 of 2000);]

[3]* * * * *

(*13*) **Impressed stamp.** — "impressed stamp" includes—

(*a*) labels affixed and impressed by the proper officer; and

(*b*) stamps embossed or engraved on stamped paper;

[4][(*13A*) **India**. — "India" means the territory of India excluding the State of Jammu and Kashmir;]

[5][(*14*) "instrument" includes—

(*a*) every document, by which any right or liability is, or purports to be, created, transferred, limited, extended, extinguished or recorded;

(*b*) a document, electronic or otherwise, created for a transaction in a stock exchange or depository by which any right or liability is, or purports to be, created, transferred, limited, extended, extinguished or recorded; and

(*c*) any other document mentioned in Schedule I,

but does not include such instruments as may be specified by the Government, by notification in the Official Gazette.]

(*15*) **Instrument of partition**.— "instrument of partition" means any instrument where by co-owners of any property divide or agree to divide such property in severalty, and includes also a

1. Ins. by Act 7 of 2019, s. 12 (w.e.f. 1-7-2020). [Earlier notified w.e.f. 9-1-2020 followed by 1-4-2020]
2. Subs. by Act 43 of 1955, s. 2, for "the States" (w.e.f. 1-4-1956).
3. Clause (*12A*) omitted by the A.O. 1950. Earlier ins. by the A.O. 1937.
4. Ins. by Act 43 of 1955, s. 4 (w.e.f. 1-4-1956).
5. Subs. by Act 7 of 2019, s. 12, for clause (*14*) (w.e.f. 1-7-2020). [Earlier notified w.e.f. 9-1-2020 followed by 1-4-2020]

final order for effecting a partition passed by any Revenue-authority or any Civil Court and an award by an arbitrator directing a partition;

[1][(*15A*) **Issue**.— "issue" means any person making an issue of securities;]

(*16*) **Lease**.— "lease" means a lease of immovable property, and includes also—

(*a*) a patta;

(*b*) a kabuliyat or other undertaking in writing, not being a counterpart of a lease, to cultivate, occupy, or pay or deliver rent for, immovable property;

(*c*) any instrument by which tolls of any description are let;

(*d*) any writing on an application for a lease intended to signify that the application is granted;

[2][(*16A*) **Marketable security**.— "marketable security" means a security capable of being traded in any stock exchange in India;

(*16B*) **Market value.**—"market value", in relation to an instrument through which—

(*a*) any security is traded in a stock exchange, means the price at which it is so traded;

(*b*) any security which is transferred through a depository but not traded in the stock exchange, means the price or the consideration mentioned in such instrument;

(*c*) any security is dealt otherwise than in the stock exchange or depository, means the price or consideration mentioned in such instrument;]

(*17*) **Mortgage-deed**.— "mortgage-deed" includes every instrument whereby, for the purpose of securing money advanced, or to be advanced, by way of loan, or an existing or future debt, or the performance of an engagement, one person transfers, or creates, to, or in favour of, another, a right over or in respect of specified property;

(*18*) **Paper.**—"paper" includes vellum, parchment or any other material on which an instrument may be written;

(*19*) **Policy of insurance**.—"policy of insurance" includes—

(*a*) any instrument by which one person, in consideration of a premium, engages to indemnify another against loss, damage or liability arising from an unknown or contingent event;

(*b*) a life-policy, and any policy insuring any person against accident or sickness, and any other personal insurance; [3]***

[4]* * * * *

[5][(*19A*) **Policy of group insurance**.—"policy of group insurance" means any instrument covering not less than fifty or such smaller number as the Central Government may approve, either generally or with reference to any particular case, by which an insurer, in consideration of a premium paid by an employer or by an employer and his employees jointly, engages to cover, with or without medical examination and for the sole benefit of persons other than the employer, the lives of all the employees or of any class of them, determined by conditions pertaining to the employment, for amounts of insurance based upon a plan which precludes individual selection:]

(*20*) **Policy of sea-insurance or sea-policy.**—"Policy of sea-insurance" or "sea-policy"—

(*a*) means any insurance made upon any ship or vessel (whether for marine or inland navigation), or upon the machinery, tackle or furniture of any ship or vessel, or upon any goods, merchandise or property of any description whatever on board of any ship or vessel, or upon the freight of, or any other interest which may be lawfully insured in, or relating to, any ship or vessel; and

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1. Ins. by Act 7 of 2019, s. 12 (w.e.f. 1-7-2020). [Earlier notified w.e.f. 9-1-2020 followed by 1-4-2020]
2. Subs. by s. 12, *ibid*., for clause (16A) (w.e.f. 1-7-2020). [Earlier notified w.e.f. 9-1-2020 followed by 1-4-2020]
3. The word "and" omitted by Act 5 of 1906, s. 2.
4. Clause (*c*) omitted by s. 2, *ibid*.
5. Ins. by Act 43 of 1955, s. 4 (w.e.f. 1-4-1956).

(*b*) includes any insurance of goods, merchandise or property for any transit which includes, not only a sea risk within the meaning of clause (*a*), but also any other risk incidental to the transit insured from the commencement of the transit to the ultimate destination covered by the insurance:

Where any person, in consideration of any sum of money paid or to be paid for additional freight or otherwise, agrees to take upon himself any risk attending goods, merchandise or property of any description whatever while on board of any ship or vessel, or engages to indemnify the owner of any such goods, merchandise or property from any risk, loss or damage, such agreement or engagement shall be deemed to be a contract for sea-insurance;

(*21*) **Power-of-attorney.**—"power-of-attorney" includes any instrument (not chargeable with a fee under the law relating to Court-fees for the time being in force) empowering a specified person to act for and in the name of the person executing it;

(*22*) **Promissory note.**—"promissory note" means a promissory note as defined by the Negotiable Instruments Act, 1881 (XXVI of 1881);

It also includes a note promising the payment of any sum of money out of any particular fund which may or may not be available, or upon any condition or contingency which may or may not be performed or happen;

(*23*) **Receipt.**—"receipt" includes any note, memorandum or writing—

(*a*) where by any money, or any bill of exchange, cheque or promissory note is acknowledged to have been received, or

(*b*) where by any other moveable property is acknowledged to have been received in satisfaction of a debt, or

(*c*) where by any debt or demand, or any part of a debt or demand, is acknowledged to have been satisfied or discharged, or

(*d*) which signifies or imports any such acknowledgment,

and whether the same is or is not signed with the name of any person; [1]***

[2][(*23A*) **Securities.—**"securities" includes—

(*i*) securities as defined in clause (*h*) of section 2 of the Securities Contracts (Regulation) Act, 1956 (42 of 1956);

(*ii*) a "derivative" as defined in clause (*a*) of section 45U of the Reserve Bank of India Act, 1934 (2 of 1934);

(*iii*) a certificate of deposit, commercial usance bill, commercial paper, repo on corporate bonds and such other debt instrument of original or initial maturity upto one year as the Reserve Bank of India ma specify from time to time; and

(*iv*) any other instrument declared by the Central Government, by notification in the Official Gazette, to be securities for the purposes of this Act.]

(*24*) **Settlement.**—"settlement" means any non-testamentary disposition, in writing, of moveable or immovable property made—

(*a*) in consideration of marriage,

1. The word "and" omitted by Act 18 of 1928, s. 2 and the First Schedule.
2. Ins. by Act 7 of 2019, s. 12 (w.e.f. 1-7-2020). [Earlier notified w.e.f. 9-1-2020 followed by 1-4-2020]

(*b*) for the purpose of distributing property of the settler among his family or those for whom he desires to provide, or for the purpose of providing for some person dependent on him, or

(*c*) for any religious or charitable purpose;

and includes an agreement in writing to make such a disposition [1][and, where any such disposition has not been made in writing, any instrument recording, whether by way of declaration of trust or otherwise, the terms of any such disposition]; [2]***

[3][(*25*) **Soldier.** —"soldier" includes any person below the rank of non-commissioned officer who is enrolled under the [4]Indian Army Act, 1911(8 of 1911).]

[5][(*26*) **Stamp.** — "stamp" means any mark, seal or endorsement by any agency or person duly authorised by the State Government, and includes an adhesive or impressed stamp, for the purposes of duty chargeable under this Act.]

[6][(*27*) **Stock exchange**.—"stock exchange" includes—

(*i*) a recognised stock exchange as defined in clause (*f*) of section 2 of the Securities Contracts (Regulation) Act, 1956 (42 of 1956); and

(*ii*) such other platform for trading or reporting a deal in securities, as may be specified by the Central Government, by notification in the Official Gazette, for the purposes of this Act.]

STATE AMENDMENTS

Assam

Amendment of section 2 of Act II of 1892.—In section 2 of the principal Act, after clause (*7*), the following shall be inserted, namely:-

"(*8*) "Chief Controlling Revenue Authority" means the Superintendent of Stamps, Assam."

[*Vide* Assam Act 10 of 1968, s. 2]

Himachal Pradesh

Amendment of section 2.— In clause (10) of section 2 of the Indian Stamp Act, 1899, hereinafter referred to as the said Act, for the colon shall be substituted a comma, followed by the words "or by Schedule I-A as the case may be.

[*Vide* Himachal Pradesh Act 4 of 1953, s. 2]

Uttarakhand

Amendment of section 2.—Indian Stamp (Uttarakhand Amendment) Bill, 2011 (as passed by the Uttarakhand Legislative Assembly on dated 16 March, 2011) clause 9 shall be substituted as follows; namely:-

"Voting or attempting to cote under any proxy not duly stamped shall for every such offence, be punishable with fine which may extend to ₹ five thousand."

[*Vide* Uttarakhand Act 20 of 2013, s. 2]

Uttar Pradesh

Amendment of Section 2 of Act no. 2 of 1899.—In section 2 of the Indian Stamp Act, 1899, hereinafter referred to as the principal Act, in clause (16), after sub-clause (d), the following clause shall be inserted, namely :—

1. Ins. by Act 15 of 1904, s. 2.
2. The word "and", omitted by the A.O. 1950. Earlier ins. by Act 18 of 1928, s. 2 and the First Schedule.
3. Added by Act 18 of 1928, s. 2 and the First Schedule.,
4. *See* Now the Army Act 1950 (46 of 1950).
5. Ins. by Act 23 of 2004, s. 117.
6. Ins. by Act 7 of 2019, s. 12 (w.e.f. 1-7-2020). [Earlier notified w.e.f. 9-1-2020 followed by 1-4-2020]

"(e) any instrument by which mining lease is granted in respect of minor minerals as defined in clause (e) of section 3 of the Mines and Minerals (Regulation and Development) Act, 1957."

[*Vide* Uttar Pradesh Act 11 of 1992, s. 2]

Amendment of section 2 of Act II of 1899.—In section 2 of the Indian Stamp Act, 1899 as amended in its application to Uttar Pradesh, hereinafter in this Chapter referred to as the principal Act, in clause (10), the following Explanation shall be *inserted* in the end, namely :—

"*Explanation*—An instrument whereby a co-owner of a property having defined share therein, transfers such share or part thereof to another co-owner of the property, is for the purposes of this clause an instrument by which property is transferred."

[*Vide* Uttar Pradesh Act 19 of 1981, s. 2]

Amendment of section 2 of Act II of 1899.— In section 2 of the Indian Stamp Act, 1899, hereinafter referred to as the principal Act, for clause (15), the following clause shall be substituted, namely :—

"(15) "instrument of partition" means any instrument whereby co-owners of any property divide or agree to divide such property in severalty, and also includes —

(i) a final order for effecting a partition passed by any revenue authority or any civil court ;

(ii) an award by an arbitrator directing a partition ; and

(iii) when any partition is effected without executing any such instrument, any instrument of instruments signed by the co-owners and recording, whether by way of declaration of such partition or otherwise, the terms of such partition amongst the co-owners ;"

[*Vide* Uttar Pradesh Act 20 of 1974, s. 2]

Amendment of section 2 of Act no. 2 of 1899.— In section 2 of the Indian Stamp Act, 1899, hereinafter referred to as the Amendment of principal Act, —

(a) for sub-section (14), the following sub-section shall be substituted, namely-

"(14) Instrument— "Instrument includes every document and record created or maintained in or by an electronic storage and retrieval device or media by which any right or liability is, or purports to be, created, transferred, limited, extended, extinguished or recorded;"

(b) after sub-section (14), the following sub-section shall be *inserted*, namely:—

"(14-A) 'Instrument of Gift'— '1nstrument of Gift' includes an instrument whether by way of declaration or otherwise, for making or accepting an oral gift;"

(c) after sub-section (22), the following sub-section shall be *inserted*, namely :—

"(22-A) 'Public Officer'— Public Officer' means a Public Officer as defined in clause (17) of section 2 of the Code of Civil procedure, 1908 and includes every officer working in connection with the affairs of any of the following of organizations, namely :—

(a) any statutory body or authority constituted under any Uttar Pradesh Act;

(b) a 'Financing Bank or 'Central Bank' as defined in clause (k) of section 2 of the Uttar Pradesh Co-operative Societies Act, 1965 ; "

[*Vide* Uttar Pradesh Act 38 of 2001, s. 2]

Amendment of section 2 of Act II of 1899.— In section 2 of the Indian Stamp Act, 1899, as amended in its application to Uttar Pradesh (hereinafter referred to as the principal Act), after clause (26-A), the following clause shall be *inserted*, namely:—

"27. 'quarter' means a quarter of the financial year."

[*Vide* Uttar Pradesh Act 49 of 1975, s. 2]

Uttarakhand

Amendment of Section 2.—In section 2 of the Indian Stamp Act, 1899 (herein after referred to as the principle act),:—

(a) For clause (14), the following clause shall be substituted ; namely :—

(14) **"Instrument"** Instrument includes every document and record created or maintained in or by an electronic storage and retrieval device or media by which any right or liability is, or purports to be, created, transferred, limited, extended, extinguished or recorded;

(b) After clause (14), the following clause shall be inserted, namely:—

(14-A) **"Instrument of Gift"** Instrument of gift includes an instrument whether by way of declaration or otherwise, for making or accepting an oral gift;

(c) After clause (22), the following clause shall be inserted namely:—

(22-A) **"Public Officer"** Public Officer means a Public Officer as defined in clause (17) of section 2 of the Code of Civil Procedure, 1908 and includes every officer working in connection with the affairs of any of the following of the organization, namely:—

(a) Any statutory body or authority Constituted under any Uttarakhand State Act;

(b) A **"Financing Bank"** or "Central Bank" as defined in clause (L) of section 2 of the Uttarakhand Co-operative Societies Act, 2003.

[*Vide* Uttarakhand Act 1 of 2016, s. 2]

IndiaCode

CHAPTER II

STAMP DUTIES

A.—*Of the liability of instruments to Duty*

3. Instruments chargeable with duty.—Subject to the provisions of this Act and the exemptions contained in Schedule I, the following instruments shall be chargeable with duty of the amount indicated in that Schedule as the proper duty therefore respectively, that is to say—

(*a*) every instrument mentioned in that Schedule which, not having been previously executed by any person, is executed in [1][India] on or after the first day of July, 1899;

(*b*) every bill of exchange [2][payable otherwise than on demand] [3]*** or promissory note drawn or made out of [1][India] on or after that day and accepted or paid, or presented for acceptance or payment, or endorsed, transferred or otherwise negotiated, in [1][India]; and

(*c*) every instrument (other than a bill of exchange, [3]*** or promissory note) mentioned in that Schedule, which, not having been previously executed by any person, is executed out of [1][India] on or after that day, relates to any property situate, or to any matter or thing done or to be done, in [1][India] and is received in [1][India]:

Provided that no duty shall be chargeable in respect of—

(*1*) any instrument executed by, or on behalf of, or in favour of, the Government in cases where, but for this exemption, the Government would be liable to pay the duty chargeable in respect of such instrument;

1. Subs. by Act 43 of 1955, s. 2, for "the States" (w.e.f. 1-4-1956).
2. Ins. by Act 5 of 1927, s. 5.
3. The word "cheque" omitted by Act 5 of 1927, s. 5.

(*2*) any instrument for the sale, transfer or other disposition, either absolutely or byway of mortgage or otherwise, of any ship or vessel, or any part, interest, share or property of or in any ship or vessel registered under the Merchant Shipping Act 1894, Act No. 57 & 58 Vict. c. 60 or under Act XIX of 1838 Act No. or the Indian Registration of Ships Act, 1841, (CX of 1841) as amended by subsequent Acts.

STATE AMENDMENTS

Himachal Pradesh

Amendment of section 3.— In section 3 of the said Act- (1) After clause (c), the following proviso shall be inserted, namely: — "Provided that, notwithstanding anything contained in clauses (*a*), (*b*) or (*c*) of this section or in Schedule I, and subject to the exemptions contained in Schedule I-A, the following instruments shall be chargeable with duty of the amount indicated in Schedule I-A, as the proper duty therefor, respectively, that is to say:

(*aa*) every instrument mentioned in Schedule I-A as chargeable with duty under that Schedule which, not having been previously executed by any person is executed in the Himachal Pradesh on or after the date of commencement of this Act;

(*bb*) every instrument mentioned in Schedule I-A as chargeable with duty under that Schedule, which, not having been previously executed by any person, is executed out of Himachal Pradesh, on or after the date of commencement of this Act and relates to any property situated, or to any matter or thing done or to be done in the Himachal Pradesh, and is received in the Himachal Pradesh".

(*2*) Between the word "Provided" and the words "that no duty" the word "also" shall be inserted.

[*Vide* Himachal Pradesh Act 4 of 1953, s. 3]

Odisha

Insertion of new section 3A.—After section 3 of the Indian Stamp Act, 1899, (2 of 1899) the following section shall be inserted, namely:—

"3.A Duty chargeable on mining lease. — (*1*) Notwithstanding anything contained in this Act and the rules made thereunder, on every instrument of grant or renewal of a mining lease, the stamp duty chargeable shall be equivalent to fifteen percentum of the amount of average royalty that would accrue out of the highest annual extraction of minerals permitted under the approved mining plan or mining scheme, as the case may be, for such mining lease under the relevant law in force, multiplied by the period of such mining lease.

Explanation.—For the purpose of this sub-section, the average royalty of the highest grade of minerals based on the date available for past twelve months beginning from the date of commencement of the Indian Stamp (Odisha Amendment) Act, 2013 shall be taken into consideration:

Provided that where an application for renewal of mining lease has been made to the State Government prior to the expiry of the lease, but renewal of lease has not been granted by the State Government or the mining lease is deemed to have been extended by a further period in accordance with the provisions contained in the relevant law in force, till the State Government passes an order, prior to the commencement of the Indian Stamp (Odisha Amendment) Act, 2013, the sum total of the quantity of mineral permitted for extraction, year wise, in the approved mining plan or mining scheme, as the

case, may be, or the actual quantity raised, whichever is higher, shall be taken into consideration for calculation of the stamp duty:

Provided further that in case the production level is enhanced on account of subsequent modification or review of the mining plan, the stamp lease period and the lessee shall deposit the differential stamp duty before such enhancement is carried out by him:

Provided also that in case a lessee is required to surrender the mining lease or, permanently prohibited from undertaking the extraction of mineral by, or for reasons of any operation of law, court orders passed or any order issued under any law for the time being in force and the reasons of such prohibition are not in any manner attributable to such lessee or his agents, servants, employees or persons claiming through or under such lessee, the lessee shall be entitled for refund of the stamp duty paid by him to the extent of such balance period of lease outstanding:

Provided also that where the lessee is prohibited from undertaking the extraction of minerals for a temporary period for the reasons mentioned in the third proviso and subject to the conditions specified therein, the stamp duty chargeable shall be equivalent to the amount of the sum total of the dead rent that would be payable for the mining lease under the relevant law in force, for the period of such prohibition.

(*2*) Where an application for renewal of a mining lease has been made to the State Government prior to the expiry of the lease but renewal of the lease has not been granted by the State Government or the mining lease is deemed to have been extended as per the provisions contained in the relevant law in force, by a further period till the State Government passes an order thereon, the stamp duty payable under sub-section (*1*) shall be paid by the applicant on or before the date of expiry of the lease or within sixty days from the date of commencement of the Indian Stamp (Odisha Amendment) Act, 2013, whichever is later, the manner as may be prescribed.

(*3*) If the application for grant or renewal of mining lease is rejected by the State Government, the applicant shall be entitled for refund of full stamp duty by him without any interest.

(*4*) In case of a mining lease whose period is deemed to have been extended by a further period till the State Government passes an order thereon and the State Government, at a later date, passes an order rejecting the renewal of the lease, the applicant shall be entitled for refund of such amount of stamp duty paid under sub-section (1), as arrived at by deducting from the total amount of stamp duty paid, the amount of stamp duty chargeable in respect of such mining lease till the date of such rejection order without any interest.

(*5*) No refund as mentioned in sub-sections (*3*) and (*4*) shall be made if the order rejecting the application is challenged or the time limit for presenting the application for revision of the order of rejection is not expired".

[*Vide* Odisha Act 16 of 2013, s. 2]

Meghalaya

Insertion of a new section in Central Act II of 1899.—After section 3 of the Indian Stamp Act, 1899, the following shall be inserted as section 3A, namely:--

"3A. Surcharge on Stamp Duty.—(1) There shall be charged, levied and paid to the Government of Meghalaya, besides payable under any law for the time being in force including

section 3 of this Act, a surcharge, herein after referred to as Stamp Surcharge on the instruments mention on the following items of Schedule I of the principal Act, namely:--

Item Nos. 1-10, 12,15-20, 22-26, 28, 29,31,38-46,48,50, 51, 54-61 and 63-65.

Provided that the surcharge shall not be payable in respect of instruments exempted by section 3.

(2) The rate of Stamp Surcharge shall be twenty, Five paisa per instrument.

(3) The Stamp Surcharge shall be payable as if it were a duty under section 3 and the provisions of this Act including the rules thereunder shall according apply; and the authorities for the time being empowered to collect and enforce payment of stamp duty shall, unless otherwise provided for by or under the Act, within their respective jurisdiction for purpose of stamp duty accordingly collect and enforce payment of stamp Surcharge.

Provide that the Government of Meghalaya may, for facilitating implementation, by notification, direct that in any case or class the provisions of this act including the rules thereunder shall apply subject to such indications not inconsistent with the provisions of this section and as may be specified in such notification.

(4) Notwithstanding anything contained in sub-section (3), the Government of Meghalaya may make rule generally for securing the payment of the Stamp Surcharge and carrying into effect the provisions the sub-sections (1) and (2) and in particular for ensuring the proper maintenance and rendering or accounts of the Stamp Surcharge."

[*Vide* Meghalaya Act 13 of 1972, s. 2]

Meghalaya

Insertion of a new section in Central Act II of 1899.—After section 3 of the Indian Stamp Act, 1899 the following shall be inserted as section 3A, namely:--

"**3A. Surcharge on Stamp Duty**.—(1) There shall be charged, levied and paid to the Government of Meghalaya, besides payable under any law for the time being in force including section 3 of this Act, a surcharge, hereinafter referred to as Stamp Surcharge on the instruments mentioned in the following items of Schedule I to the principal Act, namely:-

Item Nos. 1-10, 12, 15-20, 22-26, 28, 29, 31, 36, 38-46, 48, 50, 51, 54-61 and 63-65.

Provided that the surcharge shall not be payable in respect of instruments exempted by section 3.

(2) The rate of Stamp Surcharge shall be twenty. Five paise per instrument.

(3) The Stamp Surcharge shall by payable as if it were a duty under section 3 and the provisions of this Act including the rules thereunder shall according apply; and the authorities for the time being empowered to collect and enforce payment of stamp duty shall, unless otherwise provided for by or under the Act, within their respective jurisdiction for purpose of stamp duty accordingly collect and enforce payment of Stamp Surcharge.

Provided that the Government of Meghalaya may, for facilitating implementation, by notification, direct that in any case or class the provisions of this Act including the rules thereunder shall apply subject to such indications not inconsistent with the provisions of this section and as may be specified in such notification.

(4) Notwithstanding anything contained in sub-section (3), the Government of Meghalaya may make rules generally for securing the payment of the Stamp Surcharge and carrying into effect the

provisions the sub-sections (1) and (2) and in particular for ensuring the proper maintenance and rendering or accounts of the Stamp Surcharge."

[*Vide* Meghalaya Act 15 of 1973, s. 2]

Haryana

Omission of section 3B of Central Act 2 of 1899.—Section 3B of the Indian Stamp Act, 1899 (hereinafter referred to as the principal Act), shall be omitted and shall be deemed to have been omitted with effect from the 1st day of April, 1973.

[*Vide* Haryana Act 37 of 1973, s. 2]

3A. [*Instruments chargeable with additional duty.*] *Omitted by the Refugee Relief Taxes (Abolition) Act,* 1973 (13 *of* 1973), *s.* 2 (*w.e.f.* 1-4-1973).

Tripura

Substitution of section 3B.— For section 3B of the principal Act, as inserted by the Union Territories Taxation Laws (Amendment) Act, 1971, the following shall be substituted, namely: —

"3B. Instrument Chargeable with additional duty.—(1) Every instrument chargeable with duty under section 3, read with Schedule 1, not being an instrument mentioned articles Nos. 13, 14, 27, 37, 47, 49, 52, 53 or 62(a), shall, in addition to such duty, be chargeable with a duty of ten paise.

(2) The additional duty with which any instrument is chargeable under sub-section (*1*) shall be paid and such payment shall be indicated on such instrument by means of adhesive stamp.".

[*Vide* Tripura Act 5 of 1973, s. 3]

4. Several instruments used in single transaction of sale, mortgage or settlement.—(*1*) Where, in the case of any sale, mortgage or settlement, several instruments are employed for completing the transaction, the principal instrument only shall be chargeable with the duty prescribed in Schedule I, for the conveyance, mortgage or settlement, and each of the other instruments shall be chargeable with a duty of one rupee instead of the duty (if any) prescribed for it in that Schedule.

(*2*) The parties may determine for themselves which of the instrument so employed shall, for the purposes of sub-section (*1*), be deemed to be the principal instrument:

Provided that the duty chargeable on the instrument so determined shall be the highest duty which would be chargeable in respect of any of the said instruments employed.

[1][(*3*) Notwithstanding anything contained in sub-sections (*1*) and (*2*), in the case of any issue, sale or transfer of securities, the instrument on which stamp-duty is chargeable under section 9A shall be the principal instrument for the purpose of this section and no stamp-duty shall be charged on any other instruments relating to any such transaction.]

STATE AMENDMENTS

Himachal Pradesh

Amendment of section 4.- In sub-section (*1*) of section 4 of the said Act-

(*a*) for the word and figure "Schedule I" the word, figure and letter "Schedule I-A" shall be substituted, and

(*b*) for the words "one rupee", the words "two rupees" shall be substituted.

[*Vide* Himachal Pradesh Act 4 of 1953, s. 4]

1. Ins. by Act 7 of 2019, s. 13 (w.e.f. 1-7-2020). [Earlier notified w.e.f. 9-1-2020 followed by 1-4-2020]

Orissa

Amendment of section 4. -in section 4 of the Indian Act, 1899 (2 of 1899) (hereinafter referred to as the principal Act) in sub-section (*1*), for the words, "one rupee and eight annas" the words "ten rupees" shall be substituted.

[*Vide* Orissa Act 1 of 2003, s. 2]

Manipur

Amendment of sections 4 and 6.-In sub-section (1) of section 4 and in the proviso to section 6 of the Indian Stamp Act, 1899 s application to the State of Manipur hereinafter referred to as the Principal Act the words "two rupees" wherever they occur, the words "two rupees and paise fifty" shall be substituted.

[*Vide* Manipur Act 4 of 1989, s. 2]

Uttar Pradesh

Amendment of section 4.—In section 4 of the principal Act, for the existing sub-section (1), the following sub-section shall be substituted, namely :—

"(1) Where, in the case of any sale, mortgage or settlement, several instruments are employed for completing the transaction, the principal instrument only shall be chargeable with the duty prescribed in Schedule 1-B for the conveyance, mortgage or settlement, and each of the other instruments shall be chargeable with a duty of five rupees instead of the duty (if any) prescribed for it in that Schedule."

[*Vide* Uttar Pradesh Act 20 of 1974, s. 3]

Indian Code

5. Instruments relating to several distinct matters.—Any instrument comprising or relating to several distinct matters shall be chargeable with the aggregate amount of the duties with which separate instruments, each comprising or relating to one of such matters, would be chargeable under this Act.

6. Instruments coming within several descriptions in Schedule I.—Subject to the provisions of the last preceding section, an instrument so framed as to come within two or more of the descriptions in Schedule I, shall, where the duties chargeable thereunder are different, be chargeable only with the highest of such duties:

Provided that nothing in this Act contained shall render chargeable with duty exceeding one rupee a counterpart or duplicate of any instrument chargeable with duty and in respect of which the proper duty has been paid.

STATE AMENDMENTS

Himachal Pradesh

Amendment of section 6.— In section 6 of the said Act- (1) After the word and figure "Schedule I" the words, figure and letter "or Schedule I-A" shall be inserted.

(2) In the proviso, for the words "one rupee" the words "two rupees" shall be substituted and after the words "has been paid" the following shall be added, namely;-

"unless it falls within the provisions of section 6-A".

[*Vide* Himachal Pradesh Act 4 of 1953, s. 5]

Orissa

Amendment of section 6.—In the proviso the section 6 of the principal Act, for the words "one rupees and eight annas", the words "ten rupees" shall be substituted.

[*Vide* Orissa Act 1 of 2003, s. 3]

Himachal Pradesh

Addition of a new section 6-A.—After section 6 of the said Act, the following new section shall be inserted: —

6-A. Payment of Himachal Pradesh stamp duty on copies, counter-parts or duplicates when that duty has not been paid on the principal or original instrument.- (1) Notwithstanding anything contained in sections 4 or 6 or in any other law, unless it is proved that the duty chargeable under the Indian Stamp (Himachal Pradesh Amendment) Act, 1952 has been paid:-

(*a*) on the principal or original instrument as the case may be; or

(*b*) in accordance with the provisions of this section, the duty chargeable on an instrument of sale, mortgage or settlement other than a principal instrument or on a counterpart, duplicate or copy of any instrument shall, if the principal or original instrument would, when received in Himachal Pradesh, have been chargeable, under the Indian Stamp (Himachal Pradesh Amendment) Act, 1952, with a higher rate of duty with which the principal or original instrument would have been chargeable under section 19-A.

(2) Notwithstanding anything contained in section 35 or in any other law, no instrument, counterpart, duplicate or copy chargeable with duty under this section shall be received in evidence as properly stamped unless the duty chargeable under this section has been paid thereon:

Provided that a court before which any such instrument, counterpart, duplicate or copy is produced, shall permit the duty chargeable under this section, to be paid thereon and shall then receive it in evidence.

[*Vide* Himachal Pradesh Act 4 of 1953, s. 6]

Uttar Pradesh

Amendment of section 6-A.— In section 6-A of the principal Act, after sub-section (1), the following sub-section shall be inserted, namely :—

" Where, any instrument is registered in any part of India other than Uttar Pradesh and instrument relates, wholly or partly to any property situate in Uttar Pradesh, the copy of such instrument shall, when received in Uttar Pradesh, be liable to be charged with the difference of stamp duty as or original under section 19-A to the extent of and in proportion to the consideration or value of property situated in Uttar Pradesh, and the party liable to pay stamp duty on the original instrument shall upon receipt of notice from registering officer pay the difference in the duty within the time allowed."

[*Vide* Uttar Pradesh Act 49 of 1975, s. 3]

7. Policies of sea-insurance.—[1] * * * * *

(*4*) Where any sea-insurance is made for or upon a voyage and also for time, or to extend to or cover any time beyond thirty days after the ship shall have arrived at her destination and been there moored at anchor, the policy shall be charged with duty as a policy for or upon a voyage, and also with duty as a policy for time.

8. Bonds, debentures or other securities issued on loans under Act XI of 1879.—(*1*) Notwithstanding anything in this Act, any local authority raising a loan under the provisions of the Local Authorities Loan Act, 1879 (XI of 1879) or, of any other law for the time being in force, by the issue of bonds, debentures or other securities, shall, in respect of such loan, be chargeable with a duty of [2][one per centum] on the total amount of the bonds, debentures or other securities issued by it, and such bonds, debentures or other securities need not be stamped and shall not be chargeable with any further duty on renewal, consolidation, sub-division or otherwise.

1. Sub-sections (*1*), (*2*) and (*3*) rep. by Act 11 of 1963, s. 92 (w.e.f. 1-8-1963).
2. Subs. by Act 6 of 1910, s. 2, for "eight annas per centum".

(*2*) The provisions of sub-section (*1*) exempting certain bonds, debentures or other securities from being stamped and from being chargeable with certain further duty shall apply to the bonds, debentures or other securities of all outstanding loans of the kind mentioned therein, and all such bonds, debentures or other securities shall be valid, whether the same are stamped or not:

Provided that nothing herein contained shall exempt the local authority which has issued such bonds, debentures or other securities from the duty chargeable in respect thereof prior to the twenty-sixth day of March, 1897, when such duty has not already been paid or remitted by order issued by the Central Government.

(*3*) In the case of wilful neglect to pay the duty required by this section, the local authority shall be liable to forfeit to the Government a sum equal to ten per centum upon the amount of duty payable, and a like penalty for every month after the first month during which the neglect continues.

[1]**[8A. Securities dealt in depository not liable to stamp duty.**—Notwithstanding anything contained in this Act or any other law for the time being in force,—

(*a*) an issuer, by the issue of securities to one or more depositories, shall, in respect of such issue, be chargeable with duty on the total amount of securities issued by it and such securities need not be stamped;

(*b*) the transfer of registered ownership of securities from a person to a depository or from a depository to a beneficial owner shall not be liable to duty;

Explanation.—For the purposes of this section, the expression "beneficial ownership" shall have the same meaning as assigned to it in clause (*a*) of sub-section (*1*) of section 2 of the Depositories Act, 1996 (22 of 1996)]

[2]**[8B. Corporatisation and demutualisation schemes and related instruments not liable to duty.**—Notwithstanding anything contained in this Act or any other law for the time being in force,—

(*a*) a scheme for corporatisation or demutualisation, or both of a recognised stock exchange; or

(*b*) any instrument, including an instrument of, or relating to, transfer of any property, business, asset whether movable or immovable, contract, right, liability and obligation, for the purpose of, or in connection with, the corporatisation or demutualisation, or both of a recognised stock exchange pursuant to a scheme,

as approved by the Securities and Exchange Board of India under sub-section (*2*) of section 4B of the Securities Contracts (Regulation) Act, 1956(42 of 1956), shall not be liable to duty under this Act or any other law for the time being in force.

Explanation. —For the purposes of this section,—

(*a*) the expressions "corporatisation", "demutualisation" and "scheme" shall have the meanings respectively assigned to them in clauses (*aa*), (*ab*) and (*ga*) of section 2 of the Securities Contracts (Regulation) Act, 1956 (42 of 1956);

(*b*) "Securities and Exchange Board of India" means the Securities and Exchange Board of India established under section 3 of the Securities and Exchange Board of India Act, 1992(15 of 1992).]

[3] [**8C. Negotiable warehouse receipts not liable to stamp-duty**.—Notwithstanding anything contained in this Act, negotiable warehouse receipts shall not be liable to stamp duty.]

[4]**[8D. Agreement or document for assignment of receivables not liable to stamp-duty.**—Notwithstanding anything contained in this Act or any other law for the time being in force, any agreement or other document for assignment of "receivables" as defined in clause (*p*) of section 2 of the

1. Subs. by Act 7 of 2019, s. 14, for section 8A (w.e.f. 1-7-2020). [Earlier notified w.e.f. 9-1-2020 followed by 1-4-2020]
2. Ins. by Act 18 of 2005, s.114 (w.e.f. 13-5-2005).
3. Ins. by Act 37 of 2007, s. 55 (w.e.f. 25-10-2010).
4. Ins. by Act 12 of 2012, s. 35 and the Schedule (w.e.f. 1-2-2012).

Factoring Regulation Act, 2011 in favour of any "factor" as defined in clause (*i*) of section 2 of the said Act shall not be liable to duty under this Act or any other law for the time being in force.]

[1]**[8E. Conversion of a branch of any bank into a wholly owned subsidiary of bank or transfer of shareholding of a bank to a holding company of bank not liable to duty.** — Notwithstanding anything contained in this Act or any other law for the time being in force, —

(*a*) conversion of a branch of a bank into a wholly owned subsidiary of the bank or transfer of shareholding of a bank to a holding company of the bank in terms of the scheme or guidelines of the Reserve Bank of India shall not be liable to duty under this Act or any other law for the time being in force; or

(*b*) any instrument, including an instrument of, or relating to, transfer of any property, business, asset whether movable or immovable, contract, right, liability and obligation, for the purpose of, or in connection with, the conversion of a branch of a bank into a wholly owned subsidiary of the bank or transfer of shareholding of a bank to a holding company of the bank in terms of the scheme or guidelines issued by the Reserve Bank of India in this behalf, shall not be liable to duty under this Act or any other law for the time being in force.

Explanation.—

(*i*) For the purposes of this section, the expression "bank" means—

(*a*) "a banking company" as defined in clause (*c*) of section 5 of the Banking Regulation Act, 1949(10 of 1949);

(*b*) "a corresponding new bank" as defined in clause (*da*) of section 5 of the Banking Regulation Act, 1949 (10 of 1949);

(*c*) "State Bank of India" constituted under section 3 of the State Bank of India Act, 1955 (23 of 1955);

(*d*) "a subsidiary bank" as defined in clause (*k*) of section 2 of the State Bank of India (Subsidiary Banks) Act, 1959 (38 of 1959);

(*e*) "a Regional Rural Bank" established under section 3 of the Regional Rural Banks Act, 1976 (21 of 1976);

(*f*) "a Co-operative Bank" as defined in clause (*cci*) of section 5 of the Banking Regulation Act, 1949 (10 of 1949);

(*g*) "a multi-State co-operative bank" as defined in clause (*cciiia*) of section 5 of the Banking Regulation Act, 1949(10 of 1949);

(*ii*) For the purposes of this section, the expression the "Reserve Bank of India" means the Reserve Bank of India constituted under section 3 of the Reserve Bank of India Act, 1934 (2 of 1934).]

[2]**[8F. Agreement or document for transfer or assignment of rights or interest in financial assets not liable to stamp-duty.**—Notwithstanding anything contained in this Act or any other law for the time being in force, any agreement or other document for transfer or assignment of rights or interest in financial assets of banks or financial institutions under section5 of the Securitisation and Reconstruction of Financial Assets and Enforcement of Security Interest Act, 2002, (54 of 2002) in favour of any asset

1. Ins. by Act 4 of 2013, s. 17 and the Schedule (w.e.f. 17-1-2013).
2. Ins. by Act 44 of 2016, s. 43 and the First Schedule (w.e.f. 1-9-2016).

reconstruction company, as defined in clause (*ba*) of sub-section (*1*) of section 2 of that Act, shall not be liable to duty under this Act.]

[1][**8G. Strategic sale, disinvestment, etc., of immovable property by Government company not liable to stamp duty.—**Notwithstanding anything contained in this Act or any other law for the time being in force, any instrument for conveyance or transfer of a business or asset or right in any immovable property from a Government company, its subsidiary, unit or joint venture,

(*i*) by way of strategic sale or disinvestment or demerger or any other scheme of arrangements or through any law, to another Government company or to the Central Government or any State Government or to the development financial institution established by any law made by Parliament; or

(*ii*) which is to be wound up, closed, struck-off, liquidated or otherwise shut down, to another Government company or to the Central Government or any State Government,

after approval of the Central Government or the State Government, as the case may be, shall not be liable to duty under this Act.

Explanation.—For the purposes of this section, "Government company" shall have the same meaning as assigned to it in clause (*45*) of section 2 of the Companies Act, 2013 (18 of 2013).]

9. Power to reduce, remit or compound duties. — [2][(*1*)] [3][The [4]*** Government] may, by rule or order published in the Official Gazette, —

(*a*) reduce or remit, whether prospectively or retrospectively, in the whole or any part of [5][the territories under its administration], the duties with which any instruments or any particular class of instruments, or any of the instruments belonging to such class, or any instruments when executed by or in favour of any particular class of persons, or by or in favour of any members of such class, are chargeable, and

(*b*) provide for the composition or consolidation of duties [6][of policies of insurance and] in the case of issues by any incorporated company or other body corporate [7][or of transfers (where there is a single transferee, whether incorporated or not)] of debentures, bonds or other marketable securities.

[8][(*2*) In this section the expression "the Government" means, —

(*a*) in relation to stamp-duty in respect of bills of exchange, cheques, promissory notes, bills of lading, letters of credit, policies of insurance, transfer of shares, debentures, proxies and receipts, and in relation to any other stamp-duty chargeable under this Act and falling within entry 96 in List I in the [9][Seventh Schedule to the Constitution, expect the subject matters referred to in clause (*b*) of sub-section (*1*)]; the Central Government;

(*b*) Save as aforesaid, the State Government.]

1. Ins. by Act 13 of 2021, s. 126 (w.e.f. 28-3-2021).
2. S. 9 re-numbered as sub-section (*1*) of that section by the A.O. 1950.
3. Subs. by the A.O. 1937, for "the G.G. in C".
4. The word "collecting" omitted by the A.O. 1950.
5. Subs. by the A.O. 1937, for "British India".
6. Ins. by Act 23 of 2004, s. 117.
7. Ins. by Act 32 of 1994, s. 99 (w.e.f. 13-9-1994).
8. Added by the A.O. 1950.
9. Subs by Act 21 of 2006 s. 69, for "Seventh Schedule to the Constitution" (w.e.f. 18-4-2006).

STATE AMENDMENTS

Karnataka

Insertion of new section 9A.—The following section shall be inserted, namely:—

9A. Power of State Government to consolidate duties in respect of receipts.—Subject to such conditions as may be specified, the State Government may, by order, provide for the consolidation of duties in respect of any receipts or class of receipts given by any person or class of persons including any Government.

[*Vide* Karnataka Act 29 of 1978, s. 2]

[1][AA.— *Of the liability of instruments of transaction in*

stock exchanges and depositories to duty

9A. Instruments chargeable with duty for transactions in stock exchanges and depositories.—(*1*) Notwithstanding anything contained in this Act,—

(*a*) when the sale of any securities, whether delivery based or otherwise, is made through a stock exchange, the stamp-duty on each such sale in the clearance list shall be collected on behalf of the State Government by the stock exchange or a clearing corporation authorised by it, from its buyer on the market value of such securities at the time of settlement of transactions in securities of such buyer, in such manner as the Central Government may, by rules, provide;

(*b*) when any transfer of securities for a consideration, whether delivery based or otherwise, is made by a depository otherwise than on the basis of any transaction referred to in clause (*a*), the stamp-duty on such transfer shall be collected on behalf of the State Government by the depository from the transferor of such securities on the consideration amount specified therein, in such manner as the Central Government may, by rules, provide;

(*c*) when pursuant to issue of securities, any creation or change in the records of a depository is made, the stamp-duty on the allotment list shall be collected on behalf of the State Government by the depository from the issuer of securities on the total market value of the securities as contained in such list, in such manner as the Central Government may, by rules, provide.

(*2*) Notwithstanding anything contained in this Act, the instruments referred to in sub-section (*1*) shall be chargeable with duty as provided therein at the rate specified in Schedule I and such instruments need not be stamped.

[2][Provided that no such duty shall be chargeable in respect of the instruments of transaction in stock exchanges and depositories established in any International Financial Services Centre set up under section 18 of the Special Economic Zones Act, 2005 (28 of 2005).]

1. Ins. by Act 7 of 2019, s. 15 (w.e.f. 1-7-2020). [Earlier notified w.e.f. 9-1-2020 followed by 1-4-2020.]
2. Ins. by Act 12 of 2020, s. 143 (w.e.f. 1-4-2020).

(*3*) From the date of commencement of this Part, no stamp-duty shall be charged or collected by the State Government on any note or memorandum or any other document, electronic or otherwise, associated with the transactions mentioned in sub-section (*1*).

(*4*) The stock exchange or a clearing corporation authorised by it or the depository, as the case may be, shall, within three weeks of the end of each month and in accordance with the rules made in this behalf by the Central Government, in consultation with the State Government, transfer the stamp-duty collected under this section to the State Government where the residence of the buyer is located and in case the buyer is located outside India, to the State Government having the registered office of the trading member or broker of such buyer and in case where there is no such trading member of the buyer, to the State Government having the registered office of the participant:

Provided that before such transfer, the stock exchange or the clearing corporation authorised by it or the depository shall be entitled to deduct such percentage of stamp-duty towards facilitation charges as may be specified in such rules.

Explanation.—The term "participant" shall have the same meaning as assigned to it in clause (*g*) of section 2 of the Depositories Act, 1996 (22 of 1996).

(*5*) Every stock exchange or the clearing corporation authorised by it and depository shall submit to the Government details of the transactions referred to in sub-section (*1*) in such manner as the Central Government may, by rules, provide.

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9B. Instruments chargeable with duty for transactions otherwise than through stock exchanges and depositories.—Notwithstanding anything contained in this Act,—

(*a*) when any issue of securities is made by an issuer otherwise than through a stock exchange or depository, the stamp-duty on each such issue shall be payable by the issuer, at the place where its registered office is located, on the total market value of the securities so issued at the rate specified in Schedule I;

(*b*) when any sale or transfer or reissue of securities for consideration is made otherwise than through a stock exchange or depository, the stamp-duty on each such sale or transfer or reissue shall be payable by the seller or transferor or issuer, as the case may be, on the consideration amount specified in such instrument at the rate specified in Schedule I.]

B.—*Of Stamps and the mode of using them*

10. Duties how to be paid.—(*1*) Except as otherwise expressly provided in this Act, all duties with which any instruments are chargeable shall be paid, and such payment shall be indicated on such instruments, by means of stamps —

(*a*) according to the provisions herein contained; or

(*b*) when no such provision is applicable thereto—as the [1][State Government] may be rule direct.

(*2*) The rules made under sub-section (*1*) may, among other matters, regulate,—

(*a*) in the case of each kind of instrument—the description of stamps which may be used;

1. Subs. by the A.O. 1950, for "collecting Government".

(*b*) in the case of instruments stamped with impressed stamps—the number of stamps which may be used;

(*c*) in the case of bills of exchange or promissory notes [1]*** the size of the paper on which they are written.

STATE AMENDMENTS

Assam

Insertion of section 10A.—The principal Act, after the existing section the following shall be inserted as section 10A, namely:—

"**10A. For shortage of stamps how duty to be paid**—(*1*) Notwithstanding anything contained in Section 10, where the State Government or the Collector, as the case may be, is satisfied that there is shortage of stamps in the district or stamps of required denominations are not available, the State Government or the Collector may permit payment of the duty to be paid in cash or by way of Demand Draft or by Pay Order and authorize the Treasury Officer or Sub-Treasury Officer or Sub-Registrar or any other authorised officer, as the case may be, on production of a challan evidencing payment of duty in the Government Treasury or Sub-Treasury of a Demand Draft or by Pay Order drawn on a branch of any Schedule bank, as the case may be, after due verification, to certify in such manner as may be prescribed, by endorsement on the instrument of the amount of duty so paid in cash.

Explanation.—Government Treasury includes a Government Sub-Treasury and any other place as the State Government may, by notification in the Assam Gazette, appoint in this behalf:

Provided that the State Government may, be order published in the Official Gazette, direct that the power exercisable by it or by the Collector under this Section may be exercised by such other officers as may be specified in the order.

(*2*) An endorsement made on any instrument under sub-section (*1*) shall have the same effect as if the duty of an amount equal to the amount stated in the endorsement has been paid in respect thereof and such payment has been indicated on such instrument by means of stamps in accordance with the requirements of section 10.

(*3*) Nothing in this section shall apply to,—

(*i*) the payment of stamp duty chargeable on the instruments specified in Entry 91 of List I of the Seventh Schedule to the Constitution of India; and

(*ii*) the instruments presented after six months from the date of their execution or first execution."

[*Vide* Assam Act 22 of 2004, s. 2]

1. The words "written in any oriental language" omitted by Act 43 of 1955, s. 5 (w.e.f. 1-4-1956).

Meghalaya

Amendment of section 10 of Central act 2 of 1899.—In the Indian Stamp Act, 1899 after section 10 the following new section shall be inserted as section 10A, namely:--

"10A. Notwithstanding anything contained in section 10 where,

(a) (i) The State Government, in relation to any area in the State; or

(ii) the Deputy Commissioner, in relation to any area in District under his charge, is satisfied that on account of temporary, shortage of stamps in any area, duty cannot be paid, and payment of duty cannot be indicated on instruments, by means of Stamps, the State Government, or as the case may be, the Deputy Commissioner may, by notification, in the Official Gazette, direct that in such area and for such period as maybe specified in such notification, the duty may be paid in cash in any Treasury or Sub-Treasury and shall on production of a challan evidencing payments of stamp duty in the Government treasury certify endorsement on the instrument in respect of which the stamp duty is paid, that the duty has been paid, and state in the said endorsement the amount of the duty so paid.

(b) An endorsement made on any instrument under clause (a) shall have the same effect as if the duty of an amount equal to the amount stated in the endorsement had been paid in respect of, and such payment has been indicated on, such instrument by means of stamps, under section 10."

[*Vide* Meghalaya Act 6 of 1973, s.2]

Uttar Pradesh

Amendment of section 10-A.— In section 10-A of the Principal Act, for sub-section (1) the following sub-section shall be substituted namely :—

"(1) Notwithstanding anything contained in section 10—

(a) where the Collector is satisfied that there is temporary shortage of stamps in the district or that stamps of required denominations are not available, he may permit duty to be paid in cash and authorize the officer-in-charge of the treasury on production of a challan evidencing payment of duty in the Government treasury or sub-treasury, to certify by endorsement on the instrument or instruments the amount of duty so paid in cash ;

(b) where the State Government considers it expedient so to do, it may, in any district, permit duty to be paid in cash and authorize any officer, to receive payment of duty in cash and to certify by endorsement by means of a Franking machine on the instrument or instruments the amount of duty so paid in cash.

[*Vide* Uttar Pradesh Act 11 of 1992, s. 3]

Uttar Pradesh

Insertion of new section 10-A.— *After* section 10 of the principal Act, the following section shall be *inserted*, namely :—

"10-A. Payment of duty in cash.—(1) Notwithstanding anything contained in section 10, where the Collector is satisfied that there is temporary shortage of stamps in the district or that stamps of required denominations are not available, he may permit duty to be paid in cash and authorize the officer-in-charge of the treasury on production of a challan evidencing payment of duty in the

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Government treasury or sub-treasury, to certify by endorsement on the instruments or instruments the amount of duty so paid in cash.

(2) An endorsement made on any instrument under sub-section (1) shall have the same effect as if the duty of an amount equal to the amount stated in the endorsement has been paid in respect thereof and such payment has been indicated on such instrument by means of stamps in accordance with the requirement of section 10."

[*Vide* Uttar Pradesh Act 20 of 1974, s. 4]

Haryana

Amendment of section 10 of Central Act 2 of 1899.—To sub-section (1) of section 10 of the Indian Stamp Act, 1899 the following proviso shall be added, namely: —

"Provided that whenever stamp paper of smaller value and denomination ranging from rupee one to rupees ten is in short supply or is not available, the duty payable under this Act, on any instrument, shall be paid in such manner as the State Government may by rules direct.",

[*Vide* Haryana Act 1 of 1987, s. 2]

Uttarakhand

Amendment of Section 10.—After section 10(A) the following section shall be inserted, namely:—

(10B) "*various modes of payment of duty*" Notwithstanding anything contained in section 10 & 10 (A) all duties with which any instruments are chargeable shall be paid,-

(1) by way of cash; or

(2) by demand draft; or

(3) by pay order; or

(4) by e-payment;

in Government Treasury or Sub-Treasury or General Stamp Office [or, as the case may be, Government Receipt Accounting System (G.R.A.S) (Virtual Treasury)] and such payment shall be indicated by endorsement on such instruments by an officer authorised by the State Government.

11. Use of adhesive stamps.—The following instruments may be stamped with adhesive stamps, namely: —

(*a*) instruments chargeable [1][with a duty not exceeding ten naye paise], except parts of bills of exchange payable otherwise than on demand and drawn in sets;

(*b*) bills of exchange, [2]*** and promissory notes drawn or made out of [3][India];

(*c*) entry as an advocate, vakil or attorney on the roll of a High Court;

(*d*) notarial acts; and

1. Subs. by Act 19 of 1958, s. 2, for "with the duty of one anna or half an anna" (w.e.f. 1-10-1958).
2. The word "cheques" omitted by Act 5 of 1927, s. 5.
3. Subs. by Act 43 of 1955, s. 2, for "the States" (w.e.f. 1-4-1956).

(*e*) transfers by endorsement of shares in any incorporated company or other body corporate.

STATE AMENDMENTS

Uttar Pradesh

Amendment of section 11.—In section 11 of the principal Act, in clause (c), after the words "State Bar Council of Uttar Pradesh" the words "and certificates of enrolment issued to Revenue Agents or Mukhtars" shall be *inserted*.

[*Vide* Uttar Pradesh Act 19 of 1982, s. 3]

Insertion of section 11-A.— After section 11 of the principal Act, the following section shall be inserted, namely :—

"**11-A**. **Payment of duty in cash on such memos.—** (1) Notwithstanding anything contained in section 11, the stamp duty due under Article 25-A of Schedule I-B on a counterpart or duplicate (including counterfoil or carbon copy) of a bill or cash memo may be paid either by means of stamps on the date of issue of such instruments, or in cash once in every quarter, for all such instruments issued in the previous quarter, into the treasury or sub-treasury under such head as the State Government may by general or special order direct.

(2) The treasury challan prepared for deposit of duty in cash shall be accompanied by such statement and shall be preserved for the purpose of verification for such period and proper account thereof shall be maintained in such form as the State Government may by general or special order direct."

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[*Vide* Uttar Pradesh Act 49 of 1975, s. 4]

Amendment of section 11.—In section 11 of the principal Act, in clause (c), after the words "State Bar Council of Uttar Pradesh" the words "and certificate of enrolment issued to Revenue Agents or Mukhtars" shall be inserted.

[*Vide* Uttar Pradesh Act 19 of 1981, s. 3]

12. Cancellation of adhesive stamps.—(*1*) (*a*) Whoever affixes any adhesive stamp to any instrument chargeable with duty which has been executed by any person shall, when affixing such stamp, cancel the same so that it cannot be used again; and

(*b*) whoever executes any instrument on any paper bearing an adhesive stamp shall, at the time of execution, unless such stamp has been already cancelled in manner aforesaid, cancel the same so that it cannot be used again.

(*2*) Any instrument bearing an adhesive stamp which has not been cancelled so that it cannot be used again, shall, so far as such stamp is concerned, be deemed to be unstamped.

(*3*)The person required by sub-section (*1*) to cancel an adhesive stamp may cancel it by writing on or across the stamp his name or initials or the name or initials of his firm with the true date of his so writing, or in any other effectual manner.

13. Instruments stamped with impressed stamps how to be written.—Every instrument written upon paper stamped with an impressed stamp shall be written in such manner that the stamp may appear on the face of the instrument and cannot be used for or applied to any other instrument.

14. Only one instrument to be on same stamp.—No second instrument chargeable with duty shall be written upon a piece of stamped paper upon which an instrument chargeable with duty has already been written:

Provided that nothing in this section shall prevent any endorsement which is duly stamped or is not chargeable with duty being made upon any instrument for the purpose of transferring any right created or evidenced thereby, or of acknowledging the receipt of any money or goods the payment or delivery of which is secured thereby.

15. Instrument written contrary to section 13 or 14 deemed unstamped.—Every instrument written in contravention of section 13 or section 14 shall be deemed to be unstamped.

16. Denoting duty.—Where the duty with which an instrument is chargeable, or its exemption from duty, depends in any manner upon the duty actually paid in respect of another instrument, the payment of such last-mentioned duty shall, if application is made in writing to the Collector for that purpose, and on production of both the instruments, be denoted upon such first-mentioned instrument by endorsement under the hand of the Collector or in such other manner (if any) as the [1][State Government] may by rule prescribe.

C.—*Of the time of stamping instruments*

17. Instruments executed in India.—All instruments chargeable with duty and executed by any person in [2][India] shall be stamped before or at the time of execution.

STATE AMENDMENT

Assam

Amendment of section 17.—In the principal Act, in Section 17, after the existing provision, the following proviso shall be inserted namely:—

"Provided that nothing in this Section shall apply to the instrument in respect of which stamp duty has been paid under section 10-A."

[*Vide* Assam Act 22 of 2004, s. 3]

18. Instruments other than bills and notes executed out of India.—(*1*) Every instrument chargeable with duty executed only out of [2][India], and not being a bill of exchange [3]*** or promissory note, may be stamped within three months after it has been first received in [2][India].

(*2*) Where any such instrument cannot, with reference to the description of stamp prescribed therefore, be duly stamped by a private person, it may be taken within the said period of three months to the Collector, who shall stamp the same, in such manner as the [1][State Government] may by rule prescribe, with a stamp of such value as the person so taking such instrument may require and pay for.

19. Bills and notes drawn out of India.—The first holder in [2][India] of any bill of exchange [4][payable otherwise than on demand], [3]*** or promissory note drawn or made out of [2][India] shall, before he presents the same for acceptance or payment, or endorses, transfers or otherwise negotiates the same in [2][India], affix thereto the proper stamp and cancel the same:

Provided that,—

(*a*) if, at the time any such bill of exchange, [3]*** or note comes into the hands of any holder thereof in [2][India], the proper adhesive stamp is affixed thereto and cancelled in manner prescribed by section 12 and such holder has no reason to believe that such stamp was affixed or cancelled otherwise than by the person and at the time required by this Act, such stamp shall, so far as relates to such holder, be deemed to have been duly affixed and cancelled;

(*b*) nothing contained in this proviso shall relieve any person from any penalty incurred by him for omitting to affix or cancel a stamp.

1. Subs. by the A.O. 1950, for "collecting Government".
2. Subs. by Act 43 of 1955, s. 2, for "the States" (w.e.f. 1-4-1956).
3. The word "cheque" omitted by Act 5 of 1927, s. 5.
4. Ins. by Act 5 of 1927, s. 5.

STATE AMENDMENT

Himachal Pradesh

Addition of a new section 19-A.—After section 19 of the said Act the following new section shall be inserted, namely:-

19-A. Payment of duty on certain instruments liable to increased duty in Himachal Pradesh under clause (bb) of section 3.- Where any instrument has become chargeable in any part of India and thereafter becomes chargeable with higher rate of duty in the Himachal Pradesh under clause (*bb*) of the first proviso to section 3 as amended by the Indian Stamp (Himachal Pradesh Amendment) Act, 1952.

(*i*) notwithstanding anything contained in the said proviso, the amount of duty chargeable on such instrument shall be the amount chargeable on it under Schedule- I-A less the amount of duty, if any already paid on it in India,

(*ii*) in addition to the stamps, if any, already affixed thereto, such instrument shall be stamped with the stamps necessary for the payment of the amount of duty chargeable on it under clause (*i*) in the same manner and at the same time and by the same person as though such instrument were an instrument received in India for the first time at the time when it became chargeable with the higher duty.

[*Vide* Himachal Pradesh Act 4 of 1953, s. 7]

D.—*Of valuations for Duty*

20. Conversion of amount expressed in foreign currencies.—(*1*) Where an instrument is chargeable with *ad valorem* duty in respect of any money expressed in any currency other than that of [1][India] such duty shall be calculated on the value of such money in the currency of [1][India] according to the current rate of exchange on the day of the date of the instrument.

(*2*) The Central Government may, from time to time, by notification in the Official Gazette, prescribe a rate of exchange for the conversion of British or any foreign currency into the currency of [1][India] for the purposes of calculating stamp-duty, and such rate shall be deemed to be the current rate for the purposes of sub-section (*1*).

21. Stock and marketable securities how to be valued.—Where an instrument is chargeable with *ad valorem* duty in respect of any stock or of any marketable or other security, such duty shall be calculated on [1][the market value of such stock or security.]

[2][Provided that the market value for calculating the stamp-duty shall be, in the case of—

(*i*) options in any securities, the premium paid by the buyer;

(*ii*) repo on corporate bonds, interest paid by the borrower; and

(*iii*) swap, only the first leg of the cash flow.]

22. Effect of statement of rate of exchange or average price.—Where an instrument contains a statement of current rate of exchange, or average price, as the case may require, and is stamped in accordance with such statement, it shall, so far as regards the subject-matter of such statement, be presumed, until the contrary is proved, to be duly stamped.

1. Subs. by Act 7 of 2019, s. 16, for "the value of such stock or security according to the average price or the value thereof on the day of the date of the instrument." (w.e.f. 1-7-2020). [Earlier notified w.e.f. 9-1-2020 followed by 1-4-2020].
2. Ins. by s. 16, *ibid*. (w.e.f. 1-7-2020). [Earlier notified w.e.f. 9-1-2020 followed by 1-4-2020].

23. Instruments reserving interest.—Where interest is expressly made payable by the terms of an instrument, such instrument shall not be chargeable with duty higher than that with which it would have been chargeable had no mention of interest been made therein.

[1]**[23A. Certain instruments connected with mortgages of marketable securities to be chargeable as agreements.—**(*1*) Where an instrument (not being a promissory note or bill of exchange)**—**

(*a*) is given upon the occasion of the deposit of any marketable security by way of security for money advanced or to be advanced by way of loan, or for an existing or future debt, or

(*b*) makes redeemable or qualifies a duly stamped transfer, intended as a security, of any marketable security,

it shall be chargeable with duty as if it were an agreement or memorandum of an agreement chargeable with duty under [2][Article No. 5 (c)] of Schedule I.

(*2*) A release or discharge of any such instrument shall only be chargeable with the like duty.]

STATE AMENDMENT

Himachal Pradesh

Amendment of section 23-A.— In sub-section (1) of section 23-A of the said Act, for the word and figure 'Schedule-I' the word, figure and letter "Schedule I-A" shall be substituted.

[*Vide* Himachal Pradesh Act 4 of 1953, s. 8]

24. How transfer in consideration of debt, or subject to future payment, etc., to be charged. — Where any property is transferred to any person in consideration, wholly or in part, of any debt due to him, or subject either certainly or contingently to the payment or transfer of any money or stock, whether being or constituting a charge or incumbrance upon the property or not, such debt, money or stock is to be deemed the whole or part, as the case may be, of the consideration in respect whereof the transfer is chargeable with *ad valorem* duty:

Provided that, nothing in this section shall apply to any such certificate of sale as is mentioned in Article No. 18 of Schedule I.

Explanation.—In the case of a sale of property subject to a mortgage or other incumbrance, any unpaid mortgage money or money charged, together with the interest (if any) due on the same, shall be deemed to be part of the consideration for the sale:

Provided that, where property subject to a mortgage is transferred to the mortgagee, he shall be entitled to deduct from the duty payable on the transfer the amount of any duty already paid in respect of the mortgage.

Illustrations

(*1*) A owes B Rs. 1,000. A sells a property to B, the consideration being Rs. 500 and the release of the previous debt of Rs. 1,000. Stamp-duty is payable on Rs. 1,500.

(*2*) A sells a property to B for Rs. 500 which is subject to a mortgage to C for Rs. 1,000 and unpaid interest Rs 200. Stamp-duty is payable on Rs. 1,700.

(*3*) A mortgages a house of the value of Rs. 10,000 to B for Rs. 5,000. B afterwards buys the house from A. Stamp-duty is payable on Rs. 10,000 less the amount of stamp-duty already paid for the mortgage.

1. Ins. by Act 15 of 1904, s. 3.
2. Subs. by Act 1 of 1912, s. 3, for "Article No. 5(*b*)".

STATE AMENDMENTS

Himachal Pradesh

Amendment of section 24.— In the proviso to section 24, of the said Act, for the full stop shall be substituted a comma followed by the words "or Schedule I -A, as the case may be.

[*Vide* Himachal Pradesh Act 4 of 1953, s. 9]

Orissa

Amendment of section 24.— In Section 24 of the Indian Stamp Act, 1899 (2 of 1899) (herein after referred to as the principal Act), for the words "in respect whereof the transfer is chargeable with ad valorem duty" the words "and the transfer is chargeable with ad valorem duty in respect of the consideration or the market value of the property so transferred, whichever is higher," shall be substituted.

[*Vide* Orissa Act 7 of 1987, s. 2]

25. Valuation in case of annuity, etc.—Where an instrument is executed to secure the payment of an annuity or other sum payable periodically, or where the consideration for a conveyance is an annuity or other sum payable periodically, the amount secured by such instrument or the consideration for such conveyance, as the case may be, shall, for the purposes of this Act, be deemed to be,—

(*a*) where the sum is payable for a definite period so that the total amount to be paid can be previously ascertained—such total amount;

(*b*) where the sum is payable in perpetuity or for an indefinite time not terminable with any life in being at the date of such instrument or conveyance—the total amount which, according to the terms of such instrument or conveyance, will or may be payable during the period of twenty years calculated from the date on which the first payment becomes due; and

(*c*) where the sum is payable for an indefinite time terminable with any life in being at the date of such instrument or conveyance—the maximum amount which will or may be payable as aforesaid during the period of twelve years calculated from the date on which the first payment becomes due.

26. Stamp where value of subject-matter is indeterminate.—Where the amount or value of the subject-matter of any instrument chargeable with *ad valorem* duty cannot be, or (in the case of an instrument executed before the commencement of this Act) could not have been, ascertained at the date of its execution or first execution, nothing shall be claimable under such instrument more than the highest amount or value for which, if stated in an instrument of the same description, the stamp actually used would, at the date of such execution, have been sufficient:

[1][Provided that, in the case of the lease of a mine in which royalty or a share of the produce is received as the rent or part of the rent, it shall be sufficient to have estimated such royalty or the value of such share, for the purpose of stamp-duty,—

(*a*) when the lease has been granted by or on behalf of [2][the Government], at such amount or value as the Collector may, having regard to all the circumstances of the case, have estimated as likely to be payable by way of royalty or share to [3][the Government] under the lease, or

(*b*) when the lease has been granted by any other person, at twenty thousand rupees a year,

and the whole amount of such royalty or share, whatever it may be, shall be claimable under such lease:]

Provided also that where proceedings have been taken in respect of an instrument under section 31 or 41, the amount certified by the Collector shall be deemed to be the stamp actually used at the date of execution.

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1. Subs. by Act 15 of 1904, s. 4, for the proviso.
2. Subs. by the A.O. 1937, for "the secretary of State in Council".
3. Subs., *ibid*., for "the said Secretary of State in Council".

27. Facts affecting duty to be set forth in instrument.—The consideration (if any) and all other facts and circumstances affecting the chargeability of any instrument with duty, or the amount of the duty with which it its chargeable, shall be fully and truly set forth therein.

STATE AMENDMENTS

Assam

Amendment of section 27.—In the principal Act, in section 27, for the words and brackets, "The consideration (if any)", the words "the market value of the property" shall be substituted."

[*Vide* Assam Act 22 of 2004, s. 4]

Amendment of section 27.—In the principal Act, after section 27, the following new section shall be inserted namely:—

"**27A. Instrument of conveyance etc. under valued how to be dealt with**.—(*1*) If the Registering Officer appointed under the Registration Act, 1908 (Central Act 16 of 1908) while registering any instrument of conveyance, exchange or gift has reason to believe that the market value of the property as fixed by the Government/Collector of the district, which is subject matter of conveyance, exchange or gift had not been truly set forth in the instrument, he may after registering such instrument, refer the same to the Collector for determination of the market value of such proper and the property duty payable thereon.

(*2*) On receipt of a reference under sub-section (*1*), the Collector shall, after giving the parties a reasonable opportunity of being heard and after holding an enquiry in such manner as may be prescribed by rules made under this Act, determine the market value of the property which is the subject matter of conveyance, exchange or gift and the duty as aforesaid, and thereupon the difference, if any, in the amount of duty, shall be payable by the persons liable to pay the duty.

(*3*) The Collector may, on his own motion or otherwise, within two years from the date of registration of any instrument or conveyance, exchange or gift not already referred to him under sub-section (*1*) call for and examine the instrument for the purpose of satisfying himself as to the correctness of the market value of the property as set forth in such instrument, which is the subject matter of conveyance, exchange or gift and the duty payable thereon and if after such examination he has reason to believe that the market value of such property has not been truly set forth in the instrument, he may determine the market value of such property and the duty as aforesaid and thereupon the difference, if any in the amount of duty, shall be payable by the person liable to pay the duty:

Provided that nothing in this sub-section shall apply to instrument registered before the date of commencement of the Indian Stamp (Assam Amendment) Act, 2004.

(*4*) Any person aggrieved by an order of the Collector under sub-section (*2*) or sub-section (*3*) may prefer an appeal to the Civil Judge of appropriate jurisdiction and all such appeals shall be preferred within such time and shall be heard and disposed of in such manner as may be prescribed.

Explanation—For the purpose of this Act, market value of any property shall be estimated to be the price which in the opinion of the Collector or the Civil Judge Senior Division, as the case may be, such property would have fetched or would fetch, if sold in the open market on the date of execution of the instrument of conveyance, exchange or gift.

[*Vide* Assam Act 22 of 2004, s. 5]

STATE AMENDMENTS

Himachal Pradesh

Amendment of section 27.—For the words and brackets "The consideration (if any)" occurring in section 27 of the Indian Stamp Act, 1899 (2 of 1899) (hereinafter called as the principal Act), the words and signs "The consideration, if any, the market value of the property" shall be substituted.

[*Vide* Himachal Pradesh Act 7 of 1989, s. 2]

Orissa

Amendment of section 27.— In Section 27 of the principal Act, for the words and brackets "the consideration if any", the words and commas "the consideration, if any, the market value of the property" shall be substituted.

[*Vide* Orissa Act 7 of 1987, s. 3]

28. Direction as to duty in case of certain conveyances.—(*1*) Where any property has been contracted to be sold for one consideration for the whole, and is conveyed to the purchaser in separate parts by different instruments, the consideration shall be apportioned in such manner as the parties think fit, provided that a distinct consideration for each separate part is set forth in the conveyance relating thereto, and such conveyance shall be chargeable with *ad valorem* duty in respect of such distinct consideration.

(*2*) Where property contracted to be purchased for one consideration for the whole, by two or more persons jointly, or by any person for himself and others, or wholly for others, is conveyed in parts by separate instruments to the persons by or for whom the same was purchased, for distinct parts of the consideration, the conveyance of each separate part shall be chargeable with *ad valorem* duty in respect of the distinct part of the consideration therein specified.

(*3*) Where a person, having contracted for the purchase of any property but not having obtained a conveyance thereof, contracts to sell the same to any other person and the property is in consequence

conveyed immediately to the sub-purchaser the conveyance shall be chargeable with *ad valorem* duty in respect of the consideration for the sale by the original purchaser to the sub-purchaser.

(*4*) Where a person, having contracted for the purchase of any property but not having obtained a conveyance thereof, contracts to sell the whole, or any part thereof, to any other person or persons and the property is in consequence conveyed by the original seller to different persons in parts, the conveyance of each part sold to a sub-purchaser shall be chargeable with *ad valorem* duty in respect only of the consideration paid by such sub-purchaser, without regard to the amount or value of the original consideration; and the conveyance of the residue (if any) of such property to the original purchaser shall be chargeable with *ad valorem* duty in respect only of the excess of the original consideration over the aggregate of the considerations paid by the sub-purchasers:

Provided that the duty on such last-mentioned conveyance shall in no case be less than one rupee.

(*5*) Where a sub-purchaser takes an actual conveyance of the interest of the person immediately selling to him, which is chargeable with *ad valorem* duty in respect of the consideration paid by him and is duly stamped accordingly, any conveyance to be afterwards made to him of the same property by the original seller shall be chargeable with a duty equal to that which would be chargeable on a conveyance for the consideration obtained by such original seller, or, where such duty would exceed five rupees, with a duty of five rupees.

STATE AMENDMENT

Orissa

Amendment of section 28.— In Section 28 of the principal Act,—

(*i*) for sub-section (*1*), the following sub-section shall be substituted, namely:—

"(*1*) where any property has been contracted to be sold for one consideration for the whole, and is conveyed to the purchaser in separate parts by different instruments, the consideration shall be apportioned in such manner as the parties think fit:

Provided that a distinct consideration for each separate part is set forth in the conveyance relating thereto and such conveyance shall be chargeable with *ad valorem* duty in respect of such distinct consideration:

Provided further that the market value of the separate part shall be set forth along with the consideration for each part and the conveyance shall be chargeable with *ad valorem.*

[duty in respect of such distinct consideration or the market value, whichever is higher.".

(*ii*) to sub-section (*2*) the following words and comma shall be added at the end, namely:—

"or the market value of each such separate part whichever is higher.";

(*iii*) to sub-section (*3*) the following words and comma shall be added at the end, namely:—

"or the market value of the property, whichever is higher.".

(*iv*) for sub-section (*4*), the following sub-section shall be substituted, namely:-

"(4) where a person, having contracted for the purchase of any property but not having obtained a conveyance thereof, contracts to sell the whole, or any part thereof, to any other person or persons and the property is in consequence conveyed by the original seller to different persons in part, the conveyance of each part sold to a sub-purchaser shall be chargeable with *ad valorem* duty in respect of the consideration paid by such sub-purchaser or the market value of each part whichever is higher without regard to the amount or value of the original consideration; and the conveyance of the residue, if any , of such property to the original purchaser shall be chargeable with *ad valorem* duty in respect only of the excess of the original consideration over the aggregate of the considerations paid by the sub-purchasers or the market value of the residue of such property whichever is higher:

Provided that the duty on such last mentioned conveyance shall in no case be less than one rupee.".

(*v*) for sub-section (*5*), the following sub-section shall be substituted, namely:—

"(5) Where a sub-purchaser takes an actual conveyance of the interest of the person immediately selling to him, which is chargeable with *ad valorem* duty in respect of consideration paid by him or the market value of the property whichever is higher and is duly stamped accordingly, any conveyance to be afterwards made to him of the same property by the original seller shall be chargeable with a duty equal to that which would be chargeable on a conveyance for the consideration obtained by such original seller or the market value of such property whichever is higher, or, where such duty would exceed five rupees with a duty of five rupees",]

[*Vide* Orissa Act 7 of 1987, s. 4]

E.—*Duty by whom payable*

29. Duties by whom payable.—In the absence of an agreement to the contrary, the expense of providing the proper stamp shall be borne —

(*a*) in the case of any instrument described in any of the following Articles of Schedule I, namely:—

No. 2. (Administration Bond),

indiacode

[1][No. 6 (Agreement relating to Deposit of Title-deeds, Pawn or Pledge),]

No. 13 (Bill of exchange),

No. 15 (Bond),

No. 16 (Bottomry Bond),

No. 26 (Customs Bond),

[2]* * * * *

No. 32 (Further charge),

No. 34 (Indemnity-Bond),

No. 40 (Mortgage-deed),

No. 49 (Promissory-note),

No. 55 (Release),

No. 56 (Respondentia Bond),

No. 57 (Security-bond or Mortgage-deed),

No. 58 (Settlement),

[3]* * * * *

[4]* * * * *

No. 62 (*c*). (Transfer of any interest secured by a bond, mortgage-deed or policy of insurance),—

by the person drawing, making or executing such instrument:

[5][(*b*) in the case of a policy of insurance other than fire-insurance—by the person effecting the insurance;

(*bb*) in the case of a policy of fire-insurance— by the person issuing the policy;]

(*c*) in the case of a conveyance (including re-conveyance of mortgaged property) by the grantee: in the case of a lease or agreement to lease—by the lessee or intended lessee:

(*d*) in the case of a counterpart of a lease—by the lessor;

(*e*) in the case of an instrument of exchange [6][including swap]—by the parties in equal shares,

(*f*) in the case of a certificate of sale—by the purchaser of the property to which such certificate relates; [7]***

(*g*) in the case of an instrument of partition—by the parties thereto in proportion to their respective shares in the whole property partitioned or, when the partition is made in execution of an order passed by a Revenue-authority or Civil Court or arbitrator, in such proportion as such authority, Court or arbitrator directs.

[8][(*h*) in the case of sale of security through stock exchange, by the buyer of such security;

1. Subs. by Act 15 of 1904, s. 5, for "No. 6 (Agreement to Mortgage)".
2. The words, figures and brackets "No. 27 (Debenture)" omitted by Act 7 of 2019, s. 17 (w.e.f. 1-7-2020). [Earlier notified w.e.f. 9-1-2020 followed by 1-4-2020]
3. The words, figures, brackets and letter "No. 62 (*a*) (Transfer of shares in an incorporated Company or other body corporate)" omitted by s. 17, *ibid*. (w.e.f. 1-7-2020). [Earlier notified w.e.f. 9-1-2020 followed by 1-4-2020]
4. The words, figures, brackets and letter "No. 62 (*b*). (Transfer of debentures, being marketable securities, whether the debenture is liable to duty or not, except debentures provided for by section 8)," omitted by s. 17, *ibid*. (w.e.f. 1-7-2020). [Earlier notified w.e.f. 9-1-2020 followed by 1-4-2020]
5. Subs. by Act 5 of 1906, s. 4, for clause (*b*).
6. Ins. by Act 7 of 2019, s. 17 (w.e.f. 1-7-2020). [Earlier notified w.e.f. 9-1-2020 followed by 1-4-2020]
7. The "and" omitted by Act 7 of 2019, s. 17 (w.e.f. 1-7-2020). [Earlier notified w.e.f. 9-1-2020 followed by 1-4-2020]
8. Ins. by Act 7 of 2019, s. 17 (w.e.f. 1-7-2020). [Earlier notified w.e.f. 9-1-2020 followed by 1-4-2020]

(*i*) in the case of sale of security otherwise than through a stock exchange, by the seller of such security;

(*j*) in the case of transfer of security through a depository, by the transferor of such security;

(*k*) in the case of transfer of security otherwise than through a stock exchange or depository, by the transferor of such security;

(*l*) in the case of issue of security, whether through a stock exchange or a depository or otherwise, by the issuer of such security; and

(*m*) in the case of any other instrument not specified herein, by the person making, drawing or executing such instrument.]

STATE AMENDMENTS

Uttar Pradesh

Amendment of section 29.— In section 29 of the principal Act,—

(a) in clause (a), after the words and figures, "No. 40 (Mortgage deed)," the words and figure, "No. 43 (Note or Memorandum)" shall be *inserted* ;

(b) after the clause (f) the following clause shall be inserted, namely:—

"(ff) in the case of an Instrument of Gift, by the donee"

[*Vide* Uttar Pradesh Act 38 of 2001, s. 3]

Uttarakhand

Amendment of Section 29.—In section 29 of the Principal Act,-

(a) In clause (a), after the words (and figures, "No. 40 (Mortgage deed))," the words (and figures "No. 43 (Note or memorandum))," shall be inserted;
(b) after clause (f), the following clause shall be inserted, namely,-

"(f-f) in the case of an Instrument of Gift by the donee;"

[*Vide* Uttarakhand Act 1 of 2016, s. 4]

30. Obligation to give receipt in certain cases.—Any person receiving any money exceeding twenty rupees in amount, or any bill of exchange, cheque or promissory note for an amount exceeding twenty rupees, or receiving in satisfaction or part satisfaction of a debt any movable property exceeding twenty rupees in value, shall, on demand by the person paying or delivering such money, bill, cheque, note or property, give a duly stamped receipt for the same.

[1][Any person receiving or taking credit for any premium or consideration for any renewal of any contract of fire-insurance, shall, within one month after receiving or taking credit for such premium or consideration, give a duly stamped receipt for the same.]

CHAPTER III

ADJUDICATION AS TO STAMPS

31. Adjudication as to proper stamp.—(*1*) When any instrument, whether executed or not and whether previously stamped or not, is brought to the Collector, and the person bringing it applies to have the opinion of that officer as to the duty (if any) with which it is chargeable, and pays a fee of such amount (not exceeding five rupees and not less than [2][fifty naye paise]) as the Collector may in each case direct, the Collector shall determine the duty (if any) with which, in his judgment, the instrument is chargeable.

1. Added by Act 5 of 1906, s. 5.
2. Subs. by Act 19 of 1958, s. 3, for "eight annas" (w.e.f. 1-10-1958).

(*2*) For this purpose the Collector may require to be furnished with an abstract of the instrument, and also with such affidavit or other evidence as he may deem necessary to prove that all the facts and circumstances affecting the chargeability of the instrument with duty, or the amount of the duty with which it is chargeable, are fully and truly set forth therein, and may refuse to proceed upon any such application until such abstract and evidence have been furnished accordingly:

Provided that—

(*a*) no evidence furnished in pursuance of this section shall be used against any person in any civil proceeding, except in an inquiry as to the duty with which the instrument to which it relates is chargeable; and

(*b*) every person by whom any such evidence is furnished, shall, on payment of the full duty with which the instrument to which it relates, is chargeable, be relieved from any penalty which he may have incurred under this Act by reason of the omission to state truly in such instrument any of the facts or circumstances aforesaid.

STATE AMENDMENTS

Orissa

Amendment of Section 31.—In section 31 of the principal Act, in sub-section (*1*), for the words "not exceeding five rupees" and "not less than fifty naye paise", the words "not exceeding twenty rupees" and "not less than five rupees", shall respectively be substituted

[*Vide* Orissa Act 1 of 2003, s. 4]

Uttarakhand

Amendment of section 31.—In section 31 if the Principal Act:—

In sub-section (1), for the words, "Pays a fee of such amount not exceeding five rupees and not less than fifty paisa as the collector may in Each case direct," the words, "Pays a fee such amount as may be fixed by State Government By notification in the Official Gazette", shall be substituted.

[*Vide* Uttarakhand Act 1 of 2016, s. 5]

Uttar Pradesh

Amendment of section 31.— In section 31 of the principal Act, in sub-section (1), for the words, "such amount not exceeding five rupees and not less than fifty paise as the collector may in each case direct", the words, "such amount as may be fixed by the State Government by notification in the Official Gazette", shall be substituted.

[*Vide* Uttar Pradesh Act 38 of 2001, s. 4]

32. Certificate by Collector.—(*1*) When an instrument brought to the Collector under section 31 is, in his opinion, one of a description chargeable with duty, and

(*a*) the Collector determines that it is already fully stamped, or

(*b*) the duty determined by the Collector under section 31, or such a sum as, with the duty already paid in respect of the instrument, is equal to the duty so determined, has been paid,

the Collector shall certify by endorsement on such instrument that the full duty (stating the amount) with which it is chargeable has been paid.

(*2*) When such instrument is, in his opinion, not chargeable with duty, the Collector shall certify in manner aforesaid that such instrument is not so chargeable.

IndiaCode

(*3*) Any instrument upon which an endorsement has been made under this section, shall be deemed to be duly stamped or not chargeable with duty, as the case may be; and, if chargeable with duty, shall be receivable in evidence or otherwise, and may be acted upon and registered as if it had been originally duly stamped:

Provided that nothing in this section shall authorize the Collector to endorse—

(*a*) any instrument executed or first executed in [1][India] and brought to him after the expiration of one month from the date of its execution or first execution, as the case may be;

(*b*) any instrument executed or first executed out of [1][India] and brought to him after the expiration of three months after it has been first received in [1][India]; or

(*c*) any instrument chargeable [2][with a duty not exceeding ten naye paise], or any bill of exchange or promissory note, when brought to him, after the drawing or execution thereof, on paper not duly stamped.

STATE AMENDMENTS

Himachal Pradesh

Amendment of section 32.— In section 32 of the said Act,—

(1) in clause (*a*) of the proviso, after the words "any instrument" the words "other than an instrument chargeable with a duty under clause (*bb*) of the first proviso to section 3 as amended by the Indian Stamp (Himachal Pradesh Amendment) Act, 1952" shall be inserted.

(2) the word "or" at the end of clause (*b*) of the proviso shall be omitted,

(3) after clause (*c*) of the proviso the word "or" shall be inserted, and the following new clause shall be added:-

(*d*) any instrument chargeable with duty under clause (*bb*) of the first proviso to section 3 as amended by the Indian Stamp (Himachal Pradesh Amendment) Act, 1952, and brought to him after the expiration of three months from the date on which it is first received in Himachal Pradesh.

[*Vide* Himachal Pradesh Act 4 of 1953, s. 10]

CHAPTER IV

INSTRUMENTS NOT DULY STAMPED

33. Examination and impounding of instruments.—(*1*) Every person having by law or consent of parties authority to receive evidence, and every person in charge of a public office, except an officer of police, before whom any instrument, chargeable, in his opinion, with duty, is produced or comes in the performance of his functions, shall, if it appears to him that such instrument is not duly stamped, impound the same.

(*2*) For that purpose every such person shall examine every instrument so chargeable and so produced or coming before him, in order to ascertain whether it is stamped with a stamp of the value and description required by the law in force in [1][India] when such instrument was executed or first executed:

Provided that—

(*a*) nothing herein contained shall be deemed to require any Magistrate or Judge of a Criminal Court to examine or impound, if he does not think fit so to do, any instrument coming before him in the course of any proceeding other than a proceeding under Chapter XII or Chapter XXXVI of the Code of Criminal Procedure, 1898 (V of 1898);

1. Subs. by Act 43 of 1955, s. 2, for "the States" (w.e.f. 1-4-1956).
2. Subs. by Act 19 of 1958, s. 4, for "with the Duty of one anna or half an anna" (w.e.f. 1-10-1958).

(*b*) in the case of a Judge of a High Court, the duty of examining and impounding any instrument under this section may be delegated to such officer as the Court appoints in this behalf.

(*3*) For the purposes of this section, in cases of doubt, —

(*a*) [1][the [2][State Government]] may determine what offices shall be deemed to be public offices; and

(*b*) [3][the [2][State Government]] may determine who shall be deemed to be persons in charge of public offices.

STATE AMENDMENTS

Orissa

Amendment of Section 33.—In section 33 of the principal Act after sub-section (*1*), the following sub-sections shall be inserted, namely:—

"(1-*a*) If it appears to such person from the copy of an instrument produced or coming in performance of his functions, within three years from the date of registration of the instrument, that such instrument is not duly stamped, he shall call for the original instrument and if he is satisfied on production of the instrument that it has not been duly stamped, impound the same and the deficient amount of duty shall be payable by the person liable to pay the duty.

(1-*b*) Where the original instrument is not produced such person shall refer the copy of the instrument to the Collector for determination of the market value of the property and the duty payable thereon and the Collector may determine the market value of the property and the duty as aforesaid in accordance with the procedure provided for in sub-section (2) of section 47-A.".

[*Vide* Orissa Act 7 of 1987, s. 5]

Uttar Pradesh

Amendment of section 33 of Act no. 11 of 1899.—In section 33 of the Indian Stamp Act, 1899, as amended in its application to Uttar Pradesh, hereinafter in this Chapter referred to as the principal Act, --

(i) in sub-section (2), in the proviso, in clause (a), for the words and figures Chapter XII or Chapter XXXVI of the Code of Criminal Procedure, 1898", the words and figures "sections 125 to 128 and sections 145 to 148 of the Code of Criminal Procedure, 1973" shall be substituted.

(ii) after sub-section (2), for the existing sub-sections, the following sub-sections shall be substituted, namely:--

"(3) For the purpose of this section the State Government may in cases of doubt, determine what offices shall be deemed to be public offices and who shall be deemed to be persons in charge of public offices.

(4) Where deficiency in stamp duty paid is noticed from the any court or from the Commissioner of Stamps or an, Additional Commissioner of Stamp or a Deputy Commissioner of Stamps or an Assistant Commissioner of Stamps or any officer authorized by the Board of Revenue in that behalf, call for the original instrument so purpose, and the instrument so produced before the Collector shall be deemed to have been produced or come before him in the performance of his functions.

1. Subs. by the A.O. 1937, for "the G.G. in C.".
2. Subs. by the A.O. 1950, for "collecting Government".
3. Subs. by the A.O. 1937, for "the L.G.".

(5) In case the instrument is not produced within the period specified by the Collector, he may require payment of deficit stamp duty, if any, together with penalty under section 40 on the copy of the instrument:

Provided that no action under sub-section (4) or sub-section (5) shall be taken after a period of four years from the date of execution of the instrument."

[*Vide* Uttar Pradesh Act 6 of 1980, s. 6]

Amendment of section 33 of Act no. 11 of 1899.—In section 33 of the Indian Stamp Act, 1899 hereinafter referred to as the Principal Act, in sub-section (5), after the existing proviso the following Proviso shall be inserted. namely :—

"Provided further that with the prior permission of the State Government an action under sub-section (4) or sub-section (5) may be taken after a period of four years but before a period of eight years from the date of execution of the instrument."

[*Vide* Uttar Pradesh Act 22 of 1998, s. 2]

Amendment of section 33.—In section 33 of the principal Act, after sub-section (2), the following sub-sections shall be *inserted*, namely :—

(3) Where deficiency in stamp duty paid is noticed from the copy of any instruments, the Collector may *suo motu* or on a reference from any court or from the Chief Inspector of Stamps, Uttar Pradesh or any Officer of the Stamp Department, Board of Revenue, call for the original instrument for the purpose of satisfying himself as to the adequacy of the duty paid thereon and the instrument so produced before the Collector shall be deemed to have been produced or come in the performance of his functions.

(4) In case the instrument is not produced within the period specified by tile Collector, he may require payment of deficit stamp duty, if any, together with penalty under section 40 on the copy of the instrument ;

Provided that no action under sub-section (3) or sub-section (4) shall be taken after a period of four years from the date of execution of the instrument"

[*Vide* Uttar Pradesh Act 49 of 1975, s. 5]

34. Special provision as to unstamped receipts.—Where any receipt chargeable [1][with a duty not exceeding ten nayepaise] is tendered to or produced before any officer unstamped in the course of the audit of any public account, such officer may in his discretion, instead of impounding the instrument, require a duly stamped receipt to be substituted therefore.

35. Instruments not duly stamped inadmissible in evidence, etc.—No instrument chargeable with duty shall be admitted in evidence for any purpose by any person having by law or consent of parties authority to receive evidence, or shall be acted upon, registered or authenticated by any such person or by any public officer, unless such instrument is duly stamped:

Provided that—

(*a*) any such instrument [2][shall] be admitted in evidence on payment of the duty with which the same is chargeable, or, in the case of any instrument insufficiently stamped, of the amount required to make up such duty, together with a penalty of five rupees, or, when ten times the amount of the proper duty or deficient portion thereof exceeds five rupees, of a sum equal to ten times such duty or portion;

1. Subs. by Act 19 of 1958, s. 5, for "with a duty of one anna" (w.e.f. 1-10-1958).
2. Subs. by Act 21 of 2006, s. 69, for "not being an instrument chargeable with a duty not exceeding ten nayepaise only, or a bill of exchange or promissory note, shall, subject to all just exceptions,"

(*b*) where any person from whom a stamped receipt could have been demanded, has given an unstamped receipt and such receipt, if stamped, would be admissible in evidence against him, then such receipt shall be admitted in evidence against him on payment of a penalty of one rupee by the person tendering it;

(*c*) where a contract or agreement of any kind is effected by correspondence consisting of two or more letters and any one of the letters bears the proper stamp, the contract or agreement shall be deemed to be duly stamped;

(*d*) nothing herein contained shall prevent the admission of any instrument in evidence in any proceeding in a Criminal Court, other than a proceeding under Chapter XII or Chapter XXXVI of the Code of Criminal Procedure 1898 (V of 1898);

(*e*) nothing herein contained shall prevent the admission of any instrument in any Court when such instrument has been executed by or on behalf of the Government, or where it bears the certificate of the Collector as provided by section 32 or any other provision of this Act.

STATE AMENDMENTS

Uttar Pradesh

Amendment of section 35.—In section 35 of the principal Act, in the proviso in clause (d), for the words and figures "Chapter XII or Chapter XXXVI of the Code of criminal Procedure, 1898", the words and figures "sections 125 to 128 and sections 145 to 148 of the Code of Criminal Procedure, 1973" shall be substituted.

[*Vide* Uttar Pradesh Act 6 of 1980, s. 7]

Amendment of section 35.— In section 35 of the principal Act, in clause (a) of the proviso for the words "five rupees. or, when ten times the amount of the proper duty of deficient portion thereof exceeds five rupees, of a sum equal to ten times such duty or portion:" the following words shall be *substituted*, namely :—

"a sum equal to ten times the amount of the proper duty or deficient portion thereof ;

[*Vide* Uttar Pradesh Act 22 of 1998, s. 3]

36. Admission of instrument where not to be questioned.—Where an instrument has been admitted in evidence, such admission shall not, except as provided in section 61, be called in question at any stage of the same suit or proceeding on the ground that the instrument has not been duly stamped.

37. Admission of improperly stamped instruments.—[1][The [2][State Government]] may make rules providing that, where an instrument bears a stamp of sufficient amount but of improper description, it may, on payment of the duty with which the same is chargeable, be certified to be duly stamped, and any instrument so certified shall then be deemed to have been duly stamped as from the date of its execution.

38. Instruments impounded, how dealt with.—(*1*) When the person impounding an instrument under section 33 has by law or consent of parties authority to receive evidence and admits such instrument in evidence upon payment of a penalty as provided by section 35 or of duty as provided by section 37, he shall send to the Collector an authenticated copy of such instrument, together with a certificate in writing, stating the amount of duty and penalty levied in respect thereof, and shall send such amount to the Collector, or to such person as he may appoint in this behalf.

(*2*) In every other case, the person so impounding an instrument shall send it in original to the Collector.

1. Subs. by the A.O. 1937, for "the G.G. in C.".
2. Subs. by the A. O. 1950, for "collecting Government".

39. Collector's power to refund penalty paid under section 38, sub-section (*1*).—(*1*) When a copy of an instrument is sent to the Collector under section 38, sub-section (*1*), he may, if he thinks fit, [1]*** refund any portion of the penalty in excess of five rupees which has been paid in respect of such instrument.

(*2*) When such instrument has been impounded only because it has been written in contravention of section 13 or section 14, the Collector may refund the whole penalty so paid.

STATE AMENDMENT

Uttar Pradesh

Omission of section 39.— Section 39 of the principal Act shall be *omitted*.

[*Vide* Uttar Pradesh Act 22 of 1998, s. 4]

40. Collectors power to stamp instruments impounded.—(*1*) When the Collector impounds any instrument under section 33, or receives any instrument sent to him under section 38, sub-section (*2*), not being an instrument chargeable [2][with a duty not exceeding ten naye paise] only or a bill of exchange or promissory note, he shall adopt the following procedure:—

(*a*) if he is of opinion that such instrument is duly stamped, or is not chargeable with duty, he shall certify by endorsement thereon that it is duly stamped, or that it is not so chargeable, as the case may be;

(*b*) if he is of opinion that such instrument is chargeable with duty and is not duly stamped, he shall require the payment of the proper duty or the amount required to make up the same, together with a penalty of five rupees; or, if he thinks fit, [3][an amount not exceeding] ten times the amount of the proper duty or of the deficient portion thereof, whether such amount exceeds or falls short of five rupees:

Provided that, when such instrument has been impounded only because it has been written in contravention of section 13 or section 14, the Collector may, if he thinks fit, remit the whole penalty prescribed by this section.

(*2*) Every certificate under clause (*a*) of sub-section (*1*) shall, for the purposes of this Act, be conclusive evidence of the matters stated therein.

(*3*) Where an instrument has been sent to the Collector under section 38, sub-section (*2*), the Collector shall, when he has dealt with it as provided by this section, return it to the impounding officer.

STATE AMENDMENTS

Uttarakhand

Amendment of section 40.—In section 40 of the Principal Act :—

after sub-section (1), the following sub-sections shall be inserted, namely:-

"**(1-A)** The Collector shall also require, alongwith the amount of deficit Stamp Duty of penalty required to be paid under clause (b) of sub-section (1), the payment of a simple interest at the rate of one and half percent per mensem on the amount of deficit stamp duty calculated from the date of the execution of the instrument till the date of actual payment;

1. The words "upon application made to him in this behalf or, if no application is made, with the consent of the chief Controlling Revenue-authority" omitted by Act 4 of 1914, s. 2 and the Schedule Pt I.
2. Subs. by Act 19 of 1958, s. 6, for "with a duty of one anna or half an anna" (w.e.f. 1-10-1958).
3. Ins. by Act 15 of 1904, s. 6.

Provided that the amount of interest under this sub-section shall be recalculated if the amount of deficit stamp duty is varied on appeal or revision or by any order of a competent court or authority.

(1-B) The amount of interest payable under sub-section (1-A) shall be added to the amount due and be also deemed for all purposes to part of the amount required to be paid.

(1-C) Where realization of the deficit stamp duty reminded stayed by any order of any court or authority and such order of stay is subsequently vaated, the interest referred to in sub-section (1-A) shall be payable also for any period during which such order of stay remain in operation.

(1-D) Any amount paid or deposited by, or removed, or refundable to a person under the provisions of this Act, shall first be adjusted towards the deficit stamp duty or penalty outstanding against him and the excess, if any, shall then be adjusted towards the interest, in any, due from him."

[*Vide* Uttarakhand Act 1 of 2016, s. 6]

Uttar Pradesh

Amendment-of section 40.— In section 40 of the principal Act in sub-section (1), **—**

(a) for clause (b) the following clause shall be *substituted*, namely :—

"(b) if he is of opinion that such instrument is chargeable with duty and is not duty stamped, he shall require the payment of the proper duty or the amount required to make up the deficiency together with a penalty of an amount not exceeding ten times the amount of the proper duty or of the deficient portion thereof ; "

(b) *after* the existing proviso the following proviso shall be inserted, namely :--

"Provided further that no penalty shall be levied unless the party concerned has been given a reasonable opportunity of being heard."

[*Vide* Uttarakhand Act 22 of 1998, s. 5]

Amendment of section 40.— in section 40 of the principal Act, after sub-section (1), the following subsections shall be inserted, namely:—

"(1-A) The Collector shall also require, along with the amount of deficit stamp duty or penalty required to be paid under clause (b) of sub-section (1), the payment of a simple interest at the rate of one and half per cent per mensem on the amount of deficit stamp duty calculated from the date of the execution of the instrument till the date of actual payment:

Provided that the amount of interest under this sub-section shall be recalculated if the amount of deficit stamp duty is varied on appeal or revision or by any order of a competent court or authority.

(1-B) The amount of interest payable under sub-section (I-A) shall be added to the amount due and be also deemed for all purposes to be part of the amount required to be paid.

(1 -C) Where realization of the deficit stamp duty remained stayed by any order of any Court or authority and such order of stay is subsequently vacated, the interest referred to in sub-section (1-A) shall be payable also for any period, during which such order of stay remained in operation.

(1-D) Any amount paid or deposited by, or recovered from, or refundable to a person under the provisions of this Act, shall first be adjusted towards the deficit stamp duty or penalty outstanding against him and the excess, if any, shall then be adjusted towards the interest, if any, due from him."

[*Vide* Uttar Pradesh Act 38 of 2001, s. 5]

41. Instruments unduly stamped by accident.— If any instrument chargeable with duty and not duly stamped, not being an instrument chargeable [1][with a duty not exceeding ten nayepaise] only or a bill of exchange or promissory note, is produced by any person of his own motion before the Collector within

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one year from the date of its execution or first execution, and such person brings to the notice of the Collector the fact that such instrument is not duly stamped and offers to pay to the Collector the amount of the proper duty, or the amount required to make up the same, and the Collector is satisfied that the omission to duly stamp such instrument has been occasioned by accident, mistake or urgent necessity, he may, instead of proceeding under sections 33 and 40, receive such amount and proceed as next herein-after prescribed.

42. Endorsement of instruments on which duty has been paid under section 35, 40 or 41.—(*1*) When the duty and penalty (if any), leviable in respect of any instrument have been paid under section 35, section 40 or section 41, the person admitting such instrument in evidence or the Collector, as the case may be, shall certify by endorsement thereon that the proper duty or, as the case may be, the proper duty and penalty (stating the amount of each) have been levied in respect thereof, and the name and residence of the person paying them.

(*2*) Every instrument so endorsed shall thereupon be admissible in evidence, and may be registered and acted upon and authenticated as if it had been duly stamped, and shall be delivered on his application in this behalf to the person from whose possession it came into the hands of the officer impounding it, or as such person may direct:

Provided that—

(*a*) no instrument which has been admitted in evidence upon payment of duty and a penalty under section 35, shall be so delivered before the expiration of one month from the date of such impounding, or if the Collector has certified that its further detention is necessary and has not cancelled such certificate;

(*b*) nothing in this section shall affect the[1] Code of Civil Procedure (XIV of 1882), section 144, clause 3.

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STATE AMENDMENTS

Uttarakhand

Amendment of section 42.—In section 42 of the Principal Act, —

(a) in the heading, of the words and figures “Sections 35, 40 or 41”, the words and figures, “sections 35, 40, 41 or 47-A" shall be substituted.

(b) in sub-section (1), for the words and figures “section 40 or section 41”, the words and figures, “section 40, section 41 or section 47-A” shall be substituted.

[*Vide* Uttarakhand Act 1 of 2016, s. 7]

Uttar Pradesh

Amendment of section 42.—In section 42 of the principal Act,—

(a) in the heading for the words and figures “sections 35, 40 or 41”, the words and figures, “sections 35, 40, 41 or 47-A” shall be *substituted*.

(b) in sub-section (1) for the words and figures "section. 40 or section 41," the words and figures, "section 40, section 41 or section 47-A" shall *substituted*.

[*Vide* Uttar Pradesh Act 38 of 2001, s. 5]

43. Prosecution for offence against Stamp-law.—The taking of proceedings or the payment of a penalty under this Chapter in respect of any instrument shall not bar the prosecution of any person who appears to have committed an offence against the Stamp-law in respect of such instrument:

1. *See* now the Code of Civil Procedure, 1908 (5 of 1908), Sch. I, Order XIII, Rule 9.

Provided that no such prosecution shall be instituted in the case of any instrument in respect of which such a penalty has been paid, unless it appears to the Collector that the offence was committed with an intention of evading payment of the proper duty.

44. Persons paying duty or penalty may recover same in certain cases.—(*1*) When any duty or penalty has been paid under section 35, section 37, section 40 or section 41, by any person in respect of an instrument, and, by agreement or under the provisions of section 29 or any other enactment in force at the time such instrument was executed, some other person was bound to bear the expense of providing the proper stamp for such instrument, the first-mentioned person shall be entitled to recover from such other person the amount of the duty or penalty so paid.

(*2*) For the purpose of such recovery, any certificate granted in respect of such instrument under this Act shall be conclusive evidence of the matters therein certified.

(*3*) Such amount may, if the Court thinks fit, be included in any order as to costs in any suit or proceeding to which such persons are parties and in which such instrument has been tendered in evidence. If the Court does not include the amount in such order, no further proceedings for the recovery of the amount shall be maintainable.

45. Power to Revenue-authority to refund penalty or excess duty in certain cases.—(*1*) Where any penalty is paid under section 35 or section 40, the Chief Controlling Revenue-authority may, upon application in writing made within one year from the date of the payment, refund such penalty wholly or in part.

(*2*) Where, in the opinion of the Chief Controlling Revenue-authority, stamp-duty in excess of that which is legally chargeable has been charged and paid under section 35 or section 40, such authority may, upon application in writing made within three months of the order charging the same, refund the excess.

46. Non-liability for loss of instruments sent under section 38.—(*1*) If any instrument sent to the Collector under section 38, sub-section (*2*), is lost, destroyed or damaged during transmission, the person sending the same shall not be liable for such loss, destruction or damage.

(*2*) When any instrument is about to be so sent, the person from whose possession it came into the hands of the person impounding the same, may require a copy thereof to be made at the expense of such first-mentioned person and authenticated by the person impounding such instrument.

47. Power of payer to stamp bills, and promissory notes received by him unstamped.—When any bill of exchange [1][or promissory note] chargeable [2][with a duty not exceeding ten nayepaise] is presented for payment unstamped, the person to whom it is so presented, may affix thereto the necessary adhesive stamp, and, upon cancelling the same in manner hereinbefore provided, may pay the sum payable upon such bill [3][or note], and may charge the duty against the person who ought to have paid the same, or deduct it from the sum payable as aforesaid, and such bill [3][or note], shall, so far as respects the duty, be deemed good and valid:

Provided that nothing herein contained shall relieve any person from any penalty or proceeding to which he may be liable in relation to such bill, [3][or note].

STATE AMENDMENTS

Himachal Pradesh

Insertion of section 47-A. —After section 47 of the principal Act, the following new section shall be added, namely:-

47-A. Instruments under-valued, how to be dealt with.-(*1*) If the Registering Officer, appointed under the Registration Act, 1908 (16 of 1908) while registering any instrument relating to the transfer of any property, has reason to believe that the market value of the property or the consideration, as the case

1. Subs. by Act 5 of 1927, s. 5, for "promissory note or cheque".
2. Subs. by Act 19 of 1958, s. 7, for "with the duty of one anna" (w.e.f. 1-10-1958).
3. Subs. by Act 5 of 1927, s. 5, for "note or cheque".

may be, has not been truly set forth in the instrument, he may, after registering such instrument, refer the same to the Collector for determination of the market value or consideration, as the case may be, and the proper duty payable thereon.

(2) On receipt of reference under sub-section (*1*), the Collector shall, after giving the parties a reasonable opportunity of being heard and after holding an enquiry in such manner, as may be prescribed by rules, made under this Act, determine the market value or consideration and the duty, as aforesaid, and the deficient amount of duty, if any, shall be payable by the person liable to pay the duty.

(3) The Collector may, *suo moto* or on receipt of reference from the Inspector General of Registration or the Registrar of a District, in whose jurisdiction the property, or any portion thereof, which is the subject-matter of the instrument, is situated, appointed under the Registration Act, 1908 (16 of 1908) shall, within three years from the date of registration of any instrument, not already referred to him under sub-section (1), call for and examine the instrument for the purpose of satisfying himself as to the correctness of its market value or consideration, as the case may be, and the duty payable thereon and if, after such examination, he has reason to believe that the market value or consideration has not been truely set forth in the instrument, he may determine the market value or consideration and the duty, as aforesaid, in accordance with procedure provided for in sub-section (2), and the deficient amount of duty, if any, shall be payable by the person liable to pay the duty:

Provided that nothing in this sub-section shall apply to any instrument registered before the date of the commencement of the Indian Stamp (Himachal Pradesh Amendment) Act, 1988.

(4) Where for any reason the original document called for by the Collector under sub-section (3) is not produced or cannot be produced, the Collector may, after recording the reasons for its nonproduction, call for a certified copy of the entries of the document from the registering officer concerned and exercise the powers conferred on him under sub-section (3).

(5) Any person, aggrieved by an order of the Collector, under subsection (2) or sub-section (3), may, within thirty days from the date of the order, prefer an appeal before the District Judge and all such appeals shall be heard and disposed off in such manner as may be prescribed by rules made under this Act.

(6) For the purpose of this section "market value" of any property shall be estimated to be the price which, in the opinion of the Collector or the appellate authority, as the case may be, such property would have fetched, if sold in the open market on the date of execution of the instrument relating to the transfer of such property.

[*Vide* Himachal Pradesh Act 7 of 1989, s. 3]

Orissa

Amendment of section 47-A, (Act 2 of 1899). —In section 47-A of the Indian Stamp Act, 1899 (Act 2 of 1899)—

(*a*) after sub-section (*2*), the following new sub-section shall be inserted, namely:—

"(2-*a*) The Collector may *sou motu*, within two years from the date of registration of any instrument not already referred to him under sub-section (*1*), call for purpose of satisfying himself as to the correctness of its value or consideration, as the case may be, and the duty payable thereon and if after such examination, he has reasons to believe that the value or consideration has not been truly set forth in the instrument, he may determine the value or consideration and the duty as aforesaid in accordance with the procedure provided for in sub-section (*2*); and the deficient amount of duty, if any, shall be payable by the person liable to pay the duty.";

(*b*) in sub-section (3), after the word, brackets and figure "sub-section (*2*)" the words, brackets, figure and letter "or sub-section (2-a)" shall be inserted.

[*Vide* Orissa Act 11 of 1965, s. 2]

Orissa

Amendment of section 47-A.—In section 47-A of the principal Act, in sub-section (2-*a*), for the words "two years", the words "three years" shall be substituted.

[*Vide* Orissa Act 1 of 2003, s. 5]

Orissa

(*a*) Amendment of section 47-A.—for sub-section (*1*) the following sub-section shall be substituted, namely:—

(*1*) where the registering officer under the Registration Act, 1908, (16 of 1908) while registering any instrument of conveyance, exchange, gift, partition or settlement has reasons to believe that the market value of the property which is the subject matter of such instrument has not been rightly set forth in the instrument or is less than the minimum value determined in accordance with the rules made under this Act, he shall, before registering such instrument, refer the matter to the Collector, with an intimation in writing to the person concerned, for determination of the market value of such property and the proper duty payable thereon.; and

(*b*) in sub-section (2-*a*) for the words "truly set forth in the instrument", the words "rightly set forth in the instrument or is less than the minimum value determined in accordance with the rules made under this Act" shall be substituted.

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[*Vide* Orissa Act 8 of 2009, s. 2]

Orissa

Insertion of new section 47-A, Act 2 of 1899. —After section 47 of the Indian Stamp Act, 1899 (2 of 1899) (hereinafter referred to as the Principal Act), the following new section shall be inserted, namely:—

47-A. Instruments under-valued how to be dealt with.— (*1*) If the registering officer appointed under the Indian Registration Act, 1908, while registering any instrument transferring any property, has reasons to believe that the value of the property or the consideration, as the case may be, has not been truly set forth in the instrument, he may, after registering such instrument, refer the same to the Collector for determination of the value or consideration, as the case may be, and the proper duty payable thereon.

(*2*) On receipt of a reference under sub-section (*1*) the Collector shall, after giving the parties a reasonable opportunity of being heard and after holding an enquiry in such manner as may be prescribed by rules made under this Act, determine the value or consideration and the duty as aforesaid and the deficient amount of duty, if any, shall be payable by the person liable to pay the duty.

(*3*) Any person aggrieved by an order of the Collector under sub-section (*2*) may, within thirty days from the date of the order, prefer an appeal before the District judge and all such appeals shall be heard and disposed of in such manner as may be prescribed by rules made under this Act.

[*Vide* Orissa Act 35 of 1962, s. 2]

Orissa

Amendment of Section 47-A.— In section 47-A of the Principal Act, for sub-sections (*1*), (*2*) and (2-a), the following sub-sections shall be substituted, namely:

"(1) Where the registering officer under the Registration Act, 1908 (16 of 1908), while registering any instrument of conveyance, exchange, gift, partition or settlement has reason to believe that the market

value of the property which is the subject matter of such instrument has not been truly set forth in the instrument, he may, after registering such instrument, refer the matter to the Collector for determination of the market value of such property and the proper duty payable thereon.

(2) On receipt of a reference under sub-section (1), the Collector shall, after giving the parties an opportunity of making their representations and after holding an enquiry in such manner as may be prescribed by rules made under this Act, determine the market value of the property which is the subject matter of such instrument, and the duty as aforesaid and the deficient amount, if any, shall be payable by the person liable to pay the duty.

(2-*a*) The Collector may *suo motu* within two years from the date of registration of such instrument, not already referred to him under sub-section (*1*), call for and examine the instrument for the purpose of satisfying himself as to the correctness of the market value of the property which is the subject matter of such instrument and the duty payable thereon and if after such examination, he has reason to believe that the market value of such property has not been truly set forth in the instrument, he may determine the market value of such property and the duty as aforesaid in accordance with the procedure provided for in sub-section (*2*) and the deficient amount of duty , if any, shall be payable by the person liable to pay the duty".

[*Vide* Orissa Act 7 of 1987, s. 6]

Tripura

In the Indian Stamp Act, 1899 as in force in the State of Tripura, after section 47, the following new section shall be inserted namely: —

"**47A" Instruments of conveyance etc. undervalued, how to be, dealt with** :—(*1*) If the Registering Officer appointed under the Indian Registration Act, 1908 (Central Act XVI of 1908), while registering any instrument of conveyance, exchange, gift or partition, has reason to believe that the value of the property which is the subject matter of the instrument, as has been set forth therein is lower than the market value thereof and proper duty has not been paid he may, after registering such instrument, refer the same to the Collector for determination of the market value of such property and the proper duty payable thereon.

(*2*) On receipt of a reference under Sub-Section (1), the Collector shall, after giving the parties a reasonable opportunity of being heard and after holding an enquiry in such manner as may be prescribed by rules made under this Act, determine the market value of such property and the proper duty payable thereon and then return the instrument to the Registering Officer after making and endorsement over his signature thereon indicating the market value of the property so determined and deficient amount of duty, if any, that shall be payable by the person liable to pay the duty.

(3) The Collector may, within a period of two year from the date of registration of any instrument of conveyance, exchange, gift or partition, not already sent to him under sub-section (I), call for as examine the instrument for the purpose of satisfying himself as to the correctness of the market value of the property which is the subject matter of such instrument and the duty paid thereon and if after such examination, he has reasons to believe that the market value of such property has not been truly set forth in the instrument and the proper duty has not been truly set forth in the instrument and the proper duty has not been paid, he may determine the market value thereof and the proper duty payable thereon in accordance with the provision of sub-section (2). The difference, if any between the duty determined by the Collector and the duty already paid shall be payable by the person liable to pay the duty on the instrument:

Provided that nothing in this sub-section shall apply to any instrument registered before the date of the commencement of the Indian Stamp (Tripura Third Amendment) Act, 1984.

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(4) Any person aggrieved by an order of the Collector under sub-section (2) or sub-section (3) may appeal to the appellate authority specified in sub-section (5), All such appeals shall be preferred within such time, and shall be heard and disposed of in such manner, as may be prescribed by rules made under this Act.

(5) The State Government shall, by a Notification in the Official Gazette, appoint a person not below the rank of a Secretary of any Department to be the appellate authority referred to in sub-section (4).

(6) The amount of deficient duty, if any, shall be paid by deposit into Government Treasury by the person, liable to pay the duty, within a period of thirty days from the date of Notice in this behalf from the Registering Officer and in case of default in payment, such amount shall be recovered as arrears of land revenue.

Explanation: For the purpose of the section the market value of any property shall be estimated to be the price which in the opinion of the Collector or the appellate authority, as the case may be, such property would have fetched, if sold in the open market on the date of execution of the instrument of conveyance, exchange gift or portion.

[*Vide* Tripura Act 2 of 1986, s. 2]

Meghalaya

Insertion of new Section 47A in Act 11 of 1899.—In the Indian Stamp Act, 1899 after the existing Section 47, the following new Section as Section 47A, shall be inserted, namely:--

"**47A. Instruments under-valued how to be dealt with**.—(1) If registering officer appointed under the Indian Registration Act, 1908, while registering any instrument transferring any property, has reason to believe that the value of the property or the consideration, as the case may be has not been truly set forth in the instrument, he may, after registering such instrument, refer the same to the Deputy Commissioner, for determination of the value or consideration, as the case may be, and the proper duty payable thereon.

(2) On receipt of the reference under sub-section (1), the Deputy Commissioner shall, after giving the parties a reasonable opportunity of being heard and after holding an enquiry in such manner as may be prescribed by rules made under this Act, by order, determine the value of the property or the consideration and the duty aforesaid; and the deficient amount of duty, if any, shall be payable by the person liable to pay the duty and, on payment of such duty, the Deputy Commissioner shall endorse a certificate of such payment on the instrument under his seal and signature.

(3) The Deputy Commissioner may, *suo motu,* within six months from the date of registration of any instrument not already referred to him under sub-section (1), call for and examine the instrument for the purpose of satisfying himself as to the correctness of its value or consideration, as the case may be, and the duty payable thereon, and if after such examination, he has reason to believe that the value of consideration has not been truly set forth in the instrument, she may determine the value or consideration and the duty aforesaid in accordance with procedure provided for in sub-section (2); and the deficient amount of duty if any, shall be payable by the person liable to pay the duty and, on the payment of such duty the Deputy Commissioner shall endorse a certificate of such payment on the instrument under his seal and signature.

(4) Any person aggrieved by an order of the Deputy Commissioner under sub-section (2) or sub-section (3) may appeal to the Meghalaya Board of Revenue.

(5) An appeal under sub-section (4) shall be filed within 90 (ninety) days of the date of the order sought to be appealed against."

[*Vide* Meghalaya Act 8 of 1983, s. 2]

Uttarakhand

Amendment of section 47-A.—In section 47-A of the Principal Act, :-

(a) For sub-section (*1*), the following sub-sections shall be substituted, namely-

"**(*1*) (*a*)** If the market value of any property which is the subject of any instrument, on which duty is chargeable on the market value of the property as set forth in such instrument, is less than even the minimum value determined in accordance with the rules made under this Act, the registering officer appointed under the Registration Act, 1908 shall, notwithstanding anything contained in the said Act, immediately after presentation of such instrument and before accepting it for registration and taking any action under section 52 of the said Act, require the person liable to paqy stamp duty under section 29, to pay the deficit stamp duty as computed on the basis of the minimum value determined in accordance with the said rules and return the instruments for presenting again in accordance with section 23 of the Registration Act, 1908;

(b) When the deficit stamp duty required to be paid under clause (a), is paid in respect of any instrument and the instrument is presented again for registration, the registering officer shall certify by endorsement thereon, that the deficit stamp duty has been paid in respect thereof and the name and the residence of the person paying them and register the same;

(c) Notwithstanding anything contained in any other provisions of this Act, the deficit stamp duty may be paid under clause (a) in the form of impressed stamps containing such declaration as may be prescribed;

(d) If any person does not make the payment of the deficit stamp duty after receiving the order referred to in clause (a) and presents the instrument again for registration, the registering officer shall, before registering the instrument, refer the same to the Collector, for determination of the market value of the property and the proper duty payable thereon."

(b) in sub-section (3) of section 47-A the following explanation shall be inserted, namely:-

"**Explanation**-The payment of deficit stamp duty by any person under any order of registering officer under sub-section (1) shall not prevent the Collector from initiating proceedings on any instrument under sub section (3)."

(c) after sub-section (4), the following sub-section shall be inserted namely:-

"(4-A) The Collector shall also require along with the deficit stamp duty or penalty required to be paid under clause (ii) of sub-section (4), the payment of a simple interest at the rate of one and a half per cent per mensem on the amount of deficit stamp duty calculated from the date of the execution of the instrument till the date of actual payment;

Provided that the amount of interest under this sub-Section shall be recalculated if the amount of deficit stamp duty is varied on appeal or revision or by any order of a competent court or authority.

(4-B) The amount of interest payable under sub section (4-A) shall be added to the amount due and be also deemed for all purposes to be part of the amount required to be paid.

(4-C) Where realization of the deficit stamp duty remained stayed by any order of any court or authority and such order of stay is subsequently vacated, the interest referred to in sub-section (4-A) shall be payable also for any period during which such order of stay remained in operation.

(4-D) Any amount paid or deposited by or recovered from, or refundable to, a person under the provision of this Act, shall first be adjusted towards the deficit stamp duty or penalty outstanding against him and the excess if any, shall then be adjusted towards the interest, if any, due from him."

[*Vide* Uttarakhand Act 1 of 2016, s. 8]

Uttar Pradesh

Amendment of section 47.—In section 47-A of the principal Act, in sub-section (4), for the words, "Chief Inspector of Stamp, Uttar Pradesh or any officer of the Stamp Department of the Board of Revenue", the words "Commissioner of Stamps or an Additional Commissioner of Stamps or a Deputy Commissioner of Stamps or an Assistant Commissioner of Stamps or any officer authorized by the Board of Revenue in that behalf" shall be substituted.

[*Vide* Uttar Pradesh Act 6 of 1980, s. 8]

Amendment of section 47-A.—In section 47-A of the principal Act—

(a) in sub-section (1) for the words, "of conveyance, exchange, gift, settlement, award or trust" the words "on which duty is chargeable on the market value of the property" shall be *substituted* ;

(b) in sub-section (2) for the words "of conveyance, exchange, gift, settlement, award or trust" where they occur for the first time, the words "on which duty is chargeable on the market value of the property" and for the said words where they occur for the second time, the words "of such instrument" shall be *substituted* ;

(c) in sub-section (3), for the words "of conveyance, exchange, gift, settlement, award or trust," the words "of the instrument" shall be *substituted* ;

(d) in sub-section (4) for the words, "of conveyance, exchange, gift, settlement, award or trust," where they occur for the first time, the words "on which duty is chargeable on the market value of the property" and for the said words, where they occur for the second time, the words "of such instrument" shall be *substituted*.

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[*Vide* Uttar Pradesh Act 11 of 1992, s. 4]

Amendment of section 47-A.—In section 47-A, in sub-section (4), for the words "two years", the words "four- years" shall be substituted and be deemed always to have been *substituted* :—

[*Vide* Uttar Pradesh Act 20 of 1974, s. 5]

Substitution of section 47-A—For section 47-A of the principal Act. the following section shall be substituted, namely :—

"47-A (1) If the market value of any property which is the subject of any instrument, on which duty is chargeable on market value of such property, as set forth in such instrument, is less than even the minimum value determined in accordance with the rules made under this Act, the registering officer appointed under the Registration Act, 1908 shall, before registering the instrument, refer the same to the Collector for determination of the market value of such property and the proper duty payable thereon.

(2) On receipt of a reference under sub-section (1) the Collector shall, after giving the parties a reasonable opportunity of being heard and after holding an inquiry in such manner as many be prescribed by rules made under this Act, determine the market value of the property which is the subject of such instrument and the proper duty payable thereon.

(3) The Collector may, *suo motu*, or on a reference from any court or from the Commissioner of Stamps or an Additional Commissioner of Stamps or a Deputy Commissioner of Stamps or an Assistant Commissioner of Stamps or any officer authorized by the State Government in that behalf, within four years from the date of registration of any instrument on which duty is chargeable on the market value of the property not already referred to him under sub-section (1) call for and examine the instrument for the purpose of satisfying himself as to the correctness of the market value of the property which is the subject for of such instrument, and the duty payable thereon and if after such examination he has reason to believe that market value of such property

has not been truly set forth in such instrument he may determine the market value of such property and the duty payable thereon :

Provided that, with the prior permission of the State Government, an action under this sub-section may be taken after a period of four years but before a period of eight years from the date of registration of the instrument on which duty is chargeable on the market value of the properly.

(4) If on enquiry under sub-section (2) and examination under sub-section (3) the Collector finds the market value of the property :—

(i) truly set forth and the instrument duly Stamped, he shall certify by endorsement that it is duly stamped and return it to the person who made the reference ;

(ii) not truly set forth and the instrument not duly stamped he shall require the payment of proper duty or the amount required to make up the deficiency in the same together with a penalty of an amount not exceeding four time the amount of the proper duty or the deficient portion thereof.

(5) The instrument produced before the Collector under sub-section (2) or under sub-section (3) shall be deemed to have come before him in the performance of his functions.

(6) In case the instrument is not produced within the period specified by the Collector, he may require payment of deficit stamp duty, if any, together with penalty on the copy of the instrument in accordance with the procedure laid down in sub-sections (2) and (4)."

[*Vide* Uttar Pradesh Act 22 of 1998, s. 6]

Amendment of section 47-A.— in section 47-A of the principal Act,—

(a) for sub-section (1), the following sub-section shall be *substituted*, namely:—

"(1) (a) If the market value of any property which is the subject of any instrument, on which duty is chargeable on the market value of the property as set forth in such instrument, is less than even the minimum value determined in accordance with the rules made under this Act, the registering officer appointed under the Registration Act, 1908 shall, notwithstanding anything contained in the said Act, immediately after presentation of such instrument and before accepting it for registration and taking any action under section 52 of the said Act, require the person liable to pay stamp duty under section 29, to pay the deficit stamp duty as computed on the basis of the minimum value determined in accordance with the said rules and return the instrument for presenting again in accordance with section 23 of the Registration Act, 1908.

(b) When the deficit stamp duty required to be paid under clause (a), is paid in respect of any instrument and the instrument is presented again for registration, the registering officer shall certify by endorsement thereon, that the deficit stamp duty has been paid in respect thereof and the name and the residence of the person paying them and register the same.

(c) Notwithstanding anything contained in any other provisions of this Act, the deficit stamp duty may be paid under clause (a) in the form of impressed stamps containing such declaration as may be prescribed.

(d) If any person does not make the payment of deficit stamp duty after receiving the order referred to in clause (a) and presents the instrument again for registration, the registering officer shall, before registering the instrument, refer the same to the Collector, for determination of the market value of the property and the proper duty payable thereon."

(b) in sub-section (3), the following explanation shall be *inserted*, namely : —

Explanation :— The payment of deficit stamp duty by any person under any order of registering officer under sub-section (1) shall not prevent the Collector from initiating proceedings on any instrument under sub-section (3)."

(c) after sub-section (4), the following sub-sections shall be *inserted*, namely :—

(4-A) The Collector shall also require along with the deficit stamp duty or penalty required to be paid under clause (ii) of sub-section (4), the payment of a simple interest at the rate of one and half per cent per mensem on the amount of deficit stamp duty calculated from the date of the execution of the instrument till the date of actual payment :

Provided that the amount of interest under this sub-section shall be recalculated if the amount of deficit stamp duty is varied on appeal or revision or by any order of a competent court or authority.

(4-B) The amount of interest payable under sub-section (4-A) shall be added to the amount due and be also deemed for all purposes to be part of the amount required to be paid.

(4-C) Where realization of the deficit stamp duty remained stayed by any order of any court or authority and such order of stay is subsequently vacated, the interest referred to in sub-section (4-A) shall be payable also for any period during which such order of stay remained in operation.

(4-D) Any amount paid or deposited by, or recovered from, or refundable to, a person under the provision of this Act, shall first be adjusted towards the deficit stamp duty or penalty outstanding against him and the excess, if any, shall then be adjusted towards the interest, if any, due front him."

[*Vide* Uttar Pradesh Act 38 of 2001, s. 7]

Amendment of section 47-A.— In section 47-A of the principal, Act—

(a) in sub-section (1) for the words. "is less than that determined in accordance with any rules made under this Act", the words, "is less than even the minimum value determined in accordance with any rules made under this Act shall be *substituted*,

(b) in sub-section (4), for the words, "or on a reference from Chief Inspector of Stamps, Uttar Pradesh" the words, "or on a reference from any court or from the Chief Inspector of Stamps, Uttar Pradesh or any officer of the Stamp Department of the Board of Revenue." shall be *substituted*.

[*Vide* Uttar Pradesh Act 49 of 1975, s. 6]

Haryana

Amendment of section 47 A of Central Act 2 of 1899.— In sub -section (4) of section 47A of the Indian Stamp Act, 1899, for the words "the District Judge", the words "the Commissioner of Division" shall be substituted.

[*Vide* Haryana Act 21 of 1997, s. 2]

Substitution of section 47-A to Central Act 2 of 1899.—For section 47-A of the Indian Stamp Act, 1899. (hereinafter called the principal Act), the following sections shall be substitution, namely:--

"**47-A. Instruments under-valued how to be dealt with**.- (1) If the market value of any property, which is the subject of any instrument on which duty is chargeable on market value as set forth in such instrument, is less than the minimum value determined in accordance with the rules made under this Act, the Registering Officer appointed under the Registration Act, 1908 (Central Act 16 of 1908), shall after registering the instrument, refer the same to the Collector for determination of market value of such property and the proper duty payable thereon.

(2) On receipt of reference under sub-section (1), the Collector shall, after giving the parties a reasonable opportunity of being heard and after holding an enquiry in such manner, as may be

prescribed by rules, determine the market value of the property and the duty as aforesaid, and the deficient amount of duty, if any, shall be payable by the person liable to pay the duty.

(3) The Collector may, *suo motu* or on receipt of reference from the Inspector-General of Registration or the Registrar of a district appointed under the Registration Act, 1908 (Central Act 16 of 1908) in whose jurisdiction the property, or any portion thereof, which is the subject matter of the instrument, is situated, or on the receipt of a report of audit by the Comptroller and Auditor General of India or by any other authority authorized by the State Government in this behalf or otherwise, shall within three years from the date of registration of any instrument, not already referred to him under sub-section (1), call for and examine the instrument for the purpose of satisfying himself as to the correctness of its market value, and the duty payable thereon and if, after such examination, he has reason to believe that the market value has not been truly set forth in the instrument, he may determine the market value and the duty, as aforesaid, in accordance with the procedure provided for in sub-section (2) and the deficient amount of duty, if any, shall be payable by the person liable to pay the duty.

(4) Any person, aggrieved by an order of the Collector under sub-section (2) or sub-section (3), may, within thirty days from the date of the order, prefer an appeal before the Commissioner and all such appeals shall be heard and disposed of in such manner, as may be prescribed by rules made under this Act:

Provided that in computing the period aforesaid, the time requisite for obtaining a copy of the order appealed against, shall be excluded:

Provided further that no order shall be passed without affording opportunity of being heard to the appellant.

(5) The order passed in appeal under sub-section (4) and the order passed by the Collector under sub-section (2) or sub-section (3) shall not be called into question in any Civil Court.

"**47-B. Functions of Chief Controlling Revenue Authority**.- (1) The Chief Controlling Revenue Authority may at any time call for the record of any appeal pending before, or disposed of by the Commissioner.

(2) The Chief controlling Revenue Authority under sub-section (1) in any appeal called for under sub-section (1), may examine and pass such orders as he thinks fit:

Provided that he shall not under this section pass an order reversing or modifying any proceeding or order of the Commissioner and affecting any question of right without giving an opportunity of being heard to the affected party.".

[*Vide* Haryana Act 7 of 2020, s. 2]

Haryana

Insertion of section 47A in Central Act 2 of 1899.—After section 47 of the principal Act, the following new section shall be inserted and shall be deemed to have been inserted with effect from the 1st day of November, 1966, namely:--

"**47 A. Instruments under-valued how to be dealt with**.—(1) If the Registering Officer appointed under the Registration Act, 1908, while registering any instrument transferring any property, has reason to believe that the value of the property or the consideration, as the case may be, has not been truly set forth in the instrument, he may, after registering such instrument, refer the same to the Collector for determination of the value or consideration, as the case may be, and the proper duty payable thereon.

(2) On receipt of reference under sub-section (1), the Collector shall, after giving the parties a reasonable opportunity of being heard and after holding an enquiry in such manner as may be

prescribed by rules made under this Act, determine the value or consideration and the duty as aforesaid and the deficient amount of duty, if any, shall be payable by the person liable to pay the duty.

(3) The Collector may *suo motu*, or on receipt of reference from the Inspector-General of Registration or the Registrar of a district, in whose jurisdiction the property or any portion thereof which is the subject-matter of the instrument is situate, appointed under the Registration Act, 1908, shall, within three years from the date of registration of any instrument, not already referred to him under sub-section (1), call for and examine the instrument for the purpose of satisfying himself as to the correctness of its value or consideration, as the case may be, and the duty payable thereon and if after such examination, he has reasons to believe that the value or consideration has not been truly set forth in the instrument, he may determine the value or consideration and the duty as aforesaid in accordance with the procedure provided for in sub-section (2); and the deficient amount of duty, if any, shall be payable by the person liable to pay the duty:

Provided that the Collector shall, within a period of two years from the date of the commencement of the Indian Stamp (Haryana Amendment) Act, 1973, also be competent to act as aforesaid in respect of the instruments registered on or after the first day of November, 1966 and before the first day of October, 1970.

(4) Any person aggrieved by an order of the Collector under sub-section (2) or sub-section (3) may, within thirty days from the date of the order, prefer an appeal before the District Judge and all such appeals shall be heard and disposed of in such manner as may be prescribed by rules made under this Act.".

[*Vide* Haryana Act 37 of 1973, s. 3]

IndiaCode

Bihar

Substitution in sub-section (1) of Section-47-A of The Indian Stamp Act 1899. –Section-47-A(1) of the Indian Stamp Act, 1899 (as amended from time to time) shall be substituted by the following: --

"(1) Where the registering officers appointed under the Registration Act, 1908 while registering any instrument of conveyance, exchange, gift, partition or settlement is satisfied that the classification of the property and/or the measurement of the structure contained in the property which is subject matter of such instrument has been set forth wrongly or the market value of the property, which is subject matter of such instrument has been set forth at a lower rate than the Guideline Register of Estimated Minimum Value prepared under the rules framed under the provision of this Act, he shall refer such instrument before registering it to the Collector for determination of the proper market value of such property and the proper duty payable thereon."

[*Vide* Bihar Act 5 of 2013, s. 2]

48. Recovery of duties and penalties.—All duties, penalties and other sums required to be paid under this Chapter may be recovered by the Collector by distress and sale of the movable property of the person from whom the same are due, or by any other process for the time being in force for the recovery of arrears of land-revenue.

STATE AMENDMENT

Orissa

Amendment of Section 48-A.—For Section 48-A of the Principal Act, the following section shall be substituted, namely:—

"**48-A.** Notwithstanding anything contained in this Act, no certificate or endorsement under this Act , in respect of any instrument chargeable in the State of Orissa with a higher rate of duty under this Act, for the time being in force as amended from time to time by the Orissa Acts shall be received in evidence or be in any way valid in respect of the payment of duty on such instrument or in respect of the chargeability of such instrument with duty unless the duty chargeable under the Orissa Act, has been paid on such instrument.".

[*Vide* Orissa Act 7 of 1987, s. 7]

Uttar Pradesh

Amendment of section 48.— For section 48 of the principal Act, the following section shall be *substituted*, namely :—

"48. All duties penalties and other sums required to be paid under this Act may be recovered by the Collector by distress and sale of the movable property of the person from whom the same are due or by any other process for the time being in force for the recovery of arrears of land revenue."

[*Vide* Uttar Pradesh Act 49 of 1975, s. 7]

IndiaCode

CHAPTER V

ALLOWANCES FOR STAMPS IN CERTAIN CASES

49. Allowance for spoiled stamps.—Subject to such rules as may be made by [1][the [2][State Government]] as to the evidence to be required, or the enquiry to be made, the Collector may, on application made within the period prescribed in section 50, and if he is satisfied as to the facts, make allowance for impressed stamps spoiled in the cases herein after mentioned, namely:—

(*a*) the stamp on any paper inadvertently and undesignedly spoiled, obliterated or by error in writing or any other means rendered unfit for the purpose intended before any instrument written thereon is executed by any person:

(*b*) the stamp on any document which is written out wholly or in part, but which is not signed or executed by any party thereto:

(*c*) in the case of bills of exchange [3][payable otherwise than on demand] [4]*** or promissory notes—

(*1*) the stamp on [5][any such bill of exchange] [6]*** signed by or on behalf of the drawer which has not been accepted or made use of in any manner whatever or delivered out of his hands for any purpose other than by way of tender for acceptance:

provided that the paper on which any such stamp is impressed, does not bear any signature intended as or for the acceptance of any bill of exchange [6]*** to be afterwards written thereon:

1. Subs. by the A.O. 1937, for "the L.G.".
2. Subs. by the A.O. 1950, for "collecting Government".
3. Ins. by Act 5 of 1927, s. 5.
4. The word "Cheques" omitted by s. 5, *ibid.*
5. Subs. by, s. 5, *ibid,* for "any bill of exchange".
6. The words "or cheque" omitted by s. 5, *ibid*.

(*2*) the stamp on any promissory note signed by or on behalf of the maker which has not been made use of in any manner whatever or delivered out of his hands:

(*3*) the stamp used or intended to be used for [1][any such bill of exchange] [2]*** or promissory note signed by, or on behalf of, the drawer thereof, but which from any omission or error has been spoiled or rendered useless, although the same, being a bill of exchange [2]*** may have been presented for acceptance or accepted or endorsed, or, being a promissory note, may have been delivered to the payee: provided that another completed and duly stamped bill of exchange [2]*** or promissory note is produced identical in every particular, except in the correction of such omission or error as aforesaid, with the spoiled bill, [2]*** or note;

(*d*) the stamp used for an instrument executed by any party thereto which—

(*1*) has been afterwards found to be absolutely void in law from the beginning:

(*2*) has been afterwards found unfit, by reason of any error or mistake therein, for the purpose originally intended:

(*3*) by reason of the death of any person by whom it is necessary that it should be executed, without having executed the same, or of the refusal of any such person to execute the same, cannot be completed so as to effect the intended transaction in the form proposed:

(*4*) for want of the execution thereof by some material party, and his inability or refusal to sign the same, is in fact incomplete and insufficient for the purpose for which it was intended:

(*5*) by reason of the refusal of any person to act under the same, or to advance any money intended to be thereby secured, or by the refusal or non-acceptance of any office thereby granted, totally fails of the intended purpose:

(*6*) becomes useless in consequence of the transaction intended to be thereby effected being effected by some other instrument between the same parties and bearing a stamp of not less value:

(*7*) is deficient in value and the transaction intended to be thereby effected has been effected by some other instrument between the same parties and bearing a stamp of not less value:

(*8*) is inadvertently and undesignedly spoiled, and in lieu whereof another instrument made between the same parties and for the same purpose is executed and duly stamped:

Provided that, in the case of an executed instrument, no legal proceeding has been commenced in which the instrument could or would have been given or offered in evidence and that the instrument is given up to be cancelled.

Explanation.—The certificate of the Collector under section 32 that the full duty with which an instrument is chargeable, has been paid is an impressed stamp within the meaning of this section.

50. Application for relief under section 49 when to be made.—The application for relief under section 49 shall be made within the following periods, that is to say,—

(*1*) in the cases mentioned in clause (*d*) (*5*), within two months of the date of the instrument:

(*2*) in the case of a stamped paper on which no instrument has been executed by any of the parties thereto, within six months after the stamp has been spoiled:

1 Subs. by Act 5 of 1927, s. 5, for "any bill of exchange".
2. The word "cheque" omitted by s. 5, *ibid*.

(*3*) in the case of a stamped paper in which an instrument has been executed by any of the parties thereto, within six months after the date of the instrument, or, if it is not dated, within six months after the execution thereof by the person by whom it was first or alone executed:

Provided that,—

(*a*) when the spoiled instrument has been for sufficient reasons sent out of [1][India], the application may be made within six months after it has been received back in [1][India];

(*b*) when, from unavoidable circumstances, any instrument for which another instrument has been substituted, cannot be given up to be cancelled within the aforesaid period, the application may be made within six months after the date of execution of the substituted instrument.

51. Allowance in case of printed forms no longer required by Corporations.—The Chief Controlling Revenue-authority [2][or the Collector if empowered by the Chief Controlling Revenue-authority in this behalf] may, without limit of time, make allowance for stamped papers used for printed forms of instruments [3][by any banker or] by any incorporated company or other body corporate, if for any sufficient reason such forms have ceased to be required by the said [3][banker], company or body corporate: provided that such authority is satisfied that the duty in respect of such stamped papers has been duly paid.

52. Allowance for misused stamps.—(*a*) When any person has inadvertently used for an instrument chargeable with duty, a stamp of a description other than that prescribed for such instrument by the rules made under this Act, or a stamp of greater value than was necessary, or has inadvertently used any stamp for an instrument not chargeable with any duty; or

(*b*) when any stamp used for an instrument has been inadvertently rendered useless under section 15, owing to such instrument having been written in contravention of the provisions of section 13;

the Collector may, on application made within six months after the date of the instrument, or, if it is not dated, within six months after the execution thereof by the person by whom it was first or alone executed, and upon the instrument, if chargeable with duty, being re-stamped with the proper duty, cancel and allow as spoiled the stamp so misused or rendered useless.

53. Allowance for spoiled or misused stamps how to be made.—In any case in which allowance is made for spoiled or misused stamps, the Collector may give in lieu thereof —

(*a*) other stamps of the same description and value; or

(*b*) if required and he thinks fit, stamps of any other description to the same amount in value; or

(*c*) at his discretion, the same value in money, deducting [4][ten nayepaise] for each rupee or fraction of a rupee.

54. Allowance for stamps not required for use.—When any person is possessed of a stamp or stamps which have not been spoiled or rendered unfit or useless for the purpose intended, but for which he has no immediate use, the Collector shall repay to such person the value of such stamp or stamps in money, deducting [4][ten nayepaise] for each rupee or portion of a rupee, upon such person delivering up the same to be cancelled, and proving to the Collector's satisfaction—

1. Subs. by Act 43 of 1955, s. 2, for "the States" (w.e.f. 1-4-1956).
2. Ins. by Act 4 of 1914, s. 2 and the Schedule Pt. 1.
3. Ins. by Act 5 of 1906, s. 6.
4. Subs. by Act 19 of 1958, s. 8, for "one anna" (w.e.f. 1-10-1958).

(*a*) that such stamp or stamps were purchased by such person with a *bona fide* intention to use them; and

(*b*) that he has paid the full price thereof; and

(*c*) that they were so purchased within the period of six months next preceding the date on which they were so delivered:

Provided that, where the person is a licensed vendor of stamps, the Collector may, if he thinks fit, make the repayment of the sum actually paid by the vendor without any such deduction as aforesaid.

[1][**54A. Allowances for stamps in denominations of annas.**—Notwithstanding anything contained in section 54, when any person is possessed of a stamp or stamps in any denominations, other than in denominations of annas four of multiples thereof and such stamp or stamps has or have not been spoiled, the Collector shall repay to such person the value of such stamp or stamps in money calculated in accordance with the provisions of sub-section (*2*) of section 14 of the Indian Coinage Act, 1906, (3 of 1906) upon such person delivering up, within six months from the commencement of the Indian Stamp (Amendment) Act,1958 (19 of 1958), such stamp or stamps to the Collector.]

[2]**[54B. Allowances for Refugee Relief Stamps.**—Notwithstanding anything contained in section 54, when any person is possessed of stamps bearing the inscription "Refugee Relief" (being stamps issued in pursuance of section 3A before its omission) and such stamps have not been spoiled, the Collector shall, upon such person delivering up, within six-month, from the commencement of the Refugee Relief Taxes (Abolition) Act, 1973 (13 of 1973), such stamps to the Collector, refund to such person the value of such stamps in money or give in lieu thereof other stamps of the same value:

Provided that the State Government may, with a view to facilitating expeditious disposal of claims for such refunds, specify, in such manner as it deems fit, any other procedure which may also be followed for claiming such refunds.]

55. Allowance on renewal of certain debentures.—When any duly stamped debenture is renewed by the issue of a new debenture in the same terms, the Collector shall, upon application made within one month, repay to the person issuing such debenture, the value of the stamp on the original or on the new debenture, whichever shall be less:

Provided that the original debenture is produced before the Collector and cancelled by him in such manner as [3][the State Government] may direct.

Explanation.—A debenture shall be deemed to be renewed in the same terms within the meaning of this section notwithstanding the following changes:—

(*a*) the issue of two or more debentures in place of one original debenture, the total amount secured being the same;

(*b*) the issue of one debenture in place of two or more original debentures, the total amount secured being the same;

(*c*) the substitution of the name of the holder at the time of renewal for the name of the original holder; and

(*d*) the alteration of the rate of interest or the dates of payment thereof.

1. Ins. by Act 19 of 1958, s. 9 (w.e.f. 1-10-1958).
2. Ins. by Act 13 of 1973, s. 2 (w.e.f. 1-4-1973).
3. Subs. by the A. O. 1937, for "the G.G. in C.".

CHAPTER VI

REFERENCE AND REVISION

56. Control of, and statement of case to, Chief Controlling Revenue-authority.—(*1*) The powers exercisable by a Collector under Chapter IV and Chapter V [1][and under clause (*a*) of the first proviso to section 26] shall in all cases be subject to the control of the Chief Controlling Revenue-authority.

(*2*) If any Collector, acting under section 31, section 40 or section 41, feels doubt as to the amount of duty with which any instrument is chargeable, he may draw up a statement of the case, and refer it, with his own opinion thereon, for the decision of the Chief Controlling Revenue-authority.

(*3*) Such authority shall consider the case and send a copy of its decision to the Collector, who shall proceed to asses and charge the duty (if any) in conformity with such decision.

STATE AMENDMENT

Uttarakhand

Amendment of section 56.—In Section 56 of the Principal Act, after sub-section (1) the following sub-section shall be inserted, namely:-

"(1-A) Notwithstanding anything contained in any other provisions of this Act, any person Including the Government aggrieved by any order of the Collector under chapter-IV, chapter-V or under clause (a) of the first proviso to section 26 may, within 60 days from the date receipt of such order, prefer an appeal against such order to the Chairman, Board of Revenue who shall, after giving the parties a reasonable opportunity of being heard consider the case and pass such order thereon as he thinks just and proper and the order so passed shall be final.

Provided that no application for stay of recovery of any disputed amount of stamp duty including interest thereon or penalty shall be entertained unless the applicant has furnished satisfactory proof of the payment of not less than one third of such disputed amount.

Provided further that where the Chairman, Board of Revenue passes an order for the stay of recovery of any stamp duty, interest thereon or penalty or for the stay of the operation of any order appealed against and such order results in the stay of recovery of any stamp duty, interest thereon or penalty, such stay order shall not remain in force for more than 30 days unless the appellant furnishes adequate security to the satisfaction of the Collector concern for the payment of the outstanding amount."

[*Vide* Uttarakhand Act 1 of 2016, s. 9]

Uttar Pradesh

Amendment of section 56.— In section 56 of the principal Act, after sub-section (1), the following sub-section shall be *inserted*, namely :-—

"(1-A) Notwithstanding anything contained in any other provisions of this Act, any person including the Government aggrieved by an order of the Collector under Chapter-IV, Chapter-V or under clause (a) of the first proviso to section 26 may, within sixty days from the date receipt of such order, prefer an appeal against such order to the Chief Controlling Revenue Authority, who shall, after giving the parties a reasonable opportunity of being heard consider the case and pass such order thereon as he thinks just and proper and the order so passed shall be final :

Provided that no application for stay of recovery of any disputed amount of stamp duty including interest thereon or penalty shall be entertained unless the applicant has furnished satisfactory proof of the payment of not less than one third of such disputed amount;

Provided further that where the Chief Controlling Revenue Authority passes an order for the stay of recovery of any stamp duty, interest thereon or penalty or for the stay of the operation of any order

1. Ins. by Act 15 of 1904, s. 7.

appealed against and such order results in the stay of recovery of any stamp duty, interest thereon or penalty, such stay order shall not remain in force for more than thirty days unless the appellant furnishes adequate security to the satisfaction of the Collector concerned for the payment of the outstanding amount."

[*Vide* Uttar Pradesh Act 38 of 2001, s. 8]

57. Statement of case by Chief-Controlling Revenue-authority to High Court.—(*1*) The Chief Controlling Revenue-authority may state any case referred to it under section 56, sub-section (*2*), or otherwise coming to its notice, and refer such case, with its own opinion thereon,—

[1][(*a*) if it arises in a State, to the High Court for that State;

[2][(*b*) if it arises in the Union territory of the Delhi, to the High Court of Delhi;]

[3]* * * * *

[4][(*c*) if it arises in the Union territory of the Arunachal Pradesh or Mizoram, to the Gauhati High Court (the High Court of Assam, Nagaland, Meghalaya, Manipur and Tripura;)]

(*d*) if it arises in the Union territory of the Andaman and Nicobar Islands, to the High Court at Calcutta;

(*e*) if it arises in the Union territory of the [5][Lakshadweep], to the High Court of Kerala;]

[6][(*ee*) if it arises in the Union territory of the Chandigarh, to the High Court of Punjab and Haryana;]

[7][(*f*) if it arises in the Union territory of Dadra and Nagar Haveli, to the High Court of Bombay.]

(*2*) Every such case shall be decided by not less than three Judges of the High Court [8]*** to which it is referred, and in case of difference the opinion of the majority shall prevail.

58. Power of High Court to call for further particulars as to case stated.—If the High Court [9]*** is not satisfied that the statements contained in the case are sufficient to enable it to determine the questions raised thereby, the Court may refer the case back to the Revenue-authority by which it was stated, to make such additions thereto or alterations therein as the Court may direct in that behalf.

59. Procedure in disposing of case stated.—(*1*) The High Court, [9]*** upon the hearing of any such case, shall decide the questions raised thereby, and shall deliver its judgment thereon containing the grounds on which such decision is founded.

(*2*) The Court shall send to the Revenue-authority by which the case was stated, a copy of such judgment under the seal of the Court and the signature of the Registrar; and the Revenue-authority shall, on receiving such copy, dispose of the case conformably to such judgment.

60. Statement of case by other Courts to High Court.—(*1*) If any Court, other than a Court mentioned in section 57, feels doubt as to the amount of duty to be paid in respect of any instrument under proviso (*a*) to section 35, the Judge may draw up a statement of the case and refer it, with his own opinion thereon, for the decision of the High Court [9]*** to which, if he were the Chief Controlling Revenue-authority, he would, under section 57, refer the same.

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1. Subs. by the A.O. (No. 2) 1956, for clauses (*a*) to (*g*).
2. Subs. by the Punjab Reorganisation and Delhi High Court (Adaptation of Laws on Union Subjects) Order, 1968, s. 3 and Sch. for clause (*b*) (w.e.f. 1-11-1966).
3. Clause (*bb*) ins. by s. 3 and the Schedule *ibid*. And omitted by the State of Himachal Pradesh (Adaptation of Laws on Union Subjects) Order, 1973, s. 3 and Sch. (w.e.f. 25-1-1971).
4. Subs. by the North-Eastern Areas (Reorganisation) (Adaptation of Laws on Union Subjects) Order 1974, s. 3 and the Schedule for clause (*c*) (w.e.f. 21-1-1972).
5. Subs. by the Laccadive, Minicoy and Amindivi Islands (Alteration of Name) Adaptation of Laws Order, 1974, s. 3 and the Schedule for "the Laccadive, Minicoy and Amindivi Islands" (w.e.f. 1-11-1973).
6. Ins. by the Punjab Reorganisation and Delhi High Court (Adaptation of Laws on Union Subjects) Order, 1968, s. 3 and Sch. (w.e.f. 1-11-1966).
7. Ins. by Reg. 6 of 1963, s. 2 and the First Sch.
8. The words "Chief Court or Judicial Commissioner's Court" omitted by the A.O. 1950.
9. The words "Chief Court or Judicial Commissioner's Court" omitted by the A.O. 1948.

(*2*) Such Court shall deal with the case as if it had been referred under section 57, and send a copy of its judgment under the seal of the Court and the signature of the Registrar to the Chief Controlling Revenue-authority and another like copy to the Judge making the reference, who shall, on receiving such copy, dispose of the case conformably to such judgment.

(*3*) References made under sub-section (*1*), when made by a Court subordinate to a District Court, shall be made through the District Court, and, when made by any subordinate Revenue Court, shall be made through the Court immediately superior.

61. Revision of certain decisions of Courts regarding the sufficiency of stamps. —(*1*) When any Court in the exercise of its civil or revenue jurisdiction or any Criminal Court in any proceeding under Chapter XII or Chapter XXXVI of the Code of Criminal Procedure, 1898 (V of 1898), makes any order admitting any instrument in evidence as duly stamped or as not requiring a stamp, or upon payment of duty and a penalty under section 35, the Court to which appeals lie from, or references are made by, such first-mentioned Court may, of its own motion or on the application of the Collector, take such order into consideration.

(*2*) If such Court, after such consideration, is of opinion that such instrument should not have been admitted in evidence without the payment of duty and penalty under section 35, or without the payment of a higher duty and penalty than those paid, it may record a declaration to that effect, and determine the amount of duty with which such instrument is chargeable, and may require any person in whose possession or power such instrument then is, to produce the same, and may impound the same when produced.

(*3*) When any declaration has been recorded under sub-section (*2*), the Court recording the same shall send a copy thereof to the Collector, and, where the instrument to which it relates has been impounded or is otherwise in the possession of such Court, shall also send him such instrument.

(*4*) The Collector may thereupon, notwithstanding anything contained in the order admitting such instrument in evidence, or in any certificate granted under section 42, or in section 43, prosecute any person for any offence against the Stamp-law which the Collector considers him to have committed in respect of such instrument:

Provided that, —

(*a*) no such prosecution shall be instituted where the amount (including duty and penalty) which, according to the determination of such Court, was payable in respect of the instrument under section 35, is paid to the Collector, unless he thinks that the offence was committed with an intention of evading payment of the proper duty;

(*b*) except for the purposes of such prosecution, no declaration made under this section shall affect the validity of any order admitting any instrument in evidence, or of any certificate granted under section 42.

STATE AMENDMENT

Uttar Pradesh

Amendment of section 61. –In section 61 of the principal Act, in sub-section (1), for the words and figures "Chapter XII or Chapter XXXVI of the Code of Criminal Procedure, 1898," the worth and figures "sections 125 to 128 and sections 145 to 148 of the Code of Criminal Procedure, 1973" shall be substitute.

[*Vide* Uttar Pradesh Act 6 of 1980, s. 9]

CHAPTER VII

CRIMINAL OFFENCES AND PROCEDURE

62. Penalty for executing, etc., instrument not duly stamped. —(*1*) Any person—

(*a*) drawing, making, issuing, endorsing or transferring, or signing otherwise than as a witness, or presenting for acceptance or payment, or accepting, paying or receiving payment of, or in any manner negotiating, any bill of exchange [1][payable otherwise than on demand] [2]*** or promissory note without the same being duly stamped; or

(*b*) executing or signing otherwise than as a witness any other instrument chargeable with duty without the same being duly stamped; or

(*c*) voting or attempting to vote under any proxy not duly stamped,

shall for every such offence be punishable with fine which may extend to five hundred rupees:

Provided that, when any penalty has been paid in respect of any instrument under section 35, section 40 or section 61, the amount of such penalty shall be allowed in reduction of the fine, (if any) subsequently imposed under this section in respect of the same instrument upon the person who paid such penalty.

(*2*) If a share-warrant is issued without being duly stamped, the company issuing the same, and also every person who, at the time when it is issued, is the managing director or secretary or other principal officer of the company, shall be punishable with fine which may extend to five hundred rupees.

IndiaCode

STATE AMENDMENT

Arunachal Pradesh

Amendment of sections 62.—In the Indian Stamp act, 1899 (2 of 1899) in its application to the state of Arunachal Pradesh.

(1) (i) in section 62, in clause (c), for the words "five hundred rupees", the words "two thousand five rupees" shall be substituted.

(ii) in section 62, in sub-section (2), for the words "five hundred rupees", the words "five thousand rupees" shall be substituted.

[*Vide* Arunachal Pradesh Act 3 of 2010, s. 2]

Uttarakhand

Amendment of section 62.—In sub-section (1) of section 62 of the Principal Act for the words, 'shall for every such offence, be punishable with fine which may extend to five hundred rupees'. shall be substituted as follows, namely:—

"shall for every such offence, be punishable with fine which may extend to five thousand rupees".

[*Vide* Uttarakhand Act 1 of 2016, s. 10]

1. Ins. by Act 5 of 1927, s. 5.
2. The word "cheque" omitted by s. 5, *ibid*.

[1][**62A**. **Penalty for failure to comply with provisions of section 9A.**—(*1*) Any person who,—

(*a*) being required under sub-section (*1*) of section 9A to collect duty, fails to collect the same; or

(*b*) being required under sub-section (*4*) of section 9A to transfer the duty to the State Government within fifteen days of the expiry of the time specified therein, fails to transfer within such time,

shall be punishable with fine which shall not be less than one lakh rupees, but which may extend up to one per cent. of the collection or transfer so defaulted.

(*2*) Any person who,—

(*a*) being required under sub-section (*5*) of section 9A to submit details of transactions to the Government, fails to submit the same; or

(*b*) submits a document or makes a declaration which is false or which such person knows or believes to be false,

shall be punishable with fine of one lakh rupees for each day during which such failure continues or one crore rupees, whichever is less.]

Uttar Pradesh

Amendment of section 62.— In section 62 of the principal Act, in sub-section (1), for the words, "shall, for every such offence, be punishable with fine which may extend to five hundred rupees", the words, "shall, for every such offence, be punishable with imprisonment for a term which shall not be less than one month but which may extend to six months and with fine which may extend to five thousand rupees" shall be *substituted*.

[*Vide* Uttar Pradesh Act 38 of 2001, s. 9]

63. Penalty for failure to cancel adhesive stamp.—Any person required by section 12 to cancel an adhesive stamp, and failing to cancel such stamp in manner prescribed by that section, shall be punishable with fine which may extend to one hundred rupees.

STATE AMENDMENT

Arunachal Pradesh

Amendment of sections 63,-

(2) in section 63, for the words "one hundred rupees", the words "five hundred rupees" shall be substituted.

[*Vide* Arunachal Pradesh Act 3 of 2010, s. 2]

64. Penalty for omission to comply with provisions of section 27.—Any person who, with intent to defraud the Government,—

(*a*) executes any instrument in which all the facts and circumstances required by section 27 to be set forth in such instrument are not fully and truly set forth; or

(*b*) being employed or concerned in or about the preparation of any instrument, neglects or omits fully and truly to set forth therein all such facts and circumstances; or

(*c*) does any other act calculated to deprive the Government of any duty or penalty under this Act;

shall be punishable with fine which may extend to five thousand rupees.

1. Ins. by Act 7 of 2019, s. 18 (w.e.f. 1-7-2020). [Earlier notified w.e.f. 9-1-2020 followed by 1-4-2020]

STATE AMENDMENTS

Orissa

Amendment of Section 64.—In section 64 of the Principal Act, the words "and where the person is liable to pay the duty shall also be liable to pay the deficient amount of duty" shall be added at the end.
[*Vide* Orissa Act 7 of 1987, s. 8]

Arunachal Pradesh

Amendment of sections 64,-

(3) in section 64, in clause (c), for the words "five thousand rupees", the words "ten thousand rupees" shall be substituted.

[*Vide* Arunachal Pradesh Act 3 of 2010, s. 2]

Uttar Pradesh

Amendment of section 64.—In. section 64 of the principal Act, for the words, "with fine which may extend to five thousand rupees," the words "imprisonment for a term which may extend to three months or with fine which may extend to ten thousand rupees or with both" shall be substituted.

[*Vide* Uttar Pradesh Act 22 of 1998, s. 7]

Insertion of new sections 64-A and 64-B. After section 64 of the principal Act, the following sections shall be inserted, namely :—

"64-A.Penalty for omission to comply with sections II-A and article 25-A of Schedule I-B.—Any person who either refuses or neglects to stamp a counter-part or-duplicate (including counterfoil or carbon as-copy) of any bill or cash memo on the date of its issue in accordance with Article 25-A of Schedule I-B or fails to pay the duty in cash in accordance with section II-A or where the same is paid in cash, fails to maintain a proper account thereof in accordance with sub-section (2) of section 11-A, shall for every such offence be punishable with fine which may extend to five hundred rupees.

64-B. Recovery of amount of deficit stamp duty.—(1) Where any person liable to pay duty under this Act is convicted of an offence under section 62 or 64, in respect of any instrument (not being an instrument specified in Entry 91 of List I in the Seventh Schedule to the Constitution), the Magistrate shall in addition to any punishment which may be imposed for such offence, direct recovery of the amount of duty .and penalty, if any, due under this Act from such person in respect of that instrument, and such amount shall also be recoverable as if it were a fine imposed by the Magistrate.

(2) Upon such recovery the Collector shall thereupon certify by endorsement on the instrument that proper duty or penalty, as the case may be, has been levied in respect thereof."

[*Vide* Uttar Pradesh Act 49 of 1975, s. 8]

65. Penalty for refusal to give receipt, and for devices to evade duty on receipts.—Any person who,—

(*a*) being required under section 30 to give a receipt, refuses or neglects to give the same; or,

(*b*) with intent to defraud the Government of any duty, upon a payment of money or delivery of property exceeding twenty rupees in amount or value, gives a receipt for an amount or value not exceeding twenty rupees, or separates or divides the money or property paid or delivered;

shall be punishable with fine which may extend to one hundred rupees.

IndiaCode

STATE AMENDMENT

Arunachal Pradesh

Amendment of sections 65,-(4) in section 65, in clause (b), for the words "one hundred rupees", the words "five hundred rupees" shall be substituted.

[*Vide* Arunachal Pradesh 3 of 2010, s. 2]

66. Penalty for not making out policy or making one not duly stamped.—Any person who—

(*a*) receives, or takes credit for, any premium or consideration for any contract of insurance and does not, within one month after receiving, or taking credit for, such premium or consideration, make out and execute a duly stamped policy of such insurance; or

(*b*) makes, executes or delivers out any policy which is not duly stamped, or pays or allows in account, or agrees to pay or allow in account, any money upon, or in respect of, any such policy;

shall be punishable with fine which may extend to two hundred rupees.

Arunachal Pradesh

Amendment of sections 66,-In section 66, in clause (b), for the words "two hundred rupees", the words "five hundred rupees" shall be substituted.

[*Vide* Arunachal Pradesh 3 of 2010, s. 2]

67. Penalty for not drawing full number of bills or marine policies purporting to be in sets.—Any person drawing or executing a bill of exchange [1][payable otherwise than on demand] or a policy of marine insurance purporting to be drawn or executed in a set of two or more, and not at the same time drawing or executing on paper duly stamped the whole number of bills or policies of which such bill or policy purports the set to consist, shall be punishable with fine which may extend to one thousand rupees.

Arunachal Pradesh

Amendment of sections 67,-

In section 67, for the words "one thousand rupees" the words "two thousand rupees" shall be substituted.

[*Vide* Arunachal Pradesh 3 of 2010, s. 2]

68. Penalty for post-dating bills, and for other devices to defraud the revenue.—Any person who, —

(*a*) with intent to defraud the Government of duty, draws, makes or issues any bill of exchange or promissory note bearing a date subsequent to that on which such bill or note is actually drawn or made; or,

(*b*) knowing that such bill or note has been so post-dated, endorses, transfers, presents for acceptance or payment, or accepts, pays or receives payment of, such bill or note, or in any manner negotiate the same; or,

(*c*) with the like intent, practices or is concerned in any act, contrivance or device not specially provided for by this Act or any other law for the time being in force;

shall be punishable with fine which may extend to one thousand rupees.

1. Ins. by Act 5 of 1927, s. 5.

STATE AMENDMENT

Arunachal Pradesh

Amendment of sections 68,-

(7) in section 68, in clause (c), for the words "one thousand rupees" , the words "two thousand rupees" shall be substituted.

[*Vide* Arunachal Pradesh Act 3 of 2010, s. 2]

69. Penalty for breach of rule relating to sale of stamps and for unauthorised sale.—(*a*) Any person appointed to sell stamps who disobeys any rule made under section 74; and

(*b*) any person not so appointed who sells or offers for sale any stamp (other than a [1][ten naye paise or five nayepaise] adhesive stamp);

shall be punishable with imprisonment for a term which may extend to six months, or with fine which may extend to five hundred rupees, or with both.

STATE AMENDMENT

Arunachal Pradesh

Amendment of sections 69,-

(8) in section 69, in clause (b), for the words "five hundred rupees", the words "five thousand rupees" shall be substituted.

[*Vide* Arunachal Pradesh Act 3 of 2010, s. 2]

IndiaCode

70. Institution and conduct of prosecutions.—(*1*) No prosecution in respect of any offence punishable under this Act or any Act hereby repealed, shall be instituted without the sanction of the Collector or such other officer as [2][the [3][State Government]] generally, or the Collector specially, authorizes in that behalf.

(*2*) The Chief Controlling Revenue-authority, or any officer generally or specially authorized by it in this behalf, may stay any such prosecution or compound any such offence.

(*3*) The amount of any such composition shall be recoverable in the manner provided by section 48.

71. Jurisdiction of Magistrate.—No Magistrate other than a Presidency Magistrate or a Magistrate whose powers are not less than those of a Magistrate of the second class, shall try any offence under this Act.

72. Place of trial.—Every such offence committed in respect of any instrument may be tried in any district or presidency-town in which such instrument is found, as well as in any district or presidency-town in which such offence might be tried under the Code of Criminal Procedure for the time being in force.

CHAPTER VIII

SUPPLEMENTAL PROVISIONS

73. Books, etc., to be open to inspection.— Every public officer having in his custody any registers, books, records, papers, documents or proceedings, the inspection whereof may tend to secure any duty, or to prove or lead to the discovery of any fraud or omission in relation to any duty, shall at all reasonable

1. Subs. by Act 19 of 1958, s. 10, for "one anna or half an anna" (w.e.f. 1-10-1958).
2. Subs. by the A.O. 1937, for "the L.G.".
3. Subs. by the A.O. 1950, for "collecting Government".

times permit any person authorized in writing by the Collector to inspect for such purpose the registers, books, papers, documents and proceedings, and to take such notes and extracts as he may deem necessary, without fee or charge.

STATE AMENDMENT

Orissa

Amendment of section 73.—For section 73 of the principal Act, the following section shall be substituted, namely:—

(*1*) Every public officer or any person having in his custody any registers, books, records, papers, documents or proceedings, the inspections whereof may tend to secure any duty, or to prove or lead to the discovery of any fraud or omission in relation to any duty, shall at all reasonable times permit any officer authorized in writing by the Collector to enter upon any premises and to inspect for such purposes the registers, books, records, papers, documents and proceedings and to take such notes and extracts, as he may deem necessary, without fee or charge and if necessary to seize them and impound the same under proper acknowledgement:

Provided that such seizure of any registers, books, records, papers, documents or proceedings in the custody of any Bank be made only after a notice of thirty days to make good the deficit of stamp duty is given.

Explanation—For the purposes of this proviso 'Bank' means a banking company as defined in section 5 of the Banking Regulation Act, 1949 and includes the State Bank of India, constituted by the State Bank of India Act, 1955, a subsidiary bank as defined in the State Bank of India (Subsidiary Bank) Act, 1959 corresponding new Bank as define in the Banking Companies (Acquisition and Transfer of Undertakings) Act, 1980, a Regional Rural Bank established under the Regional Rural Bank Act, 1976, the Industrial Development Bank of India Act, 1964, National Bank of Agriculture and Rural Development Act, 1981, the Life Insurance Corporation Act, 1956, the Industrial Fiancé Corporation of India established under the Industrial Finance Corporation Act, 1948, and as such other financial or banking institution owned, controlled or managed by a State Government or the Central Government, as may be notified in this behalf by the Government.

(*2*) Every person having in his custody or maintaining such registers, books, records, papers, documents or proceedings shall, when so required by the officer authorized under sub-section (*1*), produce them before such officer and at all reasonable times permit such officer to inspect them and take such notes and extracts as he may deem necessary.

(*3*) if, upon such inspection, the officer so authorized, is of opinion that any instrument is chargeable with duty and is not duly stamped, he shall require the payment of the proper duty or the amount required to make up the same form the person liable to pay the stamp duty and in case of default the amount of the duty shall be recovered as an arrear of land revenue.

[*Vide* Orissa Act 1 of 2003, s. 6]

Orissa

Amendment of Section 73.—In Explanation to sub-section (1) of Section 73 of the Indian Stamp Act, 1899, (2 of 1899) for the words and figures "the Industrial Finance Corporation of India established under the Industrial Finance Corporation Act, 1948", the words and figures "other public financial institutions notified under Section 4-A of the Companies Act, 1956 (1 of 1956)" shall be substituted.

[*Vide* Orissa Act 5 of 2004, s. 2]

Uttar Pradesh

Inserted of new section 73-A—After section 73 of the principal Act, the following section shall be inferred, namely :—

"**73-A. Collector's power to authorize officer to enter premises and inspect certain documents".**—(1) Where the Collector has reason to believe that all or any of the instruments specified in Articles 5 and 43 of the Schedule 1-B have not been charged at all or have been incorrectly charged with duty leviable under this Act, he may authorize in writing any officer to enter upon any premises where the Collector has reason to believe that any registers, books, records, papers, documents or proceedings relating to or in connection with any such instrument are kept and to inspect them, and to take such notes and extracts as such officer deems necessary.

(2) Every person having in his custody or maintaining such registers, books, records, papers, documents or proceedings shall at all reasonable times, permit such officer to inspect them and to take such notes and extracts as he may deem necessary."]

[*Vide* Uttar Pradesh Act 6 of 1980, s. 10]

Amendment of section 73--In seetion:73-A of the principal Act –

(a) for sub-section (1) the following sub-section shall be substituted namely :—

"(1) 'Where the Collector has reason to believe that any instrument chargeable to duty has not been charged at all or has been incorrectly charged with duty leviable under this Act, he or any other Officer authorized by him writing in This behalf may enter upon any premises where the Collector has reason to believe that any registers, books, records papers, maps, documents or proceedings relating to or in connection with any such instrument are kept and to inspect them and to take such notes, copies and extracts as the Collector or such officer deems necessary."

(b) in sub section (2) after the word "papers" the Word "maps" and after the word "notes" the word "copies" shall be inserted.

[*Vide* Uttar Pradesh Act 22 of 1998, s. 8]

[1] [**73-A. Power of Central Government to make rules.—**(*1*) The Central Government may, by notification in the Official Gazette, make rules for carrying out the provisions of Part AA of Chapter II.

(*2*) Without prejudice to the generality of the provisions of sub-section (*1*), the Central Government may make rules for all or any of the following matters, namely:—

(*a*) the manner of collection of stamp-duty on behalf of the State Government by the stock exchange or the clearing corporation authorised by it, from its buyer under clause (*a*) of sub-section (*1*) of section 9A;

(*b*) the manner of collection of stamp-duty on behalf of the State Government by the depository from the transferor under clause (*b*) of sub-section (*1*) of section 9A;

(*c*) the manner of collection of stamp-duty on behalf of the State Government by the depository from the issuer under clause (*c*) of sub-section (*1*) of section 9A;

(*d*) the manner of transfer of stamp-duty to the State Government under sub-section (*4*) of section 9A;

(*e*) any other matter which has to be, or may be, provided by rules.]

[2]**[73B. Power to issue directions and to authorise certain authorities to issue instructions, etc.**—The Central Government may,—

(*a*) issue directions relating to such matters and subject to such conditions, as it deems necessary;

(*b*) in writing, authorise the Securities and Exchange Board of India established under section 3 of the Securities and Exchange Board of India Act, 1992 (15 of 1992) or the Reserve Bank of India

1. Ins. by Act 7 of 2019, s. 19 (w.e.f. 1-7-2020). [Earlier notified w.e.f. 9-1-2020 followed by 1-4-2020]
2. Ins. by Act 12 of 2020, s. 144 (w.e.f. 1-4-2020).

constituted under section 3 of the Reserve Bank of India Act, 1934 (2 of 1934) to issue instructions, circulars or guidelines,

for carrying out the provisions of Part AA of Chapter II and the rules made there under.]

74. Powers to make rules relating to sale of stamps.—The [1][State Government] [2]*** may make rules for regulating—

(*a*) the supply and sale of stamps an stamped papers,

(*b*) the persons by whom alone such sale is to be conducted, and

(*c*) the duties and remuneration of such persons:

Provided that such rules shall not restrict the sale of [3][ten nayepaise or five nayapaise] adhesive stamps.

STATE AMENDMENT

Uttar Pradesh

Amendment of section 74.— In section 74 of the principal Act, for clause (c), the following clause shall be substituted, namely :—

"(c) the duties and remuneration of and the fees chargeable from such person."

[*Vide* Uttar Pradesh Act 22 of 1998, s. 9]

75. Power to make rules generally to carry out Act.—The [3][State Government] may make rules to carry out generally the purposes of this Act, and may by such rules prescribe the fines, which shall in no case exceed five hundred rupees, to be incurred on breach thereof.

76. Publication of rules. —[4][(*1*) All rules made under this Act shall be published in the Official Gazette.]

(*2*) All rules published as required by this section shall, upon such publication, have effect as if enacted by this Act.

[5][(*2A*) Every rule made by the Central Government under this Act shall be laid, as soon as may be after it is made, before each House of Parliament, while it is in session, for a total period of thirty days which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in the rule or both Houses agree that the rule should not be made, the rule shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule.]

[6][(*3*) Every rule made by the State Government under this Act shall be laid, as soon as may be after it is made, before the State Legislature.]

1. Subs. by the A.O. 1950, for "collecting Government".
2. The words "Subject to the Control of the G.G. in C" omitted by the A.O.1937.
3. Subs. by Act 19 of 1958 s. 10, for "one anna or half an anna" (w.e.f. 1-10-1958).
4. Subs. by the A.O. 1937, for sub-section (*1*).
5 Ins. by Act 7 of 2019, s. 20 (w.e.f. 1-7-2020). [Earlier notified w.e.f. 9-1-2020 followed by 1-4-2020]
6. Ins. by Act 4 of 2005, s. 2 and the Schedule.

[1]**[76A.Delegation of certain powers .**—[2][[3]*** The State Government may, by notification in the Official Gazette], delegate—

(*a*) all or any of the powers conferred on it by sections 2(*9*), 33(*3*), (*b*), 70(*1*), 74 and 78 to the Chief Controlling Revenue-authority; and

(*b*) all or any of the powers conferred on the Chief Controlling Revenue-authority by sections 45 (*1*), (*2*), 56 (*1*) and 70 (*2*) to such subordinate Revenue-authority as may be specified in the notification.]

STATE AMENDMENT

Uttar Pradesh

Amendment of section 76-A to Act no. II of 1899.—In section 76-A of the Indian Stamp Act, 1899, as amended in its application to Uttar Pradesh, in clause (b) for the figures "56 (1)" the figures and letter "56 (1) (1-A)" shall be substituted.

[*Vide* Uttar Pradesh Act 1 of 2016, s. 2]

77. Saving as to court-fees.—Nothing in this Act contained shall be deemed to affect the duties chargeable under any enactment for the time being in force relating to court-fee.

STATE AMENDMENT

Himachal Pradesh

Amendment of Section 77.—At the beginning of section 77 of the said Act the following words shall be inserted, namely:-

"Except for the provisions as to copies contained in section 6-A".

[*Vide* Himachal Pradesh Act 4 of 1953, s. 11]

Orissa

Section 77-A, Act 2 of 1899.—After section 77 of the principal Act the following new section shall be inserted, namely:—

77-A. Fractions of five naye paise to be rounded off.—In the determination of the amount of duly payable or of allowance to be made under this Act, any fraction of five naye paise shall be rounded off to the next higher five naye paise.

[*Vide* Orissa Act 35 of 1962, s. 3]

[4]**[77A. Saving as to certain stamps.**—All stamps in denominations of annas four or multiples thereof shall be deemed to be stamps of the value of twenty-five nayepaise or, as the case may be, multiples thereof and shall, accordingly, be valid for all the purposes of this Act.]

STATE AMENDMENT

Orissa

Repeal of section 77-A, (Act 2 of 1899).—Section 77-A of the Indian Stamp Act, 1899 (2 of 1899) (hereinafter referred a to as the principal Act), shall be omitted.

[*Vide* Orissa Act 9 of 1970, s. 2]

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1. Ins. by Act 4 of 1914, s. 2 and the Schedule Pt. I.
2. Subs. by the A.O. 1937, for "The Local Government may, by notification in the Local Official Gazette".
3. The words, figures and brackets "The Central Government subject to the provision of section 124(*1*) of the Government of India Act, 1935, and" omitted by the A.O. 1950.
4. Ins. by Act 19 of 1958, s. 11 (w.e.f. 1-10-1958).

78. Act to be translated, and sold cheaply. — Every State Government shall make provision for the sale of translations of this Act in the principal vernacular languages of the territories administered by it at a price not exceeding [1][twenty-five nayepaise] per copy.

STATE AMENDMENT

Assam

Substitution of section 78.—In the principal Act, for section 78, the following shall be substituted, namely,—

"78. Duty or allowance to be rounded off to 78 the next rupee.—If the total amount of duty payable, or of allowance to be made under this Act is not a round figure, the total amount shall be rounded off the next rupee."

[*Vide* Assam Act 22 of 2004, s. 5]

Uttar Pradesh

Omission of section 78.— Section 78 of the principal Act shall be omitted.

[*Vide* Uttar Pradesh Act 22 of 1998, s. 10]

79. [*Repealed*.] *Rep. by the Repealing and Amending Act,* 1914 (10 *of* 1914) *s.* 3 *and Schedule* II.

IndiaCode

1. Subs. by Act 19 of 1958, s. 12, "four annas" (w.e.f. 1-10-1958).

SCHEDULE 1

STAMP-DUTYON INSTRUMENTS

(*See* section 3)

Description of Instrument	Proper Stamp-duty
[1] **[5. AGREEMENT OR MEMORANDUM OFAN AGREEMENT**—	
(*a*) if relating to the sale of a bill of exchange;	Two annas.
(*b*) if relating to the sale of a government security or share in an incorporated company or other body corporate;	Subject to a maximum of ten rupees, one anna for every Rs. 10,000 or part thereof of the value of the security or share.
(*c*) if not otherwise provided for	Eight annas.
Exemptions	
Agreement or memorandum of agreement—	
(*a*) for or relating to the sale of goods or merchandise exclusively, not being a NOTEOR MEMORANDUM chargeable under No. 43;	
(*b*) made in the form of tenders to the Central Government for or relating to any loan;	
[2]* * * *	
AGREEMENT TO LEASE. *See* LEASE (No. 35).	
[3]**[6. AGREEMENT RELATING TO DEPO- SIT OF TITLE-DEEDS, PAWN OR PLEDGE,** that is to say, any instrument evidencing an agreement relating to —	
(*1*) the deposit of title-deeds or instruments constituting or being evidence of the title to any property whatever (other than a marketable security); or	
(*2*) the pawn or pledge of movable property,	
where such deposit, pawn or pledge has been made by way of security for the repayment of money advanced or to be advanced by way of loan or an existing or future debt—	
(*a*) if such loan or debt is repayable on demand or more than three months from the date of the instrument evidencing the agreement;	The same duty as a Bill of Exchange [No. 13 (*b*)] for the amount secured.
(*b*) if such loan or debt is repayable not more than three months from the date of such instruments.	Half the duty payable on a Bill of Exchange [No. 13 (*b*)] for the amount secured.
Exemption	
Instrument of pawn or pledge of goods if unattested.]	
7. APPOINTMENT IN EXECUTION OF A POWER, whether of trustees or of property, movable or immovable, where made by any writing not being a will.	Fifteen rupees.

1. Subs. by Act 6 of 1910, s.3, for article 5.
2. Clause (*c*) omitted by the A.O. 1950.
3. Subs. by Act 15 of 1904, s. 8, for article. 6.

IndiaCode

Description of Instrument	Proper Stamp-duty
8. APPRAISEMENT OR VALUATION made otherwise than under an order of the Court in the course of a suit—	
(*a*) where the amount does not exceed Rs. 1,000;	The same duty as a Bond (No. 15) for such amount.
(*b*) in an other case…….	Five rupees.
Exemptions (*a*) Appraisement or valuation made for the information of one party only, and not being in any manner obligatory between parties either by agreement or operation of law. (*b*) Appraisement of crops for the purpose of ascertaining the amount to be given to a landlord as rent.	
9. APPRENTICESHIP-DEED, including every writing relating to the service or tuition of any apprentice, clerk or servant, placed with any master to learn any profession, trade or employment, not being ARTICLES OF CLERKSHIP, (No. 11). *Exemption* Instruments of apprenticeship executed by a Magistrate under the [1]Apprentices Act, 1850 (XIX of 1850), or by which a person is apprenticed by or at the charge of any public charity.	Five rupees.
10. ARTICLES OF ASSOCIATION OF A COMPANY. *Exemption* Articles of any Association not formed for profit and registered under section 26 of the [2] Indian Companies Act, 1882 (VI of 1882). *See also* MEMORANDUM OF ASSOCIATION OF A COMPANY (No.39).	Twenty-five rupees.
11. ARTICLES OF CLERKSHIP or contract whereby any person first becomes bound to serve as a clerk in order to his admission as an attorney in any High Court. **ASSIGNMENT.** *See* CONVEYANCE (No. 23), TRANSFER (No. 62), and TRANSFEROF LEASE (No. 63), as the case may be. **ATTORNEY.** *See* ENTRYAS AN ATTORNEY (No. 30) and POWEROF ATTORNEY (No. 48). **AUTHORITY TO ADOPT.** *See* ADOPTION-DEED (No. 3).	Two hundred and fifty rupees.

1. *See* now the Apprentices Act, 1961 (52 of 1961).
2. *See* now the Companies Act, 1956 (1 of 1956).

Description of Instrument	Proper Stamp-duty
12. AWARD, that is to say, any decision in writing by an arbitrator or umpire, not being an award directing a partition, on a reference made otherwise than by an order of the Court in the course of a suit—	
(*a*) where the amount or value of the property to which the award relates as set forth in such award does not exceed Rs. 1,000;	The same duty as a Bond (No. 15) for such amount.
(*b*) in any other case……	Five rupees.
Exemption Award under the [1] Bombay District Municipal Act, 1873 (Bom. Act 6 of 1873), section 81, or the Bombay Hereditary Offices Act, 1874 (Bom. Act (3of 1874), section 18.	
[2] **[13. BILL OF EXCHANGE** as defined by s.2(2), not being a Bond, bank-note or currency-note—	
(*b*)where payable otherwise than on demand—	
(*i*) where payable not more than three months after date or sight—	
if the amount of the bill or note does not exceed Rs. 500;	Thirty paise.
if it exceeds Rs. 500 but does not exceed Rs. 1,000;	Sixty paise.
and for every additional Rs. 1,000 or part thereof in excess of Rs. 1,000;	Sixty paise.
(*ii*)where payable more than three months but not more than six months after date or sight—	
if the amount of the bill or note does not exceed Rs. 500;	Sixty paise.
if it exceeds Rs. 500 but does not exceed Rs. 1,000;	One rupee twenty paise.
and for every additional Rs. 1,000 or part thereof in excess of Rs. 1,000;	One rupee twenty paise.
(*iii*) where payable more than six months but not more than nine months after date or sight—	
if the amount of the bill or note does not exceed Rs. 500;	Ninety paise.

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1. *See* now the Bombay District Municipal Act, 1901 (Bom. Act 3 of 1901).
2. Subs. by notification No. S.O. 130(*E*), dated 28-1-2004, for articles 13 and 14.

Description of Instrument	Proper Stamp duty
if it exceeds Rs. 500 but does not exceed Rs. 1,000;	One rupee eighty paise.
and for every additional Rs. 1,000 or part thereof in excess of Rs. 1,000;	One rupee eighty paise.
(*iv*)where payable more than nine months but not more than one year after date or sight—	
if the amount of the bill or note does not exceed Rs. 500;	One rupee twenty five paise.
if it exceeds Rs. 500 but does not exceed Rs. 1,000;	Two rupees fifty paise.
and for every additional Rs. 1,000 or part thereof in excess of Rs. 1,000;	Two rupees fifty paise.
(*c*)where payable at more than one year after date or sight—	
if the amount of the bill or note does not exceed Rs. 500;	Two rupees fifty paise.
if it exceeds Rs. 500 but does not exceed Rs. 1,000;	Five rupees.
and for every additional Rs. 1,000 or part thereof in excess of Rs. 1,000;	Five rupees.
14. BILL OF LADING (including a through bill of lading). *Exemptions* (*a*) Bill of lading when the goods therein described are received at a place within the limits of any port as defined under the Indian Ports Act, 1889 (10 of1889), and are to be delivered at another place within the limits of the same port. (*b*) Billof lading when executed out of India and relating to property to be delivered in India.	One rupee. *N.B.*—If a bill of lading is drawn in parts, the proper stamp therefore must be borne by each one of the set.]
15. BOND [as defined by section 2(*5*)] not being a DEBENTURE (No. 27) and not being otherwise provided for by this Act, or by the Court-fees Act, 1870 (7 of 1870),—	
where the amount or value secured does not exceed Rs. 10;	Two annas.
where it exceeds Rs. 10 and does not exceed Rs. 50;	Four annas.

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Description of Instrument	Proper Stamp duty
where it exceeds Rs. 50 and does not exceed Rs. 100	Eight annas.
where it exceeds Rs. 100 and does not exceed Rs. 200	One rupee.
where it exceeds Rs. 200 and does not exceed Rs. 300	One rupee eight annas.
where it exceeds Rs. 300 and does not exceed Rs. 400	Two rupees.
where it exceeds Rs. 400 and does not exceed Rs. 500	Two rupees eight annas.
where it exceeds Rs. 500 and does not exceed Rs. 600	Three rupees.
where it exceeds Rs. 600 and does not exceed Rs. 700	Three rupees eight annas.
where it exceeds Rs. 700 and does not exceed Rs. 800	Four rupees.
where it exceeds Rs. 800 and does not exceed Rs. 900	Four rupees eight annas.
where it exceeds Rs. 900 and does not exceed Rs. 1,100	Five rupees.
and for every Rs. 500 or part thereof in excess of Rs. 1,000	Two rupees eight annas.
See ADMINISTRATION BOND (No. 2), BOTTOMRY BOND (No. 16), CUSTOMS BOND (No. 26), INDEMNITY BOND (No. 34), RESPONDENTIA BOND (No. 56), SECURITY BOND (No. 57). *Exemptions* Bond, when executed by— (*a*) headmen nominated under rules framed in accordance with the Bengal Irrigation Act, 1876 (Ben. Act 3 of 1876), section 99, for the due performance of their duties under that Act; (*b*) any person for the purpose of guaranteeing that the local income derived from private subscriptions to a charitable dispensary or hospital or any other object of public utility shall not be less than a specifed sum per mensem.	
16. BOTTOMRY BOND, that is to say, any instrument where by the master of a sea-going ship borrows money on the security of the ship to enable him to preserve the ship or prosecute her voyage.	The same duty as a Bond (No. 15) for the same amount.
17. CANCELLATION—Instrument of (including any instrument by which any instrument previously executed is cancelled), if attested and not otherwise provided for. *See also* Release (No. 55), Revocation of Settlement (No. 58-B), Surrender of Lease (No. 61), Revocation of Trust (No. 64-B).	Five rupees.
18. CERTIFICATE OF SALE (in respect of each property put up as a separate lot and sold) granted to the purchaser of any property sold by public auction by a Civil or Revenue Court, or Collector or other Revenue-officer—	
(*a*) where the purchase-money does not exceed Rs. 10;	Two annas.
(*b*) where the purchase-money exceeds Rs. 10 but does not exceed Rs. 25;	Four annas.
any other case	The same duty as a conveyance (No. 23) for a consideration equal to the amount of the purchase-money only.

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19. CERTIFICATE OR OTHER DOCUMENT[1][(except the certificate or other document covered under Articles 27 and 56A)" evidencing the right or title of the holder thereof, or any other person, either to any shares, scrip or stock in or of any incorporated company or other body corporate, or to become proprietor of shares, scrip or stock in or of any such company or body. [2]* * * *.	[3] [Two anna].
20. CHARTER-PARTY, that is to say, any instrument (except agreement for the hire of a tug-steamer) whereby a vessel or some specified principal part thereof is let for the specified purposes of the charterer, whether it includes a penalty clause or not.	One rupee.
[4]* * * * *	*
22. COMPOSITION-DEED, that is to say, any instrument executed by a debtor whereby he conveys his property for the benefit of his creditors, or whereby payment of a composition or dividend on their debts is secured to the creditors, or whereby provision is made for the continuance of the debtor's business, under the supervision of inspectors or under letters of licence, for the benefit of his creditors.	Ten rupees.
23. CONVEYANCE [as defined by section 2 (10)] not being a Transfer charged or exempted under No. 62,—	
where the amount or value of the consideration for such conveyance as set forth therein does not exceed Rs. 50:	Eight annas.
where it exceeds Rs. 50 but does not exceed Rs. 100.	One rupees.
Ditto 100 ditto 200	Two rupees.
Ditto 200 ditto 300	Three rupees.
Ditto 300 ditto 400	Four rupees.
Ditto 400 ditto 500	Five rupees.
Ditto 500 ditto 600	Six rupees.
Ditto 600 ditto 700	Seven rupees.
Ditto 700 ditto 800	Eight rupees.
Ditto 800 ditto 900	Nine rupees.
Ditto 900 ditto 1,000	Ten rupees.
and for every Rs. 500 or part thereof in excess of Rs. 1,000	Five rupees.
Exemption	
[5][(*a*)Assignment of copyright by entry made under the [6]Indian Copyright Act, 1847 (20 of 1847) section 5.]	
[7][(*b*) for the purpose of this article, the portion of duty paid in respect of a document falling under article No. 23A shall be excluded while computing the duty payable in respect of a corresponding document relating to the completion of the transaction in any Union territory under this article.]	
CO-PARTNERSHIP-DEED. *See* Partnership (No. 46.)	
[5]**[23A. CONVEYANCE IN THE NATURE OF PART PERFORMANCE—Contracts** for the transfer of immovable property in the nature of part performance in any Union territory under section 53A of the Transfer of Property Act, 1882 (4 of 1882).	Ninety per cent. of the duty as a Conveyance (No. 23).]

1. Ins. by Act 7 of 2019, s. 21 (w.e.f. 1-7-2020). [Earlier notified w.e.f. 9-1-2020 followed by 1-4-2020]
2. The words, brackets and figures "See also LETTER OF ALLOTMENT OF SHARES (No. 36)" omitted by s. 21, *ibid.* (w.e.f. 1-7-2020). [Earlier notified w.e.f. 9-1-2020 followed by 1-4-2020]
3. Subs. by Act 43 of 1923 s. 2, for "One anna".
4. Art. 21 omitted by Act 5 of 1927, s. 5.
5. Certain words and figure numbered as clause (*a*) thereof by Act 48 of 2001, s. 11 (w.e.f. 24-9-2001).
6. *See* now the Copyright Act, 1957 (14 of 1957).
7. Ins. by Act 48 of 2001, s. 11 (w.e.f. 24-9-2001).

Description of Instrument	Proper Stamp-duty
24. COPY OR EXTRACT certified to be a true copy or extract, by or by order of any public officer and not chargeable under the law for the time being in force relating to court-fees—	
(*i*)if the original was not chargeable with duty or if the duty with which it was chargeable does not exceed one rupee;	Eight annas.
(*ii*) in any other case……	One rupee.
Exemptions	
(*a*)Copy of any paper which a public officer is expressly required by law to make or furnish for record in any public office or for any public purpose.	
[1] [(*b*) Copy of, or extract from, any register relating to births, baptisms, namings, dedications, marriages, [2] [divorces,] deaths or burials].	
25. COUNTERPART OR DUPLICATE of any instrument chargeable with duty and in respect of which the proper duty has been paid,—	The same duty as is payable on the original.
(*a*) if the duty with which the original instrument is chargeable does not exceed one rupee;	One rupee.
(*b*) in any other case	
Exemption	The same duty as a Bond (No. 15) for such amount.
Counterpart of any lease granted to a cultivator, when such lease is exempted from duty.	Five rupees.
26. CUSTOMS BOND—	
(*a*) where the amount does not exceed Rs. 1,000;	
(*b*)in any other case	0.005%
[3][**27**. **DEBENTURE**—[as defined by section 2(10A)]	
(*see* section 9A and 9B)	0.0001%]
(*a*) in case of issue of debenture;	
(*b*) in case of transfer and re-issue of debenture.	

1. Subs. by Act 5 of 1906, s. 7, for clauses (*b*) and (*c*).
2. Ins. by Act 10 of 1914, s. 2 and the First Schedule.
3. Subs. by Act 7 of 2019, s. 21, for article 27 (w.e.f. 1-7-2020). [Earlier notified w.e.f. 9-1-2020 followed by 1-4-2020]

Explanation.—The term "Debenture" includes any interest coupons attached thereto but the amount of such coupons shall not be included in estimating the duty.

Exemption

A debenture issued by an incorporated company or other body corporate in terms of a registered mortgage-deed, duly stamped in respect of the full amount of debentures to be issued thereunder, whereby the company or body borrowing makes over, in whole or in part, their property to trustees for the benefit of the debenture holders:

Provided that the debentures so issued are expressed to be issued in terms of the said mortgage-deed.

See also BOND (NO. 15): and sections 8 and 55.

28. DELIVERY ORDER IN RESPECT OF GOODS,[1][(excluding delivery order in respect of settlement of transactions in securities in stock exchange)] that is to say, any instrument entitling any person therein named, or his assigns, or the holder thereof, to the delivery of any goods lying in any dock or port, or in any warehouse in which goods are stored or deposited on rent or hire, or upon any wharf, such instrument being signed by or on behalf of the owner of such goods, upon the sale or transfer of the property therein, when such goods exceed in value twenty rupees.

DEPOSITOFTITLE-DEEDS[2][SEE AGREEMENT RELATINGTO DEPOSITOFTITLE-DEEDS PAWN OR PLEDGE (NO. 6)].

DISSOLUTION OF PARTNERSHIP *See* PARTNERSHIP (No. 46).

29. DIVORCE.—Instrument of, that is to say, any instrument by which any person effects the dissolution of his marriage.

DOWER—Instrument of *See* SETTLEMENT (No. 58).

DUPLICATE. *See* COUNTERPART (No. 25).

30. ENTRY AS AN ADVOCATE, VAKIL OR ATTORNEY ON THE ROLL OF ANY HIGH COURT[3][under the Indian Bar Councils Act, 1926 (38 of 1926) or] in exercise of powers conferred on such court by Letters patent or by the [4]Legal Practitioners Act, 1884 (9 of 1884)—

(*a*) in the case of an Advocate or Vakil…….

(*b*) in the case of an Attorney……..

Exemption

entry of an advocate, vakil or attorney on the roll of any High court when he has previously been enrolled in a High Court.

[5] * * *

31. EXCHANGE OF PROPERTY.—Instrument of.

EXTRACT. *See* Copy (No. 24). **

1. Ins. by Act 7 of 2019, s. 21 (w.e.f. 1-7-2020). [Earlier notified w.e.f. 9-1-2020 followed by 1-4-2020]
2. Subs. by Act 15 of 1904, s. 8, for "*See* Agreement by way of Equitable Mortgage (No. 6)".
3. Ins. by Act 38 of 1926, s. 19 and the Sch.
4. *Since* repealed.
5. The entry "EQUITABLE MORTGAGE" omitted by Act 15 of 1904, s. 8.

32. FURTHER CHARGE.—Instrument of, that is to say, any instrument imposing a further charge on mortgaged property—	
(*a*) when the original mortgage is one of the description referred to in clause *(a)* of Article No. 40 (that is, with possession);	The same duty as a Conveyance (No. 23) for a consideration equal to the value of the property of greatest value as set forth in such instrument.
(*b*) when such mortgage is one of the description referred to in clause (*b*) of Article No. 40 (that is, without possession)—	
(*i*) if at the time of execution of the instrument of further charge possession of the property is given or agreed to be given under such instrument;	The same duty as a Conveyance (No. 23) for a consideration equal to the amount of the further charge secured by such instrument.
(ii) if possession is not so given.....	The same duty as a Conveyance (No. 23) for a consideration equal to the total amount of the charge (including the original mortgage and any further charge already made) less the duty already paid on such original mortgage and further charge.
33. GIFT.—Instrument of, not being a SETTLEMENT (No. 58) or will or TRANSFER (No. 62).	
HIRING AGREEMENT or agreement for service. SEE AGREEMENT No.5).	The same duty as a Bond (No. 15) for the amount of the further charge secured by such instrument.
34. INDEMNITY-BOND.....	The same duty as a Conveyance (No. 23) for a consideration equal to the value of the property, as set forth in such instrument.
INSPECTORSHIP-DEED *See* COMPOSITION-DEED (No. 22)	The same duty as a Security Bond (No. 57) for the same amount.
INSURANCE. *See* POLICY OF INSURANCE (No. 47).	
35. LEASE, including an under-lease or sub-lease and any agreement to let or sub-let—	The same duty as a Bond (No.15) for the whole amount payable or deliverable under such lease.
(*a*) whereby such lease the rent is fixed and no premium is paid or delivered—	The same duty as Bond (No. 15) for the amount or value of the average annual rent reserved.
(*i*) where the lease purports to be for a term of less than one year;	The same duty as a Conveyance (No. 23) for a consideration equal to the amount or value of the average annual rent reserved.
(*ii*) where the lease purports to be for a term of not less than one year but not more than three years;	The same duty as a Conveyance (No. 23) for a consideration equal to the amount or value of the average annual rent which would be paid or delivered for the first ten years if the lease continued so long.
(*iii*) where the lease purports to be for a term in excess of three years;	The same duty as a Conveyance (No. 23) for a consideration equal to one-fifth of the whole amount of rents which would be paid or delivered in respect of the first fifty years of the lease.
(*iv*) where the lease does not purport to be for any definite term;	
(*v*) where the lease purports to be in perpetuity;	

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(*b*) where the lease is granted for a fine or premium or for money advanced and where no rent is reserved;	The same duty as a Conveyance (No. 23) for a consideration equal to the amount or value of such fine or premium or advance as set forth in the lease.
(*c*) where the lease is granted for a fine or premium or for money advanced in addition to rent reserved; *Exemptions* (*a*)Lease, executed in the case of a cultivator and for the purposes of cultivation (including a lease of trees for the production of food or drink) without the payment or delivery of any fine or premium, when a definite term is expressed and such term does not exceed one year, or when the average annual rent reserved does not exceed one hundred rupees.	The same duty as a Conveyance (No. 23) for a consideration equal to the amount or value of such fine or premium or advance as set forth in the lease, in addition to the duty which would have been payable on such lease if no fine or premium or advance had been paid or delivered: Provided that, in any case when an agreement to lease is stamped with the *ad valorem* stamp required for a lease, and a lease in pursuance of such agreement is subsequently executed, the duty on such lease shall not exceed eight annas.
[1]* * *	* *
[2]**[36. LETTER OF ALLOTMENT** in respect of any loan to be raised by any company or proposed company.]	[3][Two annas.],
[4]**[37. LETTER OF CREDIT,** that is to say any instrument by which one person authorizes another to give credit to the person in whose favour it is drawn. **LETTER OF GUARANTEE,** *See* AGREEMENT (No. 5).	[5][Two rupees.]
38. LETTER OF LICENCE, that is to say, any agreement between a debtor and his creditors that the letter shall, for a specified time, suspend their claims and allow the debtor to carry on business at his own discretion.	Ten rupees.
39. MEMORANDUM OFASSOCIATION OFA COMPANY—	
(*a*) if accompanied by articles of association under section 37 of the [6]Indian Companies Act, 1882 (6 of 1882);	Fifteen rupees.
(*b*) if not so accompanied	Forty rupees.

1. *Exemption* (*b*) omitted by the A.O. 1937.
2. Subs. by Act 7 of 2019, s. 21, for Article 36 (w.e.f. 1-7-2020). [Earlier notified w.e.f. 9-1-2020 followed by 1-4-2020]
3. Subs. by Act 43 of 1923, s. 2, for "one anna".
4. Subs. by notification No. S.O. 130 (*E*), dated 28-1-2004, for article 37.
5. Subs. by Act 32 of 1985, s. 50 (w.e.f. 1-7-1985).
6. *See* now the Companies Act, 1956 (1 of 1956).

Description of Instrument	Proper Stamp-duty
Exemption	
Memorandum of any association not formed for profit and registered under section 26 of the [1]Indian Companies Act, 1882 (6 of 1882).	
40. MORTGAGE-DEED, not being [2][an AGREEMENT RELATING-TO DEPOSITOF TITLE-DEEDS, PAWN OR PLEDGE (NO. 6)], BOTTOMRY BOND (NO. 16), MORTGAGE OF A CROP (NO. 41**),** RESPONDENTIA BOND (No. 56), OR SECURITY BOND (NO. 57)—	
(*a*) when possession of the property or any part of the property comprised in such deed is given by the mortgagor or agreed to be given;	The same duty as a Conveyance (No. 23) for a consideration equal to the amount secured by such deed.
(*b*) when [3]***possession is not given or agreed to be given as aforesaid;	The same duty as a Bond (No. 15) for the amount secured by such deed.
Explanation.—A mortgagor who gives to the mortgagee a power-of-attorney to collect rents or a lease of the property mortgaged or part thereof, is deemed to give possession within the meaning of this Article.	
(*c*) when a collateral or auxiliary or additional or substituted security, or by way of further assurance for the abovementioned purpose where the principal or primary security is duly stamped—	Eight annas.
for every sum secured not exceeding Rs. 1,000 and for every Rs. 1,000 or part thereof secured in excess of Rs. 1,000.	Eight annas.
Exemptions	
(*1*) Instruments, executed by person taking advances under the Land Improvement Loans Act, 1883 (19 of 1883), or the Agriculturists' Loan Act, 1884 (12 of 1884), or by their sureties as security for the repayment of such advances.	
(*2*) Letter of hypothecation accompanying a bill of exchange.	
[4] * * *	
41. MORTGAGE OF A CROP, including any instrument evidencing an agreement to secure the repayment of a loan made upon any mortgage of a crop, whether the crop is or is not in existence at the time of the mortgage—	* *
(*a*)when the loan is repayable not more than three months from the date of the instrument—	One anna.
for every sum secured not exceeding Rs. 200 and for every Rs. 200 or part thereof secured in excess of Rs. 200;	One anna.

1. *See* now the Companies Act, 1956 (1 of 1956).
2. Subs. by Act 15 of 1904, s. 8, for "AN AGREEMENTTO MORTGAGE (NO. 6)".
3. The words "At the time of execution" omitted by s. 8, *ibid*.
4. *Exemption* (*3*) omitted by s. 8, *ibid*.

Description of Instrument	Proper Stamp-duty
(*b*) when the loan is repayable more than three months, but not more than [1] [eighteen months], from the date of the instrument—	
for every sum secured not exceeding Rs. 100 and for	[2][Two annas.]
every Rs. 100 or part thereof secured in excess of Rs. 100.	[2][Two annas.]
42. NOTARIAL ACT, that is to say, any instrument, endorsement, note, attestation, certificate or entry not being a PROTEST (No. 50) made or signed by a Notary Public in the execution of the duties of his office, or by any other person lawfully acting as a Notary Public. *See also* PROTEST OF BILL OR NOTE (No. 50).	One rupee.
[3]**[43. NOTE OR MEMORANDUM,** sent by a Broker or agent to his principal intimating the purchase or sale on account of such principal—	
(*a*) of any goods exceeding in value twenty rupees;	Two annas.
(*b*) of any stock or marketable security exceeding in value twenty rupees;	Subject to a maximum of ten rupees, one anna for every Rs. 10,000 or part thereof the value of the stock or security.]
44. NOTE OF PROTEST BY THE MASTER OF A SHIP. *See also* PROTESTBY THE MASTER OF A SHIP(No. 51). **ORDER FOR THE PAYMENT OF MONEY.** *See* BILL OF EXCHANGE (No. 13).	Eight annas.
45. PARTITION— Instrument of [as defined by s. 2 (15)]	The same duty as a Bond (No. 15) for the amount of the value of the separated share or shares of the property. *N.B.*—The largest share remaining after the property is partitioned (or, if there are two or more shares of equal value and not smaller than any of the other shares, then one of such equal shares) shall be deemed to be that from which the other shares are separated: Provided always that— (*a*) when an instrument of partition containing an agreement to divide property in severalty is executed and a partition is effected in pursuance of such agreement, the duty chargeable upon the instrument effecting such partition shall be reduced by the amount of duty paid in respect of the first instrument, but shall not be less than eight annas;

1. Subs. by Act 5 of 1906, s. 7, for "one year"
2. Subs. by Act 15 of 1904, s. 8, for "Four annas".
3. Subs. by Act 6 of 1910, s. 3, for article 43.

Description of Instrument	Proper Stamp-duty
	(*b*) where land is held on revenue settlement for a period not exceeding thirty years and paying the full assessment, the value for the purpose of duty shall be calculated at not more than five times the annual revenue; (*c*) where a final order for effecting a partition passed by any Revenue-authority or any Civil-Court, or an award by an arbitrator directing a partition, is stamped with the stamp required for an instrument of partition, and an instrument of partition in pursuance of such order or award is subsequently executed, the duty on such instrument shall not exceed eight annas.
46. PARTNERSHIP—	
A—INSTRUMENT OF—	
(*a*) where the capital of the partnership does not exceed Rs. 500;	Two rupees eight annas.
(*b*) in any other case……	Ten rupees.
B.—DISSOLUTION OF……	Five rupees.
[1][PAWN OR PLEDGE. *See* AGREEMENT RELATING TO DEPOSIT OF TITLE-DEEDS. PAWN OR PLEDGE (NO. 6).]	

47. POLICY OF INSURANCE—	If drawn singly	If drawn in duplicate, for each part
[2]**[A.—SEA INSURANCE [***see*** section 7] of Indian Stamp Act, 1899 (2 of 1899)]**		
(*1*) for or upon any voyage—		
(*i*) where the premium or consideration does not exceed the rate of [3]*** one-eighth per centum of the amount insured by the policy;	[4][Ten naye paise]	[5][Five naye paise]
(*ii*) in any other case, in respect of every full sum of [6] [one thousand five hundred rupees] and also any fractional part of [6][one thousand five hundred rupees] insured by the policy;	[4][Ten naye paise]	[5][Five naye paise]

1. Ins. by Act 15 of 1904, s. 8.
2. Subs. by Act 5 of 1906, s. 7, for Division A and B.
3. The words "Fifteen nayepaise or" omitted by Act 14 of 1961, Section 16, the words in italics were subs. by Act 19 of 1958, s. 12, for "two annas" (w.e.f.1-10-1958).
4. Subs. by Act 19 of 1958, s. 13, for "one anna" (w.e.f. 1-10-1958).
5. Subs. s. 13, *ibid*., for "half an anna" (w.e.f. 1-10-1958).
6. Subs. Act 18 of 1928, s. 2 and the First Schedule, for "one thousand rupees".
5. Subs. by Act 19 of 1958, s. 13, for "Two annas" (w.e.f. 1-10-1958).

Description of Instrument	Proper Stamp-duty
(*2*) for time—	
(*iii*) in respect of every full sum of one thousand rupees and also any fractional part of one thousand rupees insured by the policy—	
where the insurance shall be made for any time not exceeding six months;	[1][Fifteen naye paise] [2][Ten naye paise]
where the insurance shall be made for any time exceeding six months and not exceeding twelve months.	[3][Twenty-five naye paise] [1][Fifteen naye paise]
B.— [4] [Fire-Insurance and other classes of insurance, not elsewhere included in this article, covering goods, merchandise, personal effects, crops and other property against loss or damage] —	
(*1*) in respect of an original policy—	
(*i*) when the sum insured does not exceed Rs. 5,000;	[5][Fifty naye paise]
(*ii*) in any other case; and	One rupees.
(*2*) in respect of each receipt for any payment of a premium on any renewal of an original policy.	One-half of duty payable in respect of the original policy in addition to the amount if any, chargeable under No. 53.
C.—ACCIDENT AND SICKNESS INSURANCE—	
(*a*) against railway accident, valid for a single journey only. *Exemption* When issued to a passenger travelling by the intermediate or the third class in any railway;	[2][Ten naye paise]
(*b*) in any other case—for the maximum amount which may become payable in the case of any single accident or sickness where such amount does not exceed Rs. 1,000, and also where such amount exceeds Rs. 1,000, for every Rs. 1,000 or part thereof.	[1][Fifteen naye paise]: [6][Provided that, in case of a policy of insurance against death by accident when the annual premium payable does not exceed [7][Rs. 2.50] per Rs. 1,000, the duty on such instrument shall be [2][Ten naye paise] for every Rs. 1,000 or part thereof of the maximum amount which may become payable under it.]

1. Subs. by Act 29 of 1958, s. 13, for "Two anna" (w.e.f. 1-10-1958).
2. Subs. by s. 13, *ibid*., for "One anna" (w.e.f. 1-10-1958).
3. Subs. by s. 13, *ibid*., for "Four annas" (w.e.f. 1-10-1958).
4. Subs. by Act 43 of 1923, s. 2, for "FIRE-INSURANCE."
5. Subs. by Act 19 of 1958, s. 13, for "Eight annas" (w.e.f. 1-10-1958).
6. Added by Act 18 of 1928, s. 2 and Schedule.
7. Subs. by Act 19 of 1958, s. 13, for "2.8-0" (w.e.f. 1-10-1958).

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Description of Instrument	Proper Stamp-duty	
[1] [CC.—INSURANCE BY WAY OF INDEMENITY against liability to pay damages on account of accidents to workmen employed by or under the insurer or against liability to pay compensation under the Workmen's Compensation Act, 1923 (8 of 1923), for every Rs. 100 or part thereof payable as premium.	[2][Ten naye paise]	
[3] [D.—LIFE INSURANCE [4] [OR GROUP INSURANCE OR OTHER INSURANCE] NOT SPECIFICALLY PROVIDED FOR**,** except such a **RE-INSURANCE,** as is described in Division E of this article—	If drawn singly	If drawn in duplicate for each part.
(*i*) for every sum insured not exceeding Rs. 250;	[5][Fifteen naye paise]	[2][Ten naye paise]
(*ii*) for every sum insured exceeding Rs. 250 but not exceeding Rs. 500;	[6][Twenty five naye paise]	[5][Fifteen naye paise]
(*iii*) for every sum insured exceeding Rs. 500 but not exceeding Rs. 1,000 and also for every Rs. 1,000 or part thereof in excess of Rs. 1,000.	[7][Forty naye paise]	[8][Twenty naye paise]
	[9] [*N.B.*—If a policy of group insurance is renewed or otherwise modified whereby the sum insured exceeds the sum previously insured on which stamp-duty has been paid, the proper stamp must be borne on the excess sum so insured.]	
Exemption Polices of life-insurance granted by the Director-General of Post Offices in accordance with rules for Postal Life-Insurance issued under the authority of the Central Government.]		
E.—RE-INSURANCE BY AN INSURANCE COMPANY, which has granted a POLICY of the nature specified in Division A or Division B of this Article, [10] with another company by way of indemnity or guarantee against the payment on the original insurance of a certain part of the sum insured thereby.	One-quarter of the duty payable in respect of the original insurance but not less than [2][ten naye paise] or more than one rupee: [11][Provided that if the total amount of duty payable is not a multiple of five naye paise, the total amount shall be rounded off to the next higher multiple of five naye paise].	

1. Ins. by Act 15 of 1925, s. 2.
2. Subs. by Act 19 of 1958, s. 13, for "One anna" (w.e.f. 1-10-1958).
3.Subs. by Act 18 of 1928, s. 2, and the First Schedule for Division D.
4. Subs. by Act 43 of 1955, s. 7, for "or other insurance" (w.e.f. 1-4-1956).
5. Subs. by Act 19 of 1958, s. 13, for "Two annas" (w.e.f. 1-10-1958).
6. Subs. by s. 13, *ibid.*, for "Four annas" (w.e.f. 1-10-1958).
7. Subs. by s. 13, *ibid*., for "Six annas" (w.e.f. 1-10-1958).
8. Subs. by s. 13, *ibid*., for "Three annas" (w.e.f. 1-10-1958).
9. Ins. by Act 43 of 1955, s. 7 (w.e.f. 1-4-1956).
10. Subs. by Act 43 of 1923, s. 2, for "of Sea-Insurance or a policy of Fire Insurance".
11. Ins. by Act 14 of 1961, s. 16.

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Description of Instrument	Proper Stamp-duty
General Exemption Letter of cover or engagement to issue a policy of insurance: Provided that, unless such letter or engagement bears the stamp prescribed by this Act for such policy, nothing shall be claimable thereunder, nor shall it be available for any purpose, except, to compel the delivery of the policy therein mentioned.]	
48. POWER-OF-ATTORNEY [as defined by section 2*(21)*],not being a PROXY (No. 52),—	
(*a*) when executed for the sole purpose of procuring the registration of one or more documents in relation to a single transaction or for admitting execution of one or more such documents;	Eight annas.
(*b*) when required in suits or proceedings under the Presidency Small Cause Courts Act, 1882 (15 of 1882);	Eight annas.
(*c*) when authorizing one person or more to act in a single transaction other than the case mentioned in clause *(a);*	One rupee.
(*d*) when authorizing not more than five persons to act jointly and severally in more than one transaction or generally;	Five rupees.
(*e*) when authorizing more than five but not more than ten persons to act jointly and severally in more than one transaction or generally;	Ten rupees.
(*f*)when given for consideration and authorizing the attorney to sell any immovable property;	The same duty as a Conveyance (No. 23) for the amount of the consideration.
(*g*) in any other case……	One rupee for each person authorized. *N.B.*—The term "registration" includes every operation incidental to registration under the [1]Indian Registeration Act, 1877 (III of 1877).
Explanation.—For the purposes of this article more persons than one when belonging to the same firm shall be deemed to be one person.	
[2][**49. Promissory note** [as defined by section 2(*22*)]	
(*a*) when payable on demand—	
(*i*)when the amount or value does not exceed Rs. 250;	[3][Ten naye paise]

1. *See* now the Indian Registration Act, 1908 (16 of 1908).
2. Subs. by Act 43 of 1923, s. 2, for Article 49.
3. Subs. by Act 19 of 1958, s. 13, for "One anna" (w.e.f. 1-10-1958).

Description of Instrument	Proper Stamp-duty
(*ii*) when the amount or value exceeds Rs. 250 but does not exceed Rs. 1,000;	[1][Fifteen naye paise]
(*iii*) in any other case	[2][Twenty-five naye paise]
(*b*) when payable otherwise than on demand—	The same duty as a Bill of Exchange (No. 13) for the same amount payable otherwise than on demand.]
50. PROTEST OF BILL OR NOTE, that is to say, any declaration in writing made by a Notary Public, or other person lawfully acting as such, attesting the dishonour of a bill of exchange or promissory note.	One rupee.
51. PROTEST BY THE MASTER OF A SHIP, that is to say, any declaration of the particulars of her voyage drawn up by him with a view to the adjustment of losses or the calculation of averages, and every declaration in writing made by him against the characterers or the consignees for not loading or unloading the ship, when such declaration is attested or certified by a Notary Public or other person lawfully acting as such, *See also* NOTE OF PROTEST BY THE MASTER OF A SHIP (No. 44).	One rupee.
52. PROXY, empowering any person to vote at any one election of the members of a district or local board or of a body of municipal commissioners, or at any one meeting of (*a*) members of an incorporated company or other body corporate whose stock or funds is or are divided into shares and transferable, (*b*)a local authority, or (*c*)proprietors, members or contributors to the funds of any institution.	[3][Thirty paise]
53. RECEIPT [as defined by section 2(*23*)] for any money or other property the amount or value of which exceeds [4][five thousand rupees.]	[3][One rupee]
Exemptions Receipt— (*a*) endorsed on or contained in any instrument duly stamped [5][or any instrument exempted] under the proviso to section 3 (instruments executed on behalf of the Government) [6][or any cheque or bill of exchange payable on demand] acknowledging the receipt of the consideration-money therein expressed, or the receipt of any principal-money, interest or annuity, or other periodical payment thereby secured; (*b*)for any payment of money without consideration;	

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1. Subs. by Act 19 of 1958, s. 13, for "Two annas" (w.e.f. 1-10-1958).
2. Subs. by S. 13, *ibid.*, for "Four annas" (w.e.f. 1-10-1958).
3. Subs. by Act 32 of 1994, s. 99, for "Twenty paise" (w.e.f. 13-5-1994).
4. Subs. by Act 23 of 2004, s. 117, for "five hundred rupees".
5. Subs. by Act 18 of 1928, s. 2 and the First Schedule, for "or exempted".
6. Ins. by s. 2 and the First Schedule, *ibid.*

Description of Instrument	Proper Stamp-duty
(*c*) for any payment of rent by a cultivator on account of land assessed to Government revenue, or[1][in the States of Madras, Bombay and Andhra] [2][as they existed immediately before the 1st November, 1956] of in am lands;	
(*d*) for pay or allowances by non-commissioned [3][or petty], officers, [4][soldiers, [3][sailors] or airmen] of [5][[6][the Indian] military, [3][naval] or air forces], when serving in such capacity, or by mounted police-constables;	
(*e*) given by holders of family-certificates in cases where the person from whose pay or allowances the sum comprised in the receipt has been assigned is a non-commissioned [3][or petty] officers [4][soldier, [3][sailor] or airmen] of [7][any of the said forces], and serving in such capacity;	
(*f*) for pensions or allowances by persons receiving such pensions or allowances in respect of their service as such non-commissioned [3][or petty] officer, [4][soldiers, [3][sailors] or airmen] and not serving the Government in any other capacity;	
(*g*) given by a headman or lambardar for land-revenue or taxes collected by him;	
(*h*) given for money or securities for money deposited in the hands of any banker, to be accounted for:	
Provided that the same is not expressed to be received of, or by the hands of, any other than the person to whom the same is to be accounted for:	
Provided also that this exemption shall not extend to a receipt or acknowledgment for any sum paid or deposited for or upon a letter of allotment of a share, or in respect of a call upon any scrip or share of, or in, any incorporated company or other body corporate or such proposed or intended company or body or in respect of a debenture being a marketable security.	

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1. Subs. by the Andhra (Adaptation of Law on Union Subjects) Order, 1954, for "In the Presidencies of Fort St. George and Bombay" (w.e.f. 1-10-1953).
2. Ins. by the Adaptation of Laws (No. 2) Order, 1956.
3. Ins. by Act 35 of 1934, s. 2 and the Schedule.
4. Subs. by Act 10 of 1927, s. 2 and the First Schedule, for "or soldiers".
5. Subs. by s. 2 and the First Schedule *ibid*., for "Her Majesty's Army or Her Majesty's Indian Army".
6. Subs. by the A.O. 1950, for "His Majesty's".
7. Subs. by Act 10 of 1927, s. 2, and the First Schedule for "either of the said Armies".

Description of Instrument	Proper Stamp-duty
[1][*SEE* ALSO POLICY OF INSURANCE [NO. 47-B (*2*).]	
54. RECONVEYANCE OF MORTGAGED PROPERTY—	
(*a*) if the consideration for which the property was mortgaged does not exceed Rs. 1,000;	The same duty as a conveyance (No. 23) for the amount of such consideration as set forth in the Reconveyance.
(*b*) in any other case.....	Ten Rupees.
55. RELEASE, that is to say, any instruments [2][(not being such a release as is provided for by section 23A)] whereby a person renounces a claim upon another person or against any specified property—	The same duty as a Bond (No. 15) for such amount or value as set forth in the Release.
(*a*) if the amount or value of the claim does not exceed Rs. 1,000;	Five rupees.
(*b*)in any other case…….	The same duty as a Bond (No. 15) for the amount of the loan secured.
56. RESPONDENTIA BOND, that is to say, any instrument securing a loan on the cargo laden or to be laden on board a ship and making repayment contingent on the arrival of the cargo at the port of destination.	
REVOCATION OF ANY TRUST OR SETTLEMENT	
See SETTLEMENT(No. 58); TRUST(No. 64)	0.005%
[3] **[56A. SECURITY OTHER THAN DEBENTURES (*see* sections 9A and 9B)—**	0.015%
(*a*) issue of security other than debenture;	0.003%
(*b*) transfer of security other than debenture on delivery basis;	0.002%
(*c*) transfer of security other than debenture on non-delivery basis;	0.003%
(*d*) derivatives—	0.0001%
(i) futures (equity and commodity)	0.002%
(ii) options (equity and commodity)	0%
(iii) currency and interest rate derivatives	0.00001%**]**
(iv) other derivatives	
(*e*) Government securities	The same duty as a Bond (No. 15) for the amount secured.
(*f*) repo on corporate bonds	Five rupees.
57. SECURITY BOND OR MORTGAGE-DEED, executed by way of security for the due execution of an office, or to account for money or other property received by virtue thereof or executed by a surety to secure the due performance of a contract,—	
(*a*) when the amount secured does not exceed Rs. 1,000;	
(*b*)in any other case……..	
Exemptions	
Bond or other instrument, when executed—	
(*a*) by headmen nominated under rules framed in accordance with the Bengal Irrigation Act, 1876 (Ben. Act 3 of 1876), section 99, for the due performance of their duties under that Act;	
(*b*) by any person for the purpose of guaranteeing that the local income derived from private subscriptions to a charitable dispensary or hospital or any other object of public utility shall not be less than a specified sum per mensem;	

1. Ins. by Act 5 of 1906, s. 7.
2. Ins. by Act 15 of 1904, s. 8.
3. Ins. by Act 7 of 2019, s. 21 (w.e.f.1-7-2020). [Earlier notified w.e.f. 9-1-2020 followed by 1-4-2020]

(*c*) under No. 3A of the rules made by the [1][State Government] under section 70 of the Bombay Irrigation Act, 1879) (Bom. Act V of 1879);	
(*d*) executed by persons taking advances under the Land Improvement Loans Act, 1883 (19 of 1883), or the Agriculturists' Loan Act, 1884 (12 of 1884), or by their sureties, as security for the repayment of such advances;	
(*e*) executed by officers of [2][the [3][Government]] or their sureties to secure the due execution of an office or the due accounting for money or other property received by virtue thereof.	The same duty as a Bond (No. 15) for a sum equal to the amount or value of the property settled as set forth in such settlement:
58. SETTLEMENT—	Provided that, where an agreement to settle is stamped with the stamp required for an instrument of settlement, and an instrument of settlement in pursuance of such agreement is subsequently executed, the duty on such instrument shall not exceed eight annas.
A.—INSTRUMENT OF, (including a deed of dower).....	
Exemptions	
(*a*) Deed of dower executed on the occasion of a marriage between Muhammadans.	
[4]* * *	* *
B.— REVOCATION OF—.....	The same duty as a Bond (No. 15) for a sum equal to the amount or value of the property concerned as set forth in the Instrument of Revocation but not exceeding ten rupees.
See also TRUST (No. 64).	
59. SHARE WARRANTS to bearer issued under the [5]Indian Companies Act, 1882 (6 of 1882).	[6][One and a half times] the duty payable on a Conveyance (No. 23) for a consideration equal to the nominal amount of the shares specified in the warrant.
Exemptions	
Share warrant when issued by a company in pursuance of the [7]Indian Companies Act, 1882 (6 of 1882), section 30, to have effect only upon payment, as composition for that duty, to the Collector or Stamp-revenue, of—	
(*a*) [8][one and a half] per centum of the whole subscribed capital of the company, or	
(*b*) if any company which has paid the said duty or composition in full, subsequently issues an Addition to its subscribed capital—[8][one and a half] per centum of the additional capital so issued.	

1. Subs. by the A.O. 1937, for "Governor of Bombay in Council".
2. Subs. *ibid*., for "Government".
3. Subs. by the A.O. 1950, for "Crown".
4. *Exemption* (*b*) omitted by the A.O. 1937.
5. *See* now the Companies Act, 1956 (1 of 1956).
6. Subs. by Act 6 of 1910, s. 3, for "Three-quarters of".
7. *See* now the Companies Act, 1956 (1 of 1956).
8. Subs. by Act 6 of 1910, s. 3, for "three-quarters of".

SCRIP, *See* CERTIFICATE (No. 19).	
60. SHIPPING ORDER for or relating to the conveyance of goods on board of any vessel.	One anna.
61. SURRENDER OF LEASE—	
(*a*)when the duty with which the lease is chargeable does not exceed five rupees;	The duty with which such lease is chargeable.
(*b*) in any other case…….	Five rupees.
Exemption	
Surrender of lease, when such lease is exempted from duty.	
62. TRANSFER (whether with or without consideration)—	
[1]* *	* *
* *	* *
(*c*) of any interest secured by a bond, mortgage-deed or policy of insurance,—	
(*i*) if the duty on such bond, mortgage-deed or policy does not exceed five rupees;	The duty with which such bond, mortgage-deed or policy of insurance is chargeable.
(*ii*) in any other case……..	Five rupees.
(*d*)of any property under the [2]Administrator General's Act, 1874 (2 of 1874), section 31;	Five rupees.
(*e*)of any trust-property without consideration from one trustee to another trustee or from a trustee to a beneficiary.	Five rupees or such smaller amount as may be chargeable under clauses (*a*)to (*c*)of this Article.
Exemptions	
Transfers by endorsement—	
(*a*) of a bill of exchange, cheque or promissory note;	
(*b*) of a bill of lading, delivery order, warrant for goods, or other mercantile document of title to goods;	
(*c*) of a policy of insurance;	
(*d*) of securities of the Central Government. *See also* section 8.	
63. TRANSFER OF LEASE by way or assignment and not by way of under-lease.	The same duty as a Conveyance (No. 23) for a consideration equal to the amount of the consideration for the transfer.
Exemption	
Transfers of any lease exempt from duty.	
64. TRUST—	
A. — DECLARATION OF—of, or concerning, any property when made by any writing not being a WILL.	The same duty as a Bond (No. 15) for a sum equal to the amount or value of the

1. Article 62 item (a) and (b) omitted by Act 7 of 2019, s. 21 (w.e.f. 1-4-2020). [Earlier notified w.e.f. 9-1-2020 followed by 1-4-2020].
2. *See* now the Administrator General's Act, 1963 (45 of 1963).

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property concerned as set forth in the instrument but not exceeding fifteen rupees.

B.—REVOCATION OF—of, or concerning, any property when made by any instrument other than a WILL.	The same duty as a Bond (No. 15) for a sum equal to the amount or value of the property concerned as set forth in the instrument but not exceeding ten rupees. Four annas.

See also SETTLEMENT (No. 58).

VALUATION, *See* APPRAISEMENT (No. 8).
VAKIL, *See* ENTRY AS A VAKIL (No. 30).

65. WARRANT FOR GOODS, that is to say, any instrument evidencing the title of any person therein named, or his assigns, or the holder thereof, to the property in any goods lying in or upon any dock, warehouse or wharf, such instrument being signed or certified by or on behalf of the person in whose custody such goods maybe.

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STATE AMENDMENT

Assam

Amendment of Schedule I of Act II of 1899.—In Schedule I to the principal Act, for item No. 23, the following shall be substituted, namely:—

Description of Instrument	Proper Stamp-duty
23. Conveyance [as defined by section 2 (10)] not being a Transfer Charged or exempted under No. 62	
Where the amount or value of the consideration for such conveyance as set forth therein does not exceed Rs. 50.	Two rupees and fifty paise.
Where it exceeds Rs. 50 but does not exceed Rs. 100;	Five Rupees
Where it exceeds Rs. 100 but does not exceed Rs. 200;	Ten rupees
Where it exceed Rs. 200 but does not exceed Rs. 300;	Twelve rupees
Where it exceed Rs. 300 but does not exceed Rs. 400;	Twenty rupees
Where it exceed Rs. 400 but does not exceed Rs. 500;	Twenty-two rupees
Where it exceed Rs. 500 but does not exceed Rs. 600;	Twenty-eight rupees.
Where it exceed Rs. 600 but does not exceed Rs. 700;	Thirty-two rupees.
Where it exceed Rs. 700 but does not exceed Rs. 800;	Thirty-seven rupees
Where it exceed Rs. 700 but does not exceed Rs. 900;	Forty-two rupees
Where it exceed Rs. 900 but does not exceed Rs. 1,000;	Forty-six rupees.
For every Rs. 500 or part thereof in excess of Rs. 1,000;	Twenty-three rupees
Where it excels Rs. 50,000 but does not exceed Rs. 90, 000;	Sixty rupees for every on thousand rupees.
Where it exceeds Rs. 90, 000 but does not exceed Rs. 1, 50, 000;	Eighty rupees for every one thousand rupees.
and where it exceeds Rs. 1, 50, 000;	One hundred rupees for every one thousand rupees.

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Provided that where the "instrument" or the conveyance is in respect of an Industrial loan, certified as such by the Director of Industries, Assam, the Stamp duty shall be half of the above rate.

Exemption

Assignment of copyright under the Indian Copyright Act, 1957 (Act XIV, 1957).

Co-partnership Deed-See partnership (No. 46)".

[*Vide* Assam Act 6 of 1990, s. 2]

Assam

Amendment of Schedule I.—In the principal act, in Schedule-I, for item No. 23, the following shall be substituted, namely:—

Description of Instrument	Proper Stamp-duty
"23. Conveyance [as defined by Section - 2(10)], not being a Transfer, charged or exempted under No. 62.	Five percent. of the market value of the property for such conveyance made in favour of women and six percent for others."

[*Vide* Assam Act 19 of 2008. s. 2]

Assam

Amendment of Schedule-I

Description of Instrument	Proper Stamp-duty
"23. Conveyance [as defined by Section - 2(10)], not being a Transfer, charged or exempted under No. 62.	Two percent. of the market value of the property for such conveyance made in favour of women soley or jointly with others and three percent for others."

[*Vide* Act 9 of 2013, s. 2]

Assam

Amendment of Schedule-I of Act II of 1899.—In the principal Act, in Schedule-I, for item Nos.1-5, 12, 15-20, 22-26, 28-29, 31, 33, 34-36, 38-40, 42-43, 45, 46, 48, 54, 57-58, 60, 61, 63-65, the following shall be substituted, namely:—

Sl. No.	**Description of Instrument**	**Proper Stamp-duty**
(1)	**(2)**	**(3)**
1.	Acknowledgement	Fifty Rupees
2.	Administration Bond including Bond given under Section 6 of the Government Saving Bank Act, 1873 or Section 291 or Section 376 of the Indian Succession Act, 1925:	
	(a) Where the amount does not exceed Rs. 1,000.	The same duty as a bond (No. 15) for such amount
	(b) In any other case.	Twenty rupees
3.	Adoption Deed	Two hundred rupees
4.	Affidavit	Fifteen rupees
5.	Agreement or memorandum of an Agreement:	
	(*a*) If relating to sale of a bill of exchange.	Five rupees.

	(*b*) If relating to sale of a Government Security.	Subject to maximum of Rs. 100 for every Rs. 10,000 or part thereof of the value of Security.
	(c) if relating to purchase or sale of shares, scripts, stocks, bonds, debentures, debenture stocks or any other marketable security of a like nature in or any incorporated company or other body corporate-	
	(i) when such agreement or memorandum of an agreement is with or through a member or between members of a stock exchange recognised under the Securities Contracts (Regulation) Act, 1956.	Three rupees for every Rs. 5000 or part thereof of the value of the security at the time of its purchase or sales as the case may be.
	(ii) in other cases	Five rupees for every Rs. 5000 or part thereof of the value of the security at the time of its purchase or sale as the case may be.
	(d) If executed for service or for performance of work in any estate whether held by one person or by more persons than one as co-owners and whether in one or more blocks and situated in Assam where the advance given under such agreement does not exceed one thousand rupees.	Five rupees.
	Agreement to lease.	
	(e) if not, otherwise provided for	Ten rupees.
12.	Award:	
	(a) Where amount or value of the property to which the award relates as set forth in such award, does not exceed Rs. 1,000.	The same duty a Bond for such amount
	(b) if it exceeds Rs. 1,000 but does not exceeds Rs. 5,000.	Twenty rupees.
	and for every additional Rs. 1,000 or part thereof in excess of Rs. 5,000.	Two rupees subject to a maximum of one hundred and-thirteen rupees.
15.	Bond as defined by Section 2(5)] not being debenture (No. 27) and not being otherwise provided for by this Act or by the Court Fees Act, 1870	
	Where the amount of value secured does not exceed Rs. 500.	Ten rupees.
	Where it exceeds Rs. 500 and does not exceed Rs. 1,000. and for every Rs. 500 or part thereof in excess of Rs. 1,000.	Twenty rupees. Ten rupees.
16.	Bottomry Bond that is to say, any instrument whereby the master of sea going ship borrows money on the security of a ship to enable him to preserve the ship or persecute her voyage.	The same duty as a Bond (No. 15) for such amount.
17.	Cancellation instrument of (including any instrument by which any previously executed is cancelled) if attested and not otherwise provided for.	Thirty rupees.

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Sl. No.	Description of Instrument	Proper Stamp-duty
18.	Certificate of sale (in respect of each property put up as a separate lot sold) granted to the purchaser of any property sold by public auction by a Civil or Revenue Court or Collector or Revenue Officer.	Same duty as on Conveyance (No. 23) for a market value of equal to the amount of the purchase money only.
19.	Certificate or other document evidencing the right or title of the holder thereof or any other person either to any shares, script or stock in or of any incorporated company or other body corporate or to become proprietor of shares, script or stock in, or of any such company or body.	Five rupees.
20.	Charter Party, that is to say, any instrument (except and agreement for the hire of a tug steamer), whereby a vessel or some specified principal part thereof is left for the specified purpose of the charter whether it includes a penalty clause or not.	Fifteen rupees.
22.	Composition Deed that is to say, any instrument executed by a debtor, whereby he conveys his property for the benefit of his creditors or whereby payment of a composition or dividend on their debts is secured to the creditors or whereby provision is made for the continuance of the debtor business, under the supervision of inspectors or under letters of License for the benefit of his creditors	Seventy five rupees.
23.	Conveyance **[**as defined by Section-2(10)], not being a Transfer, charged or exempted under No. 62.	
	Where the market value of the property for such conveyance as set forth therein does not exceed Rs. 1000.	Fifty rupees.
	Where it exceeds Rs. 1000 but does not exceed Rs. 10,000.	Sixty rupees per thousand or part thereof
	Where it exceeds Rs. 10, 000 but does not exceed Rs. 5,0000.	Sixty five rupees per thousand or part thereof
	Where it exceeds Rs. 5,0000 but does not exceed Rs. 1,00,000.	Eighty rupees per thousand or part thereof
	And for every Rs. 1,000 or part thereof in excess of Rs. 1, 00, 000.	One hundred twenty rupees.
	Provided that where the instrument or the conveyance is in respect of an industrial loan certified as such by the Director of Industries, Assam the stamps duty shall be half of the above rate.	
24.	Copy or extract certified to be true copy or extract by or by order of any public officer and not chargeable under the law for the time being in force relating to court fees.	
	(i) If the original was not chargeable with duty or if the duty with which it was chargeable does not exceed two rupees.	Five rupees.
	(ii) in any other case not falling within the provisions of Section 6-A.	Ten rupees.

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Sl. No.	Description of Instrument	Proper Stamp-duty
25.	Counterpart or Duplicate of any instrument chargeable with duty and in respect of which proper duty has been paid.	
	(a) if the duty with which the original instrument is chargeable does not exceed two rupees.	The same duty as is payable on the original.
	(b) in any other case not falling within the provisions of Section 6A.	Ten rupees.
26.	**Customs Bonds**-	
	(a) Where the amount does not exceed Rs. 1,000.	The same duty as bond for such amount.
	(b) in any other case.	Fifty rupees.
28.	Delivery order in respect goods.	Five rupees.
29.	Divorce instrument of, that is to say, any instrument by which any person effects the dissolution of his marriage.	Fifty rupees.
31.	Exchange of property, instrument of	The same duty as conveyance (No. 23) for market value equal to the market value of the property of greatest value as set forth in such instrument.
33.	Gift instrument of not being a settlement (No. 58) or will or transfer (No. 62).	The same duty as conveyance (No. 23) for market value equal to the market value of the property of greatest value as set forth in such instrument.
34.	Indemnity Bond	The same duty as security bond for the same amount.
35.	Lease-including an under lease or sub-lease and any agreement to let or sub-let-	
	(a) Where by such lease is fixed and no premium is paid or delivered.	
	(*i*) Where the lease purports to be for a term of less than one year.	The same duty as a Bond (No. 10) for the whole amount payable or deliverable under such lease.
	(*ii*) Where the lease purports to be for a term of not less than one year but not more than five year	The same duty as a Bond (No. 15) for the amount or value of the average annual rent reserved.
	(*iii*) Where the lease purports to be for a term exceeding five years, and not exceeding ten years.	The same duty as a conveyance (No. 23) for a market value equal to the amount or value of the average annual rent reserved.

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Sl. No.	Description of Instrument	Proper Stamp-duty
	(*iv*) Where the lease purports to be for a term exceeding ten years, but not exceeding twenty years.	The same duty as a conveyance (No. 23) for a market value equal to twice the amount or value of the average annual rent reserved.
	(*v*) Where the lease purports to be for a term exceeding twenty years, but not exceeding thirty years.	The same duty as a conveyance (No. 23) for a market value equal to three times the amount or value of the average annual rent reserved.
	(*vi*) Where the lease purports to be for a term exceeding thirty years, but not exceeding one hundred years.	The same duty as a conveyance (No. 23) for a market value equal to four times the amount or value of the average annual rent reserved.
	(vii) Where the lease purports to be for a term exceeding one hundred years, or in perpetuity.	The same duty as a conveyance (No 23) for a market value equal in the case of a lease granted solely for agricultural purpose to one-tenth and in any other case to one-sixth of the whole amount ofrents which would be paid or delivered in respect of the first fifty years of the lease.
	(viii) Where the lease does not purport to be for any definite term	The same duty as a conveyance (No. 23) for a market value equal to three times the amount or value of the average annual rent which would be paid or delivered for the first ten years if the lease continued so long.
	(b) Where the lease is granted for a fine or premium or for money advanced and where no rent is reserved.	The same duty as a conveyance (No. 23) for a market value equal to the amount or value of such fine or premium or advance as set forth in the lease.

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Sl. No.	Description of Instrument	Proper Stamp-duty
	(c) Where the lease is granted for' a fine or premium or for money advanced in addition to rent reserved.	The same duty as a conveyance (No. 23) for a market value equal to the amount or value of such fine or premium or advance as set forth in the lease, in addition to the duty which would have been payable on such lease if no fine or premium or advance had been paid or delivered: Provided that, in any case where an agreement to lease is stamped with the *advalorem* stamp required for a lease and a lease in pursuance of such agreement is subsequently executed the duty on which lease shall not exceed two rupees.
Sl. No.	**Description of Instrument**	**Proper Stamp-duty**
	Exemption.-Lease, executed in the case of cultivator for the purpose of cultivation (including a lease of trees for the production of food or drink) without the payment or, delivery of any fine or premium, when a definite term is expressed and such term does not exceed one year, or when the average annual rent reserved does not exceed one hundred rupees. In this exemption a lease for the market purpose of cultivation shall including a lease of lands for cultivation together with a homestead or tank. **Explanation-**When lease undertakes to pay any recurring charge, such as Government revenue, landlords share of cesses, or the owner's share of municipal rates of taxes, which is by law recoverable from the lessor, the amounts so agreed to be paid by the lessee shall be deemed to be part of the rent.	
36.	Letter of allotment of shares in any company or proposed company or in respect of any loan to be raised by any company or proposed company.	Five rupees.
38.	Letter of licence that is to say, any agreement between a debtor and creditors that the letter shall for a specified time suspend their claims and allow the debtor to carry on business at his own discretion.	Fifty rupees.

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Sl. No.	Description of Instrument	Proper Stamp-duty
39.	Memorandum of Association of a Company--	
	(a) If accompanied by articles of Association under Section 26, 27 and 28 of the Companies Act, 1958.	Two hundred rupees.
	(b) If not so accompanied.	Five hundred rupees.
40.	Mortgage Deed not being an agreement relating to Deposit of Title deeds pawn or pledge (NO. 6), Bottomry Bond (No. 16), Mortgage of a Crop (No. 41), Respondentia Bond (No. 56), or Security Bond (No. 57).	Five hundred rupees.
	(a) When possession of the property or any part of the property comprised in such deed is given by the mortgagor on agreed to be given.	The same duty as a conveyance (No. 23) for a market value equal to the amount secured by such deed.
	(b) When possession is not given or agreed to be given as aforesaid.	The same duty as a Bond (No. 15) for the amount secured by such deed.
	Explanation-A mortgagor who gives to the mortgagee a power of attorney to collect rents or a lease of the property mortgaged or part thereof is deemed to give possession within the meaning of this article.	
Sl. No.	**Description of Instrument**	**Proper Stamp-duty**
	(c) (i) When a collateral or auxiliary or additional or substituted security, or by way of further assurance for the above mentioned purpose where the principal or primary security is duly stamped for every sum secured not exceeding Rs. 1,000.	Three rupees.
	(ii) and for every Rs. 1,000 or part thereof secured in excess of Rs. 1,000. Exemptions:	Four rupees.
	(1) Instruments executed by persons taking advance under the Land Improvement Loans Act, 1983 or the Agriculturists Loans Act, 1884, or by their sureties as security for the repayment of such advances. (2) Letter of hypothecation accompanying a bill of exchange.	Act. XIX of 1883
42.	Notarial Act, that is to say, instrument, endorsement, note attestation certificate or entry not being a protest (No. 50) made or signed by a Notary Public in the execution of the duties of his office or by any other person lawfully acting as not any public.	Fifteen rupees.
43.	Note or Memorandum sent by a, Broker or Agent to his Principal intimating the purchase or sale on account of such principal.	

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Sl. No.	Description of Instrument	Proper Stamp-duty
	(a) of any goods exceeding in value twenty rupees.	Five rupees.
	(b) of any stock or marketable security exceeding in value twenty rupees.	Five rupees for every Rs. 10,000 or part thereof of the value of the stock or security.
44.	Note of Protest by the Master of Ship.	Ten rupees.
45.	Partition-Instrument of [As defined by Section 2(15)].	The same duty as a Bond (No. 15) for the amount or the value of the separated share or shares of the property.
	N.B.-The largest share remaining after the property is partitioned (or if there are two or more shares of equal value and not smaller than any of the other share then one of such equal share) shall be deemed to be that from which the other shares are separated. Provided always that--	
	(a) When an instrument of partition containing an agreement to divide property in severalty is executed and a partition is effected in pursuance of such agreement the duty chargeable upon the instrument effecting such partition shall be reduced by the amount of duty paid in respect of the first instrument, but shall not be less than three rupees and thirty paise;	
	(b) Where land is held on revenue settlement for a period not exceeding thirty years and paying the full assessment, the value for the purpose of duty shall be calculated at not more than fifty times the annual revenue.	
	(c) Where a final order for effecting a partition passed by any revenue authority or any Civil Court, or an award by an arbitrator directing a partition is stamped with stamp required for an instrument of partition and an instrument of partition in pursuance of such order of award is subsequently executed the duty in such instrument shall not exceed three rupees and thirty paise.	
46.	Partnership, A-Instrument of--	
	(*a*) Where the capital of the partnership does not exceed Rs. 1,000.	The same as the Bond (No. 15).
	(*b*) in any other case	Rupees one hundred.
	B-Dissolution of--	
	Power or Pledge-See Agreement relating to deposit of Title deeds Power of Pledge (No. 6).	Fifty rupees.
48.	Power of Attorney (As defined by Section (21), not being proxy,	
	(*a*) When executed for the sole purpose of procuring the registration of one or more documents in relation to a single transaction or for admitting execution of one or more such documents.	Fifteen rupees.
	(*b*) When required in suit or proceedings under Presidency Small Cause Courts Act, 1882.	Fifty rupees.
	(c) When authorising one person or more to act in a single transaction other than the case mentioned in clause (a).	One hundred rupees.

Sl. No.	Description of Instrument	Proper Stamp-duty
	(d) When authorising not more than five persons to act jointly and severally in more than one transaction or generally.	Two hundred rupees.
	(e) When authorising more than five, but not more than ten persons to act jointly and severally in more than one transaction or generally.	Four hundred rupees.
	(f) When given for consideration and authorising the attorney to sell immovable property.	Same duty as a conveyance (No. 23) for the amount of the market value.
	(g) In any other case	One hundred rupees.
54.	Reconveyance of Mortgaged Property-- (a) If the consideration for which the property was mortgaged does not exceed Rs. 1,000.	The same duty as a conveyance (No. 23) for the amount of the market value as set forth in the conveyance.
	(b) If any other case	Sixty rupees.
57.	Security Bond or Mortgaged Deed executed by way of security for the due execution of an office or to account for money or other property received by virtue thereof, or executed by a surety to secure the due performance of a contract.	
	(a) When the amount secured not exceed Rs. 1,000.	The same duty as Bond for the amount secured.
	(b) in any other case	Fifty rupees.
58.	Settlement	
	A. Instrument of (including a deed of dower).	The same duty as a conveyance (No. 23).
	B. Revocation of.	The same duty as a conveyance for a sum equal to the amount of value of the property concerned as set forth in the instrument of revocation.
60.	Shipping order	Five rupees.
61.	Surrender of Lease- (a) When the duty with which the lease is chargeable does not exceed ten rupees.	The duty with which such lease is chargeable.
63.	Transfer of Lease by way of assignment and not by way of under lease.	The same duty as a conveyance (No. 23) for a market value equal to the amount of the market value for the transfer.
	Exemptions.—Transfer of any lease exempt from duty	
64.	Trust--A-Declaration of, or concerning any property when made by any writing not being a will.	The same duty as a Bond for a sum equal to the amount or value of the property concern, as set forth in the instrument.

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Sl. No.	Description of Instrument	Proper Stamp-duty
	B-Revocation of, or concerning, any property when made by instrument, any other than a will.	The same duty as a Bond (No. 15) for a sum equal to the amount or value of the property concerned, as set forth in the instrument, but not exceeding thirty rupees.
65.	Warrant for Goods.	Five rupees.

[*Vide* Assam Act 22 of 2004, s. 5]

Himachal Pradesh

New Schedule I-A.- After Schedule to the said Act the following shall be inserted, namely:-

SCHEDULE I-A

RATES OF STAMP DUTY ON CERTAIN INSTRUMENTS

Note.—The Articles in Schedule I-A are numbered so as to correspond with similar Articles in Schedule I, of the Indian Stamp Act, 1899.

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Art. No.	Description of Instrument	Rates of Stamp Duty
1.	Acknowledgement of a debt.–exceeding twenty rupees in amount or value, written or signed by, or on behalf of, a debtor in order to supply evidence of such debt, in any book (other than a Banker's pass-book) or on a separate piece of paper when such book or paper is left in the creditor's possession:	Ten rupees
	Provided that such acknowledgement does not contain any promise to pay the debtor any stipulation to pay interest or to deliver any goods or other property.	
2.	**Administration Bond.**–including a bond given under section 6, of the Government Savings Bank Act, 1873, or section 29, 375 and 376 of the Indian Succession Act, 1925-in every case.	One hundred rupees.
3.	**Adoption-Deed.**– that is to say, any instrument (other than a Will), recording an adoption, or conferring or purporting to confer an authority to adopt.	One hundred rupees.
	Advocate.–*See* Entry as an Advocate (No. 30).	
4.	**Affidavit.**–including an affirmation or declaration in the case of persons by law allowed affirming or declaring instead of swearing.	Ten rupees
	Exemptions	
	Affidavit of declaration in writing when made–	
	(*a*) as a condition or enrolment under the Army Act, 1950; or Air Force Act, 1950;	
	(*b*) for the immediate purpose of being filed or used in any court or before the officer of any Court; or	

	(*c*) for the sole purpose of enabling any person to receive any pension or charitable allowance.	
5.	**Agreement or Memorandum of an Agreement.**– if relating to the sale of a bill of exchange or sale of a government security or share in any incorporated company or other body corporate or not otherwise provided for.	Fifty rupees.
	Exemptions	
	Agreement or memorandum of agreement-	
	(*a*) for or relating to the sale of goods or merchandise exclusively, not being a Note or Memorandum chargeable under No. 43;	
	(*b*) made in the form of tenders to the Central Government for or relating to any loan.	
	Agreement to Lease.–*See* Lease (No. 35).	
6.	**Agreement relating to Deposit of Title Deeds, Pawn or Pledge.–** that is to say any instrument evidencing an agreement relating to-	
	deposit of title-deeds or instrument constituting or being evidence of the title to any property whatever (other than a marketable security) or the pawn or pledge of movable property where such deposit, pawn or pledge has been made by way of security for the repayment of money advanced or to be advanced by way of loan or an existing or future debt.	0.05% of the secured amount, subject to the minimum of rupees one hundred and maximum rupees one thousand and duty rounded off to nearest rupees Ten.
	Exemption	
	Instrument of pawn or pledge of goods if unattested.	
	Comments	

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	An agreement of hypothecation and question of stamp duty.– There is distinction between a transaction of hypothecation and a transaction of pledge. Because unlike a pledge where the possession of the goods pledged must pass on to the pawnee, no such possession passes on to the creditor in case of hypothecation. As the document in the present case, sought to create two rights in favour of the Bank, i.e. one pertaining to hypothecation of the property and the other pertaining to creation of attorneyship a total stamp of Rs. 11.50 was chargeable to in respect of the document under section 5 of the Stamp Act. Thus the document has been duly stamped being neither a pledge nor a pawn but an agreement of hypothecation covered by Cl. (e) of Art. 5 of Schedule-I to the Stamp Act with a covenant to confer rights of an attorney of the defendant on the plaintiff.	
	Deed of Pawn or Pledge.–There is no dispute between the parties, and rightly so, because even on a plain reading of Cl. 6 of the agreement it transpires that the possession of the goods hypothecated was to remain with the debtor itself. That being so, this deed cannot be held to be a deed of pawn or pledge so as to attract the mischief of Art. 6(2) of Schedule-I to the Stamp Act.	
7.	**Appointment in execution of a Power.–**whether of trustees or of property movable or immovable, where made by any writing not being a Will.	One hundred rupees.
8.	**Appraisement or Valuation.–** made otherwise than under an order of the Court in the course of a suit–	
	in every case.	Fifty rupees.
	Exemptions	
	(*a*) Appraisement or valuation made for the information of one party only, and not being in any manner obligatory between parties either by agreement or of operation of law.	
	(*b*) Appraisement of crops for the purpose of ascertaining the amount to be given to a landlord as rent.	
9.	**Apprenticeship-Deed.**– including every writing relating to the service or tuition of any apprentice, clerk or servant placed with any master to learn any profession, trade or employment, not being articles of clerkship (No. 11).	As in Schedule-I.

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Art. No.	Description of Instrument	Rates of Stamp Duty
	Exemption	
	Instruments of apprenticeship executed by a Magistrate under the Apprentices Act, 1850, or by which a person is apprenticed by or at the charge of, any public charity.	
10.	**Articles of Association of a Company.–**	
	in every case.	Two hundred rupees.
	Exemption	
	Articles of any Association not formed for profit and registered under section 25 of the Companies Act, 1956.	
	See also Memorandum of Association of a Company (No. 39).	
11	**Articles of Clerkship.–**	
	Assignment.– *See* Conveyance (No. 23) Transfer (No. 62) and Transfer of Lease (No. 63), as the case may be.	As in Schedule-I.
	Attorney.–*See* Entry as an Attorney (No. 30), and Power of Attorney (No. 48).	
	Authority to Adopt.-*See* adoption deed (No. 3)	
12.	**Award.–** that is to say, any decision in writing by an arbitrator or umpire, not being an award directing a partition, on a reference made otherwise than by an order of the court in the course of a suit—	
	for every amount or value of the property as set forth in such award.	Five hundred rupees.
13.	**Bill of Exchange.**	As in Schedule-I
14.	**Bill of Lading (including a through bill of lading).**	As in Schedule-I
15.	**Bond.–** as defined by section 2(5), not being a debenture (No. 27), and not being otherwise provided for by this Act or by the Court-fees Act, 1870.	0.05% of the secured amount, subject to the minimum of rupees one hundred and maximum rupees one thousand and duty rounded off to nearest rupees Ten.
	See Administration Bond (No.2), Bottomry Bond (No.16), Custom Bond (No.26), Indemnity Bond (No.34), Respondentia Bond (No.56), Security Bond (No.57).	

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	Exemption	
	Bond when executed by any person for the purpose of guaranteeing that the local income derived from private subscription to a charitable dispensary or hospital or to any other object of public utility, shall not be less than a specified sum per mensem.	
16.	**Bottomry Bond.**–that is to say, any instrument whereby the master of a sea-going ship borrows money on a security of the ship to enable him to preserve the ship or prosecute her voyage.	0.05% of the secured amount, subject to the minimum of rupees one hundred and maximum rupees one thousand and duty rounded off to nearest rupees Ten.
17.	**Cancellation.**–Instrument of (including any instrument by which any instrument previously executed is cancelled) if attested and not otherwise provided for.	Fifty rupees.
	See also Release (No. 55), Revocation of Settlement (No. 58-A), Surrender of Lease (No. 61), Revocation of Trust (No. 64-B).	
18.	**Certificate of Sale.**–(in respect of each property put up as a separate lot and sold), granted to the purchaser of any property sold by public auction by a Civil or Revenue Court, or Collector or other Revenue Officer.	5.00% of the market value of the property or to the amount of purchase money, "whichever is higher", subject to the minimum of rupees one hundred and duty rounded off to nearest rupees Ten.
19.	**Certificate or other Document.–**evidencing the right or title of the holder thereof, or any other person, either to any shares scrip or stock in or of any incorporated company or other body corporate, or to become proprietor of shares, scrip or stock in or of any such company or body.	Ten rupees.
20.	**Charter Party.—**that is to say, any instrument (except an agreement for the hire of a tug steamer), whereby a vessel or some specified principal part thereof is let for the specified purposes of the Charterer, whether it includes a penalty clause or not.	Ten rupees.
21.	**Cheque.–**	[***]. Omitted by Act No. 5 of 1927.

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22.	**Composition-Deed.–**that is to say, any instrument executed by a debtor whereby he conveys his property for the benefit of his creditors, or whereby payment of a composition or dividend on their debts is secured to the creditors, or whereby provision is made for the continuance of the debtor's business under the supervision of inspectors or under letters of license, for the benefit of his creditors.	One hundred rupees.
23.	**Conveyance.**– as defined by section 2(10) not being a Transfer charged or exempted under No. 62-	
	where the conveyance amounts to sale of immovable property.	4.00% for women and 6.00% for other persons, of the market value of the property or of the amount of purchase money", "whichever is higher", subject to the minimum of rupees one hundred and duty rounded off to nearest rupees Ten.
	Exemption	
	Assignment of copyright.–under the Copyright Act, 1957, Section 18.	
	Co-partnership-deed.–*See* Partnership (No. 46).	
	Comments	
	Conveyance of Property.-There is no difference between a case of retirement and that of dissolution. A partner stands on the same footing in relation to partnership as a co-owner. In the present case the document executed by the firm relinquishing the rights in favour of the former partner could only be a release. It was not a transfer having not been made in favour of a partner who had no interest in the property. The document executed does not transfer property; hence it was not a conveyance.	
23(A)	**Conveyance in the Nature of Part Performance.–**Contracts for the transfer of immovable property in the nature of part performance in any Union territory under section 53 A of the Transfer of Property Act, 1882.	As in Schedule-I.
24.	**Copy or Extract.–**certified to be true copy or extract, by or by order of any public officer and not chargeable under the law for the time being in force relating to court fees, in every case.	Ten rupees.

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	Exemptions	
	(*a*) Copy of any paper which a public officer is expressly required by law to make or furnish for record in any public office or for any public purpose.	
	(*b*) Copy of, or extract from, any register relating to births, baptisms, namings, dedications, marriages, divorces, deaths or burials.	
25.	**Counterpart or Duplicate.**– of any instrument chargeable with duty and in respect of which the proper duty has been paid, for every case.	Ten rupees.
	Exemption	
	Counterpart of any lease granted to a cultivator, when such lease is exempted from duty.	
	Comments	
	Whether the stamp duty payable is payable on a counterpart.-Article 25 of the First Schedule to the Indian Stamp Act simply states the stamp duty payable on a counterpart or on a duplicate. Hence, an unstamped counterpart can be validated by payment of proper stamp duty and penalty therefor.	
26.	**Customs-Bonds.**–in every case.	One hundred rupees.
27.	**Debenture.–** (where a mortgage debenture or not), being a marketable security transferable-	
	(*a*) by endorsement or by a separate instrument of transfer;	As in Schedule-I.
	(*b*) by delivery.	As in Schedule-I.
	Explanation.-The term "Debenture" includes any interest coupons attached thereto, but the amount of such coupons shall not be included in estimating the duty.	
	Exemption	
	A debenture issued by an incorporated company or other body corporate in terms of a registered mortgage-deed, duly stamped in respect of the full amount of debentures to be issued thereunder, whereby the company or body borrowing makes over, in whole or in part their property to trustees for the benefit of the debenture holders; provided that the debentures so issued are expressed to be issued in terms of the said mortgage-deed.	
	See also Bond (No. 15) and sections 8 and 55.	
	Declaration of any trust-*See* Trust (No. 64).	

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28.	**Delivery Order in respect of Goods.**	One hundred rupees.
	Deposit of Title-Deeds- *See* Agreement Relating to Deposit of Title-Deeds, Pawn or Pledge (No. 6).	
	Dissolution of Partnership- *See* Partnership (No. 46).	
29.	**Divorce, Instrument of.–**that is to say, any instruments by which any person effects the dissolution of his marriage.	One hundred rupees.
	Dower, Instrument of- *See* Settlement (No. 58).	
	Duplicate- *See* Counterpart (No. 25).	
30.	**Entry as an Advocate, Vakil or Attorney on the Roll of the High Court.–**	
	in the case of an Advocate or Vakil or an Attorney.	One thousand rupees.
	Exemption	
	Entry as an Advocate, Vakil or Attorney on the roll of any High Court, when he has previously been enrolled in any other High Court.	
31.	**Exchange of Property, Instrument of.**	0.05% of the higher value value of exchanged property, subject to the minimum of rupees one hundred and maximum rupees one thousand and duty rounded off to nearest rupees Ten.
	Extract- *See* Copy (No.24).	
32.	**Further Charge, Instrument of.**– that is to say, any instrument imposing a further charge on mortgaged property-	
	(*a*) if at the time of execution of the instrument of further charge, the possession of the property is given or agreed to be given under such instrument;	5.00% of the market value of the property or consideration amount, "whichever is higher", subject to the minimum of rupees one hundred and duty rounded off to nearest rupees Ten.
	(*b*) if possession is not so given.	0.05% of the secured amount, subject to the minimum of rupees

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		one hundred and maximum rupees one thousand and duty rounded off to nearest rupees Ten.
33.	**Gift, Instrument of.–**not being a Settlement (No. 58) or Will or Transfer (No. 62).	[4.00% for women and 6.00% for other persons,] of the market value of the property, subject to the minimum of rupees one hundred and duty rounded off to nearest rupees Ten.
	Hiring Agreement or Agreement for Service.–*See* Agreement (No. 5).	
34.	**Indemnity Bond.–** in every case.	One hundred rupees.
	Inspectorship-Deed.– *See* Composition-Deed (No. 22).	
35.	**Lease.–** including an under-lease or sub-lease and any agreement to let or sublet-	5.00% of the market value of the leased property, subject to the minimum of rupees one hundred and duty rounded off to nearest rupees Ten.
	(*a*) where the lease purports upto one hundred years or exceeding hundred years;	*Formula for calculating the stamp duty on Lease Deeds* :- 5% × Market Value ×(Period of Lease) 100
	(*b*) where the lease purports in perpetuity and does not purport to be for any definite term and time.	5.00% of the market value of the leased property or the whole lease amount which would be paid or delivered under such lease, if any, "whichever is higher," subject to the minimum of rupees one hundred and duty rounded off to nearest rupees Ten.
	Exemption	
	Lease, executed in the case of a cultivator and for the purposes of cultivation (including a lease of trees for the production of food or drink) without the payment or delivery of any fine or premium, when a definite term is expressed and	

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	such term does not exceed one year or when the average annual rent reserved does not exceed one hundred rupees.	
	In this exemption a lease for the purposes of cultivation shall include a lease of lands for cultivation together with a homestead or tank.	
	Explanation.–When a lessee undertakes to pay any recurring charge such as Government revenue, the land-lords share of cesses, or the owner's share of municipal rates or taxes, which is by law recoverable from the lessor, the amount so agreed to be paid by the lessee shall be deemed to be part of the rent.	
	Comments	
	Any agreement to let-Whether amounts to a lease.- Article 35 would indicate that it is not only a lease which is covered by this Article, but also any agreement to let. An agreement to let need not be a lease. In order to determine whether in any given case, it is reasonable to infer the existence of agreement one has to see if one party has made an offer and the other party has accepted the same. To constitute an agreement, it is necessary that the intention of the parties must be definite and common on both. This can be achieved if the terms and conditions are expressly arrived at or could impliedly be found.	
36.	**Letter of Allotment of Shares.**	Ten rupees.
37.	**Letter of Credit.**	As in Schedule-I.
	Letter of Guarantee.– *See* Agreement (No. 5).	
Art. No.	**Description of Instrument**	**Rates of Stamp Duty**
38.	**Letter of License.–**that is to say, any agreement between a debtor and his creditors that the latter shall, for a specified time, suspend their claims and allow the debtor to carry on business at his own discretion.	Fifty rupees
39.	**Memorandum of Association of a Company.–**	
	(*a*) if accompanied by articles of association under sections 26, 27 and 28 of the Companies Act, 1956;	One hundred rupees.
	(*b*) if not so accompanied.	Two hundred rupees.
	Exemption	
	Memorandum of any association not formed for profit and registered under section 25 of the Companies Act, 1956.	
40.	**Mortgage-Deed.–** not being an agreement relating to deposit of Title-deeds, Pawn or Pledge (No. 6), Bottomry Bond (No. 16), Mortgage of a crop (No. 41), Respondentia Bond (No. 56), or Security Bond (No. 57),-	

	(*a*) when possession of the property or any part of the property comprised in such deed is given by the mortgagor or agreed to be given;	[4.00% for women and 6.00% for other persons,] of the market value of the property or consideration amount, "whichever is higher", of rupees one hundred and duty rounded off to nearest rupees Ten.
	(*b*) when possession is not given.	0.05% of the secured amount, subject to the minimum of rupees one hundred and maximum rupees one thousand and duty rounded off to nearest rupees Ten.
	Explanation.- A mortgagor who gives to the mortgagee a Power-of-Attorney to collect rents or a lease of the property mortgaged or part thereof is deemed to give possession within the meaning of this article.	
	Exemption	
	Instrument, executed by persons taking advances under the Land Improvement Loans Act, 1883, or the Agriculturists Loans Act, 1884, or by their sureties as security for the repayment of such advances.	
	Comments	
	Undertaking affidavit whether could be charged as a mortgage-deed.–The undertaking affidavit has to be charged as a mortgage deed, which has to suffer stamp duty as prescribed under Art. 40 of Schedule-I to the Indian Stamp Act. Thus Art. 40 and not Art. 57 of Schedule-I to the said Act is the appropriate article applicable to the instant case.	
41.	**Mortgage of a Crop.–** including any instrument evidencing an agreement to secure the repayment of a loan made upon any mortgage of a crop, whether the crop is or is not in existence at the time of the mortgage-	
	for every sum secured.	0.05% of the secured amount, subject to the minimum of rupees one hundred and maximum rupees one

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		thousand and duty rounded off to nearest rupees Ten.
42.	**Notarial Act.**–that is to say, any instrument, endorsement, note, attestation certificate or entry not being a Protest (No. 50) made or signed by a Notary Public in the execution of the duties of his office, or by any other person lawfully acting as a Notary Public.	Ten rupees.
	See also Protest of bill or note (No. 50).	
43.	**Note or Memorandum.–** sent by a broker or agent to his principal, the purchase or sale on account of such principal-	
	of any goods or of any stock or marketable security.	Fifty rupees.
44.	**Note of Protest by the Master of a Ship.**	Ten rupees.
45.	**Partition.**–Instrument of as defined by section 2(15).	0.05% of the market value of the property being partitioned subject to the minimum of rupees one hundred and maximum of rupees one thousand and duty rounded off to nearest rupees Ten.
46.	**Partnership.**–	
	A. Instrument of-	Two hundred rupees.
	For every capital of the partnership.	
	B. Dissolution of-	Fifty rupees.
	Pawn or Pledge.–*See* Agreement relating to Deposit of Title-Deed, Pawn or Pledge (No. 6).	
47.	**Policy of Insurance.–**	As in Schedule-I.
48.	**Power of Attorney.–** as defined by section 2(21), not being a Proxy (No. 52),-	
	(*a*) when authorizing one or more persons to act jointly and severally in a single transaction for sole purpose (including suit or proceedings);	One hundred rupees.
	(*b*) when authorizing one or more persons to act jointly and severally in more than one transaction or generally;	One hundred and fifty rupees.
	(*c*) in any other case.	Two hundred rupees.
		N.B.- The term "registration" includes every operation,

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		incidental to registration under the Indian Registration Act, 1908.
	Explanation.–For the purposes of this article more persons than one when belonging to the same firm shall be deemed to be one person.	
49.	**Promissory Note.**	As in Schedule-I.
50.	**Protest of Bill or Note.–** that is to say, any declaration in writing made by a Notary Public or other person lawfully acting as such, attesting the dishonour of a Bill of Exchange or Promissory Note.	Ten rupees.
51.	**Protest by the Master of a Ship.**	As in Schedule-I.
52.	**Proxy.**	As in Schedule-I.
53.	**Receipt.**	As in Schedule-I.
54.	**Re-Conveyance of Mortgaged Property.–** in every case.	 One hundred rupees.
55.	**Release.–** that is to say, any instrument (not being such a release as is provided for by section 23-A) whereby a person renounces a claim upon another person or against any specified property-	
	in every case.	0.05% of the market value of the released property, subject to the minimum of rupees one hundred and maximum rupees one thousand and duty rounded off to nearest rupees Ten.
	Comments	
	A release deed-whether can transfer title. A release deed would not be effective to transfer title. A release deed can only feed title but cannot transfer title.	
	Renunciation or relinquishment.- If the appellant had no title to the property at the time of renunciation except the off-chance of succeeding by survivorship to the estate after the death of his father, the renunciation or relinquishment under the deed would not clothe him with any title to the property. Renunciation must be in favour of a person, who had already title to the estate, the effect of which is only to enlarge the right.	

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56.	**Respondentia Bond.–**that is to say, any instrument securing a loan on the cargo laden or to be laden on board a ship and making repayment contingent on the arrival of the cargo at the port of destination.	0.05% of the secured amount, subject to the minimum of rupees one hundred and maximum rupees one thousand and duty rounded off to nearest rupees Ten.
	Revocation of any Trust or Settlement.–*See* Settlement (No.58), Trust (No.64).	
57.	**Security-Bond or Mortgage Deed.–** executed by way of security for the due execution of an office, or to account for money or other property received by virtue thereof, or executed by a surety to secure the due performance of a contract or the due discharge of a liability–	
	in every case.	0.05% of the secured amount, subject to the minimum of rupees one hundred and maximum rupees one thousand and duty rounded off to nearest rupees Ten.
	Exemption	
	Bond or other instrument when executed—	
	(*a*) by any person for the purpose of guaranteeing that the local income derived from private subscriptions to a charitable dispensary or hospital or any other object of public utility, shall not be less than a specified sum per mensem;	
	(*b*) by persons taking advances under the Land Improvement Loans Act, 1883, or the Agriculturist's Loans Act, 1884, or by their sureties, as security for the repayment of such advances;	
	(*c*) by officers of Government or their sureties to secure the due execution of an office, or the due accounting for money or other property received by virtue thereof.	
	Comments	
	Undertaking affidavit-Whether amounts to a mortgage deed.-The undertaking affidavit has to be charged as a mortgage deed, which has to suffer stamp duty as prescribed under Art. 40 of Schedule-I to the Indian Stamp Act. It was not correct to say that the affidavit merely disclosed an undertaking and if at all it was chargeable it could be only under Art. 57 (*b*) of Schedule-I to the Indian Stamp Act.	

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Art. No.	Description of Instrument	Rates of Stamp Duty
58.	**Settlement.–**	
	A-Instrument of (including a deed of dower).	0.05% of the market value of the settled property, subject to the minimum of rupees one hundred and maximum rupees one thousand and duty rounded off to nearest rupees Ten.
	Exemption	
	Deed of dower executed on the occasion of a marriage between Muhammadans.	
	B-Revocation of-	
	See also Trust (No. 64).	Fifty rupees.
59.	**Share Warrants.**–to bearer issued under the Companies Act, 1956.	The same duty as payable on a mortgage deed with possession [40(a)] for the amount equal to the nominal amount of the shares specified in the warrant.
	Exemptions	
	Shares warrant when issued by a company in pursuance of the Companies Act, 1956, section 114, to have effect only upon payment, as composition for that duty, to the Collector of stamp-revenue of-	
	(*a*) one-and-a-half percentum of the whole subscribed capital of the company; or	
	(*b*) if any company which has paid the said duty or composition in full, subsequently issues an addition to its subscribed capital-one-and-a-half percentum of the additional capital so issued.	
60.	**Shipping Order.**	Ten rupees
61.	**Surrender of Lease.** in every case.	One hundred rupees.
	Exemption	
	Surrender of lease, when such lease is exempted from duty.	
62.	**Transfer.**– (whether with or without consideration)-	
	(*a*) of shares in an incorporated company or other body corporate;	As in Schedule-I.
	(*b*) of debentures, being marketable securities, whether the	The same duty as

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	debenture is liable to duty or not, except debentures provided for by section 8;	Debenture (No.27) as levied by this Act, for a consideration equal to the face amount of the debenture.
	(*c*) of any interest secured by a bond, mortgage-deed or policy of insurance;	The same duty with which such bond, mortgage-deed or policy of insurance is chargeable subject to the minimum of rupees one hundred and maximum rupees one thousand and duty rounded off to nearest rupees Ten.
	(*d*) of any property under the Administrator General's Act, 1913, Section 25;	One hundred rupees.
	(*e*) of any trust-property without consideration from one trustee to another trustee, or from a trustee to a beneficiary.	Two hundred rupees.
	Exemption	
	Transfers by endorsement—	
	(*a*) of a bill of exchange, cheque or promissory note;	
	(*b*) of a bill of lading, delivery order, warrant for goods, or other mercantile document of title to goods;	
	(*c*) of a policy of insurance;	
	(*d*) of securities of the Central Government.	
	See also section 8.	
63.	**Transfer of Lease.—**by way of assignment, and not by way of under lease.	The same duty as Article (No. 35) as levied by this Schedule, for the same amount of such transfer.
	Exemption	
	Transfer of any lease exempt from duty.	
64.	**Trust.–**	
	A. Declaration of-of, or concerning any property when made by any writing not being a Will;	Two hundred rupees.
	B. Revocation of-of, or concerning any property when made by any instrument other than a Will.	Fifty rupees.
	See also Settlement (No. 58), Valuation- *See* Appraisement (No. 8), Vakil-*See* Entry as Vakil (No. 30).	

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	Comments	
	Religious or charitable endowment- Whether fall within the purview of the Trusts Act.- Religious or charitable endowments, whether public or private, do not fall within the purview of the Trusts Act. Article 64 of the Stamp Act provides for the levy of stamp duty on trust. Accordingly, Art. 64 cannot be pressed into service in case which deals with charitable trusts.	
65.	**Warrant for Goods.–** that is to say, any instruments evidencing the title of any person therein named, or his assigns, or the holder thereof, to the property in any goods lying in or upon any dock, warehouse or wharf, such instrument being signed or certified by or on behalf of the person in whose custody such goods may be.	Ten rupees.

[*Vide* Himachal Pradesh Act 4 of 1953, s. 12]

Orissa

Amendment of Schedule I-A

In Schedule I-A to the principal Act,—

(*i*) in article 3, for the words, "Two hundred rupees" appearing in column (*2*), the words "Two hundred and fifty rupees" shall be substituted;

(*ii*) in article 5,—

(*a*) for the words "one rupee" appearing in column (2) against clause (*a*), the words "five rupees" shall be substituted;

(*b*) for the words "forty-two rupees fifty paise" appearing in column (*2*) of the entry against clause (*b*), the words " fifty rupees" shall be substituted; and

(*c*) for the words "Three rupees" appearing in column (*2*) against clause (*c*), the words "Ten rupees" shall be substituted;

(*iii*) in clause (*2*) of article 6,—

(*a*) for sub-section (*a*), the following sub-clause shall be substituted, namely:—

(*a*) if such loan or debt is repayable on demand or more than three months from the date of instrument evidencing the agreement:—

When the amount of the loan or debt does not exceed Rs. 500	:	Five rupees,
When it exceeds Rs. 500 but does not exceed Rs. 1,000	:	Ten rupees,
And for every additional Rs. 1,000 or part thereof in excess or Rs. 1,000	:	Ten rupees" ;and

(*b*) in sub-clause (*b*), for the word, brackets and letter " clause (*a*)", the word, brackets and letter "sub-clause (*a*)" shall be substituted;

(*iv*) in article 7, for the words "One hundred rupees" appearing in column (2), the words "One hundred and fifty rupees" shall be substituted;

(*v*) in article 8, for the words "Twenty-one-rupees" appearing in column (2) against clause (*b*), the words "Fifty rupees" shall be substituted;

(*vi*) in article 10, for the words " Two hundred rupees" appearing in column (*2*), the words "Three hundred rupees" shall be substituted;

(*vii*) in article 12,—

(*a*) for the words, brackets and figure "The same duty as a BOTTOMRY BOND (No. 16) or such amount" appearing in column (*2*) against clause (*a*), the words, brackets and figure "The same duty as a BOND (No.15) or such amount" shall be substituted,

(*b*) for the words "Twenty-seven rupees" appearing in column (2) against clause (*b*), the words "Fifty rupees" shall be substituted; and

(*c*) for the entry appearing at the end in column (*2*), the following entry shall be substituted, namely:— "Two rupees subject to a maximum of two hundred rupees."

(*viii*) for article 15 including the entries against it but excluding reference to other Bonds commencing with the word "See and ending with the words "SECURITY BOND" followed by the "*Ex-emptions*" appearing at the end in column (1), the following shall be substituted under appropriate columns, namely:—

(1)	(2)
15. BOND, as defined by section 2 (5) not being a DEBENTURE and not being otherwise provided for by this Act, or by the Court Fees Act, 1870.	Two per centum of the amount or the value secured.;

(*ix*) for article 16 including the entries against it, the following Article with its entries shall be substituted under appropriate columns, namely:—

(1)	(2)
16. BOTTOMRY BOND, that is to say any instrument whereby the master of a sea-going ship borrows money on the security of the ship to enable him to preserve the ship or prosecute her voyage.	The same duty as a BOND (No.15) on the amount or value secured.;

(*x*) in article 17, for the words "One hundred rupees" appearing in column (*2*), the words " One hundred and fifty rupees" shall be substituted;

(*xi*) in article 18, for clauses (*a*), (*b*), and (*c*) including the entries appearing against them in column (2), the following clauses with their respective entries shall be substituted under appropriate columns, namely:—

(1)	(2)
(*a*) Where the purchase money does not exceed Rs. 100.	Two rupees
(*b*) in any other case	The same duty as is leviable on a CONVEYANCE under Division (A), (B), or (C), as the case may be, of article 23 for a consideration equal to the amount of the purchase money only".;

(*xii*) after article 18, the following Article with the entries against it shall be inserted under appropriate columns, namely:—

(1)	(2)
"19. CERTIFICATE OR OTHER DOCUMENT, evidencing the right or title of the holder thereof, or any other person either to any shares, scrip or stock in a or of any incorporated company or other body corporate, or to become proprietor of shares, scrip or stock in or of any such company or body. See also LETTER OF ALLOTMENT OF SHARES (No. 36).	One rupees".;

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(*xiii*) in article 22, for the words "Fifty rupees" appearing in column (2), the words "Seventy rupees" shall be substituted;

(*xiv*) for article 23 including the entries against it, the following article with its entries shall be substituted under appropriate columns, namely:—

(1)	(2)
"23. CONVEYANCE-As defined by section 2 (10) not being a transfer charged or exempted under No.62:—	
(*a*) In respect of movable property	Four per centum of the amount or value of the consideration as set forth in the instrument.
(*b*) In respect of immovable property	Eight per centum of the amount or value of the consideration for such conveyance as set forth therein or the market value of the

	property whichever is higher.
(*c*) In respect of a multi-unit house or unit of apartment/flat/portion of a multistoried building or part of such structure to which the provisions of the Orissa Apartment Ownership Act, 1982 Orissa Act 1 of 1984 apply—	
(*i*) where the amount or value of the consideration for such conveyance as set forth therein or market value of the property whichever is higher, does not exceed rupees 5 lakhs.	Three per centum of the amount.
(*ii*) where it exceeds rupees 5 lakhs, but does not exceed rupees 15 lakhs.	Four per centum of the amount.
(*iii*) where it exceeds rupees 15 lakhs.	Seven per centum of the amount.
Explanation- For the purpose of this article, an agreement to sell any immovable property or a power of attorney shall, in case of transfer of the possession of such property before or at the time of or after the execution of such agreement or power of attorney, be deemed to be a conveyance and the stamp duty thereon shall be chargeable accordingly: Provided that the stamp duty already paid on such agreement or power of attorney shall, at the time of the execution of a conveyance in pursuance of such agreement or power of attorney, be adjusted towards the total amount of duty chargeable on the conveyance: Provided further that section 47-A shall not apply to such agreement and power of attorney.	

Exemptions

Assignment of copyright under the Copyright Act, 1957, (14 of 1957) section 18 Co-partnership deed (*See* PARTERSHIP No. 46)

(*xv*) in article 24,—

(*a*) for the words "Two rupees and fifty paise" appearing in column (*2*) against clause (*i*), the words "Five rupees" shall be substituted; and

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(*b*) for the words "Five rupees" appearing in column (2) against clause (*ii*), the words. "Ten rupees" shall be substituted;

(*xvi*) in article 25, for the words "Five rupees" appearing in column (2) against (*b*), the words "Ten rupees" shall be substituted;

(*xvii*) in article 26, for the words "Fifty rupees" appearing in column (2) against clause (*b*), the words "One hundred rupees" shall be substituted;

(*xviii*) in article 29, for the words "one hundred rupees" appearing in column (2), the words "Two hundred rupees" shall be substituted;

(*xix*) in article 31, for the entry appearing in column (2), the following entry shall be substituted, namely:—

The same duty as is leviable on a conveyance under Division (A), (B), or (C), as the case may be, of article 23 for a consideration as set forth in such instrument or the market value of the property, whichever is higher";

(*xx*) in article 32, for the expression "(No. 23)" wherever it occurs in column (2), the words, brackets, letter and figure "under Division (A), of article 23 shall be substituted;

(*xxi*) in article 33, for the expression "(No. 23)" appearing in column (*2*), the words, brackets, letters and figure "Under Division (A), (B), or (C), as the case may be, of article 23" shall be substituted;

(*xxii*) in article 35, for the expression "(No. 23)" wherever it occurs in column (*2*), the words, brackets, letters and figure "Under Division (A), substituted;

(*xxiii*) after article 35, the following article with its entries shall be inserted under appropriate columns, namely:—

(1)	(2)
"36. LETTER OF ALLOTMENT OF SHARES In any company or proposed company, or in respect of any loan to be raised by any company or proposed company. See also CERTIFICATE OR OTHER DOCUMENT (No.19)	One rupees.";

(*xxiv*) in article 38, for the words, "fifty rupees" appearing in column (2), the words "One hundred rupees" shall be substituted;

(*xxv*) in article 39, for the words "Two hundred rupees" and Five hundred rupees" appearing in column (2), against clause (*a*) and clause (*b*), the words "Three hundred rupees" and "Six hundred rupees" shall respectively be substituted;

(*xxvi*) in article 40, for the expression "(No. 23)" appearing in column (2), against clause (*a*), the words, brackets, letters and figure "under Division (A), (B) or (C), as the case may be, of article 23" shall be substituted;

(*xxvii*) in article 41,—

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(*a*) for the words "Thirty paise" wherever it occurs in column (2) against clause (*a*), the words "One rupees" shall be substituted; and

(*b*) for the words "Forty paise" appearing in column (2) against clause (*b*), the words "Two rupees" shall be substituted;

(*xxviii*) in article 42, for the words "Twenty rupees" appearing in column (2), the words "Thirty rupees" shall be substituted;

(*xxix*) in article 43, for the words "Seventy-five paise" and "Forty-two rupees and fifty paise" appearing in column (2) against clause (*a*) and clause (*b*), the words "One rupee" and Fifty rupees" shall respectively be substituted;

(*xxx*) in article 44, for the words, Ten rupees" appearing in column (2), the words "Twenty rupees" shall be substituted;

(*xxxi*) in article 46,—

(*a*) for the words, "Twenty rupees" and "One hundred rupees" appearing in column (2) against clause (*a*) and clause (*b*) of Division A, the words "Fifty rupees" and "Two hundred rupees" shall respectively be substituted, and

(*b*) for the words "Fifty rupees" appearing in column (2) against Division B, the words "One hundred rupees" shall be substituted;

(*xxxii*) in article 48,—

(*a*) for the words "Ten rupees", Fifty rupees" and "One hundred rupees" appearing in column (2), against clause (*c*), clause (*d*) and clause (*e*), the words "Twenty rupees", "One hundred rupees", and "Two hundred rupees" shall respectively be substituted, and

(*b*) for the expression "(No. 23)" appearing in column (2) against clause (*f*), the words, brackets, letters and figure "under Division (B) or (C), as the case may be, of article 23" shall be substituted;

(*xxxiii*) in article 54,—

(*a*) for the expression "(No.23)" appearing in column (2) against clause (*a*), the words, brackets, letters and figure "under Division (A) of article 23" shall be substituted, and

(*b*) for the words "Forty-two rupees" appearing in column (2) against clause (*b*), the words "Fifty rupees" shall be substituted;

(*xxxiv*) in article 55 and 57, for the words "Twenty-one rupees" appearing in column (2), against clause (*b*), the words "One hundred rupees" shall be substituted;

(*xxxv*) in article 58,—

(*a*) The brackets and letter "(A)" appearing at the beginning shall be omitted,

(*b*) In the proviso to the entry appearing in column (2) against Division (A), for the words "three rupees", the words "ten rupees" shall be substituted;

(*c*) for the words "forty-two rupees" appearing at the end of the entry in column (2) against Davision (B), the words "One hundred rupees" shall be substituted.

(*xxxvi*) in article 59, for the expression "(No.23)" the words, brackets, letters and figure "under Division (A), of article 23" shall be substituted;

(*xxxvii*) in article 61, for the words "Twenty-one rupees" appearing in column (2), against clause (*b*), the words "Fifty rupees" shall be substituted;

(*xxxviii*) in article 62,—

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(*a*) for the words "bond of mortgage deed" appearing in the opening portion of clause (*c*) the words "Bond for Mortgage Deed" shall be substituted, and

(*b*) for the words "twenty-one rupees", "Forty-two rupees" and "Eighteen rupees and seventy-five paise" appearing in column (2) against sub-clause (*ii*) of clause (*c*) clause (*d*) and clause (*e*) respectively, the words "Fifty rupees" shall be substituted;

(*xxxix*) in article 63,—

(*a*) for the words "TRANSFER OF LEASE" appearing in column (*1*), the words "TRANSFER OF LEASE" shall be substituted; and

(*b*) for the expression "(No. 23)" appearing in column (2), the words, brackets, letters and figure "under Division (A),(B) or (C), as the case may be, of article 23" shall be substituted;

(*xi*) in article 64, for the words "Sixty –two rupees" and "Forty-two rupees" appearing in column (2) against Division (A) and Division (B), the words "One hundred rupees" and "Fifty rupees" shall respectively be substituted; and

(*xii*) in article 65, for the words, "Five rupees" appearing in column (2), the words "Ten rupees" shall be substituted.

[*Vide* Orissa Act 1 of 2003, s. 7]

Orissa

Repeal of Orissa Act 32 of 1970.—The Orissa Additional Stamp Duty Act, 1970 Orissa Act 32 of 1970 is hereby repealed.

[*Vide* Orissa Act 1 of 2003, s. 8]

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Odisha

Amendment of Schedule 1-A—In Schedule I-A to the Indian Stamp Act, 1899 (2 of 1899)—

(*i*) In Article A, for sub-clause (*a*) of clause (*2*) following sub-clause shall be substituted, namely:—

"(*a*) If such loan or debt is repayable on demand or more than three months from the date of execution of the instrument evidencing the agreement—	0.5% percentum on loan or debt. Amount subject to maximum of Rupees five thousand".

(*ii*) in Article 54, after clause (*b*) following clause shall be inserted, namely:—

"(*c*) in case of loans for agriculture purpose—	Nil.".

[*Vide* Odisha Act 8 of 2013, s. 2]

Odisha

Amendment of Schedule 1-A. —In the Indian Stamp Act, 1899, in Schedule 1-A**,** —

(*a*) in article 23, for the Explanation including the provisos thereto appearing in column (*1*), the following explanation shall be substituted, namely:—

"*Explanation*.— for the purposes of this Article, an agreement to sell involving delivery of possession of any immovable property or a power of attorney, authorizing the person other than those mentioned in clause (*g*) of Article 48, to sell such immovable property, shall be deemed to

be a conveyance and accordingly, the stamp duty shall be payable on the instrument on the basis of the market value of the property which is the subject matter of such instrument:

Provided that the stamp duty already paid on such agreement to sell shall, at the time of execution of the sale deed by the same person in pursuance of such agreement, be adjusted towards the total amount of duty chargeable on the conveyance."

(*b*) in Article 48,—

(*i*) for the words "Fifty rupees", "Five rupees", "Twenty rupees", "One hundred rupees" and "Two hundred rupees", appearing in column (2) under the heading "proper stamp duty against clauses (a), (b), (c), (d) and (e), the words "One hundred rupees", "Ten rupees", "Fifty rupees", "Five hundred rupees" and "One thousand rupees" shall , respectively, be substituted; and

(*ii*) for clause (g), including the entires, the following clauses shall be substituted, under the appropriate column, namely:—

(*g*) When power given to father, mother, wife, husband, son, daughter, brother or sister in relation to the executant authorizing such person to sell immovable property situated in the State of Odisha.	One thousand rupees
(*h*) in any other case.	Twenty rupees for each person, so authorized.

[*Vide* Odisha Act 1 of 2015, s. 2]

Orissa

Amendment of Schedule I-A, Indian Stamp Act, 1899.—For the entries in columns 1 and 2 against clause (*a*) under item 30 of Schedule I-A of the Indian Stamp Act, 1899, (II of 1899) the following entries shall be respectively substituted, namely:—

(*a*) in the case of Advocates—

(*i*) with respect of persons who possess degree of Bachelor of Law and are either deemed to be Advocates under sub-section (*1*) of section 42 of the Legal Practitioners Act, 1879, (XVIII of 1879) or enrolled as pleaders under the said Act, and have practiced for not less than ten years.	Rupees two hundred and fifty.
(*ii*) with respect to another Advocates .	Rupees six hundred and twenty five.

Exemption from surcharge Stamp Duty.— Notwithstanding anything contained in the Orissa Stamp (Surcharge Amendment) Act, 1947 (Orissa Act XXIII of 1947) no surcharge shall be levied in the case of Stamp duties livable under clause (*a*) of the entry herein before specified.

[*Vide* Orissa Act 8 of 1956, s. 2 & 3]

Orissa

Amendment of Schedule I-A, Act 2 of 1899. — For schedule I-A of the Indian Stamp Act, 1899 (2 of 1899) the following Schedule shall be substituted, namely:—

* * * *

*N.B. Schedule-I-A has been substituted in O.A. 6 of 1986.

[*Vide* Orissa Act 19 of 1958, s. 3]

Orissa

Amendment of Schedule 1-A, Act 2 of 1899.—For Schedule 1-A of the principal Act, the following Schedule shall be substituted, namely: —

* * * * *

SCHEDULE 1-A

STAMP DUTY ON CETAIN INSTRUMENTS UNDER THE INDIAN STAMP (ORISSA AMENDMENT) ACT, 1986.

(*See* Section 3)

Note — The articles in Schedule 1-A are numbered so as to correspond with similar articles in Schedule 1.

Description of Instrument	Proper Stamp-duty
(1)	(2)
2. ADMINISTRATION BOND, including a bond given under sections 291, 375, and 376 of the Indian Succession Act, 1925 (39 of 1925) or section 6 of the Government Savings Banks Act, 1873 (5 of 1873).	The same duty as a BOND (No. 15) for the same amount.
3. ADOPTION DEED. That is to say, any Instrument (Other than a will) recording an adoption or conferring or purporting to confer an authority to adopt.	Twenty-eight rupees and twelve naye paise.
4. AFFIDAVIT. Including an affirmation or declaration in the case of persons by law allowed to affirm or declare instead of swearing.	Three rupees and seventy-five naye paise.
Exemptions	
Affidavit or declaration in writing when made—	
(*a*) as a condition of enrolment under	

the Army Act, 1950 (46 of 1950) or the Air Force Act, 1950 (45 of 1950);	
(*b*) for the immediate purpose of being filed or used in any Court or before the Officer of any Court;	
(*c*) for the sole purpose of enabling any person to receive any pension of charitable allowance.	
5.AGREEMENT OR MEMORANDUM OF AN AGREEMENT;	
(*a*) if relating to the sale of a Bill of Exchange;	Thirty-eight naye paise
(*b*) if relating to the sale of a Government security or share in an incorporated Company or other body corporate;	Subject to maximum of twenty-eight rupees twelve naye paise for every ten thousand or part thereof of the value of the security or share.
(*c*) if not otherwise provided for	One rupee and thirty-eight naye paise.
Exemptions	
Agreement or memorandum of agreement—	
(*a*) for or relating to the sale of goods or merchandise exclusively, not being a Note or Memorandum chargeable under No. 43.	
(*b*) Made in the form of tenders to the Central Government for, or relating to any loan.	
AGREEMENT TO LEASE—See LEASE (No-35)	
6. AGREEMENT RELATING TO DEPOSIT OF TITLE-DEEDS, PAWN OR PLEDGE, that is to say, any instrument evidencing an agreement relating to	
(*1*) The deposit of title deeds or instruments Constituting or being evidences of the title to any property whatever (Other than a marketable security) or	
Description of instrument.	Proper Stamp-duty
(1)	(2)
(*2*) The pawn or pledge of movable property, Where such deposit, pawn or pledge has been Made by way of security for the repayment of money advanced or to be advanced by way of loan or an existing or future debt—	

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(*a*) If such loan or debt is repayable on demand or more than three months from the date of the instrument evidencing the agreement.			
	If drawn Singly	If drawn in set of two for each part of set	If draw in set of three for each part of the set
(1)	(2)	(3)	(4)
	Rs. nP.	Rs. nP.	Rs. nP.
When it amount of the loan or debt does not exceed Rs.100	0.40	0.24	0.24
When the amount of the loan or debt exceeds Rs. 100 but does not exceed Rs. 200.	0.64	0.40	0.24
When it exceeds Rs. 200 but does not exceed Rs. 400	1.12	0.64	0.40
When it exceeds Rs. 400 but does not exceed Rs. 600	1.64	0.88	0.64
When it exceeds Rs. 600 but does not exceed Rs. 800	2.12	1.12	0.76
When it exceeds Rs. 800 but does not exceed Rs. 1,000	2.76	1.40	0.88
When it exceeds Rs. 1,000 but does not exceed Rs. 1,200	3.12	1.64	1.12
When it exceeds Rs. 1,200 but does not exceed Rs. 1,600	4.12	2.12	1.40
When it exceeds Rs. 1,600 but does not exceed Rs. 2,500	6.40	3.24	2.12
When it exceeds Rs. 2,500 but does not exceed Rs. 5,000	12.64	6.40	4.12
When it exceeds Rs. 5,000 but does not exceed Rs. 7,500	19.00	9.64	6.40
When it exceeds Rs. 7,500 but does not exceed Rs. 10,000	25.24	12.64	8.40
Description of instrument.	Proper Stamp-duty		
(1)	(2)		
When it exceeds Rs. 10,000 but does not exceed Rs. 15,000	37.88	19.00	12.64

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When it exceeds Rs. 15,000 but does not exceed Rs. 20,000	50.64	25.24	16.88
When it exceeds Rs. 20,000 but does not exceed Rs. 25,000	63.24	31.64	21.12
When it exceeds Rs. 25,000 but does not exceed Rs. 30,000 and	75.88	37.88	25.24
for every additional Rs. 10,000 or part thereof in excess of Rs. 30,000.	25.24	12.64	8.40
(*b*) if such loan or debt is repayable not more than three months from the date of such instrument.	Half the duty payable on a loan or debt under clause (a) (i), clause (a) (ii) or clause (a) (iii) for the amount secured.		
Exemption			
Instrument of pawn or pledge of goods, if unattested			
7. APPOINTMENT IN EXECUTION OF A POWER, whether of trustees or of property, movable or immovable, where made by any writing not being a will.	Forty-six rupees and eighty-eight naye Paise.		
8. APPRAISEMENT OR VALUATION, made otherwise than under an order of the Court in the course of a suit—			
(*a*) where the amount does not exceed Rs. 1,000.	The same duty as a BOTTOMRY BOND (No.16) for such amount.		
(b) in any other case	Fourteen rupees and six naye Paise.		
Exemptions			
(*a*) Appraisement or valuation made for the information of one party only, and not being in any manner obligatory between parties either by agreement or operation of law.			
(*b*) Appraisement of crops for the purpose of ascertaining the amount to be given to a landlords as rent.			
9. APPRENTICHESHIP –DEED including every writing relating to the service or tuition of any apprentice, clerk or servant place with any master to learn any profession, trade or employment, not being ARTICLES OF CLERKSHIP.	Fourteen rupees and six naye Paise.		

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Description of instrument.	Proper Stamp-duty
(1)	(2)
Exemption	
Instruments of apprenticeship executed by a Magistrate under the Apprentices Act, 1850 (19 of 1850) or by which a person is apprenticed by or at the charge of any public charity.	
10. ARTICLES OF ASSOCIAITON OF A COMPANY.	Ninety rupees and seventy-five naye Paise.
Exemption	
Articles of any Association not formed for profit and registered under section 25 of the Companies Act, 1956 (1 of 1950).	
See also Memorandum of Association of a Company (No.39)	
ASSIGNMENT —See CONVEYANCE (No.23), TRANSFER (No.62) and TRANSFER of LEASE (No.63),as the case may be	
ATTORNEY- See POWER OF ATTORNEY (No.48)	
AUTHORITY TO ADOPT-See ADOPTION-DEED (No.3)	
12. AWARD, that is to say any decision in writing by an arbitrator or umpire not being an award directing a partition, on a reference being made otherwise than by an order of the Court in the course of a suit—	
	The same duty as a BOTTOMRY BOND (No.16) or such amount.
(*a*) where the amount or value of the property to which the award relates as set forth in such award does not exceed Rs. 1,000.	Eighteen rupees and seventy five naye Paise.
(b) if it exceeds Rs. 1,000 but does not exceed Rs. 5,000.	Ninety-four naye Paise subject to a maximum of ninety-four rupees.
and for every additional Rs. 1,000 or part thereof in excess of Rs. 5,000.	
15.BOND as defined by section 2(5) not being a DEBENTURE and not being otherwise provided for by this Act, or by the Court Fees Act, 1870 (7 of 1870)—	
Where the amount or value secured does	Thirty-two naye paise

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not exceed Rs. 10;	
Where it exceeds Rs. 10 and does not exceed Rs. 50;	
Where it exceeds Rs. 50 and does not exceed Rs.100;	Forty-four naye paise
Description of instrument.	Proper Stamp-duty
(1)	(2)
Where it exceeds Rs. 50 and does not exceed Rs.100;	Ninety-four naye paise
Where it exceeds Rs. 100 and does not exceed Rs.200;	Two rupees and thirty-two naye paise
Where it exceeds Rs. 200and does not exceed Rs.300;	Three rupees and fifty-six naye paise
Where it exceeds Rs. 300 and does not exceed Rs.400;	Four rupees and sixty eight naye paise
Where it exceeds Rs. 300 and does not exceed Rs.400;	Five rupees and ninety-four naye paise
Where it exceeds Rs. 400 and does not exceed Rs.500;	Eight rupees and forty-four naye paise
Where it exceeds Rs. 500 and does not exceed Rs.600;	Nine rupees and eighty-two naye paise
Where it exceeds Rs. 600 and does not exceed Rs.700;	Eleven rupees and twenty-five naye paise
Where it exceeds Rs. 700 and does not exceed Rs.800;	Twelve rupees and sixty-two naye paise.
Where it exceeds Rs. 800 and does not exceed Rs.900;	
Where it exceeds Rs. 900 and does not exceed Rs.1000;	Fourteen rupees and six naye paise.
and for every Rs. 500 or part thereof in excess of Rs. 1,000;	Seven rupees .
See (No.2) ADMINISTRATION BOND	
(No.16) BOTTOMRY BOND	
(No.26) CUSTOMS BOND	
(No. 34) INDEMNITY BOND	

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(No.56) RESPONDENTIA BOND	
(No. 57) SECURITY BOND	
Exemptions	
Bond , when executed by—	
(*a*) headmen nominated under rules framed in accordance with the Bengal Irrigation Act, 1876, (Bengal Act 3 of 1876) section 99, for the due performance of their duties under that Act;	
Description of instrument.	Proper Stamp-duty
(1)	(2)
(*b*) any person for the purpose of guaranteeing that the local income derived from private subsecription to a charitable dispensary or hospital or any other object of public utility shall not be less than a specified sum *per mensem.*	
16. BOTTOMRY BOND, that is to say, any instrument whereby the master of a sea-going ship to enable him the preserve the ship or prosecute her voyage—	
Where the amount or value secured does not exceed Rs. 10;	Thirty-eight naye paise
Where it exceeds Rs. 10 and does not exceed Rs. 50;	Seventy-five naye paise
Where it exceeds Rs. 50 and does not exceed Rs.100;	One rupee and thirty-eight naye paise
Where it exceeds Rs. 100 and does not exceed Rs.200;	Two rupees and eighty-two naye paise
Where it exceeds Rs. 200 and does not exceed Rs.300;	Four rupees and twenty naye paise
Where it exceeds Rs. 300 and does not exceed Rs.400;	Five rupees and sixty –two naye paise
Where it exceeds Rs. 400 and does not exceed Rs.500;	Seven Rupees
Where it exceeds Rs. 500 and does not exceed Rs.600;	Eight rupees and forty-four naye paise
Where it exceeds Rs. 600 and does not	Nine rupees and twenty-two naye paise

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exceed Rs.700;	
Where it exceeds Rs. 700 and does not exceed Rs.800;	Eleven rupees and twenty-five naye paise
Where it exceeds Rs. 800 and does not exceed Rs.900;	Twelve rupees and sixty-two naye paise
Where it exceeds Rs. 900 and does not exceed Rs.1000;	Fourteen rupees and six naye paise
and for every Rs. 500 or part thereof in excess of Rs. 1,000;	Seven rupees
17. CANCELLATION— Instrument of (Including any instrument by which any instrument previously executed is cancelled) if attested and not otherwise provided for,	Fourteen rupees and six naye paise.
See also RELEASE (No.55) REVOCATION OF SETTLEMENT (No. 58-B) SURRENDER OF LEASE (No.61) REVOCATION OF TRUST (No. 64-B).	
18. CERTIFICATE OF SALE (In respect of each property put up as a separate lot and sold), granted to the purchaser of any property sold by public auction by a Civil or Revenue Court or Collector or the Revenue Officer—	
(a) Where the purchase money does not exceed Rs. 10	Thirty-eight naye paise
(b) Where the purchase money exceeds Rs. 10,00 but does not exceed Rs. 25.	Seventy-five naye paise
(c) In any other case	..The same duty as a CONVEYANCE (No.23) for a consideration equal to the amount of the purchase money only.
* * *	* *
20. CHARTER PARTY—that is to say, any instrument (Except an agreement for the hire of a tug-steamer), whereby a vessel or some specified principal part thereof is let for the specified purposes of the charterer whether it includes a penalty clause or not.	Three rupees and seventy-five naye paise.
* * *	* *
22. COMPOSITION DEED— that is to say, any instrument executed by a debtor, whereby he conveys his property for the benefit of his creditors, or whereby payment of a composition or dividend or	Twenty-eight rupees and twelve naye paise

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their debts is secured to the creditors, or when by provision is made for the continuance of the debtors business under the supervision of inspectors or under letters of license, for the benefit of his creditors.	
23. CONVEYANCE- As defined by section 2 (10) not being a transfer charged or exempted under No.62—	
Where the amount or value of the consideration for such conveyance as set forth therein does not exceed Rs. 50;	One rupees and thirty-eight naye paise
Where it exceeds Rs. 50 and does not exceed Rs.100;	Two rupees and eighty-two naye paise
Where it exceeds Rs. 100 and does not exceed Rs.200;	Five rupees and sixty-three naye paise
Where it exceeds Rs. 200 and does not exceed Rs.300;	Eight rupees and forty-four naye paise
Where it exceeds Rs. 300 and does not exceed Rs.400;	Eleven rupees and twenty-five naye paise
Where it exceeds Rs. 400 and does not exceed Rs.500;	Fourteen rupees and six naye paise
Where it exceeds Rs. 500 and does not exceed Rs.600;	Sixteen rupees and eighty-eight naye paise
Where it exceeds Rs. 600 and does not exceed Rs.700;	Nineteen rupees and sixty-nine naye paise
Where it exceeds Rs. 700 and does not exceed Rs.800;	Twenty-two rupees and fifty naye paise
Where it exceeds Rs. 800 and does not exceed Rs.1,000;	Twenty-five rupees and thirty-two naye paise
Where it exceeds Rs. 900 but does not exceed Rs. 1,000;	Twenty-eight rupees and thirteen naye paise.
and for every Rs. 500 or part thereof in excess of Rs. 1,000;	Fourteen rupees and six naye paise
Exemption	
Assignment of copyright under the Copyright Act, 1957 (14 of 1957), section 18.	
CO-PARTNERSHIP DEED (See Partnership No. 46).	
24. COPY OR EXTRACT- Certified to be a true copy or extract by or by order of any public officer and not chargeable	

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under the law for the time being in force relating to court fees—	
(i) if the original was not chargeable with duty, or if the duty, with which it was chargeable does not exceed one rupees.	One rupee and thirty-eight naye paise
(ii) In any other case	Two rupees and eighty-two naye paise
Exception	
(*a*) Copy of any paper which a public officer is expressly required by law to make or furnish for record in any public office or for any public purpose.	
(*b*) Copy of, or extract from any register relating to births, baptisms, namings, dedications, marriages, divorces, deaths or burials.	
25. COUNTERPART OR DUPLICATE- of any instrument, chargeable with duty and in respect of which the proper duty has been paid-	
(*a*) If the duty with which the original Instrument is chargeable does not exceed one rupee and fifty paise,	The same duty as is payable on the original
(b) In any other case	Two rupees and eighty-two naye paise
Exemption	
Counterpart of any lease granted to a cultivator, when such lease is exempted from duty.	
26. CUSTOMS BOND—	
(a) Where the amount does not exceed Rs. 1,000.	The same duty as a BOTTOMRY BOND (No. 16) for such amount,
(b) In any other case	Eighteen rupees and seventy-five naye paise
* * *	* *
DECLARATION OF ANY TRUST-Se TRUST (No.64).	
* * *	* *
DEPOSIT OF TITLE -DEEDS—See AGREEMENT relating to DEPOSIT OF TITLE-DEEDS, PAWN OR PLEDGE (No.6).	
DISSOLUTION OF PARTNERSHIP-See PARTNERSHIP (No. 46).	

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29. DIVORCE- Instrument of, that is to say, instrument by which any person effects the dissolution of his marriage.	Three rupees and seventy-five naye paise
DOWER- Instrument of –See SETTLEMENT (No.58).	
DUPLICATE- See COUNTERPART (No. 25).	
31. EXCHANGE OF PROPERTY- Instrument of—	The same duty as a CONVEYANCE (No. 23) for a consideration equal to the value of the property of greatest value as set forth in such instrument.
EXTRACT- See Copy (No.24)	
32. FURTHER CHARGE— Instrument of that is to say, any instrument imposing a further charge on mortgaged property—	
(a) When the original mortagage is one of the description referred to in clause (a) Article No. 40 (That is, with possession);	The same duty as a CONVEYANCE (No. 23) for a consideration equal to the amount of the further charge secured by such instrument.
(b) When such mortage is one of the descriptions referred to in clause (b) of Article No. 40 (That is, without possession)—	
(i) if at the time of execution of the instrument of further charge possession of the property is given or agreed to be given under such instrument;	The same duty as a CONVEYANCE (No. 23) for a consideration equal to the total amount of the charge (including the original mortgage and any further charge already made) less the duty already paid on such original mortgage and further charge.
(ii) If the possession is not so given.	The same duty as a BOTTOMRY BOND (No. 16) for the amount of the further charge secured by such instrument;
33.GIFT-Instrument of, not being a SETTLEMENT (No. 58) or WILL or TRANSFER (No. 62).	The same duty as a CONVEYANCE (No.23) for a consideration equal to the value of the property as set forth in such instrument.
HIRING AGREEMENT or agreement for service-See AGREEMENT (No. 5).	
34. INDEMNITY BOND	The same duty as a SECURITY BOND (No. 57) for the same amount.
INSPECTORSHIP DEED- See COMPOSITION DEED (No.22)	

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35. LEASE, including an under-lease or sub-lease and any agreement to let or sub-let-	
(a) Whereby such lease the rent is fixed and no premium is paid or delivered—	
(i) Where the lease purports to be for a term of less than one year;	The same duty as BOTTOMRY BOND (No. 16) for the whole amount payable or deliverable under such lease.
(ii) where the lease purports to be for a term of not less than one year, but not more than five years;	The same duty as a BOTTOMRY BOND (No. 16) for the amount or value of the average annual rent reserved.
(iii) Where the lease purports to be for a term exceeding five years, but not exceeding ten years;	The same duty as a CONVEYANCE (No. 23) for a consideration equal to the amount or value of the average annual rent reserved.
(iv) Where the lease purports to be for a term exceeding ten years, but not exceeding twenty years;	The same duty as a CONVEYANCE (No.23) for a consideration equal to twice the amount or value of the average annual rent reserved.
(v) Where the lease purports to be for a term exceeding twenty years, but not exceeding thirty years;	The same duty as a CONVEYANCE (No. 23) for a consideration equal to three times the amount or value of the average annual rent reserved.
(vi) Where the lease purports to be for a term exceeding thirty years, but not exceeding one hundred years;	The same duty as a CONVEYANCE (No. 23) for a consideration equal to four times the amount or value of the average annual rent reserved.
(vii) Where the lease purports to be for a term exceeding one hundred years, or in perpetuity;	The same duty as a CONVEYANCE (No. 23) for a consideration equal to one-sixth of the whole amount of rent which would be paid or delivered in respect of first fifty years of the lease.
(viii) Where the lease does not purport to be for any definite term;	The same duty as a CONVEYANCE (No. 23) for a consideration equal to three times the amount or value of the average annual rent which would be paid or delivered for the first ten years if the lease continued so long.

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(b)Where the lease is granted for a fine or premium, or for money advanced and where no rent is reserved;	The same duty as a CONVEYANCE (No.23) for a consideration equal to the amount or value of such fine or premium, or advance as set forth in the lease.
(*c*) Where the lease is granted for a time or premium, or for money advanced in addition to rent reserved.	The same duty as a CONVEYANCE (No.23) for a consideration equal to the amount or value of such fine or premium, or advances as set forth in the lease, in addition to the duty which would have been payable on such lease, if no fine or premium or advance had been paid or delivered:
Exemption	
Lease; executed in the case of a cultivator and for the purpose of cultivation (Including a lease of trees for the production of food or drink) without the payment or delivery of any fine or premium, when a definite term is ex-pressed and such term does not exceed one year or when the average annual rent reserved does not exceed one hundred rupees.	
Explanation— When a lessee undertakes to pay any recurring charge, such as Government revenue, the landlord's share of cesses or the owner's share of municipal rates or taxes (Which is by law recoverable from the lessor, the amount so agreed to be paid by the lessee shall be deemed to be part of the rent.	
* * *	*
LETTER OF GUARNTEE- See AGREEMENT (No. 5).	
38. LETTER OF LICENCE that is to say, any agreement between a debtor and his creditors that the latter shall, for a specified time, suspend their claims and allow the debtor to carry on business at his own discretion.	Twenty-eight rupees and twelve naye paise.
39. MEMORANDUM OF ASSOCIAITON OF A COMPANY—	

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(a) if accompanied by articles of association under section 26 of the Companies Act, 1956 (1 of 1956).	Fifty-six rupees and twenty-five naye paise
(b) if not so accompanied	One hundred and fifty rupees
Exemption	
Memorandum of any association not formed for profit and registered under section 25 of the Companies Act, 1956 (1 of 1956).	
40. MORTGAGE-DEED, NOT BEING AN AGREEMENT RELATING TO DEPOSIT OF TITLE DEEDS, PAWN OR PLEDGE (No.6) BOND (No. 15), MORTGAGE OF A CROP (No. 41), RESPONDENTIA BOND (No. 56), OR SECURIY BOND (No. 57)—	
(a) when possession of the property or any part of the property comprised in such deed is given by the mortgagor or agreed to be given.	The same duty as a CONVEYANCE (No. 23) for a consideration equal to the amount secured by such deed.
(b) when possession is not given or agreed to be given as aforesaid.	The same duty as a BOTTOMRY BOND (No. 16) for the amount secured by such deed.
Explanation— A mortgagor who gives to the mortgagee a power-of-attorney to collect rents or a lease of the property mortgaged or part thereof, is deemed to give possession within the meaning of this article.	
(C) When a collateral or auxiliary or additional or substituted security, or by way of further assurance for the above mentioned propose where the principal or primary security is duly stamped for every sum secured not exceeding Rs.1,000	Rupee one and thirty-eight naye paise
and for every Rs. 1,000 or part thereof secured in excess Rs. 1,000.	One rupee and thirty-eight naye paise
Exemptions	
(1) Instruments executed by persons taking advances under the Land Improvement Loans Act, 1883 (19 of	

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1883) or the Agriculturists Loans Act, 1884 (12 of 1984), or by their sureties as security for the repayment of such advances;	
(2) Letter of hypothecation accompanying a bill of exchange.	
41. MORTGAGE OF A CROP including any instrument evidencing an agreement to secure the repayment of a loan made upon any mortgage of a crop, whether the crop, is or is not in existence at the time of the mortgage—	
(a) when the loan is repayable not more than three months from the date of the instrument— For every sum secured not exceeding Rs. 200; and for every Rs. 200 or part thereof secured in excess of Rs. 200;	Twenty-five naye paise
(b) when the loan is repayable more than three months but not more than eighteen months, from the date of the instrument—	Twenty five naye paise
For every sum secured not exceeding Rs. 100;	Thirty-eight naye paise
and for every Rs. 100 or part thereof secured in excess of Rs. 100.	Thirty- eight naye paise
42. NOTARIAL ACT that is to say, any instrument, endorsement, note, attestation certificate, or signed not being a PROTEST (No. 50) made or signed by a Notary Public in the execution of the duties of his office, or by any other person lawfully acting as a Notary Public.	Two rupees and eighty-two naye paise
See also PROTEST OF BILL OR NOTE (No. 50).	
43. NOTE OR MEMORANDUM sent by a Broker or Agent to his principal intimating the purchase or sale on account of such principal—	
(a) of any goods, exceeding in value twenty rupees;	Thirty-eight naye paise
(b) of any stock or marketable security	Subject to a maximum of twenty-eight

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exceeding in value twenty rupees;	rupees and twelve naye paise, thirty-two naye paise for every rupees ten thousand or part thereof of the value of the stock or security.
44. NOTE OF PROTEST BY THE MASTER OF A SHIP-See also PROTEST BY THE MASTER OF A SHIP (No. 51).	One rupee and eighty-eight naye paise
45. PARTITION- Instrument of as defined by section 2 (15).	The same duty as a BOTTOMRY BOND (No. 16) for the amount of the value of the separated share or shares of the property.
	N.B.—The largest share remaining after the property is petitioned (or if there two or more shares of equal value and not smaller than any of the other shares, then one of such equal shares) shall be deemed to be that from which the other shares are separated.
	Provided always that—
	(a) When an instrument of partition containing an agreement to divide property in severalty is executed and a partition is effected in pursuance of such agreement the duty chargeable upon the instrument effecting such a partition shall be reduced by the amount of duty paid in respect of the first instrument but shall not be less than one rupee and thirty-eight naye paise.
	(b) Where land is held on Revenue Settlement for a period not exceeding thirty years and paying the full assessment, the value for the purpose of duty shall be calculated at not more than five times the annual revenue.
	(c) Where a final order for effecting a partition passed by

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	any Revenue authority or any Civil Court, or an award by an arbitrator directing a partition, is stamped with the stamp required for an instrument of partition, in pursuance of such order or award is subsequently executed, the duty on such instrument shall not exceed one rupee and thirty-eight naye paise .
46.PARTNERSHIP— A-Instrument of—	
(a) Where the capital of the partnership does not exceed Rs. 500;	Nine rupees and thirty-eight paise
(*b*) in any other case	Thirty-seven rupees and fifty naye rupees
B—Dissolution of —	
PAWN OR PLEDGE—See AGREEMENT RELATING TO DEPOSIT OF TITLE-DEEDS PAWN OR PLEDGE (No.6).	Eighteen rupees and seventy five naye paise
48.POWER –OF-ATTORNEY as defined by section 2(21) not being a proxy—	
(a) when executed for this sole purpose of procuring the registration of one or more documents in relation to a single transaction or for admitting execution of one or more such documents;	One rupee and thirty-eight naye paise
(b) when required in suits or proceedings under the Presidency Small Cause Courts Act, 1882;	One rupee and thirty-eight naye paise
(c) when authorizing one person or more to act in a single transaction other than the case mentioned in clause (a);	Two rupees and eight-two naye paise
(d) when authorizing not more than five persons to act jointly and severally in more than one transaction or generally;	Fourteen rupees and six naye paise
(e) when authorizing more than five but not more than ten persons to act jointly and severally in more than one transaction or generally;	Twenty-eight rupees and twelve naye paise

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(f) when given for consideration and authorizing the attorney to sell any immovable property;	The same duty as a CONVEYACE (No.23) for the amount of consideration
(g) In any other case	Two rupees and eighty-two naye paise for each person authorized
	N.B.—The term "Registration" includes every operation incidental to registration under the Indian Registration Act, 1908 (16 of 1908).
Explanation— For the purposes of this article more persons than one when belonging to the same firm shall be deemed to be one persons.	
* * *	* *
50. PROTEST OF BILL OR NOTE that is to say any declaration in writing made by a Notary Public, or other person lawfully acting as such, attesting the dishonor of a Bill of Exchange or Promissory Note.	Three rupees and seventy-five naye paise
51. PROTEST BY THE MASTER OF A SHIP that is to say, any declaration of the particulars of the voyage drawn up by him with a view to the adjustment of losses or the calculation of averages, and every declaration in writing made by him against the characters or the consignees for not loading or unloading the ship when such declaration is attested or certified by a Notary Public or other person lawfully acting as such.	Three rupees and seventy-five naye paise
See also NOTE OF PROTEST BY THE MASTER OF A SHIP (No. 44).	
* * * *	* *
54. RECONVEYANCE OF MORTGAGED PROPERTY—	
(a) if the consideration for which the property was mortgaged does not exceed Rs. 1,000;	The same duty as a CONVEYANCE (No. 23) for the amount of such consideration as set forth in the reconveyance.
(b) in any other case	Twenty-eight rupees and twelve naye paise
55. RELEASE that is to say, instrument not being such a release as is provided for by section (23-A.), whereby	

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a person renounces a claim upon another person or against nay specified property—	
(a) if the amount or value of the claim does not exceed Rs. 1,000;	The same duty as a BOTTOMRY BOND (No. 16) for such amount or value as set forth in the release.
(b) in any other case	Fourteen rupees and six naye paise
56. RESPONDENTIA BOND that is to say, any instrument securing a loan on the cargo laden or up to be laden on board a ship and making repayment contingent on the arrival of the cargo at the port of destination.	The same duty as a BOTTOMRY BOND (No. 16) for the amount of the loan secured.
REVOCATION OF ANY TRUST OR SETTLEMENT- See SETTLEMENT (No. 58) TRUST (No. 64)	
57. SECURITY BOND OR MORTGAGE DEED executed by way of security for the due execution of an office, or to account for money or other property received by virtue thereof, or executed by a surety to secure the due performance of a contract—	
(a) When the amount secured does not exceed Rs. 1,000.	The same duty as a BOTTOMRY BOND (No. 16) for the amount secured.
(b) In any other case	Fourteen rupees and six naye paise
Exemptions	
Bond or other instrument, when executed—	
(a) By headmen nominated under rules framed in accordance with the Bengal Irrigation Act, 1876, (Bengal Act 3 of 1876) section 99 for the due performance of their duties under that Act.	
(b) By any person for the purpose of guaranteeing that the local income derived from private subscriptions to a charitable dispensary or hospital or any other subject or public utility shall not be less than a specified sum *per mensem*;	

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(c) By persons taking advances under the Land Improvement Loans Act, 1883, (19 of 1883) or the Agriculturists Loans Act, 1884, (12 of 1884) or by their sureties, as security for the repayment of such advances;	
(d) By officers of the Government or their sureties to secure the due execution of an office, or the due accounting for money or other property received by virtue thereof.	
58. SETTLEEMNT —(A) INSTRUMENT OF (including a deed of dower).	The same duty as a BOTTORMY BOND (No. 16) for a sum equal to the amount or value of the property settled as set forth in such settlement:
	Provided that, where an agreement to settle is stamped with the stamp required for an instrument of settlement and an instrument of settlement in pursuance of such agreement is subsequently executed , the duty on such instrument shall not exceed one rupee and thirty-eight naye paise.
Exemption	
Deed of dower executed on the occasion of a marriage between Mohammadans.	
(B) REVOCATION OF	The same duty as a BOTTOMRY BOND (No. 16) for a sum equal to the amount or value of the property concerned, as set forth in the instrument of Revocation, but not exceeding twenty-eight rupees and twelve naye paise.
See ALSO TRUST (No.64)	
59. SHARE WARRANTS to bearer issued under the Companies Act, 1956.	One and a half times the duty payable on a CONVEYANCE (No. 23) for a consideration equal to the nominal amount of the shares specified in the warrant.
Exemptions	
Share warrant when issued by a company in pursuance of the Companies Act, 1956, (1 of 1956) section 114, to have effect only upon payment, as composition for that duty, to the Collector of stamp-revenue,	

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of—	
(a) One and a half percentum of the whole subscribed capital of the company; or	
(b) If any company which has paid the said duty or composition in fully, subsequently issues an addition to its subscribed capital, one and a half percentum of the additional capital so issued.	
61. SURRENDER OF LEASE	
(a) when the duty with which the lease is chargeable does not exceed seven rupees and fifty paise;	The duty with which such lease is chargeable.
(b) in any other case	Fourteen rupees and six naye paise
Exemptions	
Surrender of lease, when such lease is exempted from duty.	
62. TRANSFER (Whether with or without consideration)—	
* * *	
(c) of any interest secured by a bond of mortgage deed—	
(i) if the duty on such bond or mortgage deed does not exceed seven rupees and fifty paise;	The duty with which such bond or mortgage deed is chargeable.
(ii) in any other case	Fourteen rupees and six naye paise
(d) of any trust-property under the Administrator-General's Act, 1913, section 25; (e) of any trust-property without consideration from one trustee to another trustee or from a trustee to a beneficiary.	Twenty-eight rupees and twelve naye paise Fourteen rupees or such smaller amount as may be chargeable under clause (c) of the article.
Exemptions	
Transfer by endorsement—	
(b) of a delivery order, warrant for goods	

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or other merchantile Document of title to goods;	
* * *	* *
(d) of securities of the Central Government.	
See also section 8—	
63. TRANSGER OR LEASE by way assignment and not by way of under lease.	The same duty as a CONVEYANCE (No.23) for a consideration equal to the amount of the consideration for the transfer.
Exceptions	
Transfer of any lease exempt from duty—	
64. TRUST-A-DECLARATION OF –of concerning any property when made by any writing not being a will.	The same duty as BOTTOMRY BOND (No. 16) for a sum equal to the amount or value of the property concerned, as set forth in the instrument , but not exceeding forty-two rupees and twenty naye paise.
B-REVOCATION OF—of or concerning any property when made by an instrument other than a will.	The same duty as a BOTTOMRY BOND (No. 16) for a sum equal to the amount or value of the property concerned, as set forth in the instrument, but not exceeding forty-two eight rupees and twenty naye paise.
See also SETTLEMENT (No.8)	
65. WARRANT FOR GOODS that is to say, any instrument evidencing the title of any person therein named or his assigns, of the holder thereof, to the property in any goods lying in or upon any signed dock, warehouse or wharf, such instrument being or certified by or on behalf of the person in whose custody such goods may be."	Seventy-five naye paise

[*Vide* Orissa Act 35 of 1962, s. 4]

Orissa

Amendment of Schedule 1-A, Act 2 of 1899.—For Schedule 1-A of the principal Act the following Schedule Shall be substituted.

"SCHEDULE 1-A

STAMP DUTY ON CETAIN INSTRUMENTS UNDER THE INDIAN STAMP (ORISSA AMENDMENT) ACT, 1986.

(See Section 3)

Note—The articles in Schedule 1-A are numbered so as to correspond with similar articles in Schedule 1.

"SCHEDULE 1-A

STAMP DUTY ON CETAIN INSTRUMENTS UNDER THE INDIAN STAMP (ORISSA AMENDMENT) ACT, 1986.

(See Section 3)

Note—The articles in Schedule 1-A are numbered so as to correspond with similar articles in Schedule 1.

Description of Instrument	Proper Stamp-duty
(1)	(2)
2. ADMINISTRATION BOND, including a bond given under sections 291, 375, and 376 of the Indian Succession Act, 1925 (39 of 1925) or section 6 of the Government Savings Banks Act, 1873 (5 of 1873).	The same duty as a BOND (No. 15) for the same amount.
3. ADOPTION DEED. That is to say, any Instrument (Other than a well) recording an adoption or conferring or purporting to confer an authority to adopt.	Rupees thirty
4. AFFIDAVIT. including an affirmation or declaration in the case of persons by law allowed to affirm or declare instead of swearing.	Rupees four
Exemptions.	
Affidavit or declaration in writing when made—	
as a condition of enrolment under the Army Act, 1950 (46 of 1950) or the Air Force Act, 1950 (45 of 1950);	
(*b*) for the immediate purpose of being filed or used in any Court or before the Officer of any Court; (*c*) for the sole purpose of enabling any person to receive any pension or charitable allowance.	Forty paise

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5.AGREEMENT OR MEMORANDUM OF AN AGREEMENT;	Subject to maximum of rupees thirty for every ten thousand or part thereof of the value of the security or share.
(a) if relating to the sale of a Bill of Exchange;	One rupee and fifty paise
(b) if relating to the sale of a Government security or share in an incorporated Company or other body corporate;	
(c) if not otherwise provided for	
Exemptions	
(a) for or relating to the sale of goods or merchandise exclusively, not being a Note or Memorandum chargeable under No. 43.	
(b) Made in the form of tenders to the Central Government for, or relating to any loan.	
AGREEMENT TO LEASE—See LEASE (No-35)	
6.AGREEMENT RELATING TO DEPOSIT OF TITLE-DEEDS, PAWN OR PLEDGE, that is to say, any instrument evidencing an agreement relating to—	
(1) The deposit of title deeds or instruments Constituting or being evidences of the title to any property whatever (Other than a marketable security), or	
(2) The pawn or pledge of movable property, Where such deposit, pawn or pledge has been made by way of security for the repayment of money advanced or to be advanced by way of loan or an existing or future debt—	
(a) If such loan or debt is repayable on demand or more than three months from the date of the instrument evidencing the agreement.	

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Description of Instruments	Proper Stamp-duty		
	If drawn Singly	If drawn in set of two for each part of the set	If draw in set of three for each part of the set
(1)	(2)	(3)	(4)
	Rs. P.	Rs. P.	Rs. P.
When the amount of the loan or debt does not exceed Rs.100	0.40	0.25	0.25
When the amount of the loan or debt exceeds Rs. 100 but does not exceed Rs. 200.	0.70	0.40	0.25
When the exceeds Rs. 200 but does not exceed Rs. 400	1.25	0.70	0.45
When the exceeds Rs. 400 but does not exceed Rs. 600	1.75	0.90	0.70
When the exceeds Rs. 600 but does not exceed Rs. 800	2.25	1.25	0.80
When the exceeds Rs. 800 but does not exceed Rs. 1,000	3.00	1.50	1.00
When the exceeds Rs. 1,000 but does not exceed Rs. 1,200	3.25	1.75	1.25
When the exceeds Rs. 1,200 but does not exceed Rs. 1,600	4.25	2.25	1.50
When the exceeds Rs. 1,600 but does not exceed Rs. 2,500	6.50	3.25	2.25
When the exceeds Rs. 2,500 but does not exceed Rs. 5,000	13.00	6.50	4.50
When the exceeds Rs. 5,000 but does not exceed Rs. 7,500	20.00	10.00	7.00
When the exceeds Rs. 7,500 but does not exceed Rs. 10,000	30.00	15.00	10.00
When the exceeds Rs. 10,000 but does not exceed Rs. 15,000	40.00	20.00	14.00
When the exceeds Rs. 15,000 but does not exceed Rs. 20,000	55.00	30.00	19.00
When the exceeds Rs. 20,000 but does not exceed Rs. 25,000	65.00	35.00	22.00
When the exceeds Rs. 25,000 but does not exceed Rs. 30,000 and for every additional Rs. 10,000 or part thereof in excess of Rs. 30,000.	80.00	40.00	30.00
	30.00	15.00	10.00

(b) if such loan or debt is repayable not more than from the date of such instrument. — half duty payable on a loan or debt under Clause (a) (i), clause (a) (ii) or clause (a) (iii) for The amount secured.

Exemption

Instrument of pawn or pledge of goods, if unattested:—

7. APPOINTMENT IN EXECUTION OF A POWER, whether of trustees or of property, movable or immovable, where made by any writing not being a will. — Fifty rupees

8. APPRAISEMENT OR VALUATION, made otherwise than under an order of the Court in the course of a suit—

(a) where the amount does not exceed Rs. 1,000. — The same duty as a BOTTOMRY BOND (No.16) for such amount.

(b) in any other case — Fifteen rupees

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Exemptions

(a) Appraisement or valuation made for the information of one party only, and not being in any manner obligatory between parties either by agreement or operation of law.

(b) Appraisement of crops for the purpose of ascertaining the amount to be given to a landlords as rent.

9. APPRENTICHESHIP –DEED including every writing relating to the service or tuition of any apprentice, clerk or servant place with any master to learn any profession, trade or employment, not being ARTICLES OF CLERKSHIP. — Fifteen rupees

Exemption

Instruments of apprenticeship executed by a Magistrate under the Apprentices Act, 1850 (19 of 1850) or by which a person is apprenticed by or at the charge of any public charity.

10. ARTICLES OF ASSOCIAITON OF A COMPANY. — Ninety-five rupees

Exemption

Articles of any Association not formed for profit and registered under section 25 of the Companies Act, 1956 (1 of 1950).

See also Memorandum of Association of a Company (No.39)

ASSIGNMENT —See CONVEYANCE (No.23), TRANSFER (No.62) and TRANSFER of LEASE (No.63). as the case may be

ATTORNEY – See POWER –OF-ATTORNEY (No.48)

AUTHORITY TO ADOPT-See ADOPTION-DEED (No.3)

12. AWARD, – that is to say any decision in writing by an arbitrator or umpire not being an award directing a partition, on a reference made otherwise than by an order of the Court in the course of a suit—

(a) where the amount or value of the property to which the award relates as set forth in such award does not exceed Rs. 1,000. — The same duty as a BOTTOMRY BOND (No.16) or such amount.

(b) if it exceeds Rs. 1,000 but does not exceed Rs. 5,000 — Nineteen rupees

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and for every additional Rs. 1,000 or part thereof in excess of Rs. 5,000.	One rupee subject to a maximum of one hundred and rupees.

See (No.2) ADMINISTRATION BOND

15. BOND as defined by section 2(5) not being a DEBENTURE and not being otherwise provided for by this Act, or by the Court Fees Act, 1870—

Where the amount or value secured does not exceed Rs. 10;	
Where it exceeds Rs. 10 and does not exceed Rs. 50;	Thirty-five paise
Where it exceeds Rs. 50 and does not exceed Rs.100;	
Where it exceeds Rs. 50 and does not exceed Rs.100;	Forty-five paise
Where it exceeds Rs. 100 and does not exceed Rs.200;	One rupee
Where it exceeds Rs. 200and does not exceed Rs.300;	Two rupees and fifty paise
Where it exceeds Rs. 300 and does not exceed Rs.400;	Three rupees and seventy-five paise
Where it exceeds Rs. 400 and does not exceed Rs.500;	Four rupees and seventy-five paise
Where it exceeds Rs. 500 and does not exceed Rs.600;	Six rupees
Where it exceeds Rs. 600 and does not exceed Rs.700;	Eight rupees and fifty paise
	Ten rupees
Where it exceeds Rs. 700 and does not exceed Rs.800;	Twelve rupees
Where it exceeds Rs. 800 and does not exceed Rs.900;	Thirteen rupees
Where it exceeds Rs. 900 and does not exceed Rs.1000;	Fifteen rupees
and for every Rs. 500 or part thereof in excess of Rs. 1,000;	Seven rupees and fifty paise

(No.16) BOTTOMRY BOND
(No.34) CUSTOMS BOND
(No. 24) INDEMNITY BOND
(No.56) RESPONDENTIA BOND
(No. 57) SECURITY BOND

Exemptions

Bond, when executed by—

(a) headmen nominated under rules framed in accordance with the Bengal Irrigation Act, 1876, (Bengal Act 3 of 1876) section 99, for the due performance of their duties under that

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Act;

(b) any person for the purpose of guaranteeing that the local income derived from private subsecription to a charitable dispensary or hospital or any other object of public utility shall not be less than a specified sum per mensem.

16. BOTTOMRY BOND, that is to say, any instrument whereby the master of a sea-going ship to enable him the preserve the ship or prosecute her voyage—

Where the amount or value secured does not exceed Rs. 10;	Forty paise
Where it exceeds Rs. 10 and does not exceed Rs. 50;	Eighty paise
Where it exceeds Rs. 50 and does not exceed Rs.100;	One rupee and fifty paise
Where it exceeds Rs. 100 and does not exceed Rs.200;	Three rupees
Where it exceeds Rs. 200 and does not exceed Rs.300;	Four rupees and twenty-five paise
Where it exceeds Rs. 300 and does not exceed Rs.400;	Six rupees
Where it exceeds Rs. 400 and does not exceed Rs.500;	Seven Rupees and fifty paise
Where it exceeds Rs. 500 and does not exceed Rs.600;	Eight rupees and fifty paise
Where it exceeds Rs. 600 and does not exceed Rs.700;	Ten rupees
Where it exceeds Rs. 700 and does not exceed Rs.800;	Twelve rupees
Where it exceeds Rs. 800 and does not exceed Rs.900;	Thirteen rupees
Where it exceeds Rs. 900 and does not exceed Rs.1000;	Fifteen rupees
and for every Rs. 500 or part thereof in excess of Rs. 1,000;	Seven rupees and fifty paise

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17. CANCELLATION—Instrument of (Including any instrument by which any instrument previously executed is cancelled) if attested and not otherwise provided for, See also RELEASE (No.55) REVOCATION OF SETTLEMENT (No. 58-B) SURRENDER OF LEASE (No.61) REVOCATION OF TRUST (No. 64-B).	Fifteen rupees
18. CERTIFICATE OF SALE (In respect of each property put up as a separate lot and sold), granted to the purchaser of any property sold by public auction by a Civil or Revenue Court or Collector or the Revenue Officer—	
(a) Where the purchase money does not exceed Rs. 10	Forty paise
(b) Where the purchase money exceeds Rs. 10,00 but does not exceed Rs. 25.	Eighty paise
(c) In any other case	..The same duty as a CONVEYANCE (No.23) for a consideration equal to the amount of the purchase money only.
* * *	* *
20. CHARTER PARTY—that is to say, any instrument (Except an agreement for the hire of a tug-steamer), whereby a vessel or some specified principal part thereof is let for the specified purposes of the charterer whether it includes a penalty clause or not.	Four rupees
* * *	* *
22. COMPOSITION DEED— that is to say, any instrument executed by a debtor, whereby he conveys his property for the benefit of his creditors, or whereby payment of a composition or dividend or their debts is secured to the creditors, or when by provision is made for the continuance of the debtors business under the supervision of inspectors or under letters of license, for the benefit of his creditors.	Thirty rupees
23. CONVEYANCE- As defined by section 2 (10) not being a transfer charged or exempted under No.62— Where the amount or value of the consideration for such conveyance as set forth therein does not exceed Rs. 50;	One rupees and fifty paise
Where it exceeds Rs. 50 and does not exceed	Three rupees

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Rs.100; Where it exceeds Rs. 100 and does not exceed Rs.200; Where it exceeds Rs. 200 and does not exceed Rs.300; Where it exceeds Rs. 300 and does not exceed Rs.400; Where it exceeds Rs. 400 and does not exceed Rs.500; Where it exceeds Rs. 500 and does not exceed Rs.600; Where it exceeds Rs. 600 and does not exceed Rs.700; Where it exceeds Rs. 700 and does not exceed Rs.800; Where it exceeds Rs. 800 and does not exceed Rs.1,000; Where it exceeds Rs. 900 but does not exceed Rs. 1,000; and for every Rs. 500 or part thereof in excess of Rs. 1,000;	Six rupees Eight rupees and fifty paise Twelve rupees Fifteen rupees Seventeen rupees Twenty rupees Twenty-three rupees Thirty rupees Thirty rupees Fifteen rupees
Exemptions Assignment of copyright under the Copyright Act, 1957, (14 of 1957) section 18. CO-PARTNERSHIP DEED (See Partnership No. 46).	
24. COPY OR EXTRACT- Certified to be a true copy or extract by or by order of any public officer and not chargeable under the law for the time being in force relating to court fees— (i) if the original was not chargeable with duty, or if the duty, with which it was chargeable does not exceed one rupees. (ii) In any other case	 One rupee and fifty paise Three rupees
Exemptions (a) Copy of any paper which a public officer is expressly required by law to make or furnish for record in any public office or for any public purpose. (b) Copy of, or extract from any register relating to births, baptisms, namings, dedications, marriages, divorces, deaths or burials.	
25. COUNTERPART OR DUPLICATE- of any instrument, chargeable with duty and in	

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respect of which the proper duty has been paid- (a) If the duty with which the original Instrument is chargeable does not exceed one rupee and fifty paise, (b) In any other case Exemption Counterpart of any lease granted to a cultivator, when such lease is exempted from duty.	The same duty as is payable on the original Three rupees
26. CUSTOMS BOND— (a) Where the amount does not exceed Rs. 1,000. (b) In any other case	The same duty as a BOTTOMRY BOND (No. 16) for such amount, Nineteen rupees
* *	* * *
DECLARATION OF ANY TRUST- See TRUST (No.64).	
* *	* * *
DEPOSIT OF TITLE-DEEDS—See AGREEMENT relating to DEPOSIT OF TITLE-DEEDS, PAWN OR PLEDGE (No.6).	
DISSOLUTION OF PARTNERSHIP-See PARTNERSHIP (No. 46).	
29. DIVORCE- Instrument of, that is to say, instrument by which any person effects the dissolution of his marriage. DOWER- Instrument of –See SETTLEMENT (No.58). DUPLICATE- See COUNTERPART (No. 25).	Four rupees
31. EXCHANGE OF PROPERTY- Instrument of— EXTRACT- See Copy (No.24)	The same duty as a CONVEYANCE (No. 23) for a consideration equal to the value of the property of greatest value as set forth in such instrument.
32. FURTHER CHARGE— Instrument of that is to say, any instrument imposing a further charge on mortgaged property— (a) When the original mortagage is one of the description referred to in clause (a) Article No. 40 (That is, with possession);	The same duty as a CONVEYANCE (No. 23) for a consideration equal to the amount of the further charge secured by such instrument.

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(b) When such mortage is one of the descriptions referred to in clause (b) of Article No . 40 (That is, without possession)—	
(i) if at the time of execution of the instrument of further charge possession of the property is given or agreed to be given under such instrument;	The same duty as a CONVEYANCE (No. 23) for a consideration equal to the total amount of the charge (including the original mortgage and any further charge already made) less the duty already paid on such original mortgage and further charge.
(ii) If the possession is not so given.	The same duty as a BOTTOMRY BOND (No. 16) for the amount of the further charge secured by such instrument;
33.GIFT-Instrument of, not being a SETTLEMENT (No. 58) or WILL or TRANSFER (No. 62).	
HIRING AGREEMENT or agreement for service-See AGREEMENT (No. 5).	The same duty as a SECURITY BOND (No. 57) for the same amount.
34. INDEMNITY BOND	
INSPECTORSHIP DEED- See COMPOSITION DEED (No.22)	
35. LEASE, including an under-lease or sub-lease and any agreement to let or sub-let-	
(a) Whereby such lease the rent is fixed and no premium is paid or delivered—	The same duty as BOTTOMRY BOND (No. 16) for the whole amount payable or deliverable under such lease.
(i) Where the lease purports to be for a term of less than one year;	The same duty as a BOTTOMRY BOND (No. 16) for the amount or value of the average annual rent reserved.
(ii) where the lease purports to be for a term of not less than one year, but not more than five years;	The same duty as a CONVEYANCE (No. 23) for a consideration equal to the amount or value of the average annual rent reserved.
(iii) Where the lease purports to be for a term exceeding five years, but not exceeding ten years;	The same duty as a CONVERYANCE (No.23) for a consideration equal to twice the amount or value of the average annual rent reserved.
(iv) Where the lease purports to be for a term exceeding ten years, but not exceeding twenty years;	The same duty as a CONVEYANCE (No. 23) for a consideration equal to three times the amount or value of the average annual rent reserved.
	The same duty as a CONVEYANCE (No. 23) for a consideration equal to four times the amount or value of the average annual rent reserved.

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(v) Where the lease purports to be for a term exceeding twenty years, but not exceeding thirty years;	The same duty as a CONVEYANCE (No. 23) for a consideration equal to one-sixth of the whole amount of rent which would be paid or delivered in respect of first fifty years of the lease.
(vi) Where the lease purports to be for a term exceeding thirty years, but not exceeding one hundred years;	The same duty as a CONVEYANCE (No. 23) for a consideration equal to three times the amount or value of the average annual rent which would be paid or delivered for the first ten years if the lease continued so long.
(vii) Where the lease purports to be for a term exceeding one hundred years, or in perpetuity;	The same duty as a CONVEYANCE (No. 23) for a consideration equal to the amount or value of such fine or premium , or advance as set forth in the lease.
(viii) Where the lease does not purport to be for any definite term;	The same duty as a CONVEYANCE (No.23) for a consideration equal to the amount or value of such fine or premium, or advances as set forth in the lease, in addition to the duty which would have been payable on such lease, if no fine or premium or advance had been paid or delivered: Provided that, in any case when an agreement to lease is stamped with the *ad valorem* stamp required for a lease, and a lease in pursuance of such agreement is subsequently executed, the duty on such lease shall not exceed one rupee and fifty paise.
(b)Where the lease is granted for a fine or premium, or for money advanced and where no rent is reserved;	
(c) Where the lease is granted for a time or premium, or for money advanced in addition to rent reserved. Exemption Lease; executed in the case of a cultivator and for the purpose of cultivation (Including a lease of trees for the production of food or drink) without the payment or delivery of any fine or premium, when a definite term is ex-pressed and such term does not exceed one year or when the average annual rent reserved does not exceed one hundred rupees. *Explanation*— When a lessee undertakes to pay any recurring charge, such as Government revenue, the landlord's share of cesses, or the owner's share of municipal rates or taxes,	

Which is by law recoverable from the lessor, the amount so agreed to be paid by the lessee shall be deemed to be part of the rent.	
* * * *	
LETTER OF GUARNTEE- See AGREEMENT (No. 5).	
38. LETTER OF LICENCE that is to say, any agreement between a debtor and his creditors that the latter shall, for a specified time, suspend their claims and allow the debtor to carry on business at his own discretion.	Thirty rupees
39. MEMORANDUM OF ASSOCIAITON OF A COMPANY—	
(a) if accompanied by articles of association under section 26 of the Companies Act, 1956 (1 of 1956).	Sixty rupees
(b) if not so accompanied	One hundred and fifty-five rupees
Exemption Memorandum of any association not formed for profit and registered under section 25 of the Companies Act, 1956 (1 of 1956).	
40. MORTGAGE-DEED, NOT BEING AN AGREEMENT RELATING TO DEPOSIT OF TITLE DEEDS, PAWN OR PLEDGE (No.6) BOND (No. 15), MORTGAGE OF A CROP (No. 41), RESPONDENTIA BOND (No. 56), OR SECURIY BOND (No. 57)—	
(a) when possession of the property or any part of the property comprised in such deed is given by the mortgagor or agreed to be given.	The same duty as a CONVEYANCE (No. 23) for a consideration equal to the amount secured by such deed.
(b) when possession is not given or agreed to be given as aforesaid.	The same duty as a BOTTOMRY BOND (No. 16) for the amount secured by such deed.
Explanation— A mortgagor who gives to the mortgagee a power-of-attorney to collect rents or a lease of the property mortgaged or part thereof, is deemed to give possession within the meaning of this article.	
(C) When a collateral or auxiliary or additional or substituted security, or by way of further assurance for the Where the principal or primary security is duly stamped for every sum secured not exceeding Rs. 1, 000;	One rupee and fifty paise

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and For every sum secured not exceeding Rs. 1,000 and for every Rs. 1,000 or part thereof secured in excess Rs. 1,000.	One rupee and fifty paise
Exemptions (1) Instruments executed by persons taking advances under the Land Improvement Loans Act, 1883 (12 of 1883) or the Agriculturists Loans Act, 1884 (19 of 1884), or by their sureties as security for the repayment of such advances;	
(2) Letter of hypothecation accompanying a bill of exchange.	
41. MORTGAGE OF A CROP including any instrument evidencing an agreement to secure the repayment of a loan made upon any mortgage of a crop, whether the crop, is or is not in existence at the time of the mortgage—	Thirty paise
(a) when the loan is repayable not more than three months from the date of the instrument—	Thirty paise
For every sum secured not exceeding Rs. 200; and for every Rs. 200 or part thereof secured in excess of Rs. 200;	Forty paise Forty paise
(b) when the loan is repayable more than three months but not more than eighteen months, from the date of the instrument—	
For every sum secured not exceeding Rs. 100; and for every Rs. 100 or part thereof secured in excess of Rs. 100.	
42. NOTARIAL ACT that is to say, any instrument, endorsement , note , attestation certificate, or signed not being a PROTEST (No. 50) made or signed by a Notary Public in the execution of the duties of his office, or by any other person lawfully acting as a Notary Public.	Three rupees
See also PROTEST OF BILL OR NOTE (No. 50).	
43. NOTE OR MEMORANDUM sent by a Broker or Agent to his principal intimating the	Forty paise Subject to a maximum of thirty-five paise for

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purchase or sale on account of such principal— (a) of any goods, exceeding in value twenty rupees; (b) of any stock or marketable security exceeding in value twenty rupees;	every ten thousand rupees or part thereof of the value of the stock or security. Two rupees
44. NOTE OF PROTEST BY THE MASTER OF A SHIP-See also PROTEST BY THE MASTER OF A SHIP (No. 51). **45. PARTITION**- Instrument of as defined by section 2 (15).	The same duty as a BOTTOMRY BOND (No. 16) for the amount of the value of the separated share or shares of the property. N.B.—The largest share remained after the property is petitioned (or if there two or more shares of equal value and not smaller than any of the other shares, then one of such equal shares) shall be deemed to be that from which the other shares are separated. Provided always that— (a) When an instrument of partition containing an agreement to divide property in severalty is executed and a partition is effected in pursuance of such agreement the duty chargeable upon the instrument effecting such a partition shall be reduced by the amount of duty paid in respect of the first instrument but shall not be less than three rupees. (b) Where land is held on Revenue Settlement for a period not exceeding thirty years and paying the full assessment, the value for the purpose of duty shall be calculated at not more than five times the annual revenue. (c) Where a final order for effecting a partition passed by any Revenue authority or any Civil Court, or an award by an arbitrator directing a partition, is stamped with the stamp required for an instrument of partition and an instrument of partition in pursuance of such order or award is subsequently executed, the duty on such instrument shall not exceed three rupees.
PARTNERSHIP— A—Instrument of— (a) Where the capital of the partnership does not exceed Rs. 500;	Nine rupees and fifty paise Forty rupees

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(b) in any other case B—Dissolution of —	Nineteen rupees
PAWN OR PLEDGE—See AGREEMENT RELATING TO DEPOSIT OF TITLE-DEEDS PAWN OR PLEDGE (No.6).	
48.POWER –OF-ATTORNEY as defined by section 2(21) not being a proxy—	One rupee and fifty paise
(a) when executed for this sole purpose of procuring the registration of one or more documents in relation to a single transaction or for admitting execution of one or more such documents;	One rupee and fifty paise
(b) when required in suits or proceedings under the Presidency Small Cause Courts Act, 1882 (15 of 1882);	Three rupees
(c) when authorizing one person or more to act in a single transaction other than the case mentioned in clause (a);	Fifteen rupees
(d) when authorizing not more than five persons to act jointly and severally in more than one transaction or generally;	Thirty rupees
(e) when authorizing more than five but not more than ten persons to act jointly and severally in more than one transaction or generally; (f) when given for consideration and authorizing the attorney to sell any immovable property; (g) In any other case	The same duty as a CONVEYACE (No.23) for the amount of consideration. Ten rupees for each person authorized N.B.—The term "Registration" includes every operation incidental to registration under the Indian Registration Act, 1908 (16 of 1908).
Explanation— For the purposes of this article more persons than one when belonging to the same firm shall be deemed to be one persons.	
* * *	* *
50. PROTEST OF BILL OR NOTE that is to say any declaration in writing made by a Notary Public, or other person lawfully acting as such, attesting the dishonor of a Bill of Exchange or Promissory Note.	Four rupees
51. PROTEST BY THE MASTER OF A SHIP that is to say, any declaration of the particulars of the voyage drawn up by him with a view to the adjustment of losses or the calculation of averages, and every declaration in	Four rupees

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writing made by him against the characters or the consignees for not loading or unloading the ship when such declaration is attested or certified by a Notary Public or other person lawfully acting as such. See also NOTE OF PROTEST BY THE MASTER OF A SHIP (No. 44).	
* * *	* * *
54. RECONVEYANCE OF MORTGAGED PROPERTY—	
(a) if the consideration for which the property was mortgaged does not exceed Rs. 1,000;	The same duty as a CONVEYANCE (No. 23) for the amount of such consideration as set forth in the reconveyance.
(b) in any other case	Thirty rupees
55. RELEASE that is to say, instrument not being such a release as is provided for by section (23-A.), whereby a person renounces a claim upon another person or against any specified property—	The same duty as a BOTTOMRY BOND (No. 16) for such amount or value as set forth in the release.
(a) if the amount or value of the claim does not exceed Rs. 1,000;	Fifteen rupees The same duty as a BOTTOMRY BOND (No. 16) for the amount of the loan secured.
(b) in any other case	
56. RESPONDENTIA BOND that is to say, any instrument securing a loan on the cargo laden or up to be laden on board a ship and making repayment contingent on the arrival of the cargo at the port of destination. REVOCATION OF ANY TRUST OR SETTLEMENT- See SETTLEMENT (No. 58) TRUST (No. 64)	
57. SECURITY BOND OR MORTGAGE DEED executed by way of security for the due execution of an office, or to account for money or other property received by virtue thereof, or executed by a surety to secure the due performance of a contract—	The same duty as a BOTTOMRY BOND (No. 16) for the amount secured.
(a) When the amount secured does not exceed Rs. 1,000.	Fifteen rupees
(b) In any other case	
Exemptions Bond or other instrument, when executed—	

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By headmen nominated under rules framed in accordance with the Bengal Irrigation Act, 1876, (Bengal Act 3 of 1876) section 99 for the due performance of their duties under that Act. (b) By any person for the purpose of guaranteeing that the local income derived from private subscriptions to a charitable dispensary or hospital or any other subject or public utility shall not be less than a specified sum *per mensem;* (c) By persons taking advances under the Land Improvement Loans Act, 1883, (19 of 1883) or the Agriculturists Loans Act, 1884 (12 of 1884), or by their sureties, as security for the repayment of such advances; (d) By officers of the Government or their sureties to secure the due execution of an office, or the due accounting for money or other property received by virtue thereof.	
58. SETTLEEMNT —(A) INSTRUMENT OF (including a deed of dower). Exemption Deed of dower executed on the occasion of a marriage between Mohammadans.	The same duty as a BOTTORMY BOND (No. 16) for a sum equal to the amount or value of the property settled as set forth in such settlement: Provided that, where an agreement to settle is stamped with the stamp required for an instrument of settlement and an instrument of settlement in pursuance of such agreement is subsequently executed, the duty on such instrument shall not exceed one rupee and fifty paise.
(B) REVOCATION OF See ALSO TRUST (No.64)	
59. SHARE WARRANTS to bearer issued under the Companies Act, 1956 (1 of 1956). Exemptions Share warrant when issued by a company in pursuance of the Companies Act, 1956 (1 of 1956), section 114, to have effect only upon payment, as composition for that duty, to the Collector of stamp-revenue, of—	The same duty as a BOTTOMRY BOND (No. 16) for a sum equal to the amount or value of the property concerned, as set forth in the instrument of Revocation, but not exceeding thirty rupee.
(a) One and a half per centum of the whole subscribed capital of the company; or	One and a half times the duty payable on a CONVEYANCE (No. 23) for a consideration equal to the nominal amount of the shares specified in the warrant.
(b) If any company which has paid the said duty or composition in fully, subsequently issues an addition to its subscribed capital, one and a half per centum of the additional capital so issued.	
61. SURRENDER OF LEASE	

(a) when the duty with which the lease is chargeable does not exceed seven rupees and fifty paise; (b) in any other case Exemptions Surrender of lease, when such lease is exempted from duty.	
62. TRANSFER (Whether with or without consideration)—	The duty with which such lease is chargeable.
* * *	
(c) of any interest secured by a bond of mortgage deed— (i) if the duty on such bond or mortgage deed does not exceed seven rupees and fifty paise; (ii) in any other case	Fifteen rupees
(d) of any trust-property under the Administrator-General's Act, 1913, section 25; (e) of any trust-property without consideration from one trustee to another trustee or from a trustee to a beneficiary. Exemptions	The duty with which such bond or mortgage deed is chargeable.
Transfer by endorsement— (b) of a delivery order, warrant for goods or other merchantile Document of title to goods;	Fifteen rupees Thirty rupees Fifteen rupees or such smaller amount as may be chargeable under clause (*c*) of the article.
* * *	* * *
(d) of securities of the Central Government. See also section 8— **63. TRANSGER OR LEASE** by way assignment and not by way of under lease. Exemptions Transfer of any lease exempt from duty—	
64. TRUST-A-DECLARATION OF –of	The same duty as a CONVEYANCE (No.23) for

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concerning any property when made by any writing not being a will.	a consideration equal to the amount of the consideration for the transfer.
B-REVOCATION OF—of or concerning any property when made by an instrument other than a will.	The same duty as BOTTOMRY BOND (No. 16) for a sum equal to the amount or value of the property concerned, as set forth in the instrument, but not exceeding forty-five rupees.
See also SETTLEMENT (No.8)	The same duty as a BOTTOMRY BOND (No. 16) for a sum equal to the amount or value of the property concerned, as set forth in the instrument, but not exceeding Thirty rupees.
65. WARRANT FOR GOODS that is to say, any instrument evidencing the title of any person therein named or his assigns, of the holder thereof, to the property in any goods lying in or upon any signed dock, warehouse or wharf, such instrument being or certified by or on behalf of the person in whose custody such goods may be."	Eighty paise

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[*Vide* Orissa Act 9 of 1970, s. 3]

Orissa

Substitution of Schedule 1-A.—For Schedule 1-A of the Indian Stamp Act, 1899 (2 of 1899) (hereinafter referred to as the Principal Act), the following Schedule shall be substituted, namely:—

"SCHEDULE 1-A
STAMP DUTY ON CETAIN INSTRUMENTS UNDER THE INDIAN STAMP (ORISSA AMENDMENT) ACT, 1986.
(See Section 3)

Note—The articles in Schedule 1-A are numbered so as to correspond with similar articles in Schedule 1.

Description of Instrument	Proper Stamp-duty
(1)	(2)
2. ADMINISTRATION BOND, including a bond given under sections 291, 375, and 376 of the Indian Succession Act, 1925 (39 of 1925) or section 6 of the Government Savings Banks Act, 1873 (5 of 1873).	The same duty as a BOND (No. 15) for the same amount.
3. ADOPTION DEED. That is to say, any Instrument (Other than a will) recording an adoption or conferring or purporting to confer an authority to adopt.	Two hundred rupees
4. AFFIDAVIT, including an affirmation or declaration in the case of persons by law allowed to affirm or declare instead of swearing.	Ten rupees
Exemptions. Affidavit or declaration in writing when made— (*a*) as a condition of enrolment under the Army Act, 1950 (46 of 1950) or the Air Force Act, 1950 (45 of 1950); (*b*) for the immediate purpose of being filed or used in any Court or before the Officer of any Court; (c) for the sole purpose of enabling any person to receive any pension of charitable allowance.	Proper Stamp-duty
5.AGREEMENT OR MEMORANDUM OF AN AGREEMENT;	
(a) if relating to the sale of a Bill of Exchange;	One rupee
(b) if relating to the sale of a Government security or share in an incorporated Company or other body corporate;	Subject to maximum of forty-two rupees fifty paise for every ten thousand or part thereof of the value of the security or share.
(c) if not otherwise provided for	Three rupees
Exemptions Agreement or memorandum of agreement— (a) for or relating to the sale of goods or merchandise exclusively, not being a Note or Memorandum chargeable under No. 43. (b) Made in the form of tenders to	

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	the Central Government for, or relating to any loan.		
AGREEMENT TO LEASE—See LEASE (No-35) **6.AGREEMENT RELATING TO DEPOSIT OF TITLE-DEEDS, PAWN OR PLEDGE**, that is to say, any instrument evidencing an agreement relating to— (1) The deposit of title deeds or instruments Constituting or being evidences of the title to any property whatever (Other than a marketable security) or (2) The pawn or pledge of movable property, Where such deposit, pawn or pledge has been made by way of security for the repayment of money advanced or to be advanced by way of loan or an existing or future debt—			
	(a) If such loan or debt is repayable on demand or more than three months from the date of the instrument evidencing the agreement.		

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(1)	If drawn Singly (2)	If drawn in set of two for each part of the set (3)	If draw in set of three for each part of the set (4)

	Rs. P.	Rs. P.	Rs. P.
When the amount of the loan or debt does not exceed Rs.100	0.40	0.25	0.25
When the amount of the loan or debt exceeds Rs. 100 but does not exceed Rs. 200.	0.70	0.40	0.25
When the exceeds Rs. 200 but does not exceed Rs. 400	1.25	0.70	0.45
When the exceeds Rs. 400 but does not exceed Rs. 600	1.75	0.90	0.70
When the exceeds Rs. 600 but does not exceed Rs. 800	2.25	1.25	0.80
When the exceeds Rs. 800 but does not exceed Rs. 1,000	4.15	2.25	1.40
When the exceeds Rs. 1,000 but does not exceed Rs. 1,200	4.55	2.45	1,80
When the exceeds Rs. 1,200 but does not exceed Rs. 1,600	5.90	3.15	2.10
When the exceeds Rs. 1,600 but does not exceed Rs. 2,500	9.00	4.55	3.15
When the exceeds Rs. 2,500 but does not exceed Rs. 5,000	17.90	9.00	6.25
When the exceeds Rs. 5,000 but does not exceed Rs. 7,500	27.50	13.75	9.65
When the exceeds Rs. 7,500 but does not exceed Rs. 10,000	41.25	20.65	13.75
When the exceeds Rs. 10,000 but does not exceed Rs. 15,000	55.00	27.50	19.25
When the exceeds Rs. 15,000 but does not exceed Rs. 20,000	75.65	41.25	26.15
When the exceeds Rs. 20,000 but does not exceed Rs. 25,000	89.40	48.15	30.00
When the exceeds Rs. 25,000 but does not exceed Rs. 30,000	110.00	55.00	41.25
and for every additional Rs. 10,000 or part thereof in excess of Rs. 30,000.	41.25	20.65	13.75

(b) if such loan or debt is repayable not more than half duty payable on a loan or debt under three months from the date of such instrument. — Clause (a) for the amount secured.

Exemption

Instrument of pawn or pledge of goods, if unattested:—

7. APPOINTMENT IN EXECUTION OF A POWER, whether of trustees or of property, movable or immovable, where made by any writing not being a will.	One hundred rupees
8. APPRAISEMENT OR VALUATION, made otherwise than under an order of the Court in the course of a suit—	
(*a*) where the amount does not exceed Rs. 1,000.	The same duty as a BOTTOMRY BOND (No.16) for such amount.
(*b*) in any other case	Twenty-one rupees
Exemptions	
(c) Appraisement or valuation made for the information of one party only, and not being in any manner obligatory between parties either by agreement or operation of law.	

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(d) Appraisement of crops for the purpose of ascertaining the amount to be given to a landlords as rent.	
9. APPRENTICHESHIP –DEED including every writing relating to the service or tuition of any apprentice, clerk or servant place with any master to learn any profession, trade or employment, not being ARTICLES OF CLERKSHIP.	Fifty rupees
Exemption Instruments of apprenticeship executed by a Magistrate under the Apprentices Act, 1850 (19 of 1856) or by which a person is apprenticed by or at the charge of any public charity.	
10. ARTICLES OF ASSOCIAITON OF A COMPANY.	Two hundred rupees
Exception Articles of any Association not formed for profit and registered under section 25 of the Companies Act, 1956 (1 of 1950). See also Memorandum of Association of a Company (No.39)	
ASSIGNMENT —See CONVEYANCE (No.23), TRANSFER (No.62) and TRANSFER of LEASE (No.63). as the case may be ATTORNEY-See Power-of-ATTORNEY (No.48)	
AUTHORITY TO ADOPT-See ADOPTION-DEED (No.3)	
12. AWARD, that is to say any decision in writing by an arbitrator or umpire not being an award directing a partition, on a reference made otherwise than by an order of the Court in the course of a suit—	The same duty as a BOTTOMRY BOND (No.16) or such amount.
(a) where the amount or value of the property to which the award relates as set forth in such award does not exceed Rs. 1,000.	Proper Stamp-duty
(1) (b) if it exceeds Rs. 1,000 but does not exceed Rs. 5,000.	Twenty-seven-rupees.
and for every additional Rs. 1,000 or part thereof in excess of Rs. 5,000.	One rupee and fifty paise subject to a maximum of one hundred and thirty-eight rupees.

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15.BOND as defined by section 2(5) not being a DEBENTURE and not being otherwise provided for by this Act, or by the Court Fees Act, 1870—

Where the amount or value secured does not exceed Rs. 10;	Thirty-five paise
Where it exceeds Rs. 10 and does not exceed Rs. 50;	Forty-five paise
Where it exceeds Rs. 50 and does not exceed Rs.100;	
Where it exceeds Rs. 50 and does not exceed Rs.100;	One rupee
Where it exceeds Rs. 100 and does not exceed Rs.200;	Two rupees and fifty paise
Where it exceeds Rs. 200 and does not exceed Rs.300;	Three rupees and seventy-five paise
Where it exceeds Rs. 300 and does not exceed Rs.400;	Four rupees and seventy-five paise
Where it exceeds Rs. 400 and does not exceed Rs.500;	Six rupees
Where it exceeds Rs. 500 and does not exceed Rs.600;	Eight rupees and fifty paise
Where it exceeds Rs. 600 and does not exceed Rs.700;	Ten rupees
Where it exceeds Rs. 700 and does not exceed Rs.800;	Twelve rupees
Where it exceeds Rs. 800 and does not exceed Rs.900;	Eighteen rupees
Where it exceeds Rs. 900 and does not exceed Rs.1000;	Twenty-one rupees
and for every Rs. 500 or part thereof in excess of Rs. 1,000;	Eleven rupees

See (No.2) ADMINISTRATION BOND
(No.16) BOTTOMRY BOND
(No.26) CUSTOMS BOND
(No. 34) INDEMNITY BOND
(No.56) RESPONDENTIA BOND
(No. 57) SECURITY BOND

Exceptions

Bond , when executed by—

(c) headmen nominated under rules framed in accordance with the Bengal Irrigation Act, 1876 (Bengal Act 3 of 1876), section 99, for the due performance of their duties under that Act;

(d) any person for the purpose of

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guaranteeing that the local income derived from private subsecription to a charitable dispensary or hospital or any other object of public utility shall not be less than a specified sum *per mensem.*

16. BOTTOMRY BOND, that is to say, any instrument whereby the master of a sea-going ship to enable him the preserve the ship or prosecute her voyage—

Where the amount or value secured does not exceed Rs. 10;	Forty paise
Where it exceeds Rs. 10 and does not exceed Rs. 50;	Eighty paise
Where it exceeds Rs. 50 and does not exceed Rs.100;	One rupee and fifty paise
Where it exceeds Rs. 100 and does not exceed Rs.200;	Three rupees
Where it exceeds Rs. 200 and does not exceed Rs.300;	Four rupees and twenty-five paise
Where it exceeds Rs. 300 and does not exceed Rs.400;	Six rupees
Where it exceeds Rs. 400 and does not exceed Rs.500;	Seven rupees and fifty paise
Where it exceeds Rs. 500 and does not exceed Rs.600;	Eight rupees and fifty paise
Where it exceeds Rs. 600 and does not exceed Rs.700;	Ten rupees
Where it exceeds Rs. 700 and does not exceed Rs.800;	Twelve rupees
Where it exceeds Rs. 800 and does not exceed Rs.900;	Eighteen rupees
Where it exceeds Rs. 900 and does not exceed Rs.1000;	Twenty-one rupees
and for every Rs. 500 or part thereof in excess of Rs. 1,000;	Eleven rupees

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17. CANCELLATION—Instrument of (Including any instrument by which any instrument previously executed is cancelled) if attested and not otherwise provided for, See also RELEASE (No.55) REVOCATION OF SETTLEMENT (No. 58-B) SURRENDER OF LEASE (No.61) REVOCATION OF TRUST (No. 64-B).	Fifty rupees
18. CERTIFICATE OF SALE (In respect of each property put up as a separate lot and sold), granted to the purchaser of any property sold by public auction by a Civil or Revenue Court or Collector or the Revenue Officer—	
(*a*) Where the purchase money does not exceed Rs. 10	One rupees and fifty paise
(*b*) Where the purchase money exceeds Rs. 10,00 but does not exceed Rs. 25.	
(*c*) In any other case	
* * *	* *
20. CHARTER PARTY—that is to say, any instrument (Except an agreement for the hire of a tug-steamer), whereby a vessel or some specified principal part thereof is let for the specified purposes of the charterer whether it includes a penalty clause or not.	Fifty rupees
* * *	
22. COMPOSITION DEED— that is to say, any instrument executed by a debtor, whereby he conveys his property for the benefit of his creditors, or whereby payment of a composition or dividend or their debts is secured to the creditors, or when by provision is made for the continuance of the debtors business under the supervision of inspectors or under letters of license, for the benefit of his creditors.	Fifty rupees
23. CONVEYANCE- As defined by section 2 (10) not being a transfer charged or exempted under No.62—	One rupee and fifty paise
Where the amount or value of the consideration for such conveyance as set forth therein does not exceed Rs. 50;	
Where it exceeds Rs. 50 and does not exceed Rs.100;	Three rupees
Where it exceeds Rs. 100 and does not exceed Rs.200;	Six rupees
Where it exceeds Rs. 200 and does not exceed	Eight rupees and fifty paise

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Rs.300; Where it exceeds Rs. 300 and does not exceed Rs.400; Where it exceeds Rs. 400 and does not exceed Rs.500; Where it exceeds Rs. 500 and does not exceed Rs.600; Where it exceeds Rs. 600 and does not exceed Rs.700; Where it exceeds Rs. 700 and does not exceed Rs.800; Where it exceeds Rs. 800 and does not exceed Rs.1,000; and for every Rs. 500 or part thereof in excess of Rs. 1,000; Exemption Assignment of copyright under the Copyright Act, 1957 (14 of 1957), section 18. CO-PARTNERSHIP DEED (See Partnership No. 46).	Twelve rupees Fifteen rupees Seventeen rupees Twenty-three rupees Twenty rupees Forty-two rupees Twenty-one rupees
24. COPY OR EXTRACT- Certified to be a true copy or extract by or by order of any public officer and not chargeable under the law for the time being in force relating to court fees— (*i*) if the original was not chargeable with duty, or if the duty, with which it was chargeable does not exceed one rupees. (*ii*) In any other case Exemption (a) Copy of any paper which a public officer is expressly required by law to make or furnish for record in any public office or for any public purpose. (b) Copy of, or extract from any register relating to births, baptisms, namings, dedications, marriages, divorces, deaths or burials.	Two rupees and fifty paise ..Five rupees
25. COUNTERPART OR DUPLICATE- of any instrument, chargeable with duty and in respect of which the proper duty has been paid- (*a*) If the duty with which the original Instrument is chargeable does not exceed one rupee and fifty paise, (*b*) In any other case Exemption	The same duty as is payable on the original .. Five rupees

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Counterpart of any lease granted to a cultivator, when such lease is exempted from duty.	
26. CUSTOMS BOND— (a) Where the amount does not exceed Rs. 1,000. (b) In any other case	The same duty as a BOTTOMRY BOND (No. 16) for such amount, Fifty rupees
* *	* * *
DECLARATION OF ANY TRUST- Se TRUST (No.64).	
* *	* * *
DEPOSIT OF TITLE -DEEDS—See AGREEMENT relating to DEPOSIT OF TITLE-DEEDS, PAWN OR PLEDGE (No.6).	
DISSOLUTION OF PARTNERSHIP-See PARTNERSHIP (No. 46).	
29. DIVORCE- Instrument of, that is to say, instrument by which any person effects the dissolution of his marriage.	One hundred rupees
DOWER- Instrument of –See SETTLEMENT (No.58).	
DUPLICATE- See COUNTERPART (No. 25).	
31. EXCHANGE OF PROPERTY- Instrument of—	The same duty as a CONVEYANCE (No. 23) for a consideration equal to the value of the property of greatest value as set forth in such instrument.
EXTRACT- See Copy (No.24)	
32. FURTHER CHARGE—Instrument of that is to say, any instrument imposing a further charge on mortgaged property—	
(*a*) When the original mortagage is one of the description referred to in clause (a) Article No. 40 (That is, with possession);	The same duty as a CONVEYANCE (No. 23) for a consideration equal to the amount of the further charge secured by such instrument.
(b) When such mortage is one of the descriptions referred to in clause (b) of Article No . 40 (That is, without possession)—	
(*i*) if at the time of execution of the instrument of further charge possession of the	The same duty as a CONVEYANCE (No. 23) for a consideration equal to the total

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property is given or agreed to be given under such instrument;	amount of the charge (including the original mortgage and any further charge already made) less the duty already paid on such original mortgage and further charge.
(*ii*) If the possession is not so given.	
33. GIFT-Instrument of, not being a SETTLEMENT (No. 58) or WILL or TRANSFER (No. 62).	
HIRING AGREEMENT or agreement for service-See AGREEMENT (No. 5).	
34. INDEMNITY BOND	
INSPECTORSHIP DEED- See COMPOSITION DEED (No.22)	
35. LEASE, including an under-lease or sub-lease and any agreement to let or sub-let-	The same duty as a BOTTOMRY BOND (No. 16) for the amount of the further charge secured by such instrument;
(a) Whereby such lease the rent is fixed and no premium is paid or delivered—	
(i) Where the lease purports to be for a term of less than one year;	The same duty as a CONVEYANCE (No.23) for a consideration equal to the value of the property as set forth in such instrument.
(ii) where the lease purports to be for a term of not less than one year, but not more than five years;	The same duty as a SECURITY BOND (No. 57) for the same amount.
(iii) Where the lease purports to be for a term exceeding five years, but not exceeding ten years;	The same duty as BOTTOMRY BOND (No. 16) for the whole amount payable or deliverable under such lease.
(iv) Where the lease purports to be for a term exceeding ten years, but not exceeding twenty years;	The same duty as a BOTTOMRY BOND (No. 16) for the amount or value of the average annual rent reserved.
(v) Where the lease purports to be for a term exceeding twenty years, but not exceeding thirty years;	The same duty as a CONVEYANCE (No. 23) for a consideration equal to the amount or value of the average annual rent reserved.
(vi) Where the lease purports to be for a term exceeding thirty years, but not exceeding one hundred years;	The same duty as a CONVEYANCE (No.23) for a consideration equal to twice the amount or value of the average annual rent reserved.
(vii) Where the lease purports to be for a term exceeding one hundred years, or in perpetuity;	The same duty as a CONVEYANCE

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	(No. 23) for a consideration equal to three times the amount or value of the average annual rent reserved.
	The same duty as a CONVEYANCE (No. 23) for a consideration equal to four times the amount or value of the average annual rent reserved.
(viii) Where the lease does not purport to be for any definite term;	The same duty as a CONVEYANCE (No. 23) for a consideration equal to one-sixth of the whole amount of rent which would be paid or delivered in respect of first fifty years of the lease.
(*b*) Where the lease is granted for a fine or premium, or for money advanced and where no rent is reserved;	The same duty as a CONVEYANCE (No. 23) for a consideration equal to three times the amount or value of the average annual rent which would be paid or delivered for the first ten years if the lease continued so long.
(*c*) Where the lease is granted for a time or premium, or for money advanced in addition to rent reserved.	The same duty as a CONVEYANCE (No. 23) for a consideration equal to the amount or value of such fine or premium, or advance as set forth in the lease.
	The same duty as a CONVEYANCE (No.23) for a consideration equal to the amount or value of such fine or premium, or advances as set forth in the lease, in addition to the duty which would have been payable on such lease, if no fine or premium or advance had been paid or delivered:
Exemption Lease; executed in the case of a cultivator and for the purpose of cultivation (Including a lease of trees for the production of food or drink) without the payment or delivery of any fine or premium, when a definite term is ex-pressed and such term does not exceed one year or when the average annual rent reserved does not exceed one hundred rupees.	
Explanation— When a lessee undertakes to pay any recurring charge, such as Government revenue, the landlord's share of cesses or the owner's share of municipal rates or taxes Which is by law recoverable from the lessor, the amount so agreed to be paid by the lessee shall be deemed to be part of the rent.	Provided that, in any case when an agreement to lease is stamped with the *ad valorem* stamp required for a lease, and a lease in pursuance of such agreement is subsequent, executed, the duty on such lease shall not exceed two rupees and fifty paise.
* * * *	
LETTER OF GUARNTEE- See AGREEMENT (No. 5).	
38. LETTER OF LICENCE that is to say, any agreement between a debtor and his creditors that the latter shall, for a specified	

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time, suspend their claims and allow the debtor to carry on business at his own discretion.	
39. MEMORANDUM OF ASSOCIAITON OF A COMPANY—	
(a) if accompanied by articles of association under section 26 of the Companies Act, 1956 (1 of 1956).	Fifty rupees
(b) if not so accompanied	Two hundred rupees
Exemption Memorandum of any association not formed for profit and registered under section 25 of the Companies Act, 1956 (1 of 1956).	Five hundred rupees
40. MORTGAGE-DEED, NOT BEING AN AGREEMENT RELATING TO DEPOSIT OF TITLE DEEDS, PAWN OR PLEDGE (No.6) BOND (No. 15), MORTGAGE OF A CROP (No. 41), RESPONDENTIA BOND (No. 56), OR SECURITY BOND (No. 57)—	
(*a*) when possession of the property or any part of the property comprised in such deed is given by the mortgagor or agreed to be given.	The same duty as a CONVEYANCE (No. 23) for a consideration equal to the amount secured by such deed.
(*b*) when possession is not given or agreed to be given as aforesaid.	The same duty as a BOTTOMRY BOND (No. 16) for the amount secured by such deed.
Explanation— A mortgagor who gives to the mortgagee a power-of-attorney to collect rents or a lease of the property mortgaged or part thereof, is deemed to give possession within the meaning of this article.	
(*C*) When a collateral or auxiliary or additional or substituted security, or by way of further assurance for the above – mentioned purpose where the principal or primary security is duly stamped—	
For every sum secured not exceeding Rs. 1,000 and for every Rs. 1,000 or part thereof secured in excess Rs. 1,000.	Three rupees Three rupees
Exemption (1) Instruments executed by persons taking advances under the Land Improvement Loans Act, 1883 (12 of 1883) or the Agriculturists Loans Act, 1884 (19 of 1884), or by their sureties as security for the repayment of such	

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advances; (2) Letter of hypothecation accompanying a bill of exchange.	
41. MORTGAGE OF A CROP including any instrument evidencing an agreement to secure the repayment of a loan made upon any mortgage of a crop, whether the crop, is or is not in existence at the time of the mortgage— (a) when the loan is repayable not more than three months from the date of the instrument— for every sum secured not exceeding Rs. 200; and for every Rs. 200 or part thereof secured in excess of Rs. 200; (b) when the loan is repayable more than three months but not more than eighteen months, from the date of the instrument— For every sum secured not exceeding Rs. 100; and for every Rs. 100 or part thereof secured in excess of Rs. 100.	 Thirty paise Thirty paise Forty paise Fifty paise
42. NOTARIAL ACT that is to say, any instrument, endorsement, note, attestation certificate, or signed not being a PROTEST (No. 50) made or signed by a Notary Public in the execution of the duties of his office, or by any other person lawfully acting as a Notary Public. See also PROTEST OF BILL OR NOTE (No. 50).	Twenty rupees
43. NOTE OR MEMORANDUM sent by a Broker or Agent to his principal intimating the purchase or sale on account of such principal— (a) of any goods, exceeding in value twenty rupees; (b) of any stock or marketable security exceeding in value twenty rupees;	 Seventy-five paise
44. NOTE OF PROTEST BY THE MASTER OF A SHIP-See also PROTEST BY THE MASTER OF A SHIP (No. 51).	Subject to a maximum of forty-two rupees and fifty paise, for every ten thousand rupees or part thereof of the value of the stock or security. Ten rupees

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45. PARTITION- Instrument of as defined by section 2 (15).	The same duty as a BOTTOMRY BOND (No. 16) for the amount of the value of the separated share or shares of the property. N.B.—The largest share remaining after the property is petitioned (or if there two or more shares of equal value and not smaller than any of the other shares, then one of such equal shares) shall be deemed to be that from which the other shares are separated. Provided always that— (*a*) When an instrument of partition containing an agreement to divide property in severality is executed and a partition is effected in pursuance of such agreement the duty chargeable upon the instrument effecting such a partition shall be reduced by the amount of duty paid in respect of the first instrument but shall not be less than three rupees. (*b*) Where land is held on Revenue Settlement for a period not exceeding thirty years and paying the full assessment, the value for the purpose of duty shall be calculated at not more than five times the annual revenue. (*c*) Where a final order for effecting a partition passed by any Revenue authority or any Civil Court, or an award by an arbitrator directing a partition, is stamped with the stamp required for an instrument of partition and an instrument of partition in pursuance of such order or award is subsequently executed, the duty on such instrument shall not exceed three rupees.
46. PARTNERSHIP— A- Instrument of — (c) Where the capital of the partnership does not exceed Rs. 500; (d) in any other case B—Dissolution of —	 Twenty rupees One hundred rupees

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PAWN OR PLEDGE—See AGREEMENT RELATING TO DEPOSIT OF TITLE-DEEDS PAWN OR PLEDGE (No.6).	Fifty rupees
48. POWER-OF-ATTORNEY as defined by section 2(21) not being a proxy—	
(a) when executed for this sole purpose of procuring the registration of one or more documents in relation to a single transaction or for admitting execution of one or more such documents;	Fifty rupees
(b) when required in suits or proceedings under the Presidency Small Cause Courts Act, 1872;	Five rupees
(c) when authorizing one person or more to act in a single transaction other than the case mentioned in clause (a);	Ten rupees
(d) when authorizing not more than five persons to act jointly and severally in more than one transaction or generally;	Fifty rupees
(e) when authorizing more than five but not more than ten persons to act jointly and severally in more than one transaction or generally;	One hundred rupees
(f) when given for consideration and authorizing the attorney to sell any immovable property;	The same duty as a CONVEYACE (No.23) for the amount of consideration.
(g) In any other case	Ten rupees for each person authorized N.B.—The term "Registration" includes every operation incidental to registration under the Indian Registration Act, 1908 (16 of 1908).
Explanation— For the purposes of this article more persons than one when belonging to the same firm shall be deemed to be one persons.	
* * *	* *
50. PROTEST OF BILL OR NOTE that is to say any declaration in writing made by a Notary Public, or other person lawfully acting as such, attesting the dishonor of a Bill of Exchange or Promissory Note.	Ten rupees
51. PROTEST BY THE MASTER OF A SHIP that is to say, any declaration of the particulars of the voyage drawn up by him with a view to the adjustment of losses or the calculation of averages, and every declaration in	

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writing made by him against the characters or the consignees for not loading or unloading the ship when such declaration is attested or certified by a Notary Public or other person lawfully acting as such. See also NOTE OF PROTEST BY THE MASTER OF A SHIP (No. 44).	
* * *	* * *
54. RECONVEYANCE OF MORTGAGED PROPERTY— (*a*) if the consideration for which the property was mortgaged does not exceed Rs. 1,000; (*b*) in any other case	The same duty as a CONVEYANCE (No. 23) for the amount of such consideration as set forth in there conveyance.
55. RELEASE, that is to say, instrument not being such a release as is provided for by section (23-A.), whereby a person renounces a claim upon another person or against any specified property— (*a*) if the amount or value of the claim does not exceed Rs. 1,000; (*b*) in any other case	Forty-two rupees The same duty as a BOTTOMRY BOND (No. 16) for such amount or value as set forth in the release. Twenty-one rupees
56. RESPONDENTIA BOND that is to say, any instrument securing a loan on the cargo laden or up to be laden on board a ship and making repayment contingent on the arrival of the cargo at the port of destination.	The same duty as a BOTTOMRY BOND (No. 16) for the amount of the loan secured.
REVOCATION OF ANY TRUST OR SETTLEMENT- See SETTLEMENT (No. 58) TRUST (No. 64)	The same duty as a BOTTOMRY BOND (No. 16) for the amount secured.
57. SECURITY BOND OR MORTGAGE DEED executed by way of security for the due execution of an office, or to account for money or other property received by virtue thereof, or executed by a surety to secure the due performance of a contract— (*a*) When the amount secured does not exceed Rs. 1,000. (b) In any other case Exemption Bond or other instrument, when executed— (*a*) By headmen nominated under rules	.. Twenty-one rupees

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framed in accordance with the Bengal Irrigation Act, 1876, (3 of 1876) section 99 for the due performance of their duties under that Act. (*b*) By any person for the purpose of guaranteeing that the local income derived from private subscriptions to a charitable dispensary or hospital or any other subject or public utility shall not be less than a specified sum *per mensem;* (*c*) By persons taking advances under the Land Improvement Loans Act, 1883, or the Agriculturists Loans Act, 1884, (12 of 1884.) or by their sureties, as security for the repayment of such advances; (*d*) By officers of the Government or their sureties to secure the due execution of an office, or the due accounting for money or other property received by virtue thereof.	
58. SETTLEEMNT—(A) INSTRUMENT OF (including a deed of dower).	The same duty as a BOTTORMY BOND (No. 16) for a sum equal to the amount or value of the property settled as set forth in such settlement: Provided that, where an agreement to settle is stamped with the stamp required for an instrument of settlement and an instrument of settlement in pursuance of such agreement is subsequently executed, the duty on such instrument shall not exceed three rupees.
Exemption Deed of dower executed on the occasion of a marriage between Mohammadans.	
(B) REVOCATION OF	The same duty as a BOTTOMRY BOND (No. 16) for a sum equal to the amount or value of the property concerned, as set forth in the instrument of Revocation, but not exceeding forty-two rupees.
See ALSO TRUST (No.64) **59. SHARE WARRANTS** to bearer issued under the Companies Act, 1956 (1 of 1956).	
Exemptions	One and a half times the duty payable on a CONVEYANCE (No. 23) for a consideration equal to the nominal amount

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Share warrant when issued by a company in pursuance of the Companies Act, 1956, section 114, to have effect only upon payment, as composition for that duty, to the Collector of stamp-revenue, of— (*a*) One and a half percentum of the whole subscribed capital of the company; or (*b*) If any company which has paid the said duty or composition in full, subsequently issues an addition to its subscribed capital, one and a half percentum of the additional capital so issued.	of the shares specified in the warrant.
61. SURRENDER OF LEASE (*a*) when the duty with which the lease is chargeable does not exceed seven rupees and fifty paise;	
(*b*) in any other case	The duty with which such lease is chargeable.
Exceptions Surrender of lease, when such lease is exempted from duty.	Twenty-one rupees
62. TRANSFER (Whether with or without consideration)—	
* * *	
(*c*) of any interest secured by a bond of mortgage deed— (i) if the duty on such bond or mortgage deed does not exceed seven rupees and fifty paise;	
(ii) in any other case	The duty with which such bond or mortgage deed is chargeable.
(*d*) of any trust-property under the Administrator-General's Act, 1913, section 25;	Twenty-one rupees
(e) of any trust-property without consideration from one trustee to another trustee or from a trustee to a beneficiary.	Forty-two rupees
Exemption Transfer by endorsement— (*b*) of a delivery order, warrant for goods or other merchantile Document of title to goods;	Eighteen rupees and seventy-five paise or such smaller amount as may be chargeable under clause (*c*) of the article.
* * *	

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(d) of securities of the Central Government. See also section 8— **63. TRANSFER OR LEASE** by way assignment and not by way of under lease. *Exemption* Transfer of any lease exempt from duty— **64. TRUST-A-DECLARATION OF** –of concerning any property when made by any writing not being a will. **B-REVOCATION OF**—of or concerning any property when made by an instrument other than a will. See also SETTLEMENT (No.8) **65. WARRANT FOR GOODS** that is to say, any instrument evidencing the title of any person therein named or his assigns, of the holder thereof, to the property in any goods lying in or upon any signed dock, warehouse or wharf, such instrument being or certified by or on behalf of the person in whose custody such goods may be.	* * * The same duty as a CONVEYANCE (No.23) for a consideration equal to the amount of the consideration for the transfer. The same duty as BOTTOMRY BOND (No. 16) for a sum equal to the amount or value of the property concerned, as set forth in the instrument, but not exceeding sixty-two rupees. The same duty as a BOTTOMRY BOND (No. 16) for a sum equal to the amount or value of the property concerned, as set forth in the instrument, but not exceeding forty-two rupees. Five Rupees

[*Vide* Orissa Act 6 of 1986, s. 2]

Orissa

Amendment of Schedule I-A.--In Schedule I-A of the Principal Act,—

(i) in article 12, under column (1) for clause (a), the following clause shall be substituted, namely:—

"(a) where the amount or the market value of the property to which the award relates, as set forth in such award does not exceed Rs. 1,000.00";

(ii) In article 23 under column (1) for the words, letters and figures "where the amount or value of the consideration for such conveyance as set forth therein does not exceed Rs. 50.00", the words, letters and figures "where the amount or the value of the consideration for such conveyance as set forth therein or the market value of the properly does not exceed Rs. 50.00," shall be substituted;

(iii) for the existing entry appearing in column (2) against article 31 the following entry shall be substituted, namely:—

"The same duty as CONVEYANCE (No. 23) for a consideration as set forth in such instrument or the market value of the property, whichever is higher.";

(iv) for the existing entry appearing in column (2) against article 33, the following entry shall be substituted, namely:—

"The same duty as a CONVEYANCE (No.23) for a consideration as set forth in such instrument or the market value of the property, whichever is higher.";

(v) in the existing entry appearing under column (2) against article 45, for the words " amount of the value" the words " amount of the market value" shall be substituted;

(vi) for article 58, the following shall be substituted in their respective columns, namely:—

"58 (A) SETTLEMENT-(A) INSTRUMENT OF	The same duty as a (including a deed of power).
	BOTTOMRY BOND (No. 16) for the sum equal to the amount or the market value of the property settled whichever is higher as set forth in such settlement.
	Provided that, where an agreement to settle is stamped with the stamp required for an instrument of settlement and an instrument of settlement in pursuance of such agreement is subsequently executed, the duty on such instrument shall not exceed three rupees.
(B) REVOCATION OF …	The same duty as a BOTTOMRY BOND (No. 16) for a sum equal to the amount or the market value of the properly concerned, as set forth in the instrument of Revocation, but not exceeding forty-two rupees.";

(vii) in article 64, in the existing entries under column (2) appearing against article 64 for the words " value of the property concerned wherever they occur the words "the market value of the properly concerned" shall be substituted.

[*Vide* Orissa Act 7 of 1987, s. 10]

Tripura

Amendment of the Schedule.—For items No. 3, 4, 5(e), 6(2)(a), 6(2)(b), 15, 17, 23, 24, 25, 29, 40(c), 46A(b), B, 48(a) (c) (d) (e) (g), 54(b), 55(b) and 57(b) of Schedules—1 of the Act, the following shall be substituted namely:—

Description of instrument	Proper Stamp Duty
3. ADOPTION—DEED, that is to say any instrument (other than a will), recording an adoption or conferring or purporting to confer an authority to adopt.	Fifty Rupees.
4. AFFIDAVIT, including an affirmation or declaration in the case of persons by law allowed to affirm or declare instead of swearing.	Five Rupees.

EXEMPTIONS	
(*a*) Affidavit or declaration in writing when made as a condition of enlistment under the Army Act 1950, Act, XLVI of 1950.	
(*b*) for the immediate purpose of being filed or used in any Court or before the officer of any Court ; or	
(*c*) for the sole purpose of enabling any person to receive any pension or charitable allowance.	
5. AGREEMENT OR MEMORANDUM OF AN AGREEMENT: —	
(*e*) if not otherwise provided for	Ten Rupees
6. AGREEMENT RELATING TO DEPOSIT OR TITLE DEEDS PAWN OR PLEDGE that is to say any instrument evidencing an agreement relating to:—	
(*2*) the pawn or pledge or movable property, where such deposit, pawn or pledge has been made by way of security for the repayment of money advanced or to be advanced by way of loan or an existing or future debt.	
(*a*) if such loan or debt is repayable on demand or more than three months from date of the instrument evidencing the agreement—	
If the amount of loan does not exceed Rs. 500/-;	Five Rupees
If it exceeds Rs. 500/- and does not exceed Rs. 1000/-;	Ten Rupees
And for every Rs. 1000/- or part thereof in excess of Rs. 1000/-.	Ten Rupees.
(*b*) If such loan or debt is repayable not more than three months from the date of such instrument.	Half the duty payable under Sub-clause (*a*) subject to minimum of five Rupess.
15. BOND (as defined by section 2(5), not being a debenture (No. 27), and not being otherwise provided for by this Act, or by the Court fees Act, 1870. (Act VII of 1870). Where the amount or value secured does not exceed Rs. 400/-;	Five Rupees
Where it exceeds Rs. 400/- and does not exceed Rs. 600/-;	Ten Rupees.
Where it exceeds Rs. 600/- and does not exceed Rs. 800/-;	Fifteen Rupees.
Where it exceeds Rs. 800/- and does not exceed Rs. 1000/-;	Twenty Rupees.

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and for every Rs. 500/- or part thereof in excess of Rs. 1000/-;	Fifteen Rupees.
See Administration Bond (No. 2); Bottomry Bond (No. 16), Customs Bond (No. 26), Indemnity Bond (No. 34), Respondentia Bond (No. 56), Security Bond (No. 57).	
EXEMPTIONS	
Bond, when executed by	
(*a*) Headmen nominated under rules framed in accordance with the Bengal Irrigation Act, 1876, (Act III of 1876), section 99, for due performance of their duties under that Act.	
(*b*) any person for the purpose of quaranting that the local income derived from private subscriptions to a Charitable dispensary, or hospital or any other object of public utility shall not be less than a specified sum per mensem.	
7. Cancellation—Instrument of (Including any instrument by which any instrument previously executed is cancelled), if attested and not otherwise provided for.	Thirty Rupees.
See also Release (No. 55), Revocation of Settlement (No. 58—B), Surrender of lease (No. 61), Revocation of Trust (No.64—B).	
23. Conveyance (as defined by Section 2 (l0), not being a Transfer charged or exempted under No, 62—	
Where the amount or value of the consideration for such conveyance as set forth therein does not exceed Rs. 200/- ;	Ten Rupees.
Where it exceeds Rs. 200/- but does not exceed Rs. 300/-;	Fifteen Rupees.
Where it exceeds Rs. 300/- but does not exceed Rs. 400/-;	Twenty Rupees.
Where it exceeds Rs. 400/- but does not exceed Rs. 500/-;	Twenty five Rupees.
Where it exceeds Rs. 500/- but does not Exceed Rs. 600/-;	Thirty Rupees.
Where it exceeds Rs. 700/- but does not exceed Rs. 800/-;	Forty Rupees.
Where it exceeds Rs. 800/- but does not exceed Rs. 900/-;	Forty five Rupees.
Where it exceeds Rs. 900/- but does not exceed Rs. 1000/-;	Fifty Rupees.
and for every Rs. 500/- or part thereof in excess of Rs. 1000/-	Twenty five Rupees.
EXEMPTION	
Assignment of Copy Right Act, 1957, Act	

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XIV of 1957.	
CO-PARTNERSHIP DEED—See partnership (No. 46)	
24. COPY OR EXTRACT	
Certified to be a true copy or extract by or by order of any public officer and not chargeable under the law for the time being in force relating to Court-fees—	
(*i*) if the original was not chargeable with duty, or if the duty with which it was chargeable does not exceed one rupees;	Five Rupees.
(*ii*) in any other case not falling within the provisions of Section 6 A;	Ten Rupees.
EXEMPTIONS	
(*a*) Copy of any paper which a public officer is expressly required by law to make or furnish for record in any public office or for any public purpose.	
(*b*) Copy of, or extract from, any register relating to births, baptisms, naming dedications, marriages, divorces, deaths or burials.	
25. COUNTERPART OR DUPLICATE of any instrument, chargeable with duty and in respect of which the proper duty has been paid.	
(*a*) if the duty with which the original instrument is chargeable does not exceed Five Rupees;	Five Rupees.
(*b*) in any other case not falling within the provisions of Section 6A.	Ten Rupees.
EXEMPTION	
Counterpart of any lease granted to a cultivator when such lease is exempted from duty.	
29. DIVORCE—Instrument of, that is to say, any instrument by which any person effects the dissolution of his marriage.	Twenty Rupees.
DOWER—Instrument of—See settlement (No. 58) DUPLICATE—See Counterpart (No. 25).	
40. MORTGAGE—DEED, not being an Agreement relating to Deposit of Title deeds, pawn or pledge (No. 6) Bottomry Bond (No. 16) Mortgage of a Crop (No. 41), Respondentia Bond (No. 56) or Security Bond (No. 57),	
(C) When a Collateral or auxiliary or additional or substituted security or by way of	Five Rupees.

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further assurance for the above mentioned purpose where the principal or primary security is duly stamped for every primary	
and for every Rs. 1000/- or part thereof secured in excess of Rs. 1000/-;	Five Rupees.
46. PARTNERSHIP—	
A)—Instrument of	
(b)—in any other case	One hundred Rupees.
B)—Dissolution of	Fifty Rupees;
48. POWER OF ATTORNEY—	
[as defined by section 2(21)—not being a proxy.	
(*a*) When executed for the sale purpose of procuring the registration of one or more documents in relation to a single transaction or for admitting execution of one or more such documents;	Five Rupees.
(*c*) When authorising one person or more to act in a single transaction other than the case mentioned in Clause (*a*);	Fifteen Rupees.
(*d*) When authorising one person not or more to act in a single transaction or generally;	Fifty Rupees.
(*e*) When authorising more than five but not more than ten persons to act jointly and severally in more than one transaction or generally;	One hundred Rupees.
(g) in any other' case	Fifteen Rupees for each person authorized.
54. RECONVEYANCE OF MORTGAGED PROPERTY—	
(*b*) in any other case	Fifty Rupees.
55. RELEASE,—that is to say, any instrument (not being such a release as is provided for by Section 23—A), where by a person renounces a claim upon another person or against any specified property—	
(*b*) in any other case.	Thirty Rupees.
57. Security Bond or mortgaged—deed, executed by way of security for the due execution of an office or to account for money or other property received by virtue thereof, or executed by a surety to secure the due performance of the contract—	
(*b*) in any other case.	Thirty Rupees,

[*Vide* Tripura Act 1 of 1992, s. 3]

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Amendment of the Schedule.—For item No. 23 of Schedule— I of the principal Act as inserted by the Union Territories Taxation Laws (Amendment) Act, 1971 (73 of 1971), the following shall be substituted, namely:—

23. CONVEYANCE (as defined by section 2(10), not being a Transfer charged or exempted under No. 62—	
where the amount or value of the. consideration for such conveyance as set forth therein does not exceed Rs.50 ;	Two rupees.
where it exceeds Rs. 50 but does not exceed Rs. 100;	Four rupees.
where it exceeds Rs, 100 but does not exceed Rs. 200;	Eight rupees.
where it exceeds Rs. 200 but does not exceed Rs. 300;	Twelve rupees.
where it exceeds Rs. 300 but does not exceed Rs. 400;	Sixteen rupees.
where it exceeds Rs. 400 but does not exceed Rs. 500;	Twenty rupees.
where it exceeds Rs. 500 but does not exceed Rs. 600;	Twenty four rupees.
where it exceeds Rs. 600 but does not exceed Rs. 700;	Twenty eight rupees.
where it exceeds Rs. 700 but does not exceed Rs. 800;	Thirty two rupees.
where it exceeds Rs. 800 but does not exceed Rs. 900;	Thirty six rupees.
where it exceeds Rs. 900 but does not exceed Rs. 1,000;	Forty rupees.
and for every Rs. 500 or part thereof in excess of Rs. 1,000;	Twenty rupees.
EXEMPTION	
Assignment of copyright under the Copy Right Act, 1957 (Act XIV of 1957).	
CO-PARTNERSHIP DEED— See Partnership (No. 46)."	

[*Vide* Tripura Act No. 14 of 1979, s. 3]

Manipur

Amendment of Schedule I- in Schedule 1 of the Indian Stamp Act, 1899 (No. 2 of 1899), for the instruments described in Article 23, the following shall be substituted, namely:--

"23. CONCEYANCE [as defined by section 2(10)], not being a Transfer charged or exempted under No. 62-	Three rupees for every Rs. 100 or part thereof of the consideration for such conveyance or, as the case may be, the market value of the property which is the subject matter or such conveyance whichever is greater.".

[*Vide* Manipur Act 6 of 2011, s. 2]

For the Schedule I appended to the Principal Act, the following Schedule shall be substituted, namely:--

SCHEDULE I

STAMP DUTY ON CERTAN INSTRUMENTS

(*See* section 3 and first Proviso)

Description of instrument	Proper stamp-duty.
1	2
1. ***	
2. ADMINISTRATION BOND including a bond given under section 6 of the Government Savings Banks Act, 1873 (Act v of 1873) or section 291 or section 375 or section 316 of the Indian Seccession Act, 1925 (Act XXXIX of 1925) (a) Where the amount does not exceed Rs. 1, 000- (b) in any other case.	The same duty as a bond (No. 15) for such amount Eighteen rupees.
3. ADOPTION DEED, that is to say any instrument (other than a will), recording an adoption, or conferring or purporting to confer an authority to adopt.	Thirty six rupees.
4. AFFIDAVIT, including an affirmation or declaration in the case of persons by law allowed to affirm or declare instead of swearing.	Three rupees sixty paise.
EXEMPTION	
5. Affidavit or declaration in writing when made.	
(a) As a condition or enlistment under the Indian Army Act, 1950 (Act XLVI of 1950)	
(b) for the immediate purpose of being filed or used in any court or before the officer of any court; or	
(c) for the sole purpose of enabling any person to receive any pension or charitable allowance.	
5. ***	
6. AGREEMENT RELATING TO DEPOSIT OR TITLE DEEDS PAWN OR PLEDGE, that is to say, any instrument evidencing an agreement relating to – (1) the deposit of title deeds or instruments constituting or being evidence of the title to any property whatever (other than a marketable	

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security), or (2) the pawn or pledge movable property, where such deposit pawn or pledge has been made by way of security for the repayment of money, advanced or to be advanced by way of loan or an existing or future debt— (a) if such loan or debt is repayable on demand or more than three months from the date of the date of the instrument evidencing the agreement— if the amount of loan does not exceed Rs. 5000/- if it exceeds Rs. 5000/- and does not exceed Rs. 1,000/- (b) if such loan or debt is repayable not more than three months from the date of such instrument.	Three rupees. Six rupees. Six rupees. Half the duty payable under sub-clause (a).
EXEMPTION	
Inspection of pawn or pleadge of goods if unattested.	
7. APPOINTMENT IN EXECUTION A POWER, whether or trustee or of property movable or immovable, where made by way writing not being a will— (a) where the value of the property does not exceed Rs. 1, 000/- (b) in any other case.	Thirty rupees. Fifty-four rupees.
8. APPRAISEMENT OR VALUATION mode otherwise than under an order of the court in the course of a suit— (a) where the amount does not exceed Rs. 1, 000. (b) in any other case.	The same duty as a bond (No. 15) for such amount. Eighteen rupees.
EXEMPTIONS	
(a) Appraisement or valuation made for the information of one party, only and not being in any manner obligatory between parties either by agreement or operation of law.	
(b) Appraisement of crops for the purpose of ascertaining or operation of law.	
9. APPRENTICESHIP-DEED, including every writing relating to the service or tuition of any apprentice, clerk or servant placed with any master to taken any profession, trade or employment.	

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EXEPTION	
Instrument of apprenticeship executed by a Magistrate under the Apprentices Act, 1961 (Act LII of 1961) or by which a person is apprenticed by, or at the charge of any public charity.	
10. * * *	
11. ASSIGNMENT—See Conveyance (No. 23) Transfer (No. 62) and Transfer of Lease (No. 63), as the case may be.	
ATTORNEY—See Power of Attorney (No. 48).	
AUTHORITY TO ADOPT—See Adoption Deed (No. 3).	
12. AWARD, that is to say, any decision in writing by an arbitrator or umpire not being an award directing a partition, on a reference made otherwise than by an order of the court in the course of a suit.	The same duty as a bound (No. 15) for the amount or value of the property to which the award relates a set forth in such award subject to a maximum of ninety rupees.
13. BILL OF EXCHANGE (as defined by S. 2(2) not being a bond, Bank Note or currency notes:-- 3(b) where payable otherwise than on demand:-- (i) where payable not more than three months after date or sight— if the amount of the bill or note does not exceed Rs. 500/-- if it exceeds Rs. 500/- but does not exceed Rs. but does not exceed Rs. 1, 000/- and for every additional Rs. 1, 000/-or part thereof in excess of Rs. 1, 000/- (ii) where the payable more than three months but not more than six months after date or sight— If the amount of bill or note does not exceeds Rs. 500/- If it exceeds Rs. 500/- but does exceed Rs. 1, 000/- And for every additional Rs. 1,000/- or part thereof in excess of Rs. 1, 000/- (iii) Where payable more than six months but not more than nine months after date sight— IF the amount of the bill or note does not exceed Rs. 500/- If it exceeds Rs. 500/- but does not exceed Rs. 1, 000/	One rupees and fifty paise. Three rupees. Three rupees. Three rupees. Six rupees. Six rupees. Four rupees fifty paise. Nine rupees. Nine rupees. Six rupees. Twelve rupees. Twelve rupees. Twelve rupees. Twentyfour rupees. Twentyfour rupees.

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And for every additional Rs. 1, 000/- or part thereof in excess of Rs. 1, 000/- (iv) Where payable more than nine months but not more than one year after date sight— If the amount of the bill or note does not exceed Rs. 500/- If it exceeds Rs. 500/- but does not exceed Rs. 1, 000/- And for every additional Rs. 1,000/-Or part thereof in excess of Rs. 1,000/- (c) Where payable at more than one year after date or sight— If the amount of the bill or note does not exceed Rs. 500/- If it exceeds Rs. 500/- but does not exceed Rs. 1, 000/- And for every additional Rs. 1,000/- or part thereof in excess of Rs. 1,000/-	
14. BILL OF LADING (including a through bill of landing) (a) Bill of lading when the goods therein describing are received at a place within the limits of any port as defined under the Indian Ports Act, 1908 (15 of 1908) and are to be delivered at another place within the limits of the same port. (b) Bill of lading when executed out of India and relating to property to be delivered in India.	N.B. –If a bill a lading is drawn in part. The proper stamp therefor must be borne by each one of the set.
15. BOND (as defined by section 2(5) not being a DEBENTURE (No. 27) and not being otherwise provided for by this Act, or by the Court fees act, 1870 (VII of 1870). Where the amount or value secure does not exceed Rs. 1,00. Where it exceeds Rs. 10/- and does not exceed Rs. 50/- Where it exceeds Rs. 50/- and does not exceed Rs. 100/- Where it exceeds Rs. 100/- and does not exceed Rs. 200/- Where it exceeds Rs. 200/- and does not exceed Rs. 300/- Where it exceeds Rs. 300/- and does not exceed Rs.	Thirty rupees. Sixty rupees. One rupee twenty paise. Three rupees. Four rupees fifty paise. Six rupees. Eight rupees ten paise. Ten rupees eighty paise. Twelve rupees sixty paise.

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400/- Where it exceeds Rs. 400/- and does not exceed Rs. 500/- Where it exceeds Rs. 500/- and does not exceed Rs. 600/- Where it exceeds Rs. 600/- and does not exceed Rs. 700/- Where it exceeds Rs. 700/- and does not exceed Rs. 800/- Where it exceeds Rs. 800/- and does not exceed Rs. 900/- Where it exceeds Rs. 800/- and does not exceed Rs. 1,000/- and for every Rs. 500/- does not and/ or part thereof in excess of Rs. 1, 000/- Bottonmry Bond (No. 16) Custom Bond (No. 26) Indemnity Bond (No. 56) Security Bond (No. 57).	Forteen rupees sixty paise. Sixteen rupees twenty paise. Eighteen rupees. Nine rupees.
EXEMPTIONS	
Bond, when executed— (a) heasment nominated under rules framed in accordance with the Bengal Irrigation Act, 1876, section 99, for the due performance of their duties under that Act ; (b) any person for the purpose of guatanteeing that the local income derived from private subscriptions to a charitable dispensary or hospital or any other object or public utility shall to be less than a specified sum per mensem.	
16. ***	***
17. CANCELLATION—Instrument of (including any instrument by which any instrument previously executed is cancelled), if attested and not otherwise provided of.	Eighteen rupees.
18. CERTIFICATION OF SALE (in respect of each property put as a separate lot and sold), granted to the purchaser of any property sold by public auction by a Civil or Revenue Court, or Collector or other Revenue Officer— (a) where the purchase-money does not exceed Rs. 10/- (b) where the purchase-money exceeds Rs. 10/- but	Sixty paise. Ninety paise. The same duty as a conveyance (No. 23) for a

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does not exceed Rs. 25/- (c) in any other case./	consideration equal to the amount of the purchase money only.
19. ***	***
20. ***	***
21. ***	***
22. COMPOSITION DEEDS—that is to say, any instrument executed by a debenture, whereby the conveys his property for the benefit of his creditors, or whereby payment of a composition or dividend on their debts is secured to the creditors, or whereby provision is made for the continuance of the debtors business, under the supervision of inspectors or under letters of licence for the benefit of his creditors.	
23. CONVEYANCE (as defined by section 2(10) not being a Transfer charged or exempted under No. 62 Where the amount or value of the consideration for such conveyance as set forth therein does not exceed Rs. 50/- Where it exceeds Rs. 50/- but does not exceed Rs. 100/- Where it exceeds Rs. 100/- but does not exceed Rs. 200/- Where it exceeds Rs. 200/- but does not exceed Rs. 300/- Where it exceeds Rs. 400/- but does not exceed Rs. 500/- Where it exceeds Rs. 500/- but does not exceed Rs. 600/- Where it exceeds Rs. 600/- but does not exceed Rs. 700/- Where it exceeds Rs. 700/- but does not exceed Rs. 800/- Where it exceeds Rs. 800/- but does not exceed Rs. 900/- And for every Rs. 500 or part thereof in excess of Rs. 1, 000.	One rupee and thirty eight paise. Two rupees seventy paise. Five rupees forty paise. Eight rupees and ten paise. Ten rupees and eighty paise. Thirteen rupees and fifty paise. Sixteen rupees and twenty paise. Eighteen rupees and ninety paise. Twenty one rupees and sixty paise. Twentyfour rupees and thirty paise. Twentyseven rupees. Thirteen rupees and fifty paise.
EXEMPTION	
Assignment of copy right under the copy Right Act, 1957 (Act XVI of 1957)	

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CO-PARTNERSHIP DEED—See partnership No. 46	
24. COPY OF EXTRACT, certified to be a true copy or extract y or order of any public Officer and not chargeable under the law for the time being in force relating to court fees: (i) if the original was not chargeable with duty, or if the duty with which it was chargeable does not exceed one rupees. (ii) in any other case not falling within the provisions of section 6A.	One rupees eighty paise. Three rupees and sixty paise.
EXEMPTIONS	
(a) Copy of any paper which a public officer is expressly required by law to make or furnish for record in any public officer or for any public purpose.	
(b) Copy of, or extract from any register relating to births, baptism, namings, dedicatings, marriages, divorces, deaths, or burials.	
25. COUNTERPART OR DUPLICATE OF ANY INSTRUMENT CHARGEABLE WITH duty and in respect of which the proper duty has been paid— (a) if the duty with which the original instruments is chargeable does not exceed two rupees. (b) in any other case not falling within the provisions of section 6A.	The same duty as is payable on the original. Three rupees an sixty paise.
EXEMPTIONS	
Counterpart of any lease granted to a cultivator, when such lease is exempted from duty.	
26. CUSTOME BOND--	
(a) where the amount does not exceed Rs. 1, 000/-	The same duty as a Bond (No. 15) for such amount
(b) in any other case.	Twenty-four rupees.
27. DEBENTURE whether a mortage debenture or note, being a make table security transferable— (a) by the endorsement or by a separate instrument of transfer. Where the amount or by a separate not exceed Rs. 10 Where tit exceeds Rs. 10 and does not exceed Rs. 50. Ditto 50 ditto 100	Twenty five paise.

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Ditto 100 ditto 200 Ditto 200 ditto 300 Ditto 300 ditto 400 Ditto 400 ditto 500 Ditto 500 ditto 600 Ditto 600 ditto 700 Ditto 700 ditto 800 Ditto 800 ditto 900 Ditto 900 ditto 1,000 And for every 500 or part thereof in excess of Rs. 1, 000.	Fifty paise. Ninety paise. Ninety paise. One rupee eighty paise. Two rupees seventy paise. Three rupees sixty paise. Four rupees fifty paise. Six rupees thirty paise. Seven rupees twenty pasie. Eight rupees ten paise. Nine rupees. Four rupees fifty paise.
(b) by delivery	
Where the amount or value of the consideration for such debenture as set forth therein does not exceed Rs. 50.	Ninety paise.
Where it exceeds Rs. 50 but does not exceed Rs. 100 Ditto100 ditto 200. Ditto 200 ditto 300 Ditto 300 ditto 400 Ditto 400 ditto 500 Ditto 500 ditto 600 Ditto 600 ditto 700 Ditto 700 ditto 800 Ditto 800 ditto 900 Ditto 900 ditto1000 And for every Rs. 500 or part thereof in excess of Rs. 1000/- Explanation—The term 'Debenture' includes any interest coupons attached thereto but the amount of such coupons shall not be included in estimating the duty.	One rupees eighty paise. Three rupees sixty paise. Five rupees forty paise. Seven rupees twenty paise. Nine rupees. Ten rupees eighty paise. Twelve rupees sixty paise. Fourteen rupees forty paise Sixteen rupees twenty paise. Eighteen rupees. Nine rupees.
EXEMPTIONS	
A debenture issued by an incorporated company or other body corporate in terms of a registered mortgaged-deed, terms of a registered mortgaged-	

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deed, duly stamped in respect of the full amount of debenture to be issued thereunder whereby the company or body borrowing makes over, in whole or in part, their property to trustees for the benefit of the debenture holders; Provided that the debenture so issued are expressed to be issued in terms of the said mortgage-deed.	
DECLARATION OR ANY TRUST— See Trust (No. 64).	
DUBLICATE—See Counterpart (No. 25).	
28. DELIVERY ORDER IN RESPECT OF GOODS, that is say, any instrument entitling any person therein named, or his assigns or the holder thereof, to the delivery of any goods, lying in any docks or ports or in any warehouse in which goods are stored or deposited on rent of hire, or upon wharf, such instrument being signed by or on behalf of the owner of such goods upon the state or transfer of such goods upon the sal or transfer the property therein, when such goods exceed in value twenty rupees. DEPOSIT OF TITLE-DEEDS— See agreement relating to Deposit of Title-deeds, pown or pledge (No. 6)	Twenty five paise.
29. DIVORCE-Instrument of, that is to say, any instrument by which any person effects the dissolution of his marriage. DOWER—Instrument of, See Settlement (No. 58) DUBLICATE-See counterpart (No. 25).	
30. ***	***
31. EXCHANCE OF PROPERTY—Instrument of.	The same duty [as a conveyance (No. 23) for consideration equal of the value of the property of . greater value as set forth in such instrument.
EXTRACT—See copy (No. 24).	
32. FURTHER CHARGE-Instrument of, that is to say, any instrument imposing a further charge on mortgage property.	
(a) when the original mortgage is one of the description referred to in clause (a) of Article No. 40 (that is with possession).	The same duty [as a conveyance (No. 23) for consideration equal of the value of the property of . greater value as set forth in such instrument.
(b) when such mortgage is one of the description referred to in clause (b) of Article No. 40 (that is without possession).	

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(i) if at the time of execution of the instrument of further charge possession of the property is given or agreed to be given under such instrument;	The same duty as a conveyance (No. 23) for a consideration equal to the total amount of the charge including the original mortgaged and further charge already made the duty.
(ii) if possession if not so given.	The same duty as a Bond (No. 15) for the amount of the further charge secured by such instrument.
33. GIFT—Instrument of not being a settlement (No. 58) or will or Transfer (No. 62)	The same duty as a conveyance (No. 23) for a consideration equal to the value of the property as set forth in such instrument.
HIRIING AGREEMENT OF AGREEMENT for service, see Agreement (No. 5) INDEMNITY BOND.	The same duty as a security Bond (No. 57) for the same amount.
INSPECTORSHIP DEED—See composition Deed (No. 32).	
35. LEASE, Including as under lease or sub-lease and duty agreement to let sub-let(a) whereby such lease the rent is fixed and no premium is paid or delivered.	
(i) where the lease purports to be for a term of less than one year.	The same duty as a Bond (No. 15) for the whole amount payable or deliverable under such lease.
(ii) where the lease purports to be for a term of not less than one year but not more than five years.	The same duty as a Bond (No. 15) for the amount or value of the average annual rent reserved.
(iii) where the lease purports to be for a term exceeding five years and not exceeding ten years.	The same duty as a conveyance (No. 23) for a consideration equal to the amount or value of the average annual rent reserved.
(iv) where the lease purports to be for a term exceeding ten years but not exceeding twenty years.	The same duty as a conveyance (No. 23) for a consideration equal twice the amount or value of the average annual rent reserved.
(v) where the lease purports to be for a term exceeding twenty years but not exceeding thirty years.	The same duty as a conveyance (No. 23) for a consideration equal to three times the amount or value of the average annual rent reserved.
(vi) where the lease purports to be for a term exceeding thirty years but not exceeding one hundred years.	The same duty as a conveyance (No. 23) for a consideration equal to four times the amount or value of the average annual rent reserved.
(vii) where the lease purports to be for a term exceeding one hundred years or in perpetuity;	The same duty as a conveyance (No. 23) for a consideration equal in the case of lease granted solely for agricultural purpose to one tenth and in any other case to one 6th of the whole amount of rents which would be paid or delivered in respect of the Ist fifty years of the lease.
(viii) where the lease does not purports to be for any definite term;	The same duty as a conveyance (No. 23) for a consideration equal to three times the amount or

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	value of the average annual rent which would be paid or delivered for the first tenth years if the lease continued so long.
(b) where the lease is granted for a fine or premium or for money advance and where no rent is reserved.	The same duty as a conveyance (No. 23) for a consideration equal to the amount or value of such fine or premium or advance as set forth in the lease.
(c) where the lease is granted for a fine or premium, or for money advanced in addition to rent reserved.	The same duty as a conveyance (No. 23) for a consideration equal to the amount or value of such fine or premium or advance as set forth in the lease, in addition to the duty which would have been payable on such lease; if no fine or premium or advance had been paid or delivered.
	Provided that, in any case when an agreement to lease is stamped with the ad-velorem stamp required for a lease and lease in pursuance of such agreement is subsequently executed the duty on such lease shall not exceed one rupee forty paise.
EXEMPTIONS	
Lease, executed in the case of a cultivator and for the purposes of cultivation (including a lease of trees for the production of food or drink) without the payment or delivery of any fine or premium when a definite term is expressed and such terms does not exceed one year or when the average annual rent reserved does not exceed one hundred rupees.	
In this exemption a lease for the purposes of cultivation shall include a lease of land for cultivation together with a homestead or tank.	
Explanation.—When a lease undertakes to pay any recurring charge such as Government revenue, the landlord's share of lease, or the owner's share of municipal rates or taxes which is by law recoverable from the lessor, the amount so agreed to be paid by lease shall be deemed to be part of the rent.	
36. ***	
37. LETTER OF CREDIT, that is to say any instrument by which one person authorizes another to give credit to person in whose favour it is drawn.	Twenty paise.
LETTER OF GUARANTEE (See agreement No. 5)	
38. LETTER OF LICENCE, that is to say, any agreement between a debtor and his creditors that the letter shall for a specified time, suspend their	Twenty four rupees.

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claims and allow the debtor to carry on business at his own discretion.	
39. * *	
40. MORTGAGE-DEED, not being an agreement relating to Deposit to Title-deeds, pawn or Pledge (No. 6) Bottormry Bond (No. 16) mortgage, Mortgage of a crop (No. 4) Rasdentia Bond (No. 56) or Security Bond (No. 57).	
(a) when possession of the property or any part of the property comprised in such deed is given by the mortgaged or agreed to be given.	The same duty on a convenyance (No. 23) for a consideration equal to the amount secured by such deed.
(b) when possession is not given or agreed as aforesaid:	The same duty as a Bond (No. 15) the amount secured by such deed.
Explanation.—A mortgager who gives to the mortgage a power of attonery to collect rents or a lease of the property mortgaged or part thereof is deemed to give possession within the meaning of this article.	
(c) when a collateral or auxiliary or additional or substituted security, or by way of further assurance for the above mentioned purpose where the principal or primary security is duly stamped for every sum secured not exceeding Rs. 1, 000/-	One rupee eighty paise.
And for every Rs. 1, 000 or part thereof secured in excess of Rs. 1, 000/-	
EXEMPTIONS	
(1) Instruments excuted by persons taking advance under the land improvement Loans Act, 1883 (Act XIX of 1883) or the Agriculrurists Loans Act, 1884 (Act XII) of 1884 or by their sureties as security for the repayment of such advances.	
(2) Letter of hypothecation accompanying a bill of exchange.	
41. MORTGAGE OF CROP including any instrument evidencing an agreement to secure the repayment of a loan made upon any mortgage of a crop, whether the crop is or is not in existence at the time of the mortgage.	
(a) when the loan is repayable not more than three months from the date of the instrument for every sum secured not exceeding Rs. 200/- For every Rs. 200/- or part thereof secured in excess of ;	Thirty paise. Thirty paise.

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(b) when the loan is repayable more than three months, but not more than eighteen months from the date instrument.	Fortyeight paise.
42. NOTARIAL ACT, that is to say, any Instrument endorsement, note attestation, certificate, or entry not being a PROTEST (no. 50) made or signed by a Notary Public in the execution of the duties of his office or by any other person lawfully acting as a Notary Public. See also protest of bill or Note (No. 50).	Three rupees and sixty paise.
43. *** ***	***
44. *** ***	***
45. PARTITION—Instrument of (as defined by section 2(15).	The same duty as a Bond (No. 15) for the amount of the value of the separated share for shares of the property.
N.B. The largest share remaining after the property is partitioned for if there are two or more shares of equal value and not smaller than any of the other shares, then one of such equal shares) shall be deemed to be that from which the other shares are separated. Provided always that---	
(a) When an instrument of partition containing an agreement to divide property in severally is executed and a partition is effected in pursuance of such agreement the duty chargeable upon the instrument effecting such partition shall be reduced by the amount of duty pain in respect of the first instrument but shall not be less than two rupees.	
(b) Where land is held on revenue settlement for a period not exceeding thirty years and paying the full assessment, the value for the purpose of duty shall be calculated at not more than five times the annual revenue.	
(c) Where a final order for effecting a partition passed by any Revenue authority or any Civil Court, or an award by an arbitrator directing a partition is stamped with the stamped required for an instrument of partition in pursuance of such order or award is subsequently executed, the duly such instrument shall not exceed two rupees.	
46. PARTNERSHIP	
A. (a) where the capital or the partnership does not exceed Rs. 1, 000/-	The same duty as a Bond (No. 15)

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(b) in any other case.	Fortyeight rupees.
B. DISSOLUTION of PAWN OR PLEADE—See Agreement relating to Deposit of title-deeds, Pawn or Pledge (No. 6)	Twentyfour fees.
47. POLICY OF INSURANE— A-SEA INSURANCE (See Section 7) if down singly.	If drawn in duplicate for each part.
(i) for or upon any vovage	
(ii) where the premium or consideration does not exceed the rate of one eight per centum of the amount insured by policy.	12 paise. Six Paise.
(iii) in any other case, in respect of every full sum of one thousand five hundred rupees and also any fractional part of one thousand five hundred rupees insured by the policy.	
(2) for time—	
(iii) in respect of every full sum of one thousand rupees and also any fractional part of one thousand rupees insured by the policy.	
Where the insurance shall be made for time not exceeding six months.	Eighteen paise. Twelve paise.
Where the insurance shall be made for any time not exceeding six months, and not exceeding twelve months.	Thirty paise. Eighteen paise.
B. (FIRE INSURANE AND OTHER CLASSES OF INSURANCE, NOT ELSEWHERE INCLUDING IN THE ARTICLE, COVERING GOODS, MERCHANDISE, PERSONAL EFFECTS, CROPS, AND OTHER PROPERTY AGAINST LOSS OR DAMAGE.	
(1) in respect of an original policy.	
(i) when the sum insured does not exceed Rs. 5,000/-	Sixty Paise.
(ii) in any other case.	One rupee twenty paise.
(2) In respect of each receipt for any payment of a premium on any renewal of an original policy.	One half of the duty payable in respect of the original policy in additional to the amount if any, chargeable, under No. 53.
ACCIDENT AND SICKNESS INSURANCE—	
(a) against railway accident, valid for a single journey only.	Twelve paise.
EXEMPTION	

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When issued to a passenger, travelling by the intermediate under the third class in any railway;	
(b) in any other case for the maximum amount which may become payable in the case of any single accident or sickness where such amount does not exceed Rs. 1,000/- and also where such amount exceeds Rs. 1, 000/- for every Rs. 1, 000 or part thereof.	Eighteen paise. Provided that, in case of policy of insurance against death by accident when the annual premium payable does not exceed Rs. 2.50 per Rs. 1000/- the duty on such instrument shall be twelve paise for every Rs. 1000/- or part thereof of the maximum amount which may become payable under it.
3. (CC-INSURANCE BY WAY OF INDEMNITY against ability to pay damages on account of accident's to workmen employed by or under the insurer or against liability to pay compensation under, the workmen's Compensation Act, 1923 (8 of 1923) for every Rs. 100/- or part thereof payable as premium).	
1. (D-LIFE INSURANCE OR GROUP INSURANE OR OTHER INSURANE NOT SPECIFICALLY PROVIDED FOR except such a REINSTRANCE as is described in Division of this article—	
(i) for every sum insured not exceeding Rs. 250/-	Eighteen paise. Twelve paise.
(ii) for every sum insured exceeding Rs. 250/- but not exceeding Rs. 500/-	Thirty paise. Eighteen paise.
(iii) for every sum insured exceeding Rs. 500/ but not exceeding 1, 000/ part there of in exceed of Rs. 1, 000/-	Forty-eight paise. Twenty four paise.
	N.B. if a policy of group insurance is renewed or otherwise modified where by the sum insured on which stamp. Duty has been paid, the proper stamp must be borne on the excess so incurred.
EXEMPTION	
Policies of life insurance granted by the Director General of Post Offices in accordance with rules for postal life insurance issued under authority of the Central Government.	
E-RE-INSURANCE BY AN INSURANCE COMPANY, which has granted a policy of the nature specified in Division A or Division B of this Article with another company by way of indemnity or guarantee against the payment on the original insurance of a certain part of the sum insured thereby.	One quarter of the duty payable in respect of the original insurance but not less than twelve paise or more than one rupee twenty-five paise. Provided that, if the total amount of duty payable is not a multiple of five paise, the total amount shall be rounded up to the next higher multiple of five paise.
GENERAL EXEMPTION	
Letter of cover or engagement to issue a policy of insurance.	

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Provided that, unless such letter or engagement bears the stamp prescribed by this Act for such policy, nothing shall be claimable thereunder, nor shall it be available for any purpose, except to compel the delivery of the policy therein mentioned.	
48. POWER OR ATTORNEY (as defined by section) 2(21) not being a proxy—	
(a) when executed for the sole purpose of procuring the registration of one or more documents in relating to a single transactions or for admitting executing of one or more such documents.	One rupee eight paise.
**** ****	
(c) when authorizing one person or more to act in single transactions other than the case mentioned in clause (a)	Three rupees sixty paise.
(d) when authorizing not more than five persons to act jointly and severally in more than one transaction or generally;	
(e) when authorizing more than five persons but more than ten persons to act jointly and ten persons to act jointly and severally in more than one transaction or generally;	Twenty four rupees.
(f) when given for consideration and authorizing the attorney to sell and immovable property;	The same duty as a conveyance (No. 23) for the amount of the consideration.
(g) in any other case.	(Three sixty paise) three rupees sixty paise for each person authorised.
Explanation.—for the purpose of this Articles more persons than one whom belonging to the firm shall be deemed to be one person	N.B. The term "Registration" included every operation incidental to registration under the Indian Registration Act, 1908 (Act XVI) of 1908.
49. PROMISSORY NOTE (as defined by section 2(2). (a) when payable on demand— (i) when the amount or value does not exceed Rs. 250/--; (ii) when the amount or value exceed Rs. 250/- but does not exceed Rs. 1, 000/- (iii) in any other case.	 Twelve paise. Eighteen paise. Thirty paise.
(b) when payable otherwise than on demand.	The same duty as a Bill of exchange (No. 13) for the same amount payable otherwise than on demand.

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50. *** ****	****
51. *** ***	****
52. *** ***	***
53. *** ***	***
54. RECONVEYANCE OF MORTGAGED PROPERTY (a) if the consideration for which the property was mortgaged does not exceed Rs. 1000/.	The same duty as a conveyance (No. 23) for the amount of such consideration as set forth in the reconveyance.
(b) in any other case.	Thirty six rupees.
55. RELEASE, that, is to say, any instrument not being such a release as is provided for bye section 23—A, whereby a person renounces a claim upon another person or against any specified property.	
(a) if the amount or value of the claim does not exceed Rs. 1000/-	The same duty as a Bond (No. 15) for such amount or value as set forth in release.
(b) in any other case.	Eighteen rupees.
56. *** ***	***
57. SECURITY BOND OR MORTGAGE DEED, executed by way of security for the due execution of an office or to account for money or other property received by virtue thereof, or executed by a surety to secure the due performance of a contract—	
(a) when the amount secured does not exceed Rs. 1000/-	The same duty as a Bond (No. 15) for the amount secured
(b) in any other case.	Eighteen rupees.
EXEMPTIONS	
Bond or other instruments, when executed—	
(a) by headmen nominated under rules framed in accordance with the Bengal Irrigation Act, 1876 (Bengal Act III of 1876) section 99, for the due performance of their duties under that Act;	
(b) by any person for the purpose of guaranteeing that the local income derived from private subscriptions to a charitable dispensary or any other hospital, or any other object of public utility, shall not be less than a specified sum per mensup.	
(c) executed by officers of Government or their sureties to secure the due execution of an office, or the due accounting for money or other property received by virtue thereof.	
58. SETTLEMENT—	

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A. Instrument of (including a deed of dower).	The same duty as a conveyance (No. 23) for a sum equal to the amount or value of the property settled as set forth in such settlement : Provides that, where as agreement stamp required for an instrument of settlement, and instrument of settlement in pursuance of such agreement is subsequently executed, the duty on such instrument shall not exceed one rupee eighty paise.
EXEMPTIONS	
(a) Deed of dower executed on the occasion of a marriage between Muhammadans.	
(b) Hudass, that is so say, any settlement of immovable property executed by a Budhist in Burma for a religious purpose in which no value a duty of Rs. 10/- has been paid.	
B. Revocation of—	The same duty as a conveyance (No. 23) for a sum equal to the amount or value of the property concerned, as set forth in the instrument of Revocation, but not exceeding thirty rupees.
See also Trust (No. 64)	
59. ***	***
60. **	**
61. SURRENDER OF LEASE—	
(a) when the duty with which the lease is chargeable, does not exceed seven rupees and fifty paise.	The duty with which such lease is chargeable.
(b) in any other case.	Eighteen rupees.
EXEMPTIONS	
Surrender of lease, when such lease is exempted from duty.	
62. ***	**
63. TRANSFER OF LEASE BY WAY OF assignment, and not by way of under lease.	The same duty as conveyance (NO. 23) for a consideration equal to the amount of the consideration for the transfer.
EXEMPTIONS	
Transfer of any lese exempt from duty.	
64. TRUST—	
A-DECLARATION OF—of or concerning, any property when made by any writing not being a Will.	The same duty as a Bond (No. 15) for a sum equal to the amount or value of the property concerned, as set forth in the instrument, but not exceeding six rupees.

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B—REVOCATION—of, or concerning any property when made by any instrument other than a WILL.	The same duty as Bond (No. 15) for sum equal to the amount or value of the property concerned, as set forth in the instrument, but not exceeding twenty four rupees.
See also Settlement (No. 58)	
VALUATION—See appraisement (No. 18)	
65. WARRAN FOR GOODS, that is to say, any instrument evidencing the title of any person therein named, or his assigns, or the holder thereof , to the property in any goods lying in or upon any dock, warehouse or wharf, such instrument being signed or certified by or on behalf of the person in whose custody such goods may be.	One rupee and twenty paise.

[*Vide* Manipur Act 4 of 1989, s. 3]

Meghalaya

Amendment of Schedule I of Act 2 of 1899.—In Schedule I to the Indian Stamp Act, 1890, for items, Numbers 1-10, 12, 15-20, 22-26, 28, 29, 31-36, 38-46, 48, 50, 51, 54-31 and 63-65 the following shall be substituted, namely:--

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Description of instrument	**Proper stamp-duty**
"1. ACKNOWLEDGEMENT of a debt exceeding twenty rupees in amount or value, written or signed by or on behalf of, a debtor in order to supply evidence of such debt in any book (other than a banker's pass-book) or on a separate piece of paper when such book or paper is left in the creditor's possession; Provided that such acknowledgement does not contain any promise to pay the debt or any stipulation to pay interest or to deliver any goods or other property.	Thirty paise.
2. ADMINISTRATION-BOND including a bond, given under section 6 of the Government Savings Banks; act, 1873, or section 291 of section 376 of the Indian Succession Act, 1925-	Act V of 1873. Act XXXIX of 1925.
(a) where the amount does not exceed Rs.1,000;	The same duty as a bond (No.15) for such amount Twenty rupees
(b) In any other case	

3. ADOPTION DEED, that is to say, any instrument (other than a will) recording an adoption, or conferring or purporting to counter an authority to adopt.	Thirty-nine rupees sixty paise.	
4. AFFIDAVIT, including an affirmation or declaration in the case of persons by law allowed affirm or declare instead of swearing.	Four rupees.	
Exemptions		
Affidavit or declaration in writing when made-		
(a) as a condition of enlistment under the Indian Army Act, 1950;		Act XLVI of 1950
(b) for the immediate purpose of being filed or being used in any Court or before the officer of any Court; or		
(c) for the role purpose of enabling any person to receive any pension or charitable allowance.		
5. AGREEMENT OR MEMORANDUM OF AN AGREEMENT-		
(a) if relating to the sale of a bill or exchange;	Sixty paise	
(b) if relating to the sale of a Government security.	Subject to a maximum of fifty-three rupees twenty five paise for every Rs.10, 000 or part thereof of the value of the security.	
(c) if relating to the purchase of sale of share, script, stocks bonds, debentures, debenture stocks or any other marketable security of a like nature in or of any incorporated company or other body corporate-		

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i.	when such agreement or memorandum of an agreement is with or through a member or between members of a Stock Exchange recognised under the Securities, Contracts (Regulation) Act, 1956.	Twenty-five paise for every Rs.2, 500 or part thereof of the value of the security at the time of its purchase or sale, as the case may be.
ii.	in other cases:	
(d)	if executed for service or for performance of work in any estate whether held by one person, or by more persons than one as co-owner, and whether in one or more blocks, and situated in Meghalaya where the advance given under such agreement does not exceed fifty rupees.	
(e)	If not, otherwise provided for	Three Rupees.

Exemptions

AGREEMENT FOR MEMORANDUM OF AGREEMENT-

(a) for or relating to the sale of goods or merchandise exclusively, not being a note or memorandum chargeable under No. 43.

(b) Made in the form of tenders to the Government of India for or relating to any loan.

AGREEMENT TO LEASE-lease (No.35).

6. AGREEMENT RELATED TO DEPOSIT OF TITLE-DEEDS, PAWN OR PLEDGE, that is to say, any instrument evidencing an agreement relating to-

	Description of instrument	**Proper stamp-duty**
1.	the deposit of title-deeds or instruments constituting or being evidence of the title to any properly whatever (other than a marketable security), or	
2.	the pawn or pledge of moveable property, where such deposit, pawn or pledge has been made by way of security for the repayment of money	

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advanced or to be advanced by way of loan of an existing or future debt-	
(a) if such loan or debt is repayable on demand or more than three months from the date of the instrument evidencing the agreement-	
if amount of loan does not exceed Rs.500;	Three rupees thirty paise.
if it exceeds Rs.500 and does not exceed Rs.1,000;	Six rupees sixty paise.
and for every Rs.1,000 or part thereof in excess of Rs.1,000;	Six rupees sixty paise.
(b) If such loan or debt is repayable not more than three months from the date of such instruments.	Half the duty payable under sub-clause (a).
Exemptions	
Instrument of pawn or pledge of goods if unattested.	
7. APPOINTMENT UB EXECUTION OF A POWER- whether of trustees or of property, movable or immovable, where made by any writing not being a will-	
(a) where the value of the property does not exceed Rs.1,000;	Thirty-three rupees.
(b) in any other case.	Fifty-nine rupees forty paise

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Description of instrument	Proper stamp-duty
8. APPRAISMENT OR VALUATION made otherwise than under an order of the Court in the course of a suit-	
(a) where the amount does not exceed Rs.1,000.	The same duty as Board (No.15) for such amount.
(b) In any other case	Nineteen rupees eighty paise.
Exemptions	
Appraisement or valuation made for the information of one party only, and not being in any matter obligatory between parties either by agreement or operation of law.	
(b) Appraisement of crops for the purpose of ascertaining the amount to be given to a landlord as rent.	
9. APPRENTICESHIP-DEED, including every writing relating to the service or tuition of any apprentice clerk or servant placed with any master to learn any profession, trade or employment.	Nineteen rupees eighty paise.
Exemptions	
Instrument of apprenticeship executed by a Magistrate under the Apprentices Act, 1961, or by, which a person is apprenticed by or at the charge of, any public charity.	Act LII 1961
10. ARTICLES OF ASSOCIATION OF A COMPANY-	
a) where the company has no share capital or the nominal share capital does not exceed Rs.2, 500.	Fifty-seven rupees seventy-five paise.
b) where the nominal share capital	Sixty-six rupees.

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exceeds Rs. 2,500 but not exceed Rs.5,000,

Description of instrument	Proper stamp-duty	
c) where the nominal share capital exceeds Rs.5,000 but does not exceed Rs.1,00,000;	Ninety-nine rupees.	
d) Where the nominal share capital exceeds Rs.1,00,000;	One hundred ninety-eight rupees.	
Exemptions		
Articles of any Association not formed for profits and registered under Section 25 of the Companies act, 1956, *See* also Memorandum of Association of a Company (No.39).		Act I of 1956
ASSIGNMENT-*See* Conveyance (No.23), Transfer (No.62), and Transfer of lease (No.63), as the case may be.		
ATTORNEY-*See* Power-of-Attorney (No.48).		
AUTHORITY TO ADOPT- *See* Adoption-deed (No.3)		
12. AWARD, that is to say, any decision in writing by an arbitrator or umpire, not being an award directing a partition, on a reference made otherwise than by an order or the Court in the course of a suit.	The same duty as a Board (No.15) for the amount or value of the property to which the award relates as set forth in such award subject to a maximum if Ninety-nine rupees.	
15. BOND [as defined by section2 (5)], not being a DEBENTURE (No.27), and not being otherwise provided for by this Act, or by the Court-fees Act, 1870-		Act VII of 1870.

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where the amount or value secured does not exceed Rs.10;		Forty paise.
where it exceeds Rs.10 and does not exceed Rs.50;		Sixty-five paise.
where it exceeds Rs.50 does not exceed Rs.100 ;	and	One rupees thirty-five paise.
where it exceeds Rs.100 does not exceed Rs.200.	and	Three rupees, thirty paise.
where it exceeds Rs.200 and does not exceed Rs.300.	and	Five rupees.
where it exceeds Rs.300 does not exceeds Rs.400.	and	Six rupees sixty paise.
where it exceeds Rs.400 does not exceed Rs.500.	and	Eight rupees ninety-five paise.
where it exceeds Rs.500 does not exceed Rs.600.	and	Eleven rupees ninety paise.
where it exceeds Rs. 600 does not exceed Rs. 700	and	Thirteen rupees eighty-five paise.
where it exceeds Rs.700 does not exceed Rs. 800.	and	Fifteen rupees eighty-five paise.
where it exceeds Rs.800 does not exceed Rs.900.	and	Seventeen rupees seventy paise.
where it exceeds Rs.900 does not exceed Rs.1,000;	and	Nineteen rupees eighty paise.
and for every Rs.500 or thereof in excess of Rs.1, 000.	part	Ten rupees ninety paise.

See Administration Bond (No.2), Bottomry Bond (No.16) Customs Bond (No.26), Indemnity Bond (No.34), Respondentia Bond (No.56), Security Board

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(No.57).

Exemptions

Bond, when executed by- Bengal Act III of 1876

(a) Headmen nominated under rules framed in accordance with the Bengal Irrigation Act,1876

(b) Any person for the purpose of guaranteeing that the local income derived from private subscriptions to a charitable dispensary or hospital or any other object of public utility shall not be less than a specified sum per mensem.

16. BOTTOMRY BOND, that is to say, any instrument whereby the master of a sea-going ship borrows money on the security of a ship to enable him to preserve the ship or prosecute her voyage. — The same duty as a Bond (No.15) for such amount

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17. CANCELLATION, instrument of (including any instrument by which any instrument previously executed is cancelled). If attested and not otherwise provided for. — Nineteen rupees eighty paise.

See also RELEASE (No.55) Revocation of Settlement (No.58-B), Surrender of Lease (No.61), Revocation of Trust (No.64-B).

18. CERTIFICATE OF SALE (in respect of each property put up as a separate lot and sold),granted to the purchase of any property sold by public auction by a Civil or Revenue Court, Collector or other Revenue Officer-

i. where the purchase money does not exceed Rs.10; — Fifty-five paise.

ii. where the purchase money exceeds Rs.10 but does not exceed Rs.25; — One rupee five paise.

iii. In any other case. ...		The same duty as a Conveyance (No.23), for a consideration equal to the amount of the purchase-money only.
19. CERTIFICATE OR OTHER DOCUMENT, evidencing the right or title of the holder thereof or any other person, either to any shares, scrip or stock in or of any incorporated company or other body corporate or the become proprietor of shares, scrip or stock in or any such company or body.		Forty paise.
See also LETTER OF ALLOTMENT OF SHARES (No.36).		
20. CHARTERED PARTY. that is to say any instrument (except an agreement for the hire of a tugsteamer), whereby a vessel or some specified principal part thereof is let for the specified purposes of the charterer, whether it includes a penalty clause or not.		Three rupees ninety-five paise.
22. COMPOSITION DEED. that is to say, any instrument executed by a debtor, whereby he conveys his property for the benefit of his creditors, or whereby payment of a composition or dividend on their debts is secured to the creditors, or whereby provision is made for the continuance of the debtor's business under the supervision of inspectors or under letters of license, for the benefits of his creditors.		Three rupees sixty paise.
23. CONVEYANCE [as defined by section 2 (10) not being a Transfer charged of exempted under No.62-		

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where the amount or value of the consideration for such conveyance as set forth therein does not exceed Rs.50;	One-rupee fifty-five paise.
where it exceeds Rs.50 but does not exceed Rs.100;	Three rupees
where it exceeds Rs.100 but does not exceed Rs.200;	Five rupees ninety-five paise.
where it exceeds Rs.200 but does not exceed Rs.300;	Eight rupees fifty-five paise.
where it exceeds Rs.300 but does not exceed Rs.400;	Eleven rupees.
where it exceeds Rs.400 but does not exceed Rs.500;	Fourteen rupees ninety paise.
where it exceeds Rs.500 but does not exceed Rs.600;	Seventeen rupees seventy-five paise.
where it exceeds Rs.600 but does not exceed Rs.700;	Twenty rupees eighty-five paise.
where it exceeds Rs.700 but does not exceed Rs.800;	Twenty-three rupees seventy-five paise.
where it exceeds Rs.800 but does not exceed Rs.900;	Twenty-six rupees seventy-five paise.
where it exceeds Rs.900 but does not exceed Rs.1,000;	Twenty-nine rupees seventy paise.
where it exceeds Rs.500 but does not exceed Rs.1,000;	Fourteen rupees ninety paise.
where it exceeds Rs.50,000 but does not exceed Rs.90,000;	Thirty-nine rupees sixty paise.
where it exceeds Rs. 90,000but does not exceed Rs.1,50,000;	Fifty-two rupees eighty paise.
and where it exceeds Rs.1,50,000	Sixty-six rupees.

Provided that where the "instrument or the conveyance" is in respect of an Industrial Loan, certified as such by the Director of Industries, Meghalaya, the stamp duty shall be half of the above rate.

Exemption

Assignment of copyright under the Indian Copyright Act, 1957.	Act XIV of 1957

CO-PARTNERSHIP DEED *See* Partnership (No. 46).

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24. COPY OR EXTRACT certified to be true copy or extract by or by order of any public officer and not chargeable under the law for the time being in force relating to court fee –

i. if the original was not chargeable with duty, or if the duty with which it was chargeable does not exceed one rupees;	Two rupees and five paise.
ii. in any other case not falling within the provision of section 6A.	Four rupees.

Exemption

(a) Copy of any paper which a public officer is expressly required by law to make or furnish for record in any public office or for any public purpose.

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Description of instrument	**Proper stamp-duty**
(b) Copy of, or extract from any register relating to births, baptisms, naming, dedications, marriages, divorces, deaths or burials.	
25. COUNTERPART OR DUPLICATE of any instrument, chargeable with duty and in respect of which the proper duty has been paid-	
(a) if the duty with which the original instrument is chargeable does not exceed two rupees;	The same duty as is payable on the original.

(b) In any other case not falling within the provisions of section 6A.	Four rupees.

Exemption

Counterpart of any lease granted to a cultivator, when such lease is exempted from duty.

26. CUSTOMS-BONDS-

(a) Where the amount does not exceed Rs.1,000;	The same duty as Bond (No.15) for such amount.
(b) in any other case.	Twenty-six rupees forty paise.

27. DELIVERY ORDER IN RESPECT OF GOODS that is to say, any instrument entitling any person therein named, or his assigns or the holder thereof, to the delivery of any goods lying in any dock or port or in any warehouse in which goods are stored or deposited on rent or hire, or upon any wharf, such instrument being signed by or on behalf of the owner of such goods upon the sale or transfer of the property therein, when such goods exceed in value twenty rupees. — Thirty paise.

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Description of instrument	**Proper stamp-duty**
DEPOSIT OF TITLE DEEDS *See* Agreement relating to Deposit of Title deeds, Pawn or Pledge (No.6).	
DISSOLUTION OF PARTNERSHIP-*See* partnership (No.46).	
29. DIVORCE. Instrument of, that is to say, any instrument by which any person effects the dissolution of his marriage.	Thirteen rupees twenty paise.

DOWER.....Instrument of, *see* settlement (No.58).

DUPLICATE.- *see* counterpart (No.25).

31. EXCHANGE OF PROPERTY.- Instrument of.	The same duty as conveyance (No.23) for a consideration equal to the value of the property of greatest value as set forth in such instrument.

EXTRACT.- *see* copy (No.24).

32.FURTHER CHARGE- Instrument of, that is to say, any instrument imposing a further charge on mortgaged property-	
(a) when original the marriage in one of the description referred to in clause (a) of Article No.40 (that is, with possession).	The same duty as a conveyance (No.23) for a consideration equal to the amount of the further charge secured by such instrument.
(b) when such mortgage is one of the description referred to in clause (b) of Article No.40 (that is, without possession):-	
i. if at the time of execution of the instrument of further charge possession property is given or agreed to be given under such instrument.	The same duty as a conveyance (No.23) for a consideration equal to the total amount of the charge (including the original mortgage and any further charge already made), less the duty already paid to such original mortgage and further charge.
ii. If possession is not so given.	The same duty as a Bond (No.15) for the amount of the further charge secured by such instrument.
33.GIFT- Instrument of, not being a settlement (No.58), or will or Transfer (No.62).	The same duty as a conveyance (No.23) for a consideration equal to the value of the

	property as set forth in such instrument.
HIRING AGREEMENT.-Or agreement for service *see* Agreement (No.5).	
34.IDEMNITY BOND	
INSPECTORSHIP DEED or Composition-Deed (No.22).	The same duty as a security Bond (No.57) for the same amount.
35. LEASE- including and under lease or sub-lease and any agreement to let or sub-let:	
(a) whereby such lease the rent is fixed and no premium is paid or delivered:-	
i. where the lease purports to be for a term of less than one year.	The same duty as a Bond (No.15) for the whole amount payable or deliverable under such lease.
ii. where the lease purports to be for a term of not less than one year but not more than five years;	The same duty as a Bond (No.15) for the amount or value of the average annual rent reserved.
iii. where the lease purports to be for a term exceeding five years and not exceeding ten years;	The same duty as a conveyance (No.23) for a consideration equal to the amount or value of the average annual rent reserved.
iv. where the lease purports to be for a term exceeding ten years, but not exceeding twenty years;	The same duty as a conveyance (No.23) for a consideration equal to twice the amount or value of the average annual rent reserved.
v. where the lease purports to be for a term exceeding twenty years, but not exceeding thirty years;	The same duty as a conveyance (No.23) for a consideration equal to three times the amount or value of the average annual

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		rent reserved.
vi.	where the lease purports to be for a term exceeding thirty years, but not exceeding one hundred years;	The same duty as conveyance (No.23) for a consideration equal to four times the amount or value of the average annual rent reserved.
vii.	where the lease purports to be for a term exceeding one hundred years or in perpetuity.	The same duty as a conveyance (No.23) for a consideration equal in the case of a lease granted solely for agricultural purposes to one-tenth and in any other case to one-sixth of the whole amount of rents which would be paid or delivered in respect of the first fifty years of the lease.
viii.	where the lease does not purport to be for any definite term;	The same duty as conveyance (No.23) for a consideration equal to three times the amount of value of the average annual rent which would be paid or delivered for the first ten years if the first ten years if the lease continued so long.
(b)	where the lease is granted for a fine or premium, or for money advanced and where no rent is reserved;	The same duty as a conveyance (No.23) for a consideration equal to the amount or value for such fine or premium or advance as set forth in the lease.
(c)	where the lease is granted for a fine or premium , or for money advanced in addition to rent reserved.	The same duty as a conveyance (No.23) for a consideration equal to the amount or value of such fine or premium or advance as set forth in the lease, in addition to the duty which would have been payable such lease, if no fine or premium or advance had been paid or delivered; provided that, in any case when

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	an agreement to lease is stamped with *ad volorem* stamp required for a lease, and a lease in pursuance of such agreement in subsequently executed the duty on such lease shall not exceed one rupee and fifty-five paise.

Exemption

Lease, executed in the case of a cultivator and for the purpose of cultivation (including a lease of trees for the production of food or drinking). Without payment or delivery of any fine or premium, when a definite term is expressed and such term does not exceed one year, or when the average annual rent reserved does not exceed one hundred rupees.

In this exemption a lease for the purpose of cultivation shall include a lease of lands for cultivation together with a home stand or tank.

Explanation.-When a lessee undertakes to pay any recurring charge, such a Government revenue landlord's share of cesses, or the owner's share of municipal rates or taxes, which is by law recoverable from the lessor, the amounts so agreed to be paid by lessee shall be deemed to be part of the rent.

36. LETTER OF ALLOTMENT OF SHARES, in any company or proposed company or in respect of any loan to be raised by any company or proposed company.	Thirty-five paise.
See in also CERTIFICATE OR OTHER DOCUMENT (No.19).	

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38. LETTER OF LICENSE, that is to say any agreement between a debtor and his creditors that the letter shall, for a specified time, suspend their claims and allow the debtor to carry on business at his own discretion.	Twenty-six rupees forty paise.	
39. MEMORANDUM OF ASSOCIATION OF A COMPANY-		
(a) if accompanied by articles of association under section 26 of the Companies Act, 1956;	Seventy-nine rupees twenty paise.	Act I of 1956.
(b) if not so accompanied-		
i. where the nominal share capital does not exceed one lakh of rupees;	One hundred ninety-eight rupees.	
ii. Where the nominal share capital exceeds one lakh of rupees.	Three hundred thirty rupees.	
Exemption		
Memorandum of any association not formed for profit and registered under section 25 of the Companies Act, 1956.		Act I of 1956
40. MORTGAGE-DEED not being an Agreement relating to Deposit of Title Deeds, Pawn or Pledge (No.6), Bottomry Bond (No.16) Mortgage of Crop (No.41), Respondentia Bond (No.56) or Security Bond (No.57).		
(a) when possession of the property or any part of the property comprised in such deed is given by the mortgagor or agreed to be given;	The same duty as a Conveyance (No.23) for a consideration equal to the amount secured by such	

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		deed.
	(b) when possession of the property or any part of the property comprised in such deed is not given by the mortgagor nor agreed to be given; *Explanation* – A mortgagor who gives to the mortgagee a power of attorney to collect rents or a lease of the property mortgaged or part thereof is deemed to give possession within the meeting of this article;	The same duty as a Bond (No.15) for the amount secured by such deed.

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Description of instrument		**Proper stamp-duty**
(c)	(i) when a collateral or auxiliary or additional or substituted security, or by way of further assurance for the above mentioned purpose where the principal or primary security is duly stamped for every sum secured not exceeding Rs.1,000.	Two Rupees.
	(ii) and for every Rs.1,000 or part thereof secured in excess of Rs.1,000.	Two rupees forty paise.
	Exemption	
(d)	Instruments executed by persons taking advances under the Land Improvement Loans Act, 1883, or the Agriculturist's Loan Act, 1884, or by their sureties as security for the repayment of such advances.	Act XIX of 1883. Act XLI of 1884
	(2) Letter of hypothecation accompanying a bill of exchange.	

41. MORTGAGE OF CROP, including any instrument evidencing an agreement to secure the repayment of a loan made upon any mortgage of a crop, whether the crop is or is not in existence at the time of the mortgage –	
(a) when the load is repayable not more than three months from the date of the instrument.	
for every sum secured not exceeding Rs.200,and	Thirty-five paise.
for every sum Rs.200 or part thereof secured in excess of Rs.200.	Fifty paise.
(b) when the loan is repayable more than three months, but not more than eighteen months from the date of instrument-	
for every sum secured not exceeding Rs. 100, and	Fifty-five paise.
for every Rs.100 or part thereof secured in excess of Rs.100.	Fifty-five paise.
42. NOTARIAL ACT. That is to say, any instrument, endorsement, note, attestation, certificate or entry not being a Protest (No.50) made or signed by a Notary Public in the execution of the duties of his office, or by and other person lawfully acting as a Notary Public.	Three rupees and ninety five paise.
See also Protest of Bill or Note (No.50).	
43. NOTE OR MEMORANDUM, sent by a Broker or Agent top his principal intimating the purchase or sale on account of such principal-	

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(a) of any goods exceeding in value twenty rupees;	Sixty-five paise.
(b) of any stock or marketable security exceeding in value twenty rupees.	Seventy-five paise for every Rs. 5, 000 or part thereof of the value of the stocks or security subject to a maximum of thirty-three rupees.
44. NOTE OF PROTEST BY THE MASTER OF A SHIP-*See* also Protest by the Master of Ship (No.51).	Two rupees and sixty paise.
Order for the payment of money- *See* Bill of Exchange (No.13).	
45. PARTITION – Instrument of [as defined by Section 2 (15)].	The same duty as a Bond (No.45) for the amount of the value of the separated share or shares of the property. *N.B.*- The learnt share remaining after the property is partitioned or if there are two or more shares of equal value and not smaller than any of the other share, then one of such equal (share) shall be deemed to be that from which the other shares are separated: Provided always that- (a) when an instrument of partition containing an agreement to divide property in severalty is executed and a partition is effected in pursuance of such agreement the duty chargeable upon the instrument affecting such partition shall be

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	reduced by the amount of duty paid in respect of the first instrument but shall into be less than two rupees and sixty-five paise; (b) where land is held on revenue settlement for a period not exceeding thirty years and paying the full assessment the value for the purpose of duty shall be calculated at not more than five times the annual revenue; (c) where final order for effecting a partition passed by any Revenue authority or any Civil Court, or an award by an arbitrator directing a partition, is stamped with the stamp required for than instrument of partition and an instrument of partition in pursuance of such order or award is subsequently executed the duty in such instrument shall not exceed two rupees and sixty-five paise.
Description of instrument	**Proper stamp-duty**
46. PARTNERSHIP	Provided always that-
A-Instrument of -	
(a) where the capital of the partnership does not exceed Rs.1,000.	The same duty as a Board (No.15).
(b) in any other case	Fifty-two rupees eighty paise.

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B.- Dissolution of –	Twenty-six rupees forty paise.
PAWN OR PLEDGE.- See Agreement relating to Deposit of Title-deeds Pawn or Pledge (No.6).	
48. POWER OF ATTORNEY [as defined by section 2 (21)] not being a XV-	
1. when executed for the sole purpose of procuring the registration of one or more documents in relation to a single transaction or for admitting execution of one or more such documents;	Two Rupees
2. when required in suits or proceeding under the Presidency small Cause Court; Act, 1882;	Two Rupees.
3. When authorising one person or more to act in a single transaction other than the case mentioned in clause (a);	Three rupees ninety-five paise.
4. When authorising not more than five persons to act jointly and severally in more than one transaction or generally;	Nineteen rupees eighty paise.
5. When authorising more than five persons but not more than ten persons to act jointly and severally in more than one transaction or generally.	Thirty-nine rupees sixty paise.
Description of instrument	**Proper stamp-duty**
6. when given for consideration and authorising the attorney to sell any immovable properly;	The same duty as a Conveyance (No.23) for the amount of the consideration.

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7. in any other case	Three rupees and thirty paise for each person authorised.	
Explanation. - For the purpose of this Article more persons than one when belonging to the same firm shall be deemed to be one person.	*N.B.* – The term "Registration" includes every operation incidental to registration under the Registration Act, 1908.	Act XVI of 1908.
50. PROTEST OF BILL OR NOTE, that is to say, any declaration in writing made by a Notary public or other person lawfully acting as such, attesting the dishonour of a bill-of-exchange or promissory note.	Three rupees ninety-five paise.	
51. PROTEST BY THE MASTER OF A SHIP, that is to say, any declaration of the particulars of her voyage drawn up by him with a view to adjustment of losses or the calculation of averages, and every declaration in writing made by him against the characters or consignees for not loading or unloading the ship, when such declaration is attested or certified by a Notary Public or other person lawfully acting as such.	Three rupees ninety-five paise.	
See also Note of Protest by the Master of a Ship (No.44).		
54.RECONVEYANCE OF MORTGAGED PROPERTY.-		
(a) If the consideration for which the property was mortgaged does not exceed Rs.1, 000.	The same duty as a conveyance (No.23) for the amount of such consideration as set forth in the conveyance.	
(b) In any other case	Thirty-nine rupees and sixty paise.	

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55. RELEASE, that is to say, any instrument (not being such a release as is provided for by section 23-A), whereby a person renounces a claim upon another person or against any specified property.-	
(a) if the amount of value of the claim dies not exceed Rs.1,000;	The same duty as a Bond (No.15) for such amount or value as set forth in the release.
(b) In any other case.	Nineteen rupees eighty paise.
56. RESPONDIETIA BOND, that is to say any instrument securing a loan on the cargo laden or to be laden on Board a ship and making repayment contingent on the arrival of the cargo at the port of destination.	The same duty as a Bodn (No.15) for the amount of the loan secured.
REVOCATION OF ANY TRUST ON SETTLEMENT	
See settlement (No.58), Trust (No.64).	
57. SECURITY BOND OR MORTGAGE DEED, executed by way of security for the due execution of an office; or to account for money or other property received by virtue thereof or executed by a surety to secure the due performance of contract -	The same duty as a Bond (No.15) for the amount secured. Nineteen rupees eighty paise.
(a) When the amount secured does not exceed Rs.1,000;	The same duty as a Bond (No.15) for the amount secured.
(b) in any other case	Nineteen rupees and eighty paise.

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Exemption

Bond or other instrument, when executed-

(a) by headmen nominated under rules framed in accordance with the Bengal Irrigation Act, 1876, section 99, for due performance of their duties under that Act; — Ben.Act II of 1876

(b) by any person for the purpose of guaranteeing that the local income derived from private subscription to a charitable dispensary or hospital, or any other object of public utility, specified sum *per mensem*;

(c) under N.3-A of the rules made by the Government of Bombay in Council under section 70 of the Bombay Irrigation Act,1879; — Bom, Act VII of 1879.

(d) executed by persons taking advances under the Land Improvement Loans Act, 1883, or the Agriculturist's Loans Act, 1884, or by their sureties, as sureties as security for the re-payment of such advance; — Act XIX of 1883.

(e) executed by officers of Government or their sureties to secure the due execution of an Office or the due accounting for money or other property received by virtue thereof; — Act XII of 1884

58. SETTLEMENT-

A.- Instrument of (including a deed of power). — The same duty as a Conveyance (No.23) for a

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		sum equal to the amount or value of the property settled as set forth in such settlement; Provided that, where an agreement to settle is stamped with the stamp required for an instrument of settlement, and instrument of settlement in pursuance of such agreement is subsequently executed, the duty on such instrument shall not exceed one rupee and fifty-five rupee.	
	Exemptions		
(a)	Deed of power executed on the occasion of a marriage between Muhammadans.		
(b)	Hindus, that is to say, any settlement of immovable property executed by a Buddhist in Burma for a religious purpose in which no value has been specified on which a duty of Rs.10 has been paid.		
	B.-Revocation of -	The same duty as a Conveyance (No.23) for a sum equal to the amount or value of the property concerned, are set forth in the instrument of Revocation, but not exceeding thirty-three rupees.	
	See also TRUST (No.64)		
59.	SHARE WARRANTS to bearer issued under the Companies Act, 1956.	One and a half time the duty payable one Conveyance (No.23) for a consideration	Act I 1956

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	equal to the nominal amount of the shares specified in the warrant.	
Share warrant when issue by a Company in pursuance of the Companies Act, 1956, Section 114, to have effect only upon payment, as Composition for the duty, to the Collector of Stamp revenue of-		Act I of 1956
(a) one-and-a-half per centum of the whole subscribed capital of the company, or		
(b) if any company which has paid the said duty or composition in full, subsequently issues an addition to its subscribed capital one-and-a-half per centum of the additional capital so issued.		
SHIPPING ORDER for or relating to the conveyance of goods on board of any vessel.	Twenty-five paise.	
61. SURRENDER OF LEASE –		
(a) when the duty with which the lease is chargeable does not exceed seven rupees and fifty paise.	The duty with which such leases chargeable.	
(b) In any other case ...	Nineteen rupees and eighty paise.	
Exemptions		
Surrender of lease, when such lease is exempted from duty.		
63. TRANSFER OF LEASE BY way of Assignment, and not by way of underlease.	The same duty as a Conveyance (No.23) for a consideration equal to the	

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	amount of the consideration for the transfer.

Exemptions

Transfer of any lease from duty.

64. TRUST –

A-Declaration of or concerning any property when made by any writing not being a will.	The same duty as a Bond (No.15) for a sum equal to the amount or value of the property concerned, as set forth in the instrument but not exceeding thirty-three rupees.
-Revocation of or concerning property when made by any document other than a will. *See* also settlement (No.58).	The same duty as a Bond (No.15) for a sum equal to the amount or value of the property concerned, as set forth in the instrument, but not exceeding thirty-three paise.
Valuation.- *See* Appraisement (No.8)	
65. Warrant for goods, that is to say, any instrument evidencing the title of any person therein named, or his assigns, or the holder thereof to the property in any goods lying in or upon any dock, warehouse or wharf, such instrument being signed or certified by or on behalf of the person in whose custody such goods may be.	One rupee thirty paise.

[*Vide* Meghalaya Act 22 of 1980, s. 2]

Amendment of Schedule I.—In Schedule I to the Indian Stamp Act,1899 as amended by the Indian Stamp (Meghalaya Amendment) act, 1980 (Act 22 of 1980)-

(i) in article 22, for the words "Three rupees sixty paise" occurring in the second column, the words "Thirty-nine rupees sixty paise" shall be substituted;

(ii) in article 23, after the words "Thirty-nine rupees sixty paise", "Fifty-two rupees eighty paise" and "Sixty-six rupees" occurring in the second column at the end of the article and before the proviso, the words "for every one thousand rupees" shall respectively be added; and

[*Vide* Meghalaya Act 15 of 1981, s. 2]

Amendment of Section I of Act 2 of 1899.— In schedule I to the Indian Stamp Act, 1899 for Articles 1 to 10, 12, 15, to 20, 22 to 26, 28, 29, 31 to 36, 38 to 46, 48, 50, 51, 54 to 61 and 63 to 65 the following shall be substituted namely:-

Description of instrument	**Proper stamp duty**
"1. ACKNOWLEDGEMENT of a debt exceeding twenty rupees in amount or value, written or signed by or on behalf of, a debtor in order to supply evidence of such debt in any book (other than a banker's pass book) or on a separate piece of paper when such book or paper is left in the creditor's possession: provided that such acknowledgement does not contain any promise to pay the debt or any stipulation to pay interest or to delivery any goods or other property.	One Rupee
1.ADMINISTRATION-BOND including a bond, given under section 6 of the Government Saving Bank Act, 1873, or section 291 or section 376 of the Indian Succession Act, 1925-	Act V of 1873. Act XXXIX of 1925.
(a) Where the amount does not exceed Rs. 1,000	The same duty as a bond (No. 15) for such amount
(b) In any other case	Twenty four rupees
2.ADOPTION-DEED, that is no say, any instrument (other than a will) recording an adoption, or conferring or purporting to confer an authority to adopt.	Forty eight rupees
3.AFFIDAVIT, including and affirmation or declaration in the case of person by law allowed to affirm or declare instead of swearing.	Five rupees
Exemptions	
Affidavit of declaration in writing when made –	Act XLVI of 1950
(a) As a condition of enlistment under the Indian Army Act, 1950;	

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(b) For the immediate purpose of being filed or used in any Court or before the officer of any Court; or		
(c) For the sole purpose of enabling any person to receive any pension or charitable allowance.		
4. AGREEMENT AND MEMORANDUM OF AN AGREEMENT –		
(a) If relating to the sale of bill of exchange.	One rupee	
(b) If relation to the sale of a Government Security.	Subject to a maximum of sixty four rupees for every Rs. 10,000 per part thereof the value of the security.	
(c) If relating to the purchase or sale of shares, script stocks bond, debentures stocks or any other marketable security of a like nature in or of any incorporated company of other body corporate-		
(i) When such agreement or memorandum of an agreement is with or through a member of between members of a stock Exchange recognised under the Securities Contracts Regulation Act, 1956;	One Rupee for every Rs. 2,500 or part thereof of the value of the security at the time of its purchase or sale, as the case may be	Act XIIL of 1956
(ii) In other cases;	Rupee one for every Rs. 2,500 or part thereof of the value of the security at the time of its purchase or sale, as the case may be.	
(d) If executed for service or for performance of work of any estate whether held by one person, or by more persons than one as co-owners, and whether is one or more blocks, and situated in Meghalaya where the advance given under such agreement does not exceed fifty rupees;	One Rupee.	
(e) If not, otherwise provided for.	Three Rupees.	
Exemptions		
AGREEMENT FOR MEMORANDUM OF AN AGREEMENT-		
(a) For or relating to the sale of goods or merchandise exclusively not being a more or memorandum		

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chargeable under No. 43;

(b) Made in the form of tenders to the Government of India for or relating to any loan.

AGREEMENT TO LEASE –

LEASE (No. 35)

5. AGREEMENT RELATING TO DEPOSIT OF TITTLE-DEEDS PAWN OR PLEDGE, that is to say any instrument evidencing an agreement relating to-

(1) The deposit of little-deeds or instruments constituting or being evidence of the little to any property whatever (other than a marketable security), or

(2) The pawn or pledge of moveable property, where such deposit, pawn or pledge has been made by way of security for the repayment of money advanced or to be advanced by way of loan of existing or further debt-

(a) If such load or debt is repayable on demand or more than three instrument evidencing the agreement-

(i) If the amount of loan does not exceed Rs. 500.	Four Rupees.
(ii) If it exceeds Rs. 500 and does not exceed Rs. 1,000.	Eight Rupees.
(iii) And for every Rs. 1,000; or part thereof in excess of Rs. 1,000.	Eight Rupees.
(b) If such loans or debt is repayable not more the three months from the date of such instrument	Half the duty payable under sub-clause (a)

EXEMPTIONS

Instrument of pawn or pledge of goods unattested.

6. APPOINTMENT IN EXECUTION OF POWER-

(a) Where the value of the property does not exceed Rs. 1,000.	Forty Rupees;

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(b) In any other case;	Seventy one Rupees;
7. APPRAISEMENT OR VALUATION made otherwise than under an order of the court in the course of a suit-	
(a) Where the amount does not exceed Rs. 1,000	The same duty as a Bond (No. 15) for such amounts.
(b) In any other case.	Twenty four Rupees.

EXEMPTIONS

8.APPRAISEMENT OR VALUATION made for the information of one party only, and not being in any manner obligatory between parties either by agreement or operation of law.	
(a)Appraisement of crops for the purpose of ascertaining the amount to be given to a landlord as rent.	
9.APPRENTICESHIP-DEED, including every writing relating to the service or tuition of any apprentice clerk of servant placed with any master to learn any profession, trade or employment.	Twenty four rupees.

Exemptions

Instrument of apprenticeship executed by a Magistrate Apprentices Act, 1961, or by, which a person is apprenticed by or at the charge of any public charity.	ACT LII of 1961
10. ARTICLES OF ASSOCIATION OF A COMPANY-	
(a) Where the company has no share capital or the nominal share capital does not exceed Rs. 2,500;	Sixty nine rupees.
(b) Where the nominal share capital exceed Rs. 2,500; but does not exceed Rs. 5,000.	Seventy nine rupees.
(c) Where the nominal share capital exceed Rs. 5,000; but does not exceed Rs. 1,00,000.	One hundred nineteen rupees.

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Description of instrument	Proper stamp duty	
(d) Where the nominal share capital exceed Rs. 1,00,000;	Two hundred thirty eight rupees.	
Exemptions		
Articles of any Association not formed for profit and registered under Section 25 of the Companies act, 1956,. See also Memorandum of Association of Company (No. 39).		Act 1 of 1956
ASSIGNMENT- See, conveyance (No. 23). Transfer (No.62), and Transfer of lease (No. 63), as the case may be.		
ATTORNEY- See Power-of-attorney (No. 48).		
AUTHORITY TO ADOPT- See Adoption-deed (No. 3).		
12. AWARD that is to say, any decision in writing by an arbitrator or umpire, not being an award directing a partition, on a reference made otherwise than be an order of the Court in the course of a suit.	The same duty as a Bond (No. 15) for the amount or value of the property to which the award relates as set forth in such award subject to a maximum of Ninety nine rupees.	
15. BOND (as defined by section (5), not being a DEBENTURE (No. 27), for not being otherwise provided for by this Act, or by the Court Fess Act, 1870-		
Where the amount or value secured does not exceed Rs. 10;	One rupee.	
Where it exceeds Rs. 10 and does not exceed Rs. 50;	One rupee.	
Where it exceeds Rs. 50 and does not exceed Rs. 100;	One rupee.	
Where it exceeds Rs. 100 and does not exceed Rs. 200;	Four rupees.	
Where it exceeds Rs. 200 and does not exceed Rs. 300;	Six rupees.	

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Where it exceeds Rs. 300 and does not exceed Rs. 400;	Eight rupees.
Where it exceeds Rs. 400 and does not exceed Rs. 500;	Eleven rupees.
Where it exceeds Rs. 500 and does not exceed Rs. 600;	Fourteen rupees
Where it exceeds Rs. 600 and does not exceed Rs. 700;	Seventeen rupees.
Where it exceeds Rs. 700 and does not exceed Rs. 800;	Nineteen rupees.
Where it exceeds Rs. 800 and does not exceed Rs. 900;	Twenty one rupees.
Where it exceeds Rs. 900 and does not exceed Rs. 1,000;	Twenty four rupees
And for every Rs. 500 or part thereof in excess of Rs.1,000.	Thirteen rupees

See Administration Bond (No.2) Bottomry Bond (No.16) Customs Bond (No.26). Indemnity Bond (No.34), Respondentia Bond (No.56), Security Bond (No.57).

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Exemptions

Bond when executed by –

(a) Headmen nominated under rules framed in accordance with the Bengal Irrigation Act, 1876, Section 99, for the due performance of their duties under than Act; — Bengal Act III of 1876

(b) any person for the purpose of guaranteeing that the local income drive form private subscriptions to a charitable dispensary or hospital or any other subject of public utility, shall not be less than a specified sum *per mensem*.

16. BOTTOMRY BOND, that is to say, any instrument whereby the master of a sea-going ship borrows money on the security of a ship to enable him to preserve the ship or prosecute her voyage — The same duty as a Bond (No 15) for such amount.

17. CANCELLATION, instrument of (including any instrument by which any instrument previously executed is cancelled), if arrested and not otherwise provided for. See also RELEASE (No. 55) Revocation of Settlement (No.58 B). Surrender of Lease (No. 61). Revocation of Trust (No. 65. B)	Twenty four rupees
CERTIFICATE OF SALE (in respect of each property put up as a separate lot and sold), granted to the purchase of any property sold by public auction by a Civil or Revenue Court, of Collector or other Revenue officer-	
(a) Where the purchase money does not exceed Rs. 10;	One rupee
(b) Where the purchase money does not exceed Rs. 10 but does not exceed Rs. 25;	Two rupees
(c) In any other case	The same duty as a conveyance (No. 23), for a consideration equal to the amount of the purchase money only.
19. CERTIFICATE OR OTHER DOCUMENT, evidencing the right or little of the holder there or any other person, either to any shares scrip or stock in or of any incorporated company or other body corporate or to become proprietor of shares, scrip or stock in or any such company or body. See also LETTER OF ALLOTMENT OF SHARES (No. 36).	One rupee
20. CHARTERED PARTY, that is to say any instrument (except an agreement for the hire of a tugsteamer), whereby a vessel, or some specified principal part thereof is let for specified purposes of the charterer, whether it includes a penalty clause or not.	Five rupees.

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Description of instrument	Proper stamp duty
22. COMPOSITION-DEED, that is to say, any instrument executed by a debtor, whereby he conveys his property for the benefit of his creditors, or whereby payment of a composition or dividend on their debt is secured to the creditors, or whereby provisions is made for the continuance of the debtor's business under the supervisor of inspector or under letters of licence, for the benefit of his creditors.	Forty eight rupees.
23. CONVEYANCE (as defined by section 2 (10) not being a Transfer charged of exempted under No. 52-	Two rupees.
Where it exceeds Rs. 50 and does not exceed Rs. 100;	Four rupees.
Where it exceeds Rs. 100 and does not exceed Rs. 200;	Seven rupees.
Where it exceeds Rs. 200 and does not exceed Rs. 300;	Ten rupees.
Where it exceeds Rs. 300 and does not exceed Rs. 400;	Thirteen rupees.
Where it exceeds Rs. 400 and does not exceed Rs. 500;	Eighteen rupees.
Where it exceeds Rs. 500 and does not exceed Rs. 600;	Twenty one rupees.
Where it exceeds Rs. 600 and does not exceed Rs. 700;	Twenty five rupees.
Where it exceeds Rs. 700 and does not exceed Rs. 800;	Twenty nine rupees.
Where it exceeds Rs. 800 and does not exceed Rs. 900;	Thirty two rupees.
Where it exceeds Rs. 900 and does not exceed Rs. 1,000;	Thirty six rupees.
For every Rs. 500 or part thereof in excess of Rs.	Eighteen rupees.

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1,000	
Where it exceeds Rs. 50,000 and does not exceed Rs. 90,000;	Forty-eight rupees for every one thousand rupees.
Where it exceeds Rs. 90,000 and does not exceed Rs. 1,50,000;	Sixty-four rupees for every one thousand rupees.
And where it exceeds Rs. 1,50,000;	Seventy-nine rupees for every one thousand rupees.

Provided that where the "instrument" or the conveyance is in respect of an Industrial Loan certified as such by the Director of Industries, Meghalaya, the stamp duty shall be half of the above rate.

Exemptions

Assignment of copyright under the Indian Copyright Act, 1957.	Act XIV of 1957
CO-PARTNERSHIP DEED. See partnership (No. 46)	
24. COPY OR EXTRACT Certified to be a true copy or extract by or by order of any public officer and not chargeable under the law for the time being in force relating to court fees-	
(i) If the original was not chargeable with duty, or if the duty with which it was chargeable does not exceed one rupee;	Three rupees.
(ii) If any other case not falling within the provision of section 6A.	Five rupees.

Exemptions

(a) Copy of any paper which a public officer is expressly required by low to make or furnish for record in any public office or for any public purpose;

(b) Copy of, or extract from any register relating to birth baptisms, naming, dedications, marriages, divorces, deaths or burials.

25. COUNTERPART OR DUPLICATE of any

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instrument, chargeable with duty and in respect of which the proper duty has been paid-	
(a) If the duty with which the original instrument is chargeable does not exceed two rupees;	The same duty as is payable on the original.
(b) In any other case not falling within the provisions of section 6A	Five rupees.
Exemptions	
Counterpart of any lease granted to a cultivator, when such lease is exempted from duty.	
26. CUSTOM-BOND	
(a) Where the amount does not exceed Rs. 1,000;	The same duty as bond (No. 15) for such amount
(b) In other case	Thirty-two rupees.
28. DELIVERY ORDER IN RESPECT OF GOODS that is to say, any instrument entitling any person therein named, or his assigns or the holder thereof to the delivery of any goods lying in any dock or port or in any warehouse in which goods are stored or deposited on rent or hire, or upon any wharf, such instrument being signed by or behalf of the owner of such goods upon the sale or transfer of the property therein, when such goods exceed in value twenty rupees.	One rupee
DEPOSIT OF TITLE DEEDS See Agreement relating to Deposit of Title deeds, Pawn or Pledge (No. 6)	
DISSOLUTION OF PARTNERSHIP See partnership (No. 46)	
29. DIVORCE- Instrument of, that is to say, any instrument by which any person effects the dissolution of his marriage.	Sixteen rupees
POWER- Instrument of, see settlement (No. 58) DUPLICATE-See counterpart (No. 25)	Sixteen rupees
31. EXCHANGE OF PROPERTY- Instrument of.	The same duty as

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	conveyance (No. 23) for a consideration equal to the value of the property of greatest value as set forth in such instrument.
EXTRACT-see copy (No. 24)	
32. FURTHER CHARGE- Instrument of, that is to say, any instrument imposing a further charge on mortgaged property-	
(a) When the original mortgaged is one of the description referred to in clause (a) of article No. 40 (that is, with possession).	The same duty as conveyance (No. 23) for a consideration equal to the amount of the further charge secured by such instrument.
(b) When such mortgage is one of the description referred to in clause (b) of Article No. 40 (that is without possession):-	
(i) If at the time of execution of the instrument of further charge possession of the property is given or agreed to be given under such instrument;	The same duty as conveyance (No. 23) for a consideration equal to the charge (including the original mortgage and any further charge a readymade), less than duty already paid on such original mortgage and further charge.
(ii) If possession is not so given.	The same duty as a Bond (No. 15) for the amount of the further charge secured by such instrument.
33. GIFT- Instrument of not being a settlement (No. 58), or will or Transfer (No. 62)	The same duty as a conveyance (No. 23) for a consideration equal to the value of property as set forth in such instrument.
HIRING AGREEMENT- Or agreement for service, see agreement (No. 5)	

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34. INDEMNITY BOND, INSPECTORSHIP DEED; see composition-Deed (No. 22).	The same duty as section Bond (No. 57) for same amount
35. LEASE-including and under lease or sub-lease and any agreement to let or sub-let:-	
(a) Whereby such lease the rent is fixed and no premium is paid or delivered:-	
(i) Where the lease purports to be for a term of less than one year;	The same duty Bond (No. 15) for the whole amount payable or deliverable under such lease.
(ii) Where the lease purports to be for a term of not less than one year but not more than five year;	The same duty as a Bond (No. 15) for the amount or value of the average annual rent reversed.
(iii) Where the lease purports to be for a term exceeding five years and not exceeding ten years;	The same duty as a conveyance (No. 23) for a consideration equal to the amount or value of the average annual rent reversed.
(iv) Where the lease purports to be for a term exceeding ten years but not exceeding twenty years;	The same duty as a conveyance (No. 23) for a consideration equal to twice the amount or value of the average annual rent reversed.
(v) Where the lease purports to be for a term exceeding twenty years but not exceeding thirty years;	The same duty as a conveyance (No. 23) for a consideration equal to three times the amount or value of the average annual rent reversed.
(vi) Where the lease purports to be for a term exceeding thirty years but not exceeding one hundred years;	The same duty as a conveyance (No. 23) for a consideration equal to four times the amount or value of the average annual rent reversed.

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(vii) Where the lease purports to be for a term exceeding one hundred years or in perpetuity	The same duty as a conveyance (No. 23) for a consideration equal in the case of a lease granted solely for agricultural purposes to one-tenth and in any other case to one-sixth of the whole amount of rent which would be paid or delivered in respect of the first fifty years of the lease.
(viii) Where the lease does not purport to be for any definite term;	The same duty as a conveyance (No. 23) for a consideration equal to three times the amount or value of the average annual rent reversed which would be paid or delivered for the first ten years if the lease continued so long.
(b) Where the lease granted for a fine or premium or for money advanced and where no rent is reserved.	The same duty as a conveyance (No. 23) for a consideration equal to the amount or value of such fine or premium or advance as set forth in the lease.
(c) Where the lease granted for a fine or premium or for money advanced in addition to rent is reserved.	The same duty as a conveyance (No. 23) for a consideration equal to the amount or value of such fine or premium, or advance as set forth in the lease, in addition to the duty which would have been payable such lease, if no fine or premium or advance had been paid or delivered: Provided that in any case when agreement to lease is stamped with the *ad volarem* stamp required for a lease,

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	and a lease in pursuance of such agreement is subsequently executed the duty on such lease shall not exceed one rupee and fifty five paise.	
Exemptions Lease, executed in the case of cultivator and for the purpose of cultivation (including a lease of trees for the production of food or drinking), without payment or delivery of any fine or premium, when a definite term is expressed and such term does not exceed one year, or when the average annual rent received does not exceed one hundred rupees. In this exemption a lease for the purpose of cultivation shall include a lease of land for cultivation together with a home stand or tank. **Explanation-**when a lease under take to pay any recurring charge, such as Government revenue, landlord's share of cesses, or the owner's share of municipal rate or taxes, which is by law recoverable from the lessor, the amounts so agreed to be paid by lessee shall be deemed to be part of the rent.		
36. LETTER OF ALLOTMENT OF SHARE; in any company or proposed company or in respect of any loan to be raised by any company or proposed company. See also CERTIFICATE OR OTHER DOCUMENT (No. 19).	One rupee	
38. LETTER OF LICENCE, that is to say any agreement between a debtor and his creditors that the letter shall, for a specified time, suspend their claims and allow the debtor to carry on business at his own discretion.	Thirty two rupees	
39. MEMORANDUM OF ASSOCIATION OF A COMPANY-		
(a) If accompanied by articles of association under section 26 of the companies Act,	Ninety five rupees	Act 1 of 1956
(b) If not so accompanied-		
(i) Where the nominal share capital does not exceed one lakh of rupees.	Two hundred thirty eight.	

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(ii) Where the nominal share capital exceeds one lakh of rupees.	Three hundred ninety-six rupees.	
Exemptions		
Memorandum of any association not formed for profit and registered under Section 25 of the Companies Act, 1950		Act 1 of 1956
40. MORTGAGE-DEED not being in Agreement relating to Deposit of Title Deeds, Pawn or pledge (No. 6) Bottomry Bond (No. 16), Mortgage of a Crop (No. 41). Respondentia Bond (No. 56), or Security Bond (No. 57)		
(a) When possession of the property or any part of the property comprised in such deed is given by the mortgagor or agreed to be given	The same duty a conveyance (No. 23), for a consideration equal to the amount secured by such deed.	
(b) When possession of the property or any part of the property comprised in such deed is not given by the mortgagor or agreed to be given.	The same duty a conveyance (No. 23), for a consideration equal to the amount secured by such deed.	
Explanation- A mortgagor who gives to the mortgagee a power of attorney to collects rents or a lease of the property mortgaged or a part thereof is deemed to give possession within the meaning of the article.		
(i) When a collateral or auxiliary or additional or substituted security, or by way or further assurance for the above mentioned purpose where the principal or primary security is duly stamped for every sum secured not exceeding Rs. 1,000.	Three rupees.	
(ii) And for every Rs. 1,000 or part thereof secured in excess of Rs. 1,000	Three rupees	
Exemptions		
(1) Instrument executed by persons taking advances under the Land Improvement Loans Act, 1883 or the Agriculturist's Loan Act, 1884, or by their sureties as security for the		Act XIX of 1883 Act XII of

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repayment of such advances.	
(2) Letter of hypothecation accompanying a bill of exchange.	
(a) When the loan is repayable not more the three months from the date of instrument-	
For every sum secured not exceeding Rs. 200, and	One rupee
For every Rs. 200 or part thereof secured in excess of Rs. 200	One rupee
(b) When the loan is repayable more than three months, but not more than eighteen months from the date of instrument-	
For every sum secured not exceeding Rs. 100 and	One rupee
For every Rs. 100 or part thereof secured in excess of Rs. 100	One rupee
42. NOT ARIAL ACT, that is to say, any instrument, endorsement, note, attestation, certificate or entry not being a protest (No. 15) made or signed by Notary Public in the execution of the duties of his office, or by and other person lawfully acting as a Notary Public See also Protest of Bill or Note (No.15)	Five rupees.
43. NOTE OR MEMORANDUM, sent by a Broker of Agent to his principal intimating the purchase or sale on account of such principal-	
(a) Of any goods exceeding in value twenty rupees.	One rupee
(b) Of any stock or marketable security exceeding in value twenty rupees.	One rupee for every Rs. 5,000 or part thereof of the value of stock or security subject to a maximum of forty rupees.
44. NOTE OF PROTEST BY THE MASTER OF A SHIP- See also protest by the Master of ship (No. 15)	Three rupees.
Order for the payment of money- See Bill of Exchange (No. 13)	
45. PARTITION- Instrument of [as defined by section 2 (5)]	The same duty as a Bond (No. 15) for the amount of

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the value of the separated shares or shares of property.

N.B- The largest share remaining after the property is partitioned or if there are two or more shares of equal value and not smaller than any of the other share than one of such equal (share) shall be deemed to be that from which the other shares are separated;

Provided always that –

(a) When an instrument of partition containing and agreement to divide property in severally is executed and a partition is effected in pursuance of such agreement the duly chargeable upon the instrument affecting such partition shall be reduced by the amount of duty paid in respect of first instrument but shall not be less than three rupees.

(b) Where land is held on revenue settlement for a period not exceeding thirty years and paying the full assessment, the value for the purpose of duty shall be calculated at not more than five times the annual revenue.

(c) Where a final order for effecting a partition passed by any Revenue authority or any Civil Court or an award by an arbitrator directing a partition is stamped with the stamp required for an instrument of partition and an instrument of partition in pursuance of such order or ward is subsequently executed the duty in such instrument shall not

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	exceed three rupees.	
46. PARTNERSHIP		
A- Instrument of-		
(a) Where the capital of the partnership does not exceed Rs. 1,000;	The same duty as a Bond (No. 15)	
(b) In any other case.	Sixty four rupees.	
B – Dissolution of -	Thirty two rupees.	
PAWN OF PLEDGE – See Agreement relating to deposit of Title deeds pawn of pledge (No.6)		
48. POWER OF ATTORNEY (as defined by section 2 (21) not being a XV-		
(i) When executed for the sole purpose of procuring the registration of one or more documents in relation to a single transaction or for admitting execution of one or more such documents;	Three rupees	Act XV of 1882
(ii) When required in suits or proceedings under the presidency small Cause Courts Act, 1882;	Three rupees	
(iii) When authorising one person or more to act in a single transaction other than the case mentioned in clause (a);	Five rupees	
(iv) When authorising not more than five persons to act jointly and severally in more than one transaction or generally;	Twenty four rupees.	
(v) When authorising more than five persons but not more than ten persons to act jointly and severally in more than one transaction or generally;	Forty-eight rupees	
(vi) When given for consideration and authorising the attorney to sell any immovable property;	The same duty as a Conveyance (No. 23) for the amount of the consideration.	
(vii) In any other case.	Four rupees for each authorised.	
Explanation - For the purpose of the Article more persons than one when belonging to the same firm shall be deemed to be one person	N. B- The term "Registration" includes every operation incidental to registration under the Indian Registration Act	Act XVI of 1908

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50. PROTEST OF BILL OR NOTE, that is to say, any declaration in writing made by a Notary public or other person lawfully acting as such is attesting the dishonour of a bill-of-exchange or promissory note.	Five rupees
51. PROTESTING BY THE MASTER OF A SHIP, that is to say, any declaration of the particulars of her voyage drawn up by him with a view to adjustment of losses or the calculation or average and every declaration in writing made by him against the charters or consignees for not loading or unloading the ship, when such declaration is attested or certified by a Notary Public or other person lawfully action as such. See also Not of protest by the Master of a ship (No. 44)	Five rupees
54. RECONVEYANCE OF MORTGAGED PROPERLY-	
(a) If the consideration for which the property was mortgaged does not exceed Rs. 1,000	The same duty as a Conveyance (No. 23) for the amount of the consideration as set forth in the conveyance.
(b)in any other case	Forty eight rupees.
55. RELEASE, that is to say, any instrument (not being such a release as is provided for by section 23- A), whereby a person renounce a claim upon another person or against any specified property-	
(a) if the amount of value of the claim does not exceed Rs. 1,000	The same duty as a Bond (No. 15) for the amount or value as set forth in the release.
(b) in any other case	Twenty four rupees.
56. RESPONDENTIA BOND, that is to say any instrument securing a loan on the cargo laden or, to be laden on Board a ship and making repayment contingent on the arrival of the cargo at the port of destination.	The same duty as a Bond (No. 15) for the amount of the loan secured.

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Description of instrument	Proper stamp duty
REVOCATION OF ANY TRUST ON SETTLEMENT- See settlement (No. 58), Trust (No. 64)	
57. SECURITY BOND OR MORTGAGE DEED, executed by way of security for the due execution of an office, or to account for money or other property received by virtue thereof executed by a surety to secure the due performance of a contact-	
(a) when the amount secured does not exceed Rs. 1,000	The same duty as a Bond (No. 15) for the amount secured.
(b) in any other case	Twenty four rupees.

Exemptions

Bond or other instrument, when executed-	
(a) By headmen nominated under rules framed in accordance with the Bengal Irrigation Act, 1876, section 99, for due performance of their under that Act;	Ben Act III of 1876
(b) By any person for the purpose of guaranteeing that the local income derived from private subscriptions to a charitable dispensary or hospital, or any other object of public utility' specified sum per mensem.	
(c) Under No.—3—A of the rules made by the Government of Bombay in Council under section 70 of the Bombay Irrigation Act, 1879.	Bom Act VIII of 1879
(d) Executed by persons taking advances under the Land Improvement Loans Act, 1883, or the Agriculturist's Loans Act, 1884, or by their sureties, as securities for the repayment of such advance;	Act XIX of 1883
(e) Executed by officers of Government of their sureties to secure the due execution of an Officer or the due accounting for the money or other property received by virtue thereof;	Act XII of 1884

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58. SETTLEMENT- A- Instrument of (including a deed of power)	The same duty as a Conveyance (No. 23) for sum equal to the amount or value of the property settled as set forth in such settlement; Provided that, where an agreement to settle is stamped with the stamp required for an instrument of settlement, and on instrument of settlement in pursuance of such agreement is subsequently executed, the duty on such instrument not shall exceed two rupees.	
Exemptions		
(a) Deed of power executed on occasion of a marriage between Muhammadans.		
(b) Hindus, that is to say, any settlement of immovable property executed by a Budhist in Burma for a religious purpose in which no value has been specified and on which a duty of Rs. 10has been paid.		
B-Revocations of -	The same duty as a Conveyance (No. 23) for a sum equal to the amount or value of the property concerned, as set for in the instrument of revocation, but not exceeding forty rupees.	
See also TRUST (No. 64)		
59.—SHARE WARRANTS to bearer issued under the Companies Act, 1956.	One and a half time the duty payable on conveyance (No. 23) for a consideration equal to the nominal amount of the shares specified in the warrant.	Act I of 1956.
Exemptions		
Share warrant when issued by a Company in pursuance of the Companies Act, 1956, section 114, to have effect only upon payment, as composition for the duty, to the collector of		Act I of 1956.

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Stamp revenue of-	
(a) One-and-a-half per centum of the whole subscribed capital of the company, or	
(b) If any company which has paid the said duty or composition in full, subsequently issues an addition to its subscribed capital one-and-a-half per centum of the additional capital so issued.	
60. SHIPPING ORDER for relating to the conveyance of goods on board of any vessel.	One rupee.
61. SURRENDER OF LEASE-	
(a) When the duty with which the lease is chargeable, does not exceed seven rupees and fifty paise.	The duty with which such leases chargeable.
(b) in any other case	Twenty four rupees
Exemptions	
Surrender lease when such leases is exempted from duty.	
63. TRANSFER OF LEASE By way of Assignment, and not by way of under lease.	The same duty as a Conveyance (No. 23) for a consideration equal to the amount of the consideration for the transfer.
Exemptions	
Transfer of any lease exempt from duty	
64.TRUST—	
A- Declaration of or concerning, any property when made by any writing not being a will.	The same duty as Bond (No. 15) for a sum equal to the amount or value of the property concerned, as set forth in the instrument but not exceeding forty rupees.
B—Revocation of or concerning, property when made by any document other than a will.	The same duty as a Bond (No. 15) for a sum equal to the amount or value of the property concerned, as set forth in the instrument, but not

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	exceeding forty rupees.

See also settlement (No. 58)

Valuation- See Appraisement (No. 8)

65. Warrant for goods, that is to say, any instrument evidencing the title of any person therein named, or his assigns, or the holder thereof, to the property in any goods lying in or upon any dock, warehouse or wharf such instrument being signed or certified by or on behalf of the person in whose custody such goods may be.	Two rupees.

[*Vide* Meghalaya Act 11 of 1990, s. 2]

Amendment of Schedule I of Act 2 of 1899.— In Schedule I, to the Indian Stamp Act, 1899 for Article 1 to 10,12,15 to 20,22 to 26,28,29,31 to 36,38 to 46,48,50,54 to 61 and 63 to 65 the following shall be substituted, namely:-

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"Description of instrument	**Proper stamp duty**
"1 ACKNOWLEDGEMENT of a debt exceeding twenty rupees in amount or value, written or signed by or on behalf of, a debtor in order to supply evidence of such debt in any book (other than a banker's pass book) or on a separate piece of paper when such book or paper is left in the creditor's possession : Provided that such acknowledgement does not contain any promise to pay the debt or any stipulation to pay interest or to deliver any goods or other property.	Two rupees.
"2. ADMINISTRATION-BOND including a bond, given under section 6 of the Government Saving Bank Act, 1873, Act V of 1873 or section 291 or section 376 of the Indian Succession Act, 1925 (Act XXXIX of 1925)-	
(a) Where the amount does not exceeds Rs. 1,000	The same duty as a bond (No. 1) for such amount.
(b) In any other case	Thirty rupees.
"3 ADOPTION-DEED, that is to say any instrument (other than a will) recording an	Sixty rupees

adoption, or conferring or purporting to confer an authority to adopt.	
"4 AFFIDAVIT, including and affirmation or declaration in the case of persons by law allowed to affirm or declare instead of swearing.	Seven rupees
Exemptions	
Affidavit or declaration in writing when made –	
(a) as a condition of enlistment under the Indian Army Act, 1950 (Act XLVI of 1950).	
(b) for immediate purpose of being filed or used in any Court or before the officer of any Court; or	
(c) for the sole purpose of enabling any person to receive any pension or charitable allowance.	
"5 AGREEMENT OR MEMORANDUM OF AN AGREEMENT-	
(a) If relating to the sale of a bill of exchange;	Two rupees
(b) If relating to the sale of a Government security;	Subject to a maximum of sixty four rupees for every Rs.10,000 or part thereof of the value of the security
(c) If relating to the purchase or sale of shares, scrips, stocks bond, debentures, debenture stocks or any other marketable security of a like nature in or of any incorporate company of other body corporate-	
(i) When such agreement or memorandum of an agreement is with or through a Member between members of a Stock Exchange recognised under the Securities Contracts (Regulation) Act, 1956; Act XIIL of 1956.	Two rupees for every Rs. 2,500 or part thereof of the value of the security at the time of its purchase or sale, as the case may be.

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(ii) In other cases;	Rupees two for every Rs. 2,500 or part thereof of the value of the security at the time of its purchase or sale, as the case may be.
(d) If executed for service or for performance of work in any estate whether held by one person, or by more persons than one as co-owners, and whether is one or more blocks, and situated in Meghalaya where the advance given under such agreement does not exceed fifty rupees;	Two rupees
(d) If not, otherwise provided for.	Four rupees

Exemptions

"AGREEMENT OR MEMORANDUM OF AN AGREEMENT-

(a) For or relating to the sale of goods or merchandise exclusively, not being a note or memorandum chargeable under No. 43;
(b) Made in the form of tenders to the Government of India for or relating to any loan-

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"Description of instrument	**Proper stamp duty**
AGREEMENT TO LEASE- Lease (No.35) "6 AGREEMENT RELATING TO DEPOSIT OF TITLE-DEEDS, PAWN OR PLEDGE, that is to say, any instrument evidencing an agreement relating to- (1) The deposit of title-deeds or instruments constituting or being evidence of the title to any property whatever (other than a marketable security), or (2) The pawn or pledge of movable property, where such deposit, pawn or pledge has been made by way of security for the repayment of money advanced or to be advanced by way of loan of an existing or future debt- (a) If such loan or debt is repayable on demand or more than three months from the date of	

instrument evidencing the agreement-	
(i) If the amount of loan does not exceed Rs. 500;	Five rupees
(ii) If it exceeds Rs. 500 and does not exceed Rs. 1,000;	Ten rupees
(iii) And for every Rs. 1,000 or part thereof in excess of Rs. 1,000	Ten rupees
(b) If such loans or debt is repayable not more than three months from the date of such instrument.	Half the duty payable under sub-clause (a)
Exemptions	
Instrument of pawn or pledge of goods if unattested.	
"7. APPOINTMENT IN EXECUTION OF A POWER Whether of trustees or of property, movable or immovable, where made by any writing not being a will-	
(a) Where the value of the property does not exceed Rs. 1,000;	Fifty rupees.
(b) In any other case	Eighty-nine rupees
"8. APPRAISEMENT OR VALUATION made otherwise than under an order of the court in the course of suit-	The same duty as a board (No. 15) or such amount.
(a) Where the amount does not exceed Rs. 1,000	Thirty rupees
(b) In any other case	
Exemptions	
(a) APPRAISEMENT OR VALUATION made for the information of one party only, and not being in any manner obligatory between parties either by agreement or operation of law.	

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(b) Appraisement of crops for the purpose of ascertaining the amount to be given to a landlord as rent.	
"9. APPRENTICESHIP-DEED, including every writing relating to the service or tuition of any apprentice clerk or servant placed with any master to learn any profession, trade or employment.	Thirty rupees.
Exemptions	
Instrument of apprenticeship executed by a Magistrate under the Apprenticeship Act, 1961 (Act LII of 1961) or by, which a person is apprentice by or at the charge of any public charity.	
"10. ARTICLES OF ASSOCIATION OF A COMPANY-	
(a) Where the company has no share capital or the nominal share capital does not exceed Rs. 2,500;	Eighty seven rupees
(b) Where the nominal share capital exceeds Rs. 2,500 but does not exceed Rs. 5,000.	Ninety-nine rupees
(c) Where the nominal share capital exceeds Rs. 5,000 but does not exceeds Rs. 1,00,000	One hundred forty nine rupees
(d) Where the nominal share capital exceeds Rs. 1,00,000	Two hundred ninety eight rupees

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Exemptions

Articles of any association not formed for profit and registered under Section 25 of the Companies Act, 1956 (Act I of 1956). See also memorandum of Association of Company (No. 39).

Note

ASSIGNMENT-See conveyance (No.23). Transfer (no. 62) and Transfer of lease (No. 63), as the case may be.

ATTORNEY-See Power-of-attorney (No. 48)

AUTHORITY TO ADOPT-See Adoption-deed (No. 3)

"12. AWARD, that is to say, any decision in writing by an arbitrator or umpire, not being an award directing a partition, on a reference made otherwise than by an order of the Court in the course of a suit.

"15. BOND (as defined) by section 2 (5), not being a DEBENTURE (No. 27), and not being otherwise provided for by this Act, or by the Court fees Act, 1870 (Act VII of 1870).

The same duty as a Bond (No. 15) for the amount or value of the property to which the award relates as set forth in such award subject to a maximum of Ninety nine rupees

Where the amount or value secured does not exceed Rs. 10.	Two rupees
Where it exceeds Rs. 10 and does not exceed Rs. 50.	Two rupees
Where it exceeds Rs. 50 and does not exceed Rs.100.	Three rupees
Where it exceeds Rs. 100 and does not exceed Rs. 200.	Five rupees
Where it exceeds Rs. 200 and does not exceed Rs. 300.	Eight rupees
Where it exceeds Rs. 300 and does not exceed Rs. 400.	Ten rupees
Where it exceeds Rs. 400 and does not exceed Rs. 500	Fourteen rupees
Where it exceeds Rs. 500 and does not exceed Rs. 600	Eighteen rupees
Where it exceeds Rs. 600 and does not exceed Rs. 700	Twenty two rupees

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Where it exceeds Rs. 700 and does not exceed Rs. 800	Twenty four rupees
Where it exceeds Rs. 800 and does not exceed Rs. 900	Twenty seven rupees
Where it exceeds Rs. 900 and does not exceed Rs. 1000	Thirty rupees
and for every Rs. 500 or part thereof in excess of Rs. 1,000	Seventeen rupees

See Administration Bond (No. 2), Bottomry Bond (No. 16) Customs Bond (No. 26), Indemnity Bond (No. 34), Respondential Bond (No. 56), Security Bond (No. 57)

Exemptions

Bonds when executed by-

(a) Headmen nominated under rules framed in accordance with Bengal Irrigation Act, 1876, (Bengal Act, III of 1876) Section 99, for the due performance of their duties under that Act;

(b) Any person for the purposed of guaranteeing that the local income derived from private subscriptions to a charitable dispensary or hospital or any other object of public utility, shall not be less than a specified sum per mensem.

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"16 BOTTOMRY BOND, that is to say, any instrument where by the master of a sea-going ship borrows money on the security of a ship to enable him to preserve the ship or prosecute her voyage.	The same duty as a Bond (No. 15) for such amount
"17 CANCELLATION, instrument of (including any instrument by which any instrument previously execute is cancelled), if attested and not otherwise provided for.	Thirty rupees

See also RELEASE (No. 55) Revocation of Settlement (No. 58-B), Surrender of Lease (No.61), Revocation of Trust (No. 64-B)

"18 CERTIFICATION OF SALE (in respect of each property put up a separate lot and sold), granted to the purchase of any property sold by public auction by a Civil or Revenue Court, or Collector or other Revenue Officer-	
(a) Where the purchase money does not exceed Rs. 10	Two rupees
(b) Where the purchase money exceed Rs. 10 but does not exceed Rs. 25;	Three rupees
(c) In any other case	The same duty as a conveyance (No. 23), for a consideration equal to the amount of the purchase money only.
"19.CERTIFICATE OR OTHER DOCUMENT, evidencing the right or title of the holder thereof or any other person, either to any shares, scrip or stock in or of any Incorporated company or other body corporate or to become proprietor of shares, scrip or stock in or any such company or body.	Two rupees
See also LETTERS OF ALLOTMENT OF SHARES (No.36)	
"20. CHARTERED PARTY that is to say any instrument (except an agreement for the hire of a tugsteamer), whereby a vessel or some specified principal part thereof is let for the specified purposes of the charterer, whether it includes a penalty clause or not.	Seven rupees
"22. COMPOSITION-DEED, that is to say, any instrument executed by a debtor, whereby the conveys his property for the benefit of his creditors or whereby payment of a composition or divident on their debt is secured to the creditors, or whereby provision is made for the continuation of debtor's business under the supervision of inspectors or under letters of license, for the benefit of his creditors.	Sixty rupees
"23 CONVEYANCE (as defined by section 2(10) not being a Transfer charged or exempted under No. 52-	

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Where the amount or value of the consideration for such conveyance as set forth therein does not exceed Rs.50;	Three rupees
Where it exceeds Rs. 50 but does not exceed Rs. 100;	Five rupees
Where it exceeds Rs. 100 but does not exceed Rs. 200	Nine rupees
Where it exceeds Rs. 200 but does not exceed Rs.300	Thirteen rupees
Where it exceeds Rs. 300 but does not exceed Rs.400	Seventeen rupees
Where it exceeds Rs. 400 but does not exceed Rs.500	Twenty three rupees
Where it exceeds Rs. 500 but does not exceed Rs.600	Twenty seven rupees
Where it exceeds Rs. 600 but does not exceed Rs.700	Thirty two rupees
Where it exceeds Rs. 700 but does not exceed Rs.800	Thirty seven rupees
Where it exceeds Rs. 800 but does not exceed Rs.900	Forty rupees
Where it exceeds Rs. 900 but does not exceed Rs.1000	Forty five rupees
For every Rs.500 or part thereof in excess of Rs. 1,000;	Twenty three rupees
Where it exceeds Rs. 50,000 but does not exceed Rs.90,000	Sixty rupees for every one thousand rupees
Where it exceeds Rs. 90,000 but does not exceed Rs.1,50,000	Eighty rupees for every one thousand rupees
And where it exceeds Rs. 1,50,000;	Ninety-nine rupees for every one thousand rupees

Provided that where the "instrument" or the conveyance is in respect of an industrial Loan certified as such by the Director of Industries Meghalaya the Stamp duty shall be half of the above rate.

Exemptions

Assignment of copyright under the Indian Copyright Act, 1957. (Act XIV of 1957)

CO-PARTNERSHIP DEED see Partnership (No. 46)

"24. COPY OR EXTRACT
Certified to be a true copy or extract or by order of any public officer and not chargeable

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under the law for the time being in force relating to court fees-

(i) If the original was not chargeable with duty, or if the duty with which it was chargeable does not exceed one rupee;	Four rupees
(ii) If any other case not falling within the provision of section 6A	Seven rupees

Exemptions

(a) Copy of any paper which a public officer is expressly required by law to make or furnish for record in any public office or for any public purpose;

(b) Copy of, or extract from any register relating to births, baptisms, naming, dedications marriages, divorce, deaths or burials.

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25. COUNTERPART OR DUPLICATE of any instrument, chargeable with duty and in respect of which the proper duty has been paid-

(a) If the duty with which the original instrument is chargeable does not exceed two rupees;

(b) In any other case not falling within the provisions of section 6A.

Counterpart of any lease granted to a cultivator when such lease is exempted from duty.

26. CUSTOM-BOND-

(a) Where the amount does not exceed Rs.1,000	The same amount as bond (No. 15) for such amount.
(b) In any other case	Forty rupees

28. DELIVERY ORDER IN RESPECT OF GOODS that is to say, any instrument entitling any person therein named, or his assigns or the holder thereof, to the delivery of any goods lying in any dock or port or in any warehouse in which goods are stored or deposited on rent or hire, or upon any wharf, such instrument being signed by or behalf of the owner of such goods upon the sale or transfer of the property therein, when such goods exceed in value twenty rupees.	Two rupees
DEPOSIT OF TITLE DEEDS See agreement relating to Deposit of Title deeds, pawn or Pledge (No. 6).	
DISSOLUTION OF PARTNERSHIP See partnership (No. 46)	
"9. DIVORCE-Instrument of, that is to say, any instrument by which any person effects the dissolution of his marriage.	Twenty rupees
DOWER-Instrument of, see settlement (No. 58)	
DUPLICATE-see counterpart (No. 25)	
"31. EXCHANGE OF PROPERTY-Instrument of.	The same duty as conveyance (No.23) for a consideration equal to the value of the property of greatest value as set forth in such instrument.
EXTRACT-See copy (No. 24)	
"FURTHER CHARGE-INSTRUMENT of, that is to say, any instrument imposing a further charge on mortgaged property-	
(a) When the original mortgage is one of the description referred to in clause (a) of Article No.40 (that is, with possession).	The same duty as a conveyance (No.23) for a consideration equal to the amount of the further charge secured by such instrument.
(b) When such mortgage is one of the	

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description referred to in clause (b) of Article No. 40 (that is, without possession):-	
(i) If at the time of execution of the instrument of further charge possession of the property is given or agreed to be given under such instrument	The same duty as a conveyance (No.23) for a consideration equal to the total amount of the total amount of the charge (including the original mortgage and any further charge already made), less the duty already paid on such original mortgage and further charge.
(ii) If possession is not so given	The same duty as a Bond (No.15) for the amount of the further charge secured by such instrument.
"33. GIFT-Instrument of not being a settlement (No. 58), or will or Transfer (No. 62)	The same duty as a conveyance (No.23) for a consideration equal to the value of the property as set forth in such instrument.
HIRING AGREEMENT- Or agreement for service, see agreement (No.5)	
"34. INDEMNITY BOND.	
INSPECTORSHIP DEED; see composition-Deed No. 22	The same duty as a security Bond (No. 57) for the same amount.
"35. LEASE-including and under lease or sub-lease and any agreement to let or sub-let:-	
(a)Whereby such lease the rent is fixed and no premium is paid or delivered:-	
(i) Where the lease purports to be for a term of less than one year;	The same duty as a Bond (No. 15) for the whole amount payable or deliverable under such lease.
(ii) Where the lease purports to be for a term of not less than one year but not more than five years;	The same duty as a Bond (No.15) for the amount or value of the average annual rent reserved.

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(iii) Where the lease purports to be for a term exceeding five years and not exceeding ten years;	The same duty as a conveyance (No.23) for a consideration equal to the amount or value of the average annual rent reserved
(iv) Where the lease purports to be for a term exceeding ten years and not exceeding twenty years;	The same duty as a conveyance (No.23) for a consideration equal to twice the amount or value of the average annual rent reserved.
(v) Where the lease purports to be for a term exceeding twenty years and not exceeding thirty years;	The same duty as a conveyance (No.23) for a consideration equal to three times the amount or value of the average annual rent reserved.
(vi) Where the lease purports to be for a term exceeding thirty years and not exceeding one hundred years;	The same duty as a conveyance (No.23) for a consideration equal to four times the amount or value of the average annual rent reserved.
(vii) Where the lease purports to be for a term exceeding one hundred years or in perpetuity;	The same duty as a conveyance (No.23) for a consideration equal in the case of a lease granted solely for agricultural purpose to one-tenth and in any other case to one sixth of the whole amount of rents which would be paid or delivered in respect of the first fifty years of the lease.
(viii) Where the lease does not purport to be for any definite term;	The same duty as a conveyance (No.23) for a consideration equal to three times the amount or value of the average annual rent which would be paid or delivered for the first ten years if the lease continued so long.
(b)Where the lease is granted for a fine or premium, or for money advanced and where no rent is reserved;	The same duty as a conveyance (No.23) for a consideration equal to the amount or value of such line premium or advance as set forth in the lease.
(c) Where the lease is granted for a fine or premium, or for money advanced in additions to rent reserved;	The same duty as a conveyance (No.23) for a consideration equal to the amount or value of such line premium or advance as set forth in the lease in addition to the duty which would have been payable such

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	lease, if no fine or premium or advance had been paid or delivered: Provided that, in any case when an agreement to lease is stamped with the advolorem stamp required for a lease, and a lease in pursuance of such agreement is subsequent executed the duty on such lease shall not exceed one rupee and fifty five paise.
Exemption	
Lease, executed in the case of cultivator and for the purpose of cultivation (including a lease of trees for the production of food or drinking), without payment or delivery of any fine or premium when a definite term is expressed and such term does not exceed one year, or when the average annual rent received does not exceed one hundred rupees. In this exemption a lease for the purpose of cultivation shall include a lease of lands for cultivation together with a home stand or tank. Explanation:- When a lease under takes to pay any recurring charge, such as Government revenue, land lord's share of cesses, or the owner's share of Municipal rates or taxes, which is by law recoverable from the lessor, the amounts so agreed to be paid by the lesse shall be deemed to be part of the rent .	Two rupees
"36. LETTER OF ALLOTMENT OF SHARES; in any company or proposed company or in respect of any loan to be raised by any company or proposed company. See also CERTIFICATE OR OTHER DOCUMENT (No.19).	Forty rupees
"38.LETTER OF LICENSE, that is to say any agreement between a debtor and his creditors that the letter shall, for a specified time suspend their claims and allow the debtor to carry on business at his own discretion.	
"39.MEMORANDUM OF ASSOCIATION OF A COMPANY-	
(a) If accompanied by articles of association under section 26 of the Companies Act, 1956	One hundred nineteen rupees (Act I of 1956)

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(b) If not so accompanied	
(i) Where the normal share capital does not exceed one lakh of rupees	Two hundred ninety eight rupees.
(ii) Where the nominal share capital exceeds one lakh of rupees	Four hundred ninety five rupees.
Exemption	
Memorandum of any association not formed for profit and registered under Section 25 of the Companies Act, 1956	(Act. I of 1956)
"40. MORTGAGE-DEED not being an Agreement relating to Deposit of Title Deeds, Pawn or pledge (No. 6) Bottomry Bond (No.16), Mortgage of a Crop (No.41), Respondentia Bond (No.56) of Security Bond (No.57).	
(a) When possession of the property or any part of the property comprise in such deed is given by the mortgagor or agreed to be given;	The same duty as a conveyance (No.23) for a consideration equal to the amounts secured by such deed.
(b) When possession of the property or any part of the property comprise in such deed is not given by the mortgagor nor agreed to be given;	The same duty as a Bond (No.15) for the amount secured by such deed
Explanation-A mortgagor who gives to the mortgagee a power of attorney to collect rents or a lease of the property mortgaged or a part thereof is deemed to give possession within the meaning of this article.	
(c) (i)When a collateral or auxiliary or additional or substituted security, or by way of further assurance for the above mentioned purpose where the principal or primary security is duly stamped for every sum secured not exceeding Rs.1,000	Four rupees
(ii) And for every Rs.1,000 or part thereof secured in excess of Rs. 1,000	Four rupees
Exemption	

IndiaCode

(1) Instrument executed by persons taking advance under the Land Improvement Loans Act. 1883, or the Agriculturist's Loan Act, 1884.) or by their sureties as security for the repayment of such advance.	(Act XIX of 1883)
(2) Letter of the hypothecation accompanying a bill of exchange.	
"41. MORTGAGE OF CROP, in including any instrument evidencing an agreement to secure the repayment of a loan made upon any mortgage of a crop, whether the crop is or is not in existence at the time of the mortgage-	
(a) When the loan is repayable not more than three months from the date of the instrument.	
For every sum secured not exceeding Rs.200 and	Two rupees
For every Rs.200 of part thereof secured in excess of Rs.200	Two rupees
(b) When the loan is repayable more than three months, but not more than eighteen months from the date of instrument-	
Exemption	
"42.NOTARIAL ACT, that is to say any instrument, endorsement, note, attestation, certificate or entry not being a protest (No.50) made or signed by a Notary Public in the execution of the duties of his office, or by the other person lawfully acting as a Notary Public.	Seven rupees
See also protest of Bill or Note (No.50).	
"43. NOTE OR MEMORANDUM, sent by a Broker or Agent to his principal intimating the purchase or sale on account of such principal-	Two hundred ninety eight rupees.
(a) Of any goods exceeding in value twenty rupees;	Two rupees
(b) Of any stock or marketable security exceeding in value twenty rupees.	Two rupees for every Rs.5,000 or part thereof of the value of the stock or security subject to a maximum of forty rupees

IndiaCode

"44. NOTE OF PROTEST BY THE MASTER OF A SHIP- See also protests by the master of ship (No.51).	
Order for the payment of money- See Bill Exchange (No.13).	
"45. PARTITION- Instrument of [as defined by section 2 (15)]	The same duty as a Bond (No.15) for the amount of the value of the separated shares or shares of the property. **N.B**- The largest share remaining after the property is partitioned or if there are two or more shares of equal value and not smaller than any of the other share than one of such equal (share) shall be deemed to be that from which the other shares are separated. Provided always that- (a) When an instrument of partition containing an agreement to divide property in severally is executed and a partition is affected in pursuance of such agreement the duty chargeable upon the instrument affecting such partitions shall be reduced by the amount of duty paid in respect of first instrument but shall not be less than four rupees. (b) Where land is held on revenue settlement for a period not exceeding thirty years and paying the full assessment the value for the purpose of duty shall be calculated at not more than five times the annual revenue. (c) Where a final order for affecting a partition passed by any Revenue authority or any Civil Court or an award by an arbitrator directing a partition, is stamped with the stamp required for an instrument of partition and an instrument of partition in pursuance of such order or award is subsequently executed duty in such instrument shall not exceed four rupees.

IndiaCode

46. PARTNERSHIP A-Instrument of-	
(a) Where the capital of the partnership does not exceed Rs.1,000	The same duty as a Bond (No. 15)
(b) In any other case	Eighty rupees
B.-Dissolution of-	Forty rupees
Pawn or pledge-See Agreement relating to Deposit of Title-deeds pawn or pledge (No.6)	
"48. POWER OF ATTORNEY (as defined by section 2(21) not being a proxy-	
(a) When executed for the sole purpose of procuring the registration of one or more documents in relation to a single transaction or for admitting execution of one or more such documents;	Four rupees
(b) When required in suits or proceedings under the presidency small Cause Courts Act, 1882.	Four rupees ACT XV of 1882
(c) When authorising one person or more to act in a single transaction other than the case mentioned in clause (a);	Seven rupees
(d) When authorising not more than five persons to act jointly and severally in more than one transaction or generally;	Thirty rupees
(e) When authorising more than five persons but not more than ten persons to act jointly and severally in more than one transaction or generally;	Sixty rupees.
(f) When given for consideration and authorising the attorney to sell any immovable property;	The same duty as a Conveyance (No.23) for the amount of the consideration
(g) In any other case	Five rupees for each person authorised
Explanation-for the purpose of these Article More persons than one when belonging to the same firm shall be deemed to be one person. N.B.-the term "Registration" includes every operation incidental to registration under the Indian Registration Act, 1908 (ACT XVI of 1908).	

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"50. PROTEST OF BILL OR NOTE, that is to say, any declaration in writing made by a Notary public or other person lawfully acting as such, attesting the dishonour of a bill-of-exchange or promissory note.	Seven rupees.
"51. PROTEST BY THE MASTER OF A SHIP, that is to say, any declaration of the particular of her voyage drawn up by him with a view to adjustment of losses or the calculation of averages and every declaration in writing made by him against the charters or consignees for not loading or unloading the ship, when such declaration is attested or certified by a Notary Public or other person lawfully acting as such.	Seven rupees
"54. RECONVEYANCE OF MORTGAGED PROPERTY-	
(a) If the consideration for which the property was mortgaged does not exceed Rs.1,000	The same duty as conveyances (No. 23) for the amount of such consideration as set forth in the conveyance.
(b) In any other case	Sixty rupees
"55.RELEASE, that is to say, any instrument (not being such a release as is provided for by section 23-A),where by a person renounces a claim upon another person or against specified property-	
(a) If the amount of value of the claim does not exceed Rs.1,000;	The same duty as a Bond (No.15) for such or value as set forth in the release.
(b) In any other case	Thirty rupees
"56. RESPONDENTIA BOND, that is to say, any instrument securing a loan on the cargo laden or to be laden on board a ship and making repayment contingent on the arrival of the cargo at the port of destination.	The same duty as a Bond (No.15), for the amount of the loan secured.
REVOCATION OF ANY TRUST OR SETTLEMENT- See settlement (No.58), Trust (No.64)	

IndiaCode

"57. SECURITY BOND OR MORTGAGE DEED, executed by way of security for the due execution of an office, or to account for money or other property received by virtue thereof or executed by a secure the due performance of a contract-	
(a) When the amount secured does not exceed Rs.1,000	The same duty as a Bond (No.15) for the amount secured.
(b) In any other case.	Thirty rupees

Exemption

Bond or other instrument, when executed-

(a) By headman nominated under rules framed in accordance with the Bengal Irrigation Act, 1876, (Ben. Act III of 1876) section 99, for due performance of their duties under that Act;

(b) By any person for the purpose of guaranteeing that the local income derived from private subscription to a charitable dispensary or hospital, or any other object of public utility, specified sum per mensem.

(c) Under No.-3-A of the rules made by the Government of Bombay in Council under section 70 of the Bombay Irrigation Act, 1879; (Bom. Act VII of 1879)

(d) Executed by persons taking advances under the Land Improvement Loans Act, 1883, (Act XIX of 1883) or the Agriculturist's Loans Act, 1884, (Act XII of 1884) or by their sureties, as sureties, as securities for the repayment of such advance;

(e) Executed by officers of Government or their sureties to secure the due execution of an Office or the due accounting for money or other property received by virtue thereof;

"58 SETTLEMENT- A-Instrument of (including a deed of power)	The same duty as a conveyance (No.23) for a sum equal to the amount or value of the property settled as set forth in such settlement; Provided that, where an agreement to settle is stamped with the stamp required for an instrument of settlement, and on instrument of settlement in pursuance of such agreement is subsequently executed, the duty on such instrument shall not exceed three rupees.

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Exemption

(a) Deed of power executed on the occasion of a marriage between Muhammadans.

(b) Hindus, that is to say, any settlement of immovable property executed by a Buddhist in Burma for a religious purpose in which no value has been specified and on which a duty of Rs.10 has been paid.

B-revocation of-	The same duty as a conveyance (No.23) for a sum equal to the amount or value of the property concerned, as set for in the instrument of revocation, but not exceeding forty rupees.
See also TRUST (No.64) "59-SHARE WARRANTS to bearer issued under the Company Act, 1956, (Act I of 1956)	One-and-a-half time the duty payable on conveyance (No.23) for a consideration equal to the nominal amount of the shares specified in the warrant.

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Exemptions

Share warrant when issued by a Company in pursuance of the Companies Act, 1956, (Act I of 1956.) section 114, to have effect only upon payment, as composition for duty, to the collector of stamp revenue of—

(a) One-and-a-half per centum of the Whole subscribed capital of the company, or

(b) If any of the company which has paid the said duty or composition in full, subsequently issues an addition to its subscribed capital one-and-a-half per centum of the additional capital so issued.

"60-SHIPPING ORDER for or relating to the conveyance of goods on board of any vessel.	Two rupees
"61-SURRENDER OF LEASE-	
(a) When the duty with which the lease is chargeable, does not exceed seven rupees and fifty paise.	The duty with which such lease is chargeable.
(b) In any other case	Thirty rupees.

Exemptions	
Surrender of lease, when such lease is exempted from duty.	
"63-TRANSFER OF LEASE By way of Assignment, and not by way of under lease.	The same duty as a conveyance (No.23) for a consideration equal to the amount of the consideration for the transfer.
Exemptions	
Transfer of any lease exempt from duty.	
"64.TRUST- A-declaration of or concerning, any property when made by any writing not being a will.	The same duty as a Bond (No.15) for a sum equal to the amount or value of the property concerned, as set forth in the instrument but not exceeding fifty rupees.
B-Revocation of or concerning property when made by any document other than a will.	The same duty as a Bond (No.15) for a sum equal to the amount or value of the property concerned, as set forth in the instrument but not exceeding fifty rupees.
See also Settlement (No.58) Valuation-See Appraisement (No.8)	
"65. Warrant for goods, that is to say, any instrument evidencing the title of any person therein named, or his assigns, or the holder thereof, to the property in any goods lying in or upon any dock, warehouse or wharf, such instrument being signed or certified by or on behalf of the person in whose custody such goods may be.	Three rupees

[*Vide* Meghalaya Act 5 of 1993, s. 2]

Amendment of Schedule – I.—In Articles 35 to schedule 1 of the Indian Stamp Act, 1899, (as amended by Meghalaya) after entry No. (c), new entry (d) shall be inserted as follows,-

Description of Instrument	**Proper stamp duty**
"d. Where lease is granted for mining of minerals:	

(i) Where the lease is granted for more than one year and not exceeding ten years	One rupee for every hundred rupees of the total amount of the average annual royalty payable calculated on the highest annual extraction of minerals as per approved mining plan.
(ii) Where the lease is granted for more than ten years and not exceeding twenty years	Two rupees for every hundred rupees of the total amount of the average annual royalty calculated on the highest annual extraction of minerals as per approved mining plan.
(iii)Where the lease is granted for more than twenty years and not exceeding thirty years	Three rupees of every hundred rupees of the total amount of the average annual royalty payable calculated on the highest annual extraction of minerals as per approved mining plan.
(iv)Where the lease is granted for more than thirty years and not exceeding fifty years.	Four rupees for every hundred rupees of the total amount of the average annual royalty payable calculated on the highest annual extraction of minerals as per approved mining plan."

[*Vide* Meghalaya Act 6 of 2020, s. 2]

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Arunachal Pradesh

Amendment of Schedule-1 of Act No. 2 of 1899.—In the Indian Stamp Act, 1899 in Schedule-I (except for Item Nos. 13, 14, 27, 37, 47,49, 52, 53, 56, 62) for Item Nos 1, 2, 3, 4, 5, 6, 7, 8, 9, 10, 11, 12,15, 16, 17, 18, 19, 20, 22, 23, 24, 25, 26, 28, 29, 30, 31, 32, 33, 34, 35, 36, 38, 39, 40, 41, 42, 43, 44, 45, 46, 48, 50, 51, 54, 55, 57, 58, 59, 60, 61, 63, 64 and 65, the following shall be substituted, namely:—

Schedule - 1

Item No.	Description of Instrument	Proper Stamp-Duty
1	2	3
1.	ACKNOWLEDGEMENT of a debt exceeding twenty rupees in amount or value, written or signed by, or on behalf of, a debtor in order to supply evidence of such debt in any book (other than a banker's Pass-Book) or on a separate piece of paper when such book or paper is left in the creditor's possession; Provided that such acknowledgement does not contain any promise to pay the debt or any stipulation to pay interest or to deliver any goods or other property.	₹ 20.00
2.	ADMINISTRATION-BOND including a bond given under section 256 of Indian Succession Act, 1865 (10 of 1865), section 6 of the in all cases. Government Saving Bank Act, 1873, (5 of 1873), section 78 of the Probate and Administration Act, 1881 (5 of 1881), or section 9 or section 10 of the Succession Certificate Act, 1889 (7	₹ 50.00 in all cases

	of 1889).	
3.	ADOPTION-DEED, that is to say, any instrument (other than a will) recording an adoption or conferring or purporting to confer an authority to adopt. ADVOCATE, see Entry as an Advocate (No. 30)	₹ 100.00
4.	AFFIDAVIT including an affirmation or declaration in the case of person by law allowed to affirm or declare instead of swearing.	₹ 10.00
	Exemptions	
	Affidavit or declaration in writing when made-	
	(a) as a condition of enrolment under the Indian Army Act, 1911 (8 of 1911) or the Indian Air Force Act, 1932 (14 of 1932);	
	(b) for the immediate purpose of being filed or used in any Court; or before he officer or any court; or	
	(c) for the sole purpose of enabling any person to receive any pension or charitable allowance.	
5.	AGREEMENT OR MEMORANDUM OF AGREEMENT	
	(a) if relating to the sale of a bill of exchange;	₹ 5.00
	(b) if relating to the sale of a Government security of share in an incorporated company or other body Corporate;	Subject to maximum of every ₹ 10,000 or part thereof of the value of security or share.
	(c) If relating to purchase or sale of shares, scripts, stocks, bonds, deben-tures, debenture stocks or any other marketable security of a like nature in or any incorporated company or other body corporate-	
	(i) When such agreement or memorandum of an agreement is with or through a member or between members of a stock exchange Recognized under the Securities Contracts (Regulation) Act, 1956.	Three rupees for every ₹ 5,000 or part thereof of the value of the security at the time of its purchase or sale as the case may be.
	(ii) in other cases	Five rupees for every Rs. 5,000 or part thereof of the value of the security at the time of its purchase or sale as the case may be.
	(d) If executed for service or for performance of work in any estate whether held by one person or by more persons than one as co-owner and whether in one or more blocks and situated in Arunachal Pradesh where the advance given under such agreement does not exceed one thousand rupees.	₹ 5.00
	(e) If not, otherwise provided for	₹10.00
	Exemptions	

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	Agreement or memorandum of agreement—	
	(a) for or relating to the sale of goods or merchandise exclusively not being a NOTE OR MEMORANDUM chargeable under No. 43;	
	(b) made in the form of tenders to the Central Government for or relating to any loan ; Agreement to Lease : See Lease (No. 35)	
6.	AGREEMENT RELATING TO DEPOSIT OF TITLE-DEEDS, PAWN OR PLEDGE, that is to say, any instrument evidencing an agreement relating to- (1) the deposit of title-deeds or instruments constituting of being evidence of the tile to any property whatever (other than a marketable security); or (2) the pawn or pledge of movable property; where such deposit, pawn or pledge has been made by way of security for the repayment of money advanced or to be advanced by way of loan or an existing or future debt,-	
	(a) if such loan or debt is repayable on demand or more than three months from the date of the instrument evidencing the agreement.	
	(i) if the amount of the loan does not exceed ₹ 500	₹ 50.00
	(ii) if it exceeds ₹ 500 and does not exceed ₹ 1000 and	₹ 50.00
	(iii) for every ₹ 1000 or part thereof in excess of ₹1000	₹ 10.00
	(b) if such loan or debt is repayable not more than three months from the date of such instrument.	Half the duty payable under sub-clause (a)
7.	APPOINTMENT IN EXECUTION OF A POWER, whether of trustees or of property, movable or immovable, where made by any writing not being a will.	
	(a) where the value of the property does not exceed ₹ 1,000.	₹ 41.25
	(b) In any other case	₹74.25
8.	APPRAISEMENT OR VALUATION made otherwise than under an order of the Court in the course of a suit,	
	(a) where the amount does not exceed ₹1,000.	The same duty as bond (15) for such amount.
	(b) in any other case	₹50.00 in all cases.

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	Exemptions (a) Appraisement or valuation made for the information of one party only, and not being in any manner obligatory between parties either by agreement or operation of law. (b) Appraisement of crops for the purpose of ascertaining the amount to be given to a landlord as rent.	
9.	APPRENTICESHIP-DEED, including every writing relating to the service or tuition of any apprentice, clerk or servant, placed with any master to learn any profession, trade or employment not being Articles of Clerkship (No. 11). **Exemption-** Instruments of apprenticeship executed by a Magistrate under the Apprentices Act, 1961 (52 of 1 961) I or by which a person is apprenticed by or at the charge of any public-charity.	₹50.00
10.	ARTICLE OF ASSOCIATION OF A COMPANY.	
	(a) where the company has no share capital or the nominal share capital does not exceed ₹ 2,500;	₹ 100.00
	(b) where the nominal share capital exceeds ₹ 2,500 but does not exceed ₹ 5,000;	₹150.00
	(c) where the nominal share capital exceeds ₹ 5,000 but does not exceed ₹ 1,00,000;	₹300.00
	(d) where the nominal share capital exceeds ₹ 1,00,000. **Exemptions-** Articles of any Association not formed for profit and registered under section 25 of the Companies Act, 1956. See also Memorandum of Association of a Company (No. 39).	₹500.00
11.	ARTICLE OF CLERKSHIP or contract whereby any person first becomes bound to serve as a clerk in order to his admission as an attorney in any High Court.	₹ 100.00
12.	AWARD, that is to say, any decision in writing by an arbitrator or umpire not being an award directing a partition, on a reference made otherwise than by an order of the Court in the course of a suit-	
	(a) where the amount or value of the property to which the award relates as set forth in such award does not exceed ₹ 1,000.	The same duty as a Bond (No.15) for such amount.
	(b) in any other case	₹ 5.00
13.	BILL OF EXCHANGE [as defined by section 2(2) not being a BOND, bank-note or currency note [(b) where payable otherwise than on demand- (i) Where payable not more than three months after date	

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	or sight-	
	(a) if the amount of the bill or note does not exceed ₹ 500;	30 paise
	(b) it exceeds ₹ 500 but does not exceed ₹ 1,000;	60 paise
	(c) and for every additional ₹ 1,000 or part thereof in excess of ₹ 1,000;	60 paise
	(ii) where payable more than three months but not more than six months after date or sight	
	(a) if the amount of the bill or note does not exceed ₹ 500;	60 paise
	(b) if it exceeds ₹ 500 but does not exceed ₹ 1000;	₹ 1 and 20 paise
	(c) and for every additional ₹ 1,000 or part thereof in exceeds of ₹ 1000:	₹ 1 and 20 paise
	(iii) where payable more than six months but not more than nine months after date of sight-	
	(a) if the amount of the bill or note does not exceed ₹ 500;	90 paise
	(b) if it exceeds ₹ 500 but does exceed ₹ 1,000;	₹ 1 and 80 paise
	(c) and for every additional ₹ 1,000 or part thereof in exceeds of ₹ 1,000;	₹ 1 and 80 paise
	(iv) where payable more than nine months but not more than one year after date or sight-	
	(a) if the amount of the bill or note does not exceed ₹ 500;	₹1 and 25 paise
	(b) if it exceeds ₹ 500 but does not exceed ₹ 1,000	₹ 2 and 50 paise
	(c) and for every additional ₹ 1,000 or part thereof in exceeds of ₹ 1 ,000;	₹ 2 and 50 paise
	(v) where payable at more than one year after date or sight-	
	(a) if the amount of the bill or note does not exceed ₹500;	₹ 2 and 50 paise ₹ 5 ₹ 5
	(b) if it exceed ₹ 500 but does not exceed ₹ 1,000;	₹ 1
	(c) and for every additional ₹ 1 ,000 or part thereof in excess of ₹ 1,000	
14.	BILL OF LADING {including a through bill of lading) Exemptions-	₹ 1
	(a) Bill of lading when the goods therein described are received at a place within the limits of any port as defined under the Indian Ports Act, 1889 (10 of 1889), and are to be delivered at another place within the limits of the same port.	N.B.-If a bill of lading drawn in parts, the proper stamp therefore must be borne by each one of the set.
15.	BOND (as defined by section 2(5) not being a Debenture (No-27) and not being otherwise provided for by this Act, or by the Court Fees Act, 1870 (7 of 1870).	
	(i) where the amount or value secured does not exceed ₹ 10	₹2.00

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	(ii) Where it exceeds ₹ 10 and does not exceed ₹ 50	₹2.00
	(iii) Where it exceeds ₹ 50 and does not exceed ₹ 100	₹3.00
	(iv) Where it exceeds ₹ 100 and does not exceeds ₹20	₹5.00
	(v) Where it exceeds ₹ 200 and does not exceeds ₹300	₹8.00
	(vi) Where it exceeds ₹ 300 and does not exceeds ₹ 400	₹ 10.00
	(vii) Where it exceeds ₹ 400 and does not exceeds ₹ 500	₹ 14.00
	(viii) Where it exceeds ₹500 and does not exceeds ₹ 600	₹ 18.00
	(ix) Where it exceeds ₹ 600 and does not exceeds 8s.700	₹22.00
	(x) Where it exceeds ₹ 700 and does not exceeds Bs. 800	₹24.00
	(xi) Where it exceeds ₹ 800 and does not exceeds Bs. 900	₹27.00
	(xii) Where it exceeds ₹ 900 and does not exceeds ₹ 1000	₹30.00
	(xiii) and for every ₹ 500 or part thereof in excess of ₹ 1000	₹7.00
	See Administration-Bond (No. 2) Bottomry Bond (No. 16), Customs Bond (No. 26), Indemnity Bond (No. 34), Respondentia Bond (No. 56} Security Bond (No. 57)	
	Exemptions - Bond, when executed by-	
	(a) headmen nominated under rules framed in accordance with the Bengal Irrigation Act, 1876, Section 99 for the due performance of their duties under that Act].	
	(b) any person for the purpose of guaranteeing that the local income, derived from private subscriptions to a charitable dispensary or hospital or any other object of public utility shall not be less than a specified sum per mensem.	
16.	BOTTOMRY BOND, that is to say, any instrument whereby the master of a sea-going ship borrows money on the security of the ship to enable him to preserve the ship or prosecute her voyage.	The same duty as a Bond (No. 15) for the same amount;
17.	CANCELLATION - Instrument of (including any instrument by which any instrument previously executed is cancelled), if attested and not otherwise provided for. See also Release (No. 55), Revocation of Settlement (No. 58-B), Surrender of Lease (No. 61), Revocation of Trust (No. 64-B).	₹50.00
18.	CERTIFICATE OF SALE (in respect of each property put up as a separate lot and sold) granted to the	

	purchaser of any property sold by public auction by a Civil or Revenue Court, or Collector of other Revenue Officer-	
	(a) Where the purchase-money does not exceed ₹ 10;	₹2.00
	(b) Where the purchase money exceeds ₹ 10 but does not exceed ₹ 25;	The same duty as a Conveyance (No. 23) for a consideration equal to the amount of the purchase money only.
	(c) in any other case.	
19.	CERTIFICATE OR OTHER DOCUMENT evidencing the right or title of the holder thereof, or any other person, either to any shares, scrip or stock in or of any incorporated company or other body corporate, or to become proprietor of shares, scrip or stock in or of any such company or body. See also Letter of Allotment of Shares (No. 36)	₹ 5.00
20.	CHARTER PARTY that is to say, any instrument (except an agreement for the hire of a tug-steamer) whereby a vessel or some specified principal part thereof is let for the specified purposes of the charterer, whether it includes a penalty clause or not.	₹ 15.00
21.	Omitted.	
22.	Composition-deed, that is to say, any instrument executed by a debtor whereby he conveys his property for the benefit of his creditors or whereby payment of a composition or dividend on their debts is secured to the creditors, or whereby provision is made for the continuance of the debtor's business, under the supervision of inspectors or under letters of license for the benefit of his credito₹	₹ 100.00
23.	Conveyance (as defined by section 2(10), not being a Transfer charged or exempted under No.62, - where the amount or value of the consideration for such conveyance as set forth therein does not exceed ₹ 1000.00	₹ 50.00
	(i) Where it exceeds ₹ 1000 but does not exceed ₹ 10,000	3%
	(ii) Where it exceeds ₹ 10,000 but does not exceed ₹ 1 ,00,000	2%
	(iii) Where it exceeds ₹ 1,00,000 but does not exceed ₹ 3,00,000	1%
	(iv) Where it exceeds ₹ 3,00,000 but does not exceed ₹ 5,00,000	2%
	(v) ₹ 5,00,000 and above.	3%
	Exemptions-	
	[(a)] Assignment of copyright by entry made under the Indian Copyright Act, 1847 (now the Copy right Act, 1957), Section 5.	
	[(b) For the purpose of this article, the portion of duty	

	paid in respect of a document falling under article No. 23A shall be excluded while computing the duty payable in respect of a corresponding document relating to the completion of the transaction in any union territory under this article.]	
	Co-partnership-deed—See partnership (No. 46)	
23A.	Conveyance in the nature of part performance Contracts for the transfer of immovable property in the nature of part performance in any union territory under section 53A of the Transfer of Property Act, 1882 (4 of 1882).	Ninety per cent of the duty as conveyance (No.23).
24.	COPY OR EXTRACT, - Certified to be a true copy or extract, or by order of any public officer and not chargeable under the law for the time being in force relating to court fees-	
	(i) if the original was not chargeable with duty or if the duty with which it was chargeable does not exceed one rupee;	₹5.00
	(ii) in any other case ;	₹ 10.00
	Exemption:	
	(a) Copy of any paper which a public officer is expressly required by law to make or furnish for record in any public office or for any public purpose.	
	(b) Copy of, or extract from, any register relating to births, baptisms, namings, dedications, marriages, divorces, deaths or burials.	
25.	COUNTERPART OR DUPLICATE of any instrument chargeable	
	with duty and in respect of which the proper duty has been paid,	
	(a) if the duty with which the original instrument is chargeabledoes not exceed one rupee.	The same duty as is payable on the original.
	(b) In any other case.	₹10.00
	Exemptions: Counterpart of any lease to a cultivator when such lease is exempted from duty.	
26.	CUSTOMS BOND	
	(a) where the amount does not exceed ₹ 1000;	The same duty as a Bond (No. 15) for such amount.
	(b) in any other case	₹ 50.00
27.	DEBENTURES (where a mortgage debenture or not), being a marketable security transferable-	
	(a) by endorsement or by a separate instrument of transfer	
	(i) where the amount or value does not exceed ₹ 10;	10 paise
	(ii) where it exceeds ₹ 10 and does not exceed ₹ 50	20 paise
	(iii) Ditto 50 ditto 100	30 paise
	(iv) Ditto 100 ditto 200	75 paise
	(v) Ditto 200 ditto 300	₹ 1 and 10 paise
	(vi) Ditto 300 ditto 400	₹ 1 and 50 paise
	(vii) Ditto 400 ditto 500	₹ 1 and 80 paise
	(viii) Ditto 500 ditto 600	₹ 2 and 25 paise

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	(ix) Ditto 600 ditto 700	₹ 2 and 60 paise
	(x) Ditto 700 ditto 800	₹ 3 and 40 paise
	(xi) Ditto 800	₹ 3 and 75 paise
	(xii) ditto 900	₹ 1 and 85 paise
	(xiii) and for every ₹ 500 or part thereof in excess 1000	₹ 3
	(b) by delivery	
	(i) where the amount or value of the consideration for such debenture as set forth therein does not exceed ₹ 50	35 paise
	(ii) where it exceeds ₹ 50 but does not exceed ₹ 100	75 paise
	(iii) Ditto 100 ditto 200	₹ 1 and 50 paise
	(iv) Ditto 200 ditto 300	₹ 2 and 25 paise
	(v) Ditto 300 ditto 400	₹3
	(vi) Ditto 400 ditto 500	₹ 3 and 75 paise
	(vii) Ditto 500 ditto 600	₹ 4 and 50 paise
	(viii) Ditto 600 ditto 700	₹ 5 and 25 paise
	(ix) Ditto 700 ditto 800	₹ 6
	(x) Ditto 800 ditto 900	₹ 6 and 75 paise
	(xi) Ditto 900 ditto 1,000	₹ 7 and 50 paise
	(xii) and for every ₹ 500 or part thereof in excess of ₹1000	₹ 3 and 75 paise
	Explanation- The term "Debenture" includes any interest coupons attached thereto but the amount of such coupons shall not be included in estimating the duty. Exemption- A debenture issued by an incorporated company or other body corporate in terms of a registered mortgage-deed, duly stamped in respect of the full amount of debentures to be issued there under, whereby the company or body borrowing makes over, in whole or in part, their property to trustees for the benefit of the debenture holders: Provided that the debentures so issued are expressed to be issued in terms of the said mortgage-deed. DECLARATION OF ANY TRUST. See TRUST (No. 64)	
28.	DELIVERY-ORDER IN RESPECT OF GOODS, that is to say, any instrument entitling any person therein named, or his assigns or the holder thereof, to the delivery of any goods lying in any dock or port, or in any warehouse in which goods are stored or deposited on rent or hire, or upon any wharf, such instrument being signed by or on behalf of the owner of such goods upon the sale or transfer of the property therein, when such goods exceeds in value twenty rupees.	₹2.00
29.	DIVORCE-Instrument of, that is to say, any instrument by which any person effects the dissolution of his marriage.	₹50.00

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30.	ENTRYAS AN ADVOCATE VAKIL OR ATIOBNEY ON THE ROLE OF ANY HIGH COURT (under the Indian Bar Councils Act, 1926, or in exercise of powers conferred on such court by Letters, Patent or by the Legal Practitioners Act, 1884- (a) in the case of an Advocate or Vakil (b) in the case of an Attorney **Exemptions:** Entry of an Advocate, Vakil or Attorney on the roll of any High Court when he has previously been enrolled in a High Court.	 Deleted. Deleted.
31.	EXCHANGE OF PROPERTY - Instrument of	The same duty as a conveyance (No. 23) for a consideration equal to the value of the property of greatest value as set forth in such instrument.
32.	FURTHER CHARGE - Instrument of, that is to say, any instrument imposing a further charge on mortgaged property- (a) When the original mortgage is one of the description referred to in clause (a) of Article No.40 (that is, with possession);	 The same duty as a conveyance (No.23) for a consideration equal the amount of the further charge secured by such instrument.
	(b) when such mortgage is one of the description referred to in clause (b) of Article No. 40 (that is, without possession), (i) if at the time of execution of the instrument of further charge possession of the property is given, or agreed to be given under such instrument.	The same duty as a Conveyance (No. 23) for a consideration equal to the total amount of the charge(including the original mortgage and any further charge already made) less the duty already paid on such original mortgage and further charge.
	(ii) if possession is not so given.	The same duty as a Bond (No. 15) for the amount of the further charge secured by such instrument.
33.	GIFT- Instrument of, not being a Settlement (No.58) or Will or Transfer (No. 62).	The same duly as a conveyance (No. 23) for consideration equal to the value of the property as set forth in such instrument.
34.	INDEMNITY-BOND	The same duty as a Security Bond (No. 57) for the same amount.
35.	LEASE, including an under-lease or sub-lease and any agreement to let or sub-let- (a) where by such lease the rent is fixed and no premium is paid or delivered-	

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(i) where the lease purports to be for a term of less than one year;	The same duty as a Bond (No. 1 5) for the whole amount payable or deliverable under such lease.
(ii) where the lease purports to be for a term of not less than one year but not more than five years;	The same duty as a Bond (No.15) for the amount or value of the average annual rent reserved.
(iii) where the lease purports to be for a term in excess of five years and ; not exceeding ten years.	The same duty as a conveyance (No. 23) for a consideration equal to the amount or value of the average annual rent reserved.
(iv) where the lease does not purports to be for a term exceeding ten years, but not exceeding twenty yea₹	The same duty as a Conveyance (No.23) for a consideration equal to twice the amount or value of the average annual rent reserved.
(v) where the lease purports to be for a term exceeding twenty years, but not exceeding thirty years.	The same duty as a Conveyance (No.23) for a consideration equal to three times the amount or value of the average annual rent reserved.
(vi) where the lease purports to be for a term as a exceeding thirty years, but not exceeding one hundred years.	The same duty Conveyance (No.23) for a consideration equal to four times the amount or value of the average annual rent reserved.
(vii) where the lease purports to be for a term exceeding one hundred years, or in perpetuity.	The same duty as a conveyance (No.23) for a consideration equal in the case of a lease granted solely for agricultural purposes to one tenth and in any other case to one-sixth of the whole amount of rents which would be paid or delivered in respect of the first fifty years of the lease.
(viii) where the lease does not purport to be for any definite term.	The same duty as a Conveyance (No. 23) for a consideration equal to three times the amount or value of the average annual rent which would be paid or delivered for the first ten years if the lease continued so long.

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	(b) where the lease is granted for a fine or premium or for money advanced and where no rent is reserved.	The same duty as a Conveyance (No. 23) for a consideration equal to the amount or value of such fine or premium or advanced as set forth in the lease.
	(c) where the lease is granted for a fine or premium or for money advanced in addition to rent reserved.	The same duty as a Conveyance (No. 23) for a consideration equal to the amount or value of such fine or premium or advance as set forth in the lease, in addition to the duty which would have been payable on such lease it no fine or premium or advance had been paid or delivered ; Provided that, in any case where an agreement to lease is stamped with the *ad valorem* stamp required for a lease and a lease in pursuance of such agreement is subsequently executed, the duty on such lease shall not exceed two rupees.
	Exemption: Lease, executed in the case of cultivator and for the purpose of cultivation and for the purpose of cultivation (including a lease of trees for the production of food or drink) without the payment or, delivery of any line or premium, when a definite term is expressed and such term does not exceed one year, or when the average annual rent reserved does not exceed one hundred rupees. In this exemption a lease for the purpose of cultivation shall include a lease of lands for cultivation together with a homestead or tank. **Explanation:** When lease undertakes to pay any recurring charge, such as Government revenue, landlords share of ceases, or the owner's share of municipal rates of taxes, which is by law recoverable from the lessor, the amounts so agreed to be paid by the lease shall be deemed to be part of the rent.	
36.	LETTER OFALLOTMENT OF SHARES, company, or in respect of any loan to be raised by any company or proposed company.	₹2.00
37.	LETTER OF CREDIT any instrument by which one person authorizes another to give credit to the person in whose favour it is drawn. LEDER OF GUARANTEE. See AGREEMENT (No. 5).	₹ 1

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38.	LETTER OF LICENCE, any agreement between a debtor and his creditors that the latter shall, for a specified time, suspend their claims and allow the debtor to carry on business at his own discretion.	₹ 50.00
39.	MEMORANDUM OFASSOCIATION OF A COMPANY	
	(a) if accompanied by articles of association under section 26 of the Companies Act, 1956;	₹ 200.00
	(b) if not so accompanied	
	(i) where the nominal share capital does exceed one lakh of rupees;	₹ 500.00
	(ii) where the nominal share capital does not exceed one lakh rupees.	₹ 800.00
40.	MORTGAGE-DEED, not being (AN AGREEMENT RELATING TO DEPOSIT OF TITLE. DEED, PAWN OR PLEDGE (No. 6), BOTIOMRY BOND (No. 16), MORTGAGE OF A CROP (No. 41) RESPONDENTIA BOND (No. 56), OR SECURITY BOND (No. 57)	
	(a) when possession of the property or any part of the property comprised in such deed is given by the mortgagor or agreed to be given.	The same duty as a Conveyance (No. 23) for a consideration equal to the amount secured by such deed.
	(b) when possession is not given or agreed to be given as aforesaid;	The same duty as a Bond (No.15) for the amount secured by such deed.
	Explanation: A mortgagor who gives to the mortgagee a power-of-attorney to collect rents or a lease of the property mortgaged or part thereof, is deemed to give possession within the meaning of this Article.	
	(c) when a collateral or auxiliary or additional or substituted security, or by way of further assurance by the above mentioned purpose where the principal or primary security is duly stamped	
	(i) for every sum secured not exceeding ₹ 1000	₹5.00
	(ii) and for every ₹ 1000 or part there of secured in excess ₹ 1000.	₹ 5.00
	Exemptions: (1) Instrument, executed by persons taking advances under he lands Improvement Loans Act, 1883 (10 of1883) or the Agriculturists Loan Act, 1884 (12 of 1884) or by their sureties as security for the repayment of such advance.	
	(2) Letter of hypothecation accompanying a bill of exchange.	
41.	MORTGAGE OF A CROP, including any instrument evidencing an agreement to secure the repayment of a loan made upon any mortgage of a crop, whether the crop is or is not in existence at the lime of the mortgage-	
	(a) when the loan is repayable not more than three	

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	months from the date of the instrument (i) for every sum secured not exceeding ₹ 200; (ii) and for every ₹ 200 or part thereof secured in excess of ₹ 200. (b) When the loan is repayable more than three months, but not more than eighteen months for the date of the instrument. (i) for every sum secured not exceeding ₹100 (ii) and for every ₹ 100 or part thereof secured in excess of ₹ 100.	 ₹ 1.00 ₹ 2.00 ₹ 2.00 ₹ 2.00
42.	NOTARIAL ACT that is to say, any instrument, endorsement, note, attestation, certificate or entry not being a Protest (No. 50) made or signed by a Notary Public in the execution of the duties of his office, or by any other person lawfully acting as a Notary Public. See also Protest of Bill or Note (No. 50)	₹ 10.00
43.	NOTE OF MEMORANDUM sent by a Broker or Agent to his principal intimating the purchase or sale on account of, such principal- (a) of any goods exceeding in value Re. 20 (b) of any stock or marketable security exceeding in value twenty rupees.	 ₹ 1.00 ₹2.00 for every ₹ 5,000 or part thereof of the value of the stock as security subject to a maximum of forty rupees.
44.	NOTE OF PROTEST by the Master of a Ship See also Protest by the Master of a Ship. (No. 51) Order for the payment of Money See Bill of Exchange (No. 13)	₹ 5.00
45.	PARTITION - Instrument of (as defined by Section 2(15);	The same duty as a Bond (No. 15) for the amount of the value of the separated shares or shares of the property. N.B. : The largest share remaining after the property is partitioned (or, if there are two or more shares of equal value and not smaller than any of the other share, then one of such equal shares)shall be deemed to be that from which the other shares are separated; Provided always that—

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		(a) when an instrument of partition containing an agreement to divide property in severally is executed and partition is effected in pursuance of such agreement the duty chargeable upon the instrument affecting such partition shall be reduced by the amount of duty paid in respect of first instrument but shall not be less than four rupees. (b) where land is held on revenue settlement for a period not exceeding thirty years and paying the full assessment, the value for the purpose of duty shall be calculated at not more than five times the annual revenue. (c) where a final order for effecting a partition passed by an Revenue authority or any Civil Court, or an award by an arbitrator directing a partition, is stamped with the stamp required for an instrument of partition, and an instrument of partition in pursuance of such order or award is subsequently executed, the duty on such instrument shall not exceed rupees four.
46.	PARTNERSHIP	
	(A)- INSTRUMENT OF-	
	(a) where the capital of the partnership does not exceed ₹ 1000	The same duty as (Bond No. 15).
	(b) in any other case	₹ 100.00
	(B)- Dissolution of-	₹50.00
	Pawn or Pledge - See Agreement relating to deposit of Title deeds Pawn or Pledge (No. 6).	
47.	POLICY OF INSURANCE.-	

A-SEA INSURANCE (See section 7)	If drawn singly	If drawn in duplicate for each part
(1) for or upon any voyage- (i) where the premium or consideration does not exceed the rate of one-eights per centum of the amount insured by the policy;	five paise	five paise

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(ii) in any other case, in respect of every full sum of one thousand five hundred rupees and also any fractional part of one thousand five hundred rupees insured by the policy;	five Paise	five Paise
(2) for time-		
(i) in respect of every full sum of one thousand rupees and also any fractional part of one thousand rupees insured by the policy-	ten paise	five paise
(ii) where the insurance shall be made for any time not exceeding six months;	ten paise	five paise
(iii) where the insurance shall be made for any time exceeding six months and not exceeding twelve months.	ten paise	five paise
B.- FIRE-INSURANCE AND OTHER CLASSES OF INSURANCE, NOT ELSEWHERE INCLUDED IN THIS ARTICLE, COVERING GOODS, MERCHANDISE, PEBSONAL EFFECTS, (CROPS AND OTHER PROPERTY AGAINST LOSS OR DAMAGE.		
(1) in respect of an original policy	Twenty five paise	
(i) when the sum insured does not exceed ₹ 5,000;	Fifty paise	
(ii) in any other case; and		
(2) in respect of each receipt for any payment of a premium on any renewal of an original policy.	One-half of the duty payable in respect of the original policy in addition to the amount, if any chargeable under No. 53.	
C. - ACCIDENT AND SICKNESS INSURANCE-		
(a) against railway accident, valid for a single Journey only.	Five paise	
Exemption When issued to a passenger traveling by the intermediate or the third class in any railway;		
(b) in any other case-for the maximum amount which may become payable in the case of any single accident or sickness where such amount does not exceed ₹1000, and also where such amount exceeds ₹ 1000 for every Bs. 1000 or part thereof.	Ten paise provided that, in case of a policy of insurance against death by accident when the annual premium payable does not exceed [2.50] per ₹1000, the duty on such instrument shall be [five paise] for every ₹ 1000 or part thereof the maximum amount which may become payable under it.	

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CC- INSURANCE BY WAY OF INDEMNITY against liability to pay damages on account of accident to workmen employed by or under the insurer or against liability to pay compensation under the Workmen's Compensation Act, 1923 (8 of 1923), for every ₹100 or part thereof payable as premium.	five paise.	
D.- LIFE INSURANCE [OR GROUP INSURANCE OR OTHER INSURANCE] NOT SPECIFICALLY PROVIDED FOR, except such a RE-INSURANCE, as is described in Division E of this article.	If drawn singly if drawn in duplicate for each part.	
(i) for every sum insured not exceeding ₹ 250;	Ten paise	Five paise
(ii) for every sum insured exceeding ₹ 250 but not exceeding ₹ 500;	Ten paise	Five paise
(iii) for every sum insured exceeding ₹ 500 but not exceeding ₹ 1 ,000 and also for every ₹ 1,000 or part thereof in excess of ₹ 1,000.	Twenty paise	Ten paise
	[N.B. II a policy of group insurance is renewed or otherwise modified whereby the sum insured exceeds the sum previously insured on which stamp-duty has been paid, the proper stamp must be borne on the excess sum so insured.]	
Exemption: Policies of life-insurance granted by the Director General of Post Offices in accordance with rules for Postal life insurance issued under the authority of the Central Government.		
E.- RE-INSURANCE BY AN INSURANCE COMPANY which has granted in a POLICY [of the nature specified Division A or Division B of this Article, with another company by way of indemnity or guarantee against the payment on the original insurance of a certain part of the sum insured thereby.	One quarter of the duty payable in respect of the original insurance but not less than five paise or more than fifty paise: Provided that if the total amount of duty payable is not a multiple of five paise, the total amount shall be rounded off to the next higher multiple of five paise.	
General Exemption Letter of cover or engagement to issue a policy of insurance: Provided that, unless such letter or engagement bears the stamp prescribed by this Act for such policy, nothing shall be claimable there under, nor shall it be available for any purpose, except to the compel the delivery of the policy therein mentioned.		

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48.	POWER OF ATIORNEY (as defined by Section 2(21) not being a Proxy (No. 52).	
	(a) when executed for the sole purpose of procuring the registration one or more documents in relation to a single transaction or for admitting execution of one or more such documents;	₹20.00
	(b) when required in suits or proceedings under the Presidency Small Cause Courts Act,1882 (15 of 1882)	₹ 20.00
	(c) when authorizing one person or more to act in a single transaction other than the case mentioned in clause (a);	₹ 20.00
	(d) when authorizing more than five persons to act jointly and severally in more than one transaction or generally;	₹ 20.00
	(e) when authorizing more than five but not more than ten persons to act jointly and severally in more than one transaction or generally;	₹ 20.00
	(f) when given for consideration and authorizing the attorney to sell any immovable property;	The same duty as a Conveyance (No. 23) for the amount of the consideration.
	(g) in any other case	
	Explanation - For the purposes of this Article more persons than one when belonging to the same firm shall be deemed to be one person. N.B.- The term 'registration' includes every operation incidental to registration under the Registration Act, 1908 (16 of 1908).	₹20.00
49.	PROMISSORY NOTE [as defined by section 2(22)]-	
	(a) when payable on demand	
	(i) when the amount or value does not exceed ₹ 250;	5 paise
	(ii) when the amount or value exceeds ₹ 250 but does not exceed ₹ 1,000 ;	10 paise
	(iii) in any other case.	15 paise
	(b) when payable otherwise than on demand.	The same duty as a Bill of Exchange (No. 1 3) for the same amount payable otherwise than on demand.]
50.	PROTEST OF BILL OR NOTE, that is to say, any declaration in writing made by a Notary Public, or other person lawfully acting as such attesting the dishonor of a Bill of Exchange or promissory note.	₹ 5.00
51.	PROTEST BY THE MASTER OF A SHIP, that is to say, any declaration of the particulars of her voyage drawn up by him with a view to the adjustment of losses of the calculation of averages and every declaration in writing made by him against the charterers of the consignees for not loading or unloading	₹ 5.00

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	the ship, when such declaration is attested or certified by a Notary Public or other person lawfully acting as such. See also Note of Protest by the Master of Ship (No. 44).	
52.	PROXY empowering any person to vote at any one election of the members of a district or a local board or of a district or local board or of a body or municipal commissioners, or at any one meeting or (a) members of an incorporated company or other body corporate whose stock or funds is or are divided into shares and transferable, (b) a local authority, or (c) propretietors, members or contributors to the funds of any institution.	Fifteen paise
53.	RECEIPT [as defined by section 2(23)] for any money or other Property the amount or value of which exceeds rive thousand rupees.] Exemptions **Receipt-** (a) endorsed on or contained in any instrument duly stamped [or any instrument exempted] under the proviso to section 3 (instruments executed on behalf of the Government) (or any cheque or bill of exchange payable on demand) acknowledging the receipt of the consideration money. Interest or annuity or other periodical payment thereby secured; (b) for any payment of money without consideration; (c) for any payment of rent by a cultivator on account of land assessed to Government revenue, or [in the States of Madras, Bombay and Andhra) (as they existed immediately before the 1st November, 1956) or Inam lands; (d) for pay or allowances by non-commissioned [or petty] officer, soldiers, [sailors] or [airmen] of [Indian military, [naval] or air forces], when serving in such capacity, or by mounted police constables; (e) given by holders of family certificates in cases where the person from whose pay or allowances the sum comprised in the receipt has been assigned is a non-commissioned for petty] officer, [soldier, [sailor or airman], of [any of the said forces], and serving in such capacity; (f) for pensions or allowances by person, receiving such pensions or allowances in respect of their service as such non commissioned [or petty] officers, [soldiers, [sailors] or airmen], and not serving the Government in any other capacity; (g) given by a headman or lambardar for land revenue or taxes collected by him; (h) given for money or securities for money deposited in the hands of any banker to be accounted for:	[One rupee]

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	Provided that the same is not expressed to be received of, or by the hands of, any other than the person to whom the same is to be accounted for. Provided also that this exemption shall not extend to a receipt or acknowledgement for any sum paid or deposited for upon a letter of allotment of a share, or in respect of a call upon any seripor share of, or any incorporated company or other body corporate or such proposed or intended company or body or in respect or a debenture being a marketable security.	
54.	RECONVEYANCE OF MORTGAGED PROPERTY. (a) if the consideration for which the property was mortgaged does not exceed ₹ 1000;	The same duty as a conveyance (No. 23) for the amount of such consideration as set forth in the Reconveyance.
	(b) in any other case	₹60.00
55.	RELEASE, that is to say, any instrument not being such a release as is provided for by section 23A whereby a person renounces a claim upon another person or against any specified property	
	(a) if the amount or value of the claim does not exceed ₹ 1000	The same duty as a Bond(No 15) for such amount or value as set forth in the release.
	(b) in any other case	₹ 30.00
56.	RESPONDENTIA BOND, that is to say, any instrument securing loan on the cargo laden bond or to be laden on board a ship and a making the amount of the repayment contingent on the arrival of the loan secured. cargo at the port of destination. REVOCATION OF ANY TRUST OB SETTLEMENT See Settlement (No. 58); Trust (No. 64)	The same duty as a bond {No. 15) for the amount f the loan secured
57.	SECURITY BOND OR MORTGAGE DEED, executed by way of security for the due execution of an office, or to account for money or other property received by virtue thereof or executed by a surety to secure the due performance of a contract-	
	(a) when the amount secured does not exceed ₹1000.	The same duty as a Bond(No 15) for the amount secured.
	(b) in any other case **Exemptions:** Bond or other instrument, when executed-	₹ 30.00
	(a) by headmen nominated under rules framed in accordance with the Bengal Irrigation Act, 1876, section 99, for the due performance of their duties under that Act;	

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	(b) by any person for the; purpose of guaranteeing that the local income derived from private subscriptions to a charitable dispensary or hospital or any other object of public utility shall not be less than a specified sum per mensem;	
	(c) under No. 34 of the rules made by the State Government ·under section 70 of the Bombay Irrigation Act, 1879;	₹30.00
	(d) executed by persons taking advances under the Land Improvement Loans Act, 1883 (19 of 1883), or the Agriculturist's Loans Act, 1884 (12 of 1884), or by their sureties, as security for the repayment of such advances;	
	(e) executed by officers of the Government or their sureties to secure the due execution of an office or the due accounting for money or other property received by virtue thereof.	
58.	SETTLEMENT A – INSTRUMENT OF (including a deed of dower)	The same duty as a conveyance (No.23) for a sum equal to the amount or value of the property settled as set forth in such settlement. Provided that where an agreement to settle is stamped with the stamp required for an instrument of settlement, and an instrument of settlement in pursuance of such agreement is subsequently executed the duty on such instrument shall not exceed ₹4.00.
	Exemption: Deed of dower executed on the occasion of a marriage between Muhammandans	
	B - REVOCATION OF – See also Trust (No. 64)	The same duty as a Conveyance (No.23) for a sum equal to the amount or value of the property concerned, as set forth in the instrument of revocation, but not exceeding ₹50/-.
59.	SHARE WARRANT, to bearer issued under the Company's Act, 1956 (Act 1 of 1956) **Exemption**: Share warrant when issued by a company in pursuance of the Company's Act, 1956, (Act 1 of 1956) section 114, to have effect only upon payment, as composition for the duty, to the collector of stamp revenue of— (a) one and a half per centum of the whole subscribed capital of the company, or	One and a half times duty payable on a Conveyance (No. 23) for a consideration equal to the nominal amount of the shares specified in the warrant.

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	(b) if any company which has paid the said duty or composition in full, subsequently issues an addition to its subscribed capital one and a half per centum of the additional capital so issued.	
	Script. See CERTIFICATE (No. 19)	
60.	SHIPPING ORDER for or relating to the conveyance of goods on board of any vessel.	₹ 2.00
61.	SURRENDER OF LEASE	
	(a) when the duty with which the lease is chargeable does not exceed five rupees.	The duty with which such lease is chargeable.
	(b) in any other case	₹ 30.00
	Exemption: Surrender of lease, when such lease is exempted from duty.	
62.	TRANSFER (whether with or without consideration)	
	[(a) of shares in an incorporated company or other body corporate;	25 paise for every hundred rupees or part thereof of the value of the share.
	(b) of debentures, being marketable Securities, whether the debenture is liable to duty or not, except debentures provided for by section 8;	One-half of the duty payable on a conveyance (No. 23) for a consideration equal to the face amount of the debentures.
	(c) of any interest secured by a bond, mortgage-deed or policy of insurance,	
	(i) if the duty on such bond, mortgage deed or policy does not exceed live rupees;	The duty with which such bond, mortgage-deed or policy of insurance is chargeable.
	(ii) in any other case	Five rupees.
	(d) of any property under the Administrator General's 1874 (2 of 1874). section 31;	Ten rupees.
	(e) of any trust-property without consideration from one trustee to another trustee or from a trustee to beneficiary	Five rupees or such smaller amount as may be chargeable under clauses (a) to (c) of this Article.]
	Exemptions Transfer by endorsement- (a) of a bill of exchange, cheque or promissory note; (b) of a bill of lading, delivery order, warrant for goods, or other merchantile document of title to goods; (c) of a policy of insurance; (d) of securities of the Central Government.	
63.	TRANSFER OF LEASE by way of assignment and not by way of under-lease	The same duty as a Conveyance (No. 23) for a consideration equal to the amount of the consideration for the transfer.
	Exemption: Transfer of any lease exempt from duty.	

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64.	TRUST- (A)- Declaration of or concerning, any property when made by any writing not being a WILL.	The same duty as a Bond (No.15) for a sum equal to the amount or value of the property concerned as set forth in the instrument but not exceeding ₹ 50.
	(B) - Revocation of, or concerning, any property when made by any instrument other than a WILL.	The same duty as a Bond (No. 15) for a sum equal to the amount or value of the property concerned as set forth in the instrument but not exceeding ₹50.
	See also Settlement (No. 58) Valuation See Appraisement (No. 8) Vakil See Entry as a Vakil (No. 30)	₹ 3.00
65.	Warrant for goods, that is to say, any instrument evidencing the title of any person therein named, or his assigns, or the holder thereof, to the property in any goods lying in or upon any dock, warehouse or wharf, such instrument being signed or certified by or on behalf of the person in whose custody such goods may be].	₹ 3.00

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[*Vide* Arunachal Pradesh 5 of 2007, s. 2]

Amendment of Schedule-I.—In Schedule I of the Indian Stamp Act, 1899 (Act No. 2 of 1899) (in its application to the State of Arunachal Pradesh) Act 2007, for item no. 40, in sub-item (a), the following shall be substituted, namely:

"When possession of the property or any part of the property comprised in such deed is given by the mortgagor or agreed to be given.

(i) Where the amount or value of the consideration for such conveyance as set forth therein does not exceed ₹ 1, 000	10
(ii) Where it exceeds ₹ 1, 000	1 %"

[*Vide* Arunachal Pradesh Act 16 of 2018, s. 2]

Uttaranchal

Amendment of 2 (Schedule 1-B of Act No. II of 1899.—In (schedule 1-B) of the Indian Stamp Act, 1899:--

(a) In Article 35 (Lease)-

(i) in Clause (a) for sub-clause (VI), (VII), and (VIII), the following clause shall be substituted, namely:--

"(VI) Where the lease purports to be for a term exceeding thirty years or in perpetuity or does not purpose to be for any definite term.	The same duty as a Conveyance (No. 23 clause (a)), for a consideration equal the market value of property which is the subject of the lease."

(iii) for clause (b) and (c), the following clause shall be substituted, namely:--

(b) Where the lease is granted for a fine or premium or for money advanced and Where no rent is reserved:-

(i) Where the lease purport to be for a term not exceeding thirty years;	The same duty as a Conveyance (No. 23 Clause (a)), for a consideration equal to amount or the value of such fine or premium or advance as setforth in the lease.
(ii) Where I lease purports to be for a term exceeding thirty years;	The same duty as a conveyance (No. 23 Clause (a)),for a consideration equal to the market value of property which is the subject of the lease.

(c) Where the lease is granted for a fine or premium or for money advanced in additional to the rent reserved:-

(i) Where the lease purports to be for a term not exceeding thirty years;	The same duty as Conveyance (No. 23 Clause (a)), for a consideration equal to the amount or value of such fine or premium or advance as setforth in the lease, in additional to be duty which would have been payable on such lease, if no fine or premium or advance had been paid or delivered. Provided that in a case when an agreement to lease is stamped with the agreement to lease is stamped with the *ad-valorem* stamp required for lease, and a lease in pursuance of such an agreement is subsequently executed, the duty on such lease shall not exceed Fifty Rupees.
(iv) Where the lease purports to be for a term exceeding thirty years;	The same duty as Conveyance (No. 23 Clause (a)), for a consideration equal the market value of property, which is the subject of the lease.
(v) Explanation (5) shall be omitted.	

[*Vide* Uttaranchal Act 14 of 2002, s. 2]

Uttar Pradesh

Amendment of Schedule 1-B.— In Schedule I-B of the principal Act —

(a) in Article 15 (Bond), in the-column relating to the "Proper Stamp Duty", for the words set out in Column I of the table below, the words set out respectively against them in Column 2 of the table below, shall be substituted :—

COLUMN 1 (Existing words)	COLUMN 2 (Words to be substituted)
Forty-five paise	Fifty paise.
One rupee	Two rupees.
Three rupees and seventy-five paise	Four rupees and twenty-five paise.
Seven rupees and fifty paise	Eight rupees and fifty paise.
Eleven rupees and twenty five paise	Twelve rupees and seventy five paise
Fifteen rupees	Seventeen rupees
Eighteen rupees and seventy-five paise	Twenty-one rupees and twenty five paise
Twenty-two rupees and fifty paise	Twenty-five rupees and fifty paise

Twenty-six rupees and twenty five paise.	Twenty-nine rupees and seventy-five paise
Thirty rupees	Thirty-four rupees
Thirty three rupees and seventy five paise	Thirty-eight rupees and twenty five paise.
Thirty-seven rupees and fifty paise	Forty-two rupees and fifty paise.
Eighteen rupees and seventy-five paise	Twenty-one rupees and twenty five paise

(b) in Article 23 (Conveyance), in the column relating to "Proper Stamp Duty", for the-figures set out in Column 1 of the table below, the figures set out respectively against them in Column 2 of the table below, shall be substituted :—

COLUMN 1 (Existing figures)	COLUMN 2 (figures to be substituted)
Rs. P.	Rs. P.
2 00	4 00
7 50	8 50
15 00	17 00
22 50	25 50
30 00	34 00
37 50	42 50
45 00	51 00
52 50	59 50
60 00	68 00
67 50	76 50
75 00	85 00
37 50	42 50

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(c) in Article 48 in clause (f), for the words "in any other case" the following words shall be substituted,—

"When authorizing more than ten persons to act jointly and severally in more than one transaction or generally,"

[*Vide* Uttar Pradesh Act 6 of 1980, s. 11]

Amendment of Schedule 1-B of Act no. II of 1899.— In Schedule I-B of Indian Stamp Act, 1899, —

(a) in Article 17-A, in the column relating to "Proper Stamp Duty" for the words "Two hundred and fifty rupees" the words "Five hundred rupees" shall be substituted.

(b) in Article 17-B, in the column relating to "Proper Stamp Duty" for the words "Five hundred rupees" the words "Two thousand rupees" shall be substituted.

(c) in Article 35 (Lease), —

(i) in clause (a), for sub-clauses (vi), (vii) and (viii) the following clause shall be substituted, namely :—

"(vi) Where the lease purports to be for a term exceeding thirty years or in perpetuity or does not purport to be for any definite term.	The same duty as a Conveyance [No. 23 clause (a)] for a consideration equal to the market value of the property which is the subject of the lease."

(ii) in clause (b) and (c) the following clauses shall be substituted, namely :—

"(b) Where the lease so granted for a fine or premium of for money advanced and where no rent is reserved, —

(i) Where the lease purports to be for a term not exceeding thirty years ;	The same duty as a Conveyance [No. 23 clause (a)] for a consideration equal to the amount or value of such fine or premium or advance as set forth in the lease.
(ii) Where the lease purports to be for a term exceeding thirty years ;	The same duty as a Conveyance [No. 23 clause (a)] for a consideration equal to the market value of the property which is subject of the lease.
(c) Where the lease is granted for a fine or premium of for money advanced in addition to rent is reserved, —	
(i) Where the lease purports to be for a term not exceeding thirty years ;	The same duty as a Conveyance [No. 23 clause (a)] for a consideration equal to the amount or value of such fine or premium or advance as set forth in the lease, in addition to the duty which would have been payable on such lease, if no fine or premium or advance had been paid or delivered:
	Provided that in a case when an agreement to lease is stamped with the advalorem stamp required for lease, and a lease in pursuance of such agreement is subsequently executed, the duty on such lease shall not exceed fifty rupees.
(ii) Where the lease purports to be	The same duty as a Conveyance

Institute

for term exceeding thirty years ;	[No. 23 clause (a)] for a consideration equal to the market value of the property which is subject of the lease.”
(iii) Explanation (5) shall be omitted.	

[*Vide* Uttar Pradesh s. 9 of 2001, s. 2]

In Schedule I-B to the principal Act:—

(a) in Article 5, in clause (c). in the column relating to the proper stamp duty, for the words "Six rupees" the words “One hundred rupees" shall be *substituted* ;

(b) in Article 15, in the column relating to proper stamp duty, for the words set out in column below, the words set out against them in column 2 below shall be *substituted*, namely :—

COLUMN 1	COLUMN 2
One rupee and fifty paise	Two rupees
Three rupees	Four rupees
Five rupees and fifty paise	Six rupees and twenty-five paise
Eleven rupees	Twelve rupees and fifty paise
Sixteen rupees and fifty paise	Eighteen rupees and seventy-five paise
Twenty-two rupees	Twenty-five rupees
Twenty-seven rupees and fifty paise	Thirty-one rupees and twenty-five paise
Thirty-three rupees	Thirty-seven rupees and fifty paise
Thirty-eight rupees and fifty paise	Forty-three rupees and seventy-five paise
Forty-four rupees	Fifty rupees
Forty-nine rupees and fifty paise	Fifty-six rupees and twenty-five paise
Fifty-five rupees	Sixty-two rupees and fifty paise
Twenty-seven rupees and fifty paise	Thirty-one rupees and twenty-five paise

(c) in Article 25 —

(i) in in clause (a), in the column relating to the description of instrument, for the words "five rupees" the words "fifty rupees" shall be substituted ;

(ii) in clause (b), in the column relating to the proper stamp duty, for the words "Five rupees" the words "fifty rupees" shall be substituted.

(d) in Article 35—

(i) in clause (a), in sub-clauses (ii), (iii), (iv), (v), (vi) and (vii) in the column relating to proper stamp duty, for the existing entries, the following entries shall be substituted, namely :—

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in sub-clause (ii)	"The same duty as a conveyance (no. 23), for a consideration equal to three times the amount or value of the average annual rent reserved."
in sub-clause (iii)	"The same duty as a conveyance (no. 23), for a consideration equal to four times the amount or value of the average annual rent reserved."
in sub-clause (iv)	"The same duty as a conveyance (no. 23), for a consideration equal to five times the amount or value or the average annual rent reserved"
In sub-clause (v)	"The same duty as a conveyance (no. 23) for a consideration equal to six times the amount or value or the average annual rent reserved."
in sub-clause (vi)	"The same duty as a conveyance (no. 23), for a consideration equal to ten times the amount or value of the average annual rent reserved."
in sub-clause (vii)	"The same duty as a Conveyance (no. 23), for a consideration equal to one-third of the whole amount of rent which would be paid or delivered in respect of the first fifty years of the lease."

(ii) after explanation (3), the following explanation shall be *inserted*, namely:—

"(4) The aggregate amount at which tolls are let, whether payable in lump sum or installments shall be deemed to be premium for the purposes of this Article."

(e) in Article 48, after clause (e), the following clause shall be inserted, namely :—

"(ee) When irrevocable authority is given to the attorney to sell immovable property**.**---The same duty as a conveyance (no. 23) on the market value of the property forming subject of such authority".

[*Vide* Uttar Pradesh Act 11 of 1992, s. 5]

Amendment of Schedule I-B.—In Schedule I-B to the principal Act, —

(a) in Article 8, in clause (b), in the second column for the words "Thirty-seven rupees and fifty paise" the words and figures "the same duty as a Bond (no. 15) for Rs. 1,000" shall be *substituted* ;

(b) in Article 12, in clause (c), in the second column, for the words "Thirty-seven rupees and fifty paise" the words and figures "The same duty as a Bond (no. 15) for Ra. 1,000" shall be substituted ;

(c) for Article 18, the following Article shall be substituted column-wise as indicated below :—

In the column pertaining to description	In the column pertaining to proper of instrument stamp duty
"18. Certificate of sale (in respect of each property put up as a separate lot and sold) granted to the	"The same duty as a conveyance (no. 23), for a consideration equal to the amount of the purchase money

purchaser of any property sold by public auction by a court or by an officer, authority or body empowered under any law for the time being in force to sell such property by public auction and to grant such Certificate."	only."
(d) In Article 46, —	
(i) in Part A, in clause (b), in the second column, for the words "One hundred and fifty rupees" the words and figures "The same duty as a Bond (no. 15) for Rs.4,000" shall be *substituted* ;	
(ii) in Part B, in the second column, for the words "Thirty-seven rupees and fifty paise" the words and figures "The same duty as a Bond (no. 15) for Rs. 1,000" shall be 'substituted	
(e) in Article 54, in clause (b), in the second column, for the words "Seventy-five rupees" the words and figures "The same duty as a conveyance (no. 23) for Rs. 1,000" shall be substituted	
(f) in Article 55, in clause (b), in the second column, for the words, "One hundred rupees" the words and figures "The same duty as a Bond (no. 15) for Rs. 3,000" shall be *substituted* ;	
(g) in Article 57, in clause (b), in the second column, for the words "Thirty-seven rupees and seventy-five paise" the words and figures "The same duty as a Bond (no. 15) for Rs. 1,000" shall be *substituted* ;	
(h), in Article 61 —	
(i) in clause (a), in the first column, for the words "Thirty-seven rupees and seventy-five paise" the words and figures "the duty chargeable on a conveyance for a consideration of Rs.500" Shall be *substituted* ;	
(ii) in clause (b), in the second column, for the words, "Thirty-seven rupees and seventy-five paise" the words and figures "The same duty as a conveyance (no. 23) for a consideration of Rs. 500" shall be *substituted*.	
(i) in Article 64, in Item B, in the second column, for the words "Seventy-five rupees" the words and figures "the duty payable on a Bond (no. 15) for Rs. 2,000" shall be substituted	

[*Vide* Uttar Pradesh Act 19 of 1981, s. 4]

Amendment of Article 1 of Schedule I-B to Act no. 2 of 1899.— In Schedule I-B to the Indian Stamp Act, 1899, hereinafter referred to as the said Schedule, in Article 1, in the second column for the existing entry the following entry shall be substituted, namely :—

"Fifty Paise."

[*Vide* Uttar Pradesh Act 19 of 1982, s. 2]

Amendment of Article 2.— In the said Schedule, in Article 2, in the second column, for the existing entry, the following entry shall be substituted, namely :—

"Subject to a maximum of two hundred rupees, the same duty as on a Bond (No. 15)."

[*Vide* Uttar Pradesh Act 19 of 1982, s. 3]

Amendment of Article 3.—In the said Schedule, in Article 3, in the second column, for the words "fifty rupees" the words "Seventy five rupees" shall be *substituted*.

[*Vide* Uttar Pradesh Act 19 of 1982, s. 4]

Amendment of Article 4.—In the said Schedule, in Article 4, in the second column, for the words "Four rupees and fifty paise" the words "Five rupees" shall be *substituted*.

[*Vide* Uttar Pradesh Act 19 of 1982, s. 5]

Amendment of Article 5.— In the said Schedule, in Article 5, in clause (c), in the second column, for the words "Five rupees" the words "Six rupees" shall be *substituted.*

[*Vide* Uttar Pradesh Act 19 of 1982, s. 6]

Amendment of Article 6.—In the said Schedule, in Article 6, in clause (2), in sub-section (a), in the second column, for the figures set out in Column 1 below, the figures set out in Column 2 below, shall be *substituted* :—

Column 1	Column 2
Rs. P.	Rs. P.
1 00	1 50
2 00	3 00
3 00	4 50
4 00	6 00
5 00	7 50
6 00	9 00
8 00	12 00
12 50	18 75
25 00	37 50
37 50	56 25
50 00	75 00
75 00	112 50
100 00	150 00
125 00	187 50
150 00	225 00

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50 00	75 000

[*Vide* Uttar Pradesh Act 19 of 1982, s. 7]

Amendment of Article 7.— In the said Schedule, in Article 7:-

(a) in clause (a), in the second column, for the existing entry the following entry shall be substituted, namely :-

"Fifty rupees".

(b) in clause (b), in the second column, for the existing entry the following entry shall be substituted, namely:-

"One hundred .rupees."

[*Vide* Uttar Pradesh Act 19 of 1982, s. 8]

Amendment of Article 10.— In the said Schedule, in Article 10, in the second column, for the existing entry the following entry shall be substituted, namely :-

"Three hundred rupees."

[*Vide* Uttar Pradesh Act 19 of 1982, s. 9]

Amendment of Article 11.— In the said Schedule, in Article 11, in the second column, for the exiting entry, the following entry shall be substituted, namely:-

"Four hundred rupees."

[*Vide* Uttar Pradesh Act 19 of 1982, s. 10]

Amendment of Article 17.—In the said Schedule, in Article 17 in the second column, for the exiting entry, the following entry shall be substituted, namely :

"Twenty-five rupees."

[*Vide* Uttar Pradesh Act 19 of 1982, s. 11]

Amendment of Article 19.—In the Said Schedule, in Article 19, in the second column, for the exiting entry the following entry shall be substituted, namely:-

"Fifty paise"

[*Vide* Uttar Pradesh Act 19 of 1982, s. 12]

Amendment of Article 20.—In the Said Schedule, in Article 20, in the second column, for the exiting entry the following entry shall be substituted, namely:-

"Six rupees"

[*Vide* Uttar Pradesh Act 19 of 1982, s. 13]

Amendment of Article 22.—In the Said Schedule, in Article 22, in the second column, for the exiting entry the following entry shall be substituted, namely:-

"Fifty rupees"

[*Vide* Uttar Pradesh Act 19 of 1982, s. 14]

Amendment of Article 26.—In the Said Schedule, in Article 26, in the second column, for the exiting entry the following entry shall be substituted, namely:-

"Subject to a maximum of one hundred fifty rupees, the same duty as on a Bond (no. 15)."

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[*Vide* Uttar Pradesh Act 19 of 1982, s. 15]

Amendment of Article 28.—In the Said Schedule, in Article 28, in the second column, for the exiting entry the following entry shall be substituted, namely:-

"Fifty paise."

[*Vide* Uttar Pradesh Act 19 of 1982, s. 16]

Amendment of Article 29.—In the Said Schedule, in Article 29, in the second column, for the exiting entry the following entry shall be substituted, namely:-

"Twenty-five rupees"

[*Vide* Uttar Pradesh Act 19 of 1982, s. 17]

Amendment of Article 34-A.—In the Said Schedule, in Article 34-A, in the second column, for the words "Five rupees" the words "six rupees" shall be substituted.

[*Vide* Uttar Pradesh Act 19 of 1982, s. 18]

Amendment of Article 36.— In the Said Schedule, in Article 36, in the second column, for the exiting entry the following entry shall be substituted, namely:-

"Fifty paise."

[*Vide* Uttar Pradesh Act 19 of 1982, s. 19]

Amendment of Article 39.—In the Said Schedule, in Article 39, in the second column, for the words "one hundred rupees" the words "Two hundred rupees" shall be substituted and for the words "Three hundred and twenty-five rupees" the words "Five hundred rupees" shall be substituted.

[*Vide* Uttar Pradesh Act 19 of 1982, s. 20]

Amendment of Article 43.— In the Said Schedule, in Article 43, —

(a) in clause (a), in the second column for the existing entry, the following entry shall be substituted, namely :

"One rupee."

(b) in clause (b), in the second column, for the existing entry, the following entry shall be substituted, namely:—

"Subject to a maximum of seventy-five rupees; one rupee for every, Rs. 10,000 or part thereof of the value of the stock or security."

[*Vide* Uttar Pradesh Act 19 of 1982, s. 21]

Amendment of Article 44.— In the said Schedule, in Article 44, in the second column; for the existing entry, the following entry shall be substituted, namely:—

"Three rupees."

[*Vide* Uttar Pradesh Act 19 of 1982, s. 22]

Amendment of Article 48.–In the said Schedule, in Article 48, —

(a) in clause (a), in the second column, for the words "Two rupees and fifty paise" the words "Three rupees" shall be substituted ;

(b) in clause (b), in the second column, for the words "Five rupees" the words "Six rupees" shall be substituted ;

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(c) in clause (c), in the second column, for the words "Twenty rupees" the words "Twenty-four rupees" shall be substituted;

(c) in clause (c), in the second column, for the words "Twenty rupees" the words "Twenty-four rupees" shall be substituted;

(e) in clause (f), in the second column, for the words "Five rupees" the words "Six rupees" shall be substituted.

[*Vide* Uttar Pradesh Act 19 of 1982, s. 23]

Amendment of Article 50.— In and said Schedule, in Article 50, in the second column, for the existing entry, the following entry shall be substituted, namely:—

"Five rupees."

[*Vide* Uttar Pradesh Act 19 of 1982, s. 24]

Amendment of Article 51.— In the said Schedule, in Article 51, in the second column, for the existing entry, the following entry shall be substituted, namely:—

"Five rupees."

[*Vide* Uttar Pradesh Act 19 of 1982, s. 25]

Amendment of Article 58.— In the said Schedule, in Article 58 in item B, in the second column, for the existing entry, the following entry shall be substituted, namely:—

"The same duty as a Bond (No. 15) for a sum equal to the amount or value of the property concerned, but not exceeding fifty rupees."

[*Vide* Uttar Pradesh Act 19 of 1982, s. 26]

Amendment of Article 60.—in the said Schedule, in Article 60, in the second column, for the existing entry the following entry shall be substituted, namely:—

"Fifty paise."

[*Vide* Uttar Pradesh Act 19 of 1982, s. 27]

Amendment of Article 62.—In the said Schedule under Article 62:—

(a) in clause (c), in sub-clause (ii), in the second column, for the words "Thirty-seven rupees and seventy-five paise" the words "Seventy-five rupees" shall be substituted ;

(b) in clause (d), in the second column, for the existing entry, the following entry shall be substituted, namely :—

"Sixty-seven rupees and fifty paise" ;

(c) in clause (e), in the second column, for the existing entry, the following entry shall be substituted, namely—

"Thirty-four rupees or such smaller amount as may be chargeable under clauses (b) and (c) of this article."

[*Vide* Uttar Pradesh Act 19 of 1982, s. 28]

Amendment of Article 64.— In the said Schedule, in Article 64, in Part A, in clause (b), in the second column, for existing entry, the following entry shall be substituted, namely:—

"On ten thousand rupees, the duty payable under clause (a), and on the remainder, Three rupees for every additional one thousand rupees or part thereof."

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[*Vide* Uttar Pradesh Act 19 of 1982, s. 29]

Amendment of Article 65.— In the said Schedule, in Article 65, the second column, for the existing entry, the following entry shall be substituted, namely:—

"Three rupees."

[*Vide* Uttar Pradesh Act 19 of 1982, s. 30]

Amendment of Schedule 1-B to Act no. 2 of 1899.— In Schedule I-B to the Indian Stamp Act, 1899, hereinafter referred to as the principal Act in Article 5 (Agreement or Memorandum of an Agreement) after clause (b), the following clause shall be *inserted*, namely :—

"(b-1) if relating to the sale of an immovable property where, in part performance of the contract possession is admitted to have been delivered or is agreed to be delivered without executing the conveyance :—	The same duty as on conveyance (No. 23) on one half of the amount of consideration as set forth in the agreement.
Provided that when conveyance in pursuance of such agreement—	
(i) is executed, the duty paid under this clause shall be adjusted towards the total duty payable on the conveyance ;	
(ii) is not executed, the duty paid under this clause in excess of the duty payable under clause (c) shall subject to the rules be refunded without any deduction on an application being made for the purposes not beyond 6 months from the expiration of the period during which conveyance could have been executed in pursuance of the agreement."	

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[*Vide* Uttar Pradesh Act 22 of 1990, s. 2]

Amendment of Schedule 1-B.—In Schedule 1-B of the principal Act —

(1) *for* the existing entry in Column 2 against Article 3, the following entry shall be substituted, namely :—

"Fifty rupees",

(2) *for* the existing entry in Column 2 against clause (a) of Article 4, the following entry shall be substituted, namely :—

"Two rupees",

(3) *for* the existing entry in Column 2 against clause (c) of Article 5, the following entry shall be substituted, namely :—

"Five rupees",

(4) *for* the existing table of rates below sub-clause (a) of clause (2) of Article 6, the following table shall be substituted, namely :—

Description of instrument		Proper stamp duty
		Rs. P.
When the amount of the loan or debt does not exceed Rs. 200	. .	1 00
When It exceeds Rs. 200 but does not exceed Rs. 400	. .	2 00
When it exceeds Rs. 400 but does not exceed Rs. 600	. .	3 00
When It exceeds Rs. 600 but does not exceed Rs. 800	. .	4 00
When It exceeds Rs. 800 but does not exceed Rs. 1,000	. .	5 00
When It exceeds Rs. 1,000 but does not exceed Rs. 1,200	. .	6 00
When It exceeds Rs. 1,200 but does not exceed Rs. 1,600	. .	8 00
When It exceeds Rs. 1,600 but does not exceed Rs. 2,500	. .	12 50
When It exceeds Rs. 2,500 but does not exceed Rs. 5,000	. .	25 00
When It exceeds Rs. 5,000 but does not exceed Rs. 7,500	. .	37 50
When It exceeds Rs. 7,500 but does not exceed Rs. 10,000	. .	50 00
When It exceeds Rs. 10,000 but does not exceed Rs. 15,000	. .	75 00
When It exceeds Rs. 15,000 but does not exceed Rs. 20,000	. .	100 00
When It exceeds Rs. 20,000 but does not exceed Rs. 25,000	. .	125 00
When It exceeds Rs. 25,000 but does not exceed Rs. 30,000	. .	150 00
and for every additional Rs. 10,000 or part thereof in excess of Rs. 30,000	. .	50 00

(5) *for* the existing entry in Column 2 against clause (b) of Article 8, the following entry shall be substituted, namely :—

"Thirty-seven rupees and fifty paise".

(6) *for* the existing entry in Column 2 against Article 10, the following entry shall be substituted, namely :—

"Two hundred and twenty five rupees ".

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(7) *for* the existing entry in Column 2 against clause (c) of Article 12, the following entry shall be substituted, namely :—

"Thirty-seven rupees and fifty paise".

(8) for the existing table of rates below Article 15, the following table shall be *substituted*, namely :—

Description of instrument		Proper stamp duty
Where the amount or value secured does not exceed Rs. 10		Forty-five paise.
Where it exceeds Rs. 10 but does not exceed Rs. 50		One rupees.
Where it exceeds Rs. 50 but does not exceed Rs. 100		Three rupees and seventy-five paise.
Where it exceeds Rs. 100 but does not exceed Rs. 200		Seven rupees and fifty paise.
Where it exceeds Rs. 200 but does not exceed Rs. 300		Eleven rupees and twenty-five paise.
Where it exceeds Rs. 300 but does not exceed Rs. 400		Fifteen rupees.
Where it exceeds Rs. 400 but does not exceed Rs. 500		Eighteen rupees and seventy-five paise.
Where it exceeds Rs. 500 but does not exceed Rs. 600		Twenty-two rupees, and fifty paise.
Where it exceeds Rs. 600 but does not exceed Rs. 700		Twenty-six rupees and twenty-five paise.
Where it exceeds Rs. 700 but does not exceed Rs. 800		Thirty rupees.
Where it exceeds Rs. 800 but does not exceed Rs. 900		Thirty-three rupee and seventy-five paise.
Where it exceeds Rs. 900 but does not exceed Rs. 1,000		Thirty-seven rupees and fifty paise.
and for every Rs. 500 or part thereof in excess of Rs. 1,000		Eighteen rupees and seventy-five paise.
(9) for the existing table of rates below Article 23, the following table shall be *substituted*, namely :—		

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Description of instrument		Proper stamp duty
Where the amount or value of the consideration of such conveyance as set forth therein or the market value of the property which is the subject of such conveyance, whichever is greater, does not exceed Rs. 50	…….	Rs. P 2 00
Where it exceeds Rs. 50 but does not exceed Rs. 100	…….	7 50
Where it exceeds Rs. 100 but does not exceed Rs. 200	…….	15 00
Where it exceeds Rs. 200 but does not exceed Rs. 300	…….	22 50
Where it exceeds Rs. 300 but does not exceed Rs. 400	…….	30 00
Where it exceeds Rs. 400 but does not exceed Rs. 500	…….	37 50
Where it exceeds Rs. 500 but does not exceed Rs. 600	…….	45 00
Where it exceeds Rs. 600 but does not exceed Rs. 700	……	52 50
Where it exceeds Rs. 700 but does not exceed Rs. 800	……	60 00
Where it exceeds Rs. 800 but does not exceed Rs. 900	……	67 50
Where it exceeds Rs. 900 but does not exceed Rs. 1,000	……	75 00
and for every Rs. 500 or part thereof in excess of Rs. 1,000	……	37 50

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(10) *for* the existing entry in Column 2 against clause (ii) of Article 24 the following entry shall be *substituted*, namely :—

"Three rupees, when the copy or extract is of an agricultural lease or of a mortgage-deed or sale-deed of agricultural land and the value of the subject matter of the original does not exceed one thousand rupees ; in any other case, five rupees."

(11) *for* the existing clause (a) in Column I of Article 25, the following clause shall be substituted, namely :—

"(a) if the duty with which the original instrument is chargeable does not exceed five rupees ;".

(12) *for* the existing entry in Column 2 against column (b) of Article 25, the following entry shall be *substituted*, namely :—

"Five rupees".

(13) *for* the existing clause (a) in Column 1 of Article 34-A, the following clause shall be *substituted*, namely :—

"(a) if the duty with which the original instrument is chargeable does not exceed ten rupees ;"

(14) *for* the existing entry in column 2 against clause (b) of Article 34-A, the following shall be *substituted*, namely :—

"Five rupees",

(15) *for* the proviso below the existing entry in Column 2 against clause (c) of Article 35, the following proviso shall be substituted, namely ;

"Provided that in any case when an agreement to lease is stamped with the ad valorem stamp required for lease, and a lease in pursuance of such agreement is subsequently executed the duty on such lease shall not exceed five rupees."

(16) *for* the existing entry in Column 2 against clause (a) of Article 39, the following entry shall be *substituted*, namely :—

"One hundred rupees".

(17) *for* the existing entry in Column 2 against clause (b) of Article 39, the following entry shall be *substituted*, namely :—

"Three hundred and twenty-five rupees".

(18) in Article 45, in Column 2, for the existing clause (a) of the proviso, the following clause shall be *substituted*, namely :—

"(a) When an instrument containing an agreement to divide property in severalty is executed and a partition is effected in pursuance of such agreement, the duty chargeable upon the instrument effecting such partition or upon the instrument recording, by way of declaration or otherwise, the terms of such partition shall be reduced by the amount of duty paid in respect of the first instrument but shall not be less than five rupees ;"

(19) *for* the existing clause (c) in Column 2 of Article 45, the following clause shall be *substituted*, namely :—

"(c) Where a final order for effecting a partition passed by any Revenue authority or any Civil Court, or an award by an Arbitrator directing a partition, is stamped with the stamp required for any instrument of partition, and an instrument of partition, in pursuance of such order or award is subsequently executed, the duty on such instrument shall not exceed five rupees.",

(20) *for* the existing entry in Column 2 against item "A", sub-item (b) of Article 46, the following entry shall be *substituted*, namely:—

"One hundred and fifty rupees.",

(21) *for* the existing entry in Column 2 against Item "B" of Article 46, the following entry shall be *substituted*, namely :—

"Thirty-seven rupees and fifty paise.",

(22) *for* the existing table of rates under Article 48, the following table shall be *substituted*, namely :—

Description of instrument	Proper stamp duty
(a) When executed for the sole purpose of procuring the registration of one or more documents in relation to a single transaction or for admitting execution of one or more such documents ;	Two rupees and fifty paise.
(b) When authorizing one person or more	Five rupees.

to act in a single transaction other than the case mentioned in clause (a) ;	
(c) When authorizing not more than five persons to act jointly and severally in more than one transaction or generally ;	Twenty rupees.
(d) When authorizing more than five but not more than ten persons to act jointly and severally in more than one transaction or generally ;	Forty rupees.
(e) When given for consideration and authorizing the attorney to sell any immovable property ;	The same duty as a conveyance (no. 23) of the consideration.
(f) in any other case ;	Five rupees for each person authorized.

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(23) *for* the existing entry in Column 2 against clause (b) of Article 54, the following entry shall be *substituted*, namely :—

"Seventy-five rupees."

(24) *for* the existing clause (a) below Article 55, the following clause shall be *substituted*, namely :—

"(a) if the amount or value of the claim does not exceed Rs. 2,500 ;"

(25) *for* the existing entry in Column 2 against clause (b) of Article 55, the following entry shall be *substituted*, namely :—

"One hundred rupees.",

(26) *for* the existing entry in Column 2 against clause (b) of Article 57, the following entry shall be *substituted*, namely :—

"Thirty-seven rupees and seventy-five paise",

(27) *for* the existing proviso in Column 2 against Article 58, the following proviso shall be *substituted*, namely :—

"Provided that, where an agreement to settle is stamped with the stamp required for an instrument of settlement and an instrument of settlement in pursuance of such agreement is subsequently executed, the duty on such instrument shall not exceed five rupees",

(28) *for* the existing clause (a) in Column 1 of article 61, the following clause shall be *substituted*, namely :—

"(a) when the duty with which the lease is chargeable does not exceed thirty-seven rupees and seventy-five paise."

(29) *for* the existing entry in Column 2 against clause (b) of Article 61, the following entry shall be *substituted*, namely :—

"Thirty-seven rupees and seventy-five paise",

(30) *for* the existing item (i) of clause (c) in Column (1) of Article 62, the following item shall be *substituted*, namely :—

"(i) if the duty on such bond, mortgage-deed or policy does not exceed thirty-seven rupees and seventy-five paise."

(31) for the existing entry in Column 2 against item (ii) below clause (c) of Article 62, the following entry shall be substituted, namely:—

"Thirty-seven rupees and seventy-five paise ;

Provided that, if by any one instrument the interest secured by several bonds, mortgage-deeds or policies of insurance is transferred the duty payable in respect of such instrument shall be the aggregate of the duties which would have been payable if separate instruments of transfer were executed in respect of each such bond, mortgage deed or policy of insurance."

(32) for the existing entry in Column 2 against Item "B" of Article 64, the following entry shall be substituted, namely :—

The same duty as a Bond (no. 15) for a sum equal to the amount or value of the property concerned but not exceeding seventy-five rupees.".

[*Vide* Uttar Pradesh Act 20 of 1974, s. 6]

Insertion of new Article 38-A.— In Schedule I-B to the Indian Stamp Act, 1899, after Article 38, the following Article shall be inserted, namely :—

"38-A. Licence relating to arms or ammunitions, that is to say, document evidencing the licence or renewal of licence relating to arms or ammunitions under the provisions of the Arms Act, 1959, —

(A) Licence relating to following arms :—

(i) Revolvers or Pistols	Two thousand rupees
(ii) Rifles	One thousand five hundred rupees
(iii) DBBL Weapons	One thousand rupees
(iv) SBBL Weapons	One thousand rupees
(v) ML Weapons	Two hundred rupees
(B) Licence relating to arms or ammunitions on following Forms as set out in Schedule III to the Arms Rules, 1962 :—	
(i) FORM XI	Ten thousand rupees
(ii) FORM XII	Ten thousand rupees
(iii) FORM XIII	Five thousand rupees
(iv) FORM XIV	Three thousand rupees
(C) Renewal of licence relating to following arms :—	
(i) Revolvers or Pistols	One thousand rupees
(ii) Rifles	Seven hundred fifty rupees
(iii) DBBL Weapons	Five hundred rupees
(iv) SBBL Weapons	Five hundred rupees

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(v) ML Weapons	One hundred rupees
(D) Renewal of licence relating to arms or ammunitions on following Forms as set out in Schedule III to the Arms Rules, 1962 :—	
(i) FORM XI	Three thousand rupees
(ii) FORM XII	Three thousand rupees
(iii) FORM XIII	Two thousand rupees
(iv) FORM XIV	One thousand rupees"

[*Vide* Uttar Pradesh Act 22 of 1998, s. 2]

Amendment of Article 1 of Schedule 1-B.— In Schedule 1-B to the principal Act. hereinafter referred to as the said Schedule, in Article 1 (Acknowledgement) in the Column relating to the "description of instrument" for the words "twenty rupees" the words "one thousand rupees", and in the column relating to the "Proper Stamp Duty" for the words "Fifty paise" the words "ten rupees" shall be substituted.

[*Vide* Uttar Pradesh Act 22 of 1998, s. 11]

Substitution or Article 4 In the said Schedule, for Article 4 (Affidavit), the following Article shall be substituted, namely :—

"4 AFFIDAVIT, including an affirmation or Ten rupees declaration in the case of persons by law allowed affirm or declare instead of swearing.

Exemptions

Affidavit or declaration in writing when made—

(a) as a condition of enrolment under the Army Act. 1950. The Air force Act, 1950, or the Navy Act, 1957, or

(b) for the sale purpose of enabling any person to receive any pension or charitable allowance.

[*Vide* Uttar Pradesh Act 22 of 1998, s. 12]

Amendment of Article 5.— In the said Schedule, in Article. 5 (Agreement or Memorandum of an Agreement, —

(a) in clause (a). in the column relating to the "proper stamp duty" for the words "Sixty naye paise" the words "ten rupee'. shall be substituted.

(b) in clause (b) in the Column relating to the "proper stamp duty" for the words "forty five rupees, thirty naye paise for every 10,000" the words "One thousand rupees, ten rupees for every Rs. 20,000" shall be substituted.

(c) for the existing clause (b-1), the following clauses shall be Substituted, namely :—

"(b-1) If relating to the sale of an immovable property where possession is not admitted to have been delivered nor is agreed to be delivered Without executing the conveyance :	The same duty as on conveyance [No. 23 clause (a)] on one half of the amount of consideration as set forth in the agreement."
Provided that when conveyance in pursuance	

of such agreement is executed. The duty paid under this clause in excess of the duty payable under clause (c) shall be adjusted towards the total duty 'payable on the conveyance."	
"(b-2) If relating to construction of a building on a land by a person other than the owner or lessee of such land and having a stipulation that after construction, such building shall be held jointly or severally by that other person and the owner or the lessee, as the case may be, of such land or that it shall be sold jointly or severally by them or that a part of it shall be held jointly or severally by them and the remaining paid thereof shall be sold jointly or severally by them.	The same duty as a conveyance (No. 23 clause (a)] for a consideration equal to the amount or value of the land.

Explanations— For the purpose of this clause :—

(1) the expression "land" shall include things attached to the earth, or permanently fastened to anything attached to the earth ;

(2) the expression "lessee" shall mean a holder of a lease in perpetuity or for a perpetuity or for a period or thirty years or more.

(3) the expression "shall" mean a building having more than one flat or office accommodation or both and the expression "flat" shall have the meaning assigned to it in the Uttar Pradesh Ownership of Flats Act, 1975."

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[*Vide* Uttar Pradesh Act 22 of 1998, s. 13]

Amendment of Article 6.—In the said Schedule, in Article 6 (Agreement relating to deposit of title, deeds pawn or pledge) in clause (2), for sub-clause (a). the following sub-clause be substituted, namely :—

"(a) if such loan or debt is repayable on demand or more than three months from the date of the instrument evidencing the agreement :

For every Rs. 1000 or part thereof of the amount of loan or debt. Twenty rupees

Explanation— For the purpose of clause (1) of this Article, any letter, note or memorandum or writing, relating, to the deposit of title deeds whether written or made before, or at the time of, or after, the deposit of title deeds is effected, and whether it is in respect of the first loan or any subsequent loan, such letter, note, memorandum or writing shall ; in the absence of any separate agreement relating to deposit of deeds, be deemed to be an instrument evidencing an agreement relating to the deposit of title deeds."

[*Vide* Uttar Pradesh Act 22 of 1998, s. 14]

Amendment of Article 9.— In the said Schedule, in Article 9 (Apprenticeship deed), in the column relating to the "proper stamp duty", for the words "Twelve rupees" the words "Twenty rupees" shall be substituted.

[*Vide* Uttar Pradesh Act 22 of 1998, s. 15]

Amendment of Article 10.— In the said Schedule, in Article 10 (Articles of Association of a company), in the column relating to the "proper stamp duty" for the words "Three hundred rupees" the words "Five hundred rupees" shall be substituted.

[*Vide* Uttar Pradesh Act 22 of 1998, s. 16]

Amendment of Article 12.— the said Schedule, in Article 12 (Award), in clause (b), in the column relating to the "proper stamp duty" for the words "One rupee and fifty naye paise" the words "Ten rupees" shall be substituted.

[*Vide* Uttar Pradesh Act 22 of 1998, s. 17]

Insertion of new Article 12-A.—In the said Schedule after Article 12, the following Article shall be inserted, namely :—

"12-A. Bank Guarantee— Guarantee deed executed by a Bank as a surely to secure	Fifty rupees.
The due performance or a contract or the due discharge of a liability for every Rs. 1000 or part thereof.	

[*Vide* Uttar Pradesh Act 22 of 1998, s. 18]

Substitution of Article 15.— In the said Schedule, for Article 15 (Bond), the following Article shall be substituted, namely :—

"15. BOND as defined by section 2(5) not being a Debenture (No. 27) and not being otherwise provided for by this Act, or by the Court Fees Act, 1870.

Where the amount or value secured does not exceed Rs. 100/-	Ten rupees
and for every additional Rs. 1,000 or part thereof in excess Rs. 1,000/-	Seventy rupees

[*Vide* Uttar Pradesh Act 22 of 1998, s. 19]

Amendment of Article 17.— In the said Schedule, in Article 17 (cancellation), in the column relating to the "proper stamp duty", for the words "Twenty-five rupees" the words "one hundred rupees" shall be substituted.

[*Vide* Uttar Pradesh Act 22 of 1998, s. 20]

Amendment of Article 18.—In the said Schedule, in Article 18 (certificate of sale), in the column relating to the "proper stamp duty", for the words and figure "No. 23" the words and figure "No. 23 clause (a)" shall be substituted.

[*Vide* Uttar Pradesh Act 22 of 1998, s. 21]

Amendment of Article 19.—In the said Schedule, in Article 19 (Certificate of other Document), in the column relating to the "proper stamp duty", for the words "Fifty paise" the words "one rupees" shall be substituted.

[*Vide* Uttar Pradesh Act 22 of 1998, s. 22]

Amendment of Article 20.— In the said Schedule, in Article 20 (Chartered Party), in the column relating to the "proper stamp duty", for the words "Six rupees" the words "Ten rupees" shall be substituted.

[*Vide* Uttar Pradesh Act 22 of 1998, s. 23]

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Substitution of Article 23.— In the said Schedule, for Article 23 (Conveyance) the following Article shall be substituted, namely :—

"23. CONVEYANCE as defined by section 2 (10) not being a Transfer charged or substituted under No. 62 —	
(a) If relating to immovable property where the amount or value of the consideration of such conveyance at set forth therein or the market value of the immovable property which is the subject of such conveyance, whichever is greater does not exceed Rs. 500/-	Sixty rupees
Where it exceeds Rs. 500/-	One hundred and twenty-five rupees
but does not exceed Rs. 1,000/-	One hundred and twenty-five rupees
and for every Rs. 1,000/-	
or part thereof in excess of Rs. 1,000/-	Provided that the duty payable shall be rounded off to the next multiple of ten rupees.
(b) if relating to movable property- where the amount or value of the consideration of such conveyance as set forth therein does not exceed Rs. 1,000/-	Twenty rupees
and for every Rs. 1,000/-	Twenty rupees
or part thereof in excess of Rs. 1,000/-	

EXEMPTION:--

Assignment of copy-right in musical works by resident of or first published in India.

Explanation :—For the purposes of this Article, in the case of an agreement to sell an immovable property, where possession is delivered before the execution or at the time of execution, or is agreed to be delivered without executing the conveyance, the agreement shall be deemed to be a conveyance and stamp duty thereon shall be payable accordingly ;

Provided that the provisions of section 47-A shall *mutatis mutandis* apply to such agreement ;

Provided further that when conveyance in pursuance of-such agreement is executed, the stamp duty paid on the agreement shall be adjusted towards the total duty payable on the conveyance.

[*Vide* Uttar Pradesh Act 22 of 1998, s. 24]

Amendment of Article 24.— In the said Schedule, for Article 24 (copy or extract) the following Article shall be substituted, namely :—

"24. Copy or Extract certified to be a true-copy or extract by or by order of any public officer and not chargeable under the law for the time being in force relating to court-fees —

(i) if the original was not chargeable with duty or if the duty with which it was chargeable does not exceed ten rupees ;	Ten rupees
(ii) in any other case not falling within the provisions of Section 6-A.	Ten rupees

EXEMPTION :—

(a) Copy of any paper which a public officer is expressly required by law to make or furnish for record in any public office or for any public purpose ;

(b) Copy of, or extract from, any register relating to births, baptisms namings, dedications, marriages, divorces, deaths or burials."

[*Vide* Uttar Pradesh Act 22 of 1998, s. 25]

Amendment of Article 28.—In the said Schedule, in Article 28 (Delivery order in respect of goods), in the column relating to the "description of, instrument" for the words "twenty rupees" the Words "one thousand rupees" and in the column relating to the "proper stamp-duty" for the words "Fifty paise" the words 'Ten rupees" shall be substituted ;

[*Vide* Uttar Pradesh Act 22 of 1998, s. 26]

Amendment of Article 29.—In the said Schedule, in Article 29 (Divorce) in the column relating to the "proper Stamp duty" for the words. "Twenty-five rupees" the word "Fifty rupees" shall be substituted.

[*Vide* Uttar Pradesh Act 22 of 1998, s. 27]

Amendment of Article 31, 32, 33.-- In the said Schedule, in Article 31 (Exchange of Property), 32 (Further charge) and 33 (Gift), in the column relating to the "proper stamp duty" for the word and figures "No. 23" wherever occurring the words and figure "No. 23 clause (a)" shall be substituted.

[*Vide* Uttar Pradesh Act 22 of 1998, s. 28]

Substitution of Article 34-A.— In the said Schedule, for Article 39-A (instrument), the following Article shall be substituted, namely:—

"34—A. INSTRUMENT correcting a purely clerical error in an instrument chargeable with duty and in respect of which the proper duty has been paid.	Ten rupees"

[*Vide* Uttar Pradesh Act 22 of 1998, s. 29]

Amendment of Article 35.—In the said Schedule, in Article 35 (Lease) —

(a) in clause (a), in sub-clauses (ii), (iii), (iv), (v), (vi), (vii) and (viii), in the column relating to the "proper stamp duty", for the word and figure "No. 23" wherever accruing the words and figure "No. 23 clause (a)" shall be substituted ;

(b) in clause (b), in the column relating to the "proper stamp duty" for the word and figure "No. 23" the words and figure "No. 23 clause (a)" shall be substituted:

(c) in clause (c), in column relating to the "proper stamp duty", for the word and figure "No. 23" the words and figure "No. 23 clause (a)" and for the words "Five rupees" the words "Ten rupees" shall be substituted ;

(d) after the existing proviso, the following proviso shall be inserted, namely :—

"Provided further that where the lease purpose to letting of a building or flat for a term not exceeding five years, the duty shall, subject to a minimum of rupees one hundred and a maximum of rupees ten thousand, be chargeable at the rate of two per cent of the whole amount of the rent which would be paid or delivered for the entire term of the lease and the amount of fine or premium or

money advanced, if any, as set forth in the lease and it shall be rounded off to the next multiple of rupees ten."

(e) after explanation (4) the following explanation shall be inserted, namely:—

"(5) For the purpose of second proviso the expressions "building" and "flat" shall have the meanings respectively assigned to them in explanation (3) to clause (b-2) of Article 5."

[*Vide* Uttar Pradesh Act 22 of 1998, s. 30]

Amendment of Article 36.— In the said Schedule, in Article 36 (Letter of Allotment of shares) in the column relating to the "proper stamp duty", for the words "Fifty paise" the words "one rupee" shall be substituted ;

[*Vide* Uttar Pradesh Act 22 of 1998, s. 31]

Amendment of Article 39.—In the said Schedule, in Article 39 (MEMORANDUM OF ASSOCIATION OF A COMPANY), —

(a) in clause (a), in the column relating to the "proper stamp duty", for the words "two hundred rupees", the words "Five hundred rupees" shall be substituted ;

(b) In clause (b), in the column relating to the "proper stamp duty", for the words, "five hundred rupees", the words "one thousand rupees" shall be substituted ;

[*Vide* Uttar Pradesh Act 22 of 1998, s. 32]

Amendment of Article 40.— In the said Schedule, in Article 40 (Mortgage-deed), —

(a) in clause (a), in the column relating to the "proper stamp duty", for the words and figure "No. 23", the words and figure "No. 23 clause (a)" shall be substituted ;

(b) in clause (c), in the column relating to the "proper stamp duty", for the words "two rupees and twenty five naye paise" wherever occurring the words "Ten rupees" shall be substituted ;

[*Vide* Uttar Pradesh Act 22 of 1998, s. 33]

Amendment of Article 41.— In the said Schedule, in Article 41 (Mortgage of a crop) —

(a) in clause (a), —

(i) in the column relating to the "description of instrument", for the words and figure "Rs. 200", wherever occurring the word and figure "Rs. 6000" shall be substituted ;

(ii) in the column relating to the "proper stamp duty", for the words "Thirty five naye paise", wherever occurring the word and figure "Ten rupees" shall be substituted ;

(b) in clause (b), —

(i) in the column relating to the "description of instrument", for the words and figure "Rs. 100", wherever occurring the word and figure "Rs. 3000" shall be substituted ;

(ii) in the column relating to the "proper stamp duty", for the words "Sixty Naye paise", wherever occurring the word "Twenty rupees" shall be substituted ;

[*Vide* Uttar Pradesh Act 22 of 1998, s. 34]

Amendment of Article 42.— In the said Schedule, in Article 42 (Notarial Act) in the column relating to the "proper stamp-duty", for the words "Three rupees and fifty naye paise", the words "Ten rupees" shall be substituted ;

[*Vide* Uttar Pradesh Act 22 of 1998, s. 35]

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Amendment of Article 43.—In the said Schedule, in Article 43 (Note or Memorandum),—

(a) in column relating to the "description of instrument", for the words "Twenty rupees", wherever occurring the words "Two hundred rupees" shall be substituted ;

(b) in clause (a), in the column relating to the "proper stamp duty", for the words "One rupees" the words "Ten rupees" shall be substituted ;

(c) in clause (b), in the column relating to the "proper stamp duty", for the words and figure "seventy five rupees ; one rupee for every Rs. 10,000", the words and figure "one thousand rupees ; ten rupees for every Rs. 20,000" shall be substituted ;

[*Vide* Uttar Pradesh Act 22 of 1998, s. 36]

Amendment of Article 44.— In the said Schedule, in Article 44 (Note of Protest) in the column relating to the "proper stamp-duty", for the words "Three rupees", the words "Ten rupees" shall be substituted ;

[*Vide* Uttar Pradesh Act 22 of 1998, s. 37]

Amendment of Article 45.—In the said Schedule, in Article 45 Partition in the column relating to the "proper stamp-duty", for the words "five rupees", wherever occurring the words "Ten rupees" shall be substituted ;

[*Vide* Uttar Pradesh Act 22 of 1998, s. 38]

Amendment of Article 46.— In the said Schedule, in Article 46 (Partnership), —

(a) in part A, for the word and figure "Rs. 4000", wherever occurring, the word and figure "Rs. 10,000" shall be substituted ;

(b) in part B, in the column relating to, the "proper stamp duty", for the words and figure "the same duty as a Bond (No. 15) for Rs. 1,000", the Words "one hundred rupees" shall be substituted.

[*Vide* Uttar Pradesh Act 22 of 1998, s. 39]

Amendment of Article 48.—In the said Schedule, in Article 48 (Power of Attorney), —

(a) in clause (a), in the column relating the "proper stamp duty", for the words "Three rupees" the word "Ten rupees" shall be substituted ;

(b) in clause (b), in the column relating to the "proper stamp duty", for the words "Ten rupees", the Words "Twenty rupees" shall be substituted.

(c) in clause (c), in the column relating to the "proper stamp duty", for the word and figure "No. 23" the Words and figure "No. 23 clause (a)" shall be substituted.

(d) in clause (ee), in the column relating to the "proper stamp duty", for the word and figure "No. 23" the Words and figure "No. 23 clause (a)" shall be substituted.

[*Vide* Uttar Pradesh Act 22 of 1998, s. 40]

Amendment of Article 50.— In the said Schedule, in Article 50 (Protest of bill or note), in the column relating to the "proper stamp-duty", for the words "Five rupees", the words "ten rupees" shall be substituted ;

[*Vide* Uttar Pradesh Act 22 of 1998, s. 41]

Amendment of Article 51.—In the said Schedule, in Article 51 (Protest by the Master of a ship), in the column relating to the "proper stamp-duty", for the words "five rupees", the words "ten rupees" shall be substituted ;

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[*Vide* Uttar Pradesh Act 22 of 1998, s. 42]

Amendment of Article 54.—In the said Schedule, in Article 54 (Re-conveyance of Mortgaged Property) in the column relating to the "proper stamp-duty", for the word and figure "No. 23" wherever occurring the word and figure "No. 23 clause (a)" shall be substituted ;

[*Vide* Uttar Pradesh Act 22 of 1998, s. 43]

Amendment of Article 57.— In the said Schedule, in Article 57 (Security-Bond or Mortgage-Deed), —

(a) in clause (a), in the column relating to the "description of instrument" for the word and figure "Rs. 1000" the word and figure "Rs. 100" and in the column relating to the "proper stamp duty", for the words and figure "The same duty as a Bond (No. 15) for the amount secured" the words "Ten rupees" shall be substituted.

(b) in clause (b), in the column relating to the "proper stamp duty", for the word and figure "The same duty as a Bond (No. 15) for Rs. 1000" the words "One hundred rupees" shall be substituted.

[*Vide* Uttar Pradesh Act 22 of 1998, s. 44]

Amendment of Article 58.—In the said Schedule, in Article 58 (Settlement) in part A, in the column relating to the "proper stamp-duty", for the words "five rupees" the words "ten rupees" shall be substituted ;

[*Vide* Uttar Pradesh Act 22 of 1998, s. 45]

Amendment of Article 60.—In the said Schedule, in Article 60 (Shipping Order), in the column relating to the "proper stamp duty", for the words "Fifty paise" the words "Ten rupees" shall be substituted ;

[*Vide* Uttar Pradesh Act 22 of 1998, s. 46]

Substitution of Article 61.—In the said Schedule, in Article 61 (Surrender of lease), the following Article shall be substituted, namely :—

"61. SURRENDER OF LEASE	The same duty as a Bond (No. 15) for a consideration of Rs. 1000 or the duty with which such lease is chargeable whichever is less ; Provided that the duty payable shall be rounded off to the next multiple or ten rupees.
EXEMPTION	
Surrender of lease where such lease is exempted from duty."	

[*Vide* Uttar Pradesh Act 22 of 1998, s. 47]

Amendment of Article 62.—In the said Schedule, in Article 62 (Transfer), —

(a) for clause (b), following clause shall be substituted, namely:—

"(b) of debentures, being marketable securities whether the debenture is liable to duty or not, except debentures provided for by section 8 ;	
When the value of the share or the face amount of the debentures not exceed Rs. 500 ;	Ten rupees
Where it exceeds Rs. 500 but does not exceed Rs. 1,000 ;	Twenty rupees
And for every rs..500 or ten rupees part thereof in excess of Rs: 1,000:	ten rupees

(b) in clause (c)— (i) for sub clause (i), the following sub clause shall be substituted namely:-	
" (i) if the duty on such bond, mortgage Deed or policy does not exceed one hundred Rupees;	the duty with which such bond, mortgage-deed or policy is chargeable; provided that the duty payable shall be rounded off to the next multiple of ten rupees;"
(ii)- in sub clause (ii) in the column relating to the "proper stamp duty" for the words "Seventy Five rupees" shall be substituted and after the proviso the following proviso shall be inserted,at the end namely:-	
"provided further that the duty payable shall be rounded off to the next multiple of ten rupees:-	

(c) in clause (d), in the column relating to the "proper stamp duty" for the words " Sixty-seven rupees and fifty paise" the words "One hundred ripees" shall be substituted;

(d) in clause (e), in the column relating to the "proper stamp duty" for the words " Thirty four rupees or such smaller amount as may be chargeable under clauses (b) and (c) of this Article", the words "seventy rupees" shall be substituted.

[*Vide* Uttar Pradesh Act 22 of 1998, s. 48]

In the said Schedule, in Article 63(Transfer of lease), in the column relating to the "proper stamp duty" for word and figure "No 23" the words and figure No "23 clause(a)" shall be substituted.

[*Vide* Uttar Pradesh Act 22 of 1998, s. 49]

In the said Schedule, in Article 64(Trust), in part A, in clause (b), in the column relating to the "proper stamp duty" for the words "Three rupees" the words "Ten rupees" shall be substituted.

[*Vide* Uttar Pradesh Act 22 of 1998, s. 50]

In the said Schedule, in Article 65(Warrant of goods), in the column relating to the "proper stamp duty" for the words "Three rupees" the words "Ten rupees" shall be substituted.

[*Vide* Uttar Pradesh Act 22 of 1998, s. 51]

Amendment of Article 3 of Schedule 1-B to Act no. 2 of 1899.— In Schedule I-B to the Indian Stamp Act, 1899, hereinafter referred to as the said Schedule, in Article 3 (Adoption-Deed), in the column relating to the "Proper Stamp Duty" for the words "seventy-five rupees," the words "one hundred rupees" shall be substituted.

[*Vide* Uttar Pradesh Act 23 of 1988, s. 2]

Amendment of Article 6 of the said Schedule.—In the said Schedule, in Article 6 (Agreement relating to deposit of title deeds, pawn or pledge), in clause (2), in sub-clause (a), in the column relating to the "Proper stamp duty" for the figures set out in column 1 of the table below, be figures set out respectively against them in column 2 thereof Shall be substituted, namely :

COLUMN 1	COLUMN 2

(*Existing figures*)	*(figures to be substituted*)
Rs. P.	Rs. P.
1 50	3 00
3 00	6 00
4 50	9 00
6 00	12 00
7 50	15 00
9 00	18 00
12 00	24 00
18 75	37 50
37 50	75 00
56 25	112 50
75 00 112 50	150 00 225 00
150 00	300 00
187 50	375 00
225 00	450 00
75 00	150 00

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[*Vide* Uttar Pradesh Act 23 of 1988, s. 3]

Amendment of Article 15 of the said Schedule .— In the said Schedule, in Article 15, (Bond), in the column relating to the "Proper stamp duty", for the words set out in column 1 of the table below, the words set out respectively against them in Column 2 thereof shall be *substituted*, namely :—

COLUMN 1 (Existing words)	COLUMN 2 (Words to be substituted)
One rupee	One rupee and fifty paise
Two rupees and fifty paise	Three rupees
Four rupees and seventy-five paise	Five rupees and fifty paise
Nine rupees and fifty paise	Eleven rupees
Fourteen rupees and twenty-five paise	Sixteen rupees and fifty paise
Nineteen rupee	Twenty-two rupees
Twenty-three rupees and seventy-five paise	Twenty-seven rupees and fifty paise
Twenty-eight rupees and fifty paise	Thirty-three rupees
Thirty-three rupees and twenty-five paise	Thirty-eight rupees and fifty paise
Thirty-eight rupees	Forty-four rupees
Forty-two rupees and seventy-five paise	Forty-nine rupees and fifty paise
Forty-seven rupees and fifty paise	Fifty-five rupees

Twenty-three rupees and seventy-five paise	Twenty-seven rupees and fifty paise.

[*Vide* Uttar Pradesh Act 23of 1988, s. 4]

Amendment of Article 23 of the said Schedule.—In the said Schedule, in Article 23, (Conveyance), in the column relating to the "Proper stamp duty", for the figures set out in column 1 of the table below, the figures set out respectively against them in Column 2 thereof shall be *substituted*, namely :—

Column 1	*Column* 2
Rs. P.	Rs. P.
4 75	6 25
9 50	12 50
19 00	25 00
28 50	37 50
38 00	50 00
47 50	62 50
57 00	75 00
66 50	87 50
76 00	100 00
85 50	112 50
95 00	125 00
47 50	62 50

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[*Vide* Uttar Pradesh Act 23 of 1988, s. 5]

Substitution of Article 24 of the said Schedule.— In the said Schedule, for Article 24, (Copy or extract), the following Article shall be *substituted*, namely :—

"24. Copy or extract certified to be a true copy or extract by or by order of any public officer and not chargeable under the law for the time being in force relating to court-fees—	
(i) if the original was not chargeable with duty or if the duty with Which it was chargeable does not exceed three rupees.	Two rupees and twenty-five paise when the copy or extract is of an agricultural lease or of a mortgage deed or sale-deed of agricultural land ; in any other case, five rupees.

(ii) in any other case not falling within the provisions of section 6-A.	Three rupees, when the copy or extract is of an agricultural lease or of a mortgage-deed or sale-deed of agricultural land and the value of the subject-matter of the original does not exceed one-thousand rupees ; in any other case ten rupees.
or *Exemption*	
(a) Copy of any paper which a public officer is expressly required by law to make or furnish for record in any public office or for any public purpose	
(b) Copy of, or extract from, any register relating to births, baptisms, naming dedications, marriages, divorces, deaths or burials."	

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[*Vide* Uttar Pradesh Act 23 of 1988, s. 6]

In the said Schedule; in Article 48 (Power of Attorney) –

(a) in clause (b), in the column relating to "Proper stamp duty." for the words "Six rupees" the words "Ten rupees" shall be substituted;

(b) in clause (c), in the column relating to “Proper stamp duty” for the words “Twenty-four rupees" the words. "Fifty rupees" shall be, substituted ;

(c) in clause (d), in the column relating to "Proper stamp duty" for the words "Forty-eight rupees" the words "One hundred rupees" shall be substituted ;

(d) In clause (f), in the column relating to "Proper stamp duty” for the word “Six rupees" the words "Ten rupees" shall be substituted ;

[*Vide* Uttar Pradesh Act 23 of 1988, s. 7]

Amendment of Schedule 1-B to Act no. II of 1899.—In Schedule I-B to the Indian Stamp Act, 1899—

(a) in Article 15 (Bond), in the column relating to the "Proper Stamp Duty", for the words set out in column 1 of the table below, the words set out respectively against them in column 2 of the table below, shall be substituted, namely :

COLUMN 1 (*Existing words*)	COLUMN 2 (*Words to be substitute*
Fifty paise	One rupee
Two rupees	Two rupees and fifty paise
Four rupees and twenty-five paise	Four rupees and seventy five paise
	Nine rupees and fifty paise
Eight rupees and fifty paise	Fourteen rupees and twenty five paise

Twelve rupees and seventy-five paise	Nineteen rupees
Seventeen rupees	Twenty-three rupees and seventy five paise.
Twenty-one rupees and twenty-five paise	Twenty-eight rupees and fifty paise
Twenty-five rupees and fifty paise	
Twenty-nine rupees and seventy-five paise	Thirty-three rupees and twenty five paise
Thirty-four rupees	Thirty eight rupees
Thirty-eight rupees and twenty-five paise	Forty-two rupees and seventy-five paise
Forty-two rupees and fifty paise	Forty-seven rupees and fifty paise
Twenty-one rupees and twenty-five paise	Twenty-three rupees and seventy- five paise.

(b) in Article 23 (Conveyance), in the column relating to "Proper Stamp Duty", for the figures set out in column 1 of the table below, the figures set out respectively again them in column 2 of the table below, shall be *substituted*, namely :—

COLUMN 1 (*Existing figures*)	COLUMN 2 (*figures to be substituted*)
Rs. P.	Rs. P.
4 00	4 75
8 50	9 50
17 00	19 00
25 50	28 50
34 00	38 00
42 50	47 50
51 00	57 00
59 50	66 50
68 00	76 00
76 50	85 50
85 00	95 00
42 50	47 50

[*Vide* Uttar Pradesh Act 32 of 1985, s. 2]

Uttar Pradesh

Insertion of new article 38A.—In Schedule I-B to the Indian Stamp Act, 1899 after article 38, the following article shall be inserted, namely:--

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"38-A. Licence relating to arms or ammunitions, that is to say, document evidencing the licence or renewal of licence relating to arms or ammunitions under the provisions of the Arms Act, 1959 (Act No. 54 of 1959),--

(A) Licence relating to following arms:	
(i) Revolvers or Pistols	Two thousand rupees
(ii) Rifles	One thousand five hundred rupees
(iii) DBBL Weapons	One thousand rupees
(iv) SBBL Weapons	One thousand rupees
(v) ML Weapons	Two hundred rupees
(b) Licence relating to arms or ammunitions on following Forms as set out in Schedule III to the Arms Rules, 1962:	
(i) Form XI	Ten thousand rupees
(ii) Form XII	Ten thousand rupees
(iii) Form XIII	Five thousand rupees
(iv) Form XIV	Three thousand rupees
(c) Renewal of licence relating to following arms:	
(i) Revolvers or Pistols	One thousand rupees
(ii) Rifles	Seven hundred fifty rupees
(iii) DBBL Weapons	Five hundred rupees
(iv) SBBL Weapons	Five hundred rupees
(v) ML Weapons	Five hundred rupees
(d) Renewal of licence relating to arms or ammunitions on following Forms as set out in Schedule III to the Arms Rules, 1962:	
(i) Form XI	Three thousand rupees
(ii) Form XII	Three thousand rupees
(iii) Form XIII	Two thousand rupees
(iv) Form XIV	One thousand rupees.

[*Vide* Uttar Pradesh Act 23 of 1998, s. 2]

Uttar Pradesh

Amendment of Article 48 of Schedule 1-B of Act no. 2 of 1899.—In Article 48 of Schedule 1-B of the Indian Stamp Act, 1899 as amended in its application to Uttar Pradesh, for clauses (*e*) and (*ee*), the following clauses shall be substituted, namely:—

(*e*) (i) When irrevocable authority is given to the attorney to sell the immovable property.	The same duty as a Conveyance [No. 23 clause (a)] on the market value of the immovable property which is the subject matter of the power of attorney.
(ii) When authority to sell the immovable property is given to the attorney for consideration.	The same duty as a Conveyance [No. 23 clause (a)] on the market value of the immovable property which is the subject matter of the power of attorney.
(*ee*) (i) When the members of the family [father, mother, husband, wife, son, daughter-in-law, daughter, son-in-law, brother, sister, grand son/grand daughter (son's son/daughter), grand son/grand (daughter's son/daughter)] to be	Rs. 5000/-

authorised with proof of relationship.

(ii) When any person other than the members of the family mentioned in sub-clause (i) is authorised to sell immovable property by means of Power of Attorney.	The same duty as a Conveyance [No. 23 clause (a)] on the market value of the immovable property which is the subject matter of the power of attorney.

[*Vide* Uttar Pradesh Act 14 of 2024, s. 2]

Haryana

Amendment of Schedule I-A of Central Act 2 of 1899,—In the Indian Stamp Act, 1899, in it's application to the State of Haryana (hereinafter referred to as the principal Act), in Schedule I-A—

(a) for article 23, the following article shall be substituted, namely:--

Description of instrument	**Proper Stamp-Duty**	
"23**.** Conveyance as defined by section 2 (10) not being a transfer charged or exempted under no. 62	Where conveyance amount to sale of immovable property	Other conveyance
1	2	3
Where the value or amount of the consideration for such conveyance as set forth therein does not exceed Rs 50;	Five rupees	Two rupees and fifty paise
Where it exceeds Rs 50 but does not exceed Rs 100;	Ten rupees	Five rupees
Where it exceeds Rs 100 but does not exceed Rs 200;	Twenty rupees	Ten rupees
Where it exceeds Rs 200 but does not exceed Rs 300;	Thirty rupees	Fifteen rupees
Where it exceeds Rs 300 but does not exceed Rs 400;	Forty rupees	Twenty rupees
Where it exceeds Rs 400 but does not exceed Rs 500;	Fifty rupees	Twenty-five rupees
Where it exceeds Rs 500 but does not exceed Rs 600;	Sixty rupees	Thirty rupees
Where it exceeds Rs 600 but does not exceed Rs 700;	Seventy rupees	Thirty-five rupees
Where it exceeds Rs 700 but does not exceed Rs 800;	Eighty rupees	Forty rupees
Where it exceeds Rs 800 but does not exceed Rs 900;	Ninety rupees	Forty-five rupees

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Where it exceeds Rs 900 but does not exceed Rs 1,000;	One hundred rupees	Fifty rupees
and for every Rs 500 or part thereof in excess of Rs 1, 000	Fifty rupees	Twenty-five rupees

(b) in article 40 for item (a), the following item shall be substituted, namely:—

Description of Instrument	*Proper Stam-duty*
"(a) When possession of the property or any part of the property comprised in such deed is given by the mortgage or agreed to be given—	
Where the amount secured by such instrument does not exceed Rs 50;	Two rupees and fifty paise
Where it exceeds Rs 50 but does not exceed Rs 100;	Five rupees
Where it exceeds Rs 100 but does not exceed Rs 200;	Ten rupees
Where it exceeds Rs 200 but does not exceed Rs 300;	Fifteen rupees
Where it exceeds Rs 300 but does not exceed Rs 400;	Twenty rupees
Where it exceeds Rs 400 but does not exceed Rs 500;	Twenty-five rupees
Where it exceeds Rs 500 but does not exceed Rs 600;	Thirty rupees
Where it exceeds Rs 600 but does not exceed Rs 700;	Thirty-five rupees
Where it exceeds Rs 700 but does not exceed Rs 800;	Forty rupees
Where it exceeds Rs 800 but does not exceed Rs 900;	Forty-five rupees
Where it exceeds Rs 900 but does not exceed Rs 1,000;	Fifty rupees
and for every Rs 500 or part thereof in excess of Rs 1, 000	Twenty-five rupees."

[*Vide* Haryana Act 16 of 1969, s. 2]

Amendment of Schedule I -A to Central Act 2 of 1899.—In Schedule I -A to the Indian Stamp Act, 1899, under column "Proper Stamp Duty",--

(I) against article 4, for the words "Three rupees", the words "Ten rupees" shall be substituted;

(II) against article 48—

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(1) against clause (c), for the words "Three rupees", the words "One hundred rupees" shall be substituted ; and

(ii) against clause (d), for the words "Fifteen rupees", the words "Three hundred rupees" shall be substituted.

[*Vide* Haryana Act 21 of 2006, s. 2]

Amendment of Schedule I-A to Central Act 2 of 1899.—In Schedule 1-A to the Indian Stamp Act, 1899, for entry 23, the following entry shall be substituted, namely :—

Description of Instrument	**Proper Stamp Duty**	
"23. Conveyance as defined in section 2(10) not being a transfer charged or exempted under entry No. 62	Where conveyance amounts to sale of immovable property	Other conveyance
	(a)	(b)
1	2	3
where the value or amount of the consideration for such conveyance as set forth therein does not exceed fifty rupees	two rupees and fifty paise	one rupee and fifty paise
where it exceeds fifty rupees but does not exceed one hundred rupees	five rupees	three rupees
where it exceeds one hundred rupees but does not exceed two hundred rupees	ten rupees	six rupees
where it exceeds two rupees rupees but does not exceed three hundred rupees	fifteen rupees	hundred nine
where it exceeds three hundred rupees but does not exceed four hundred rupees	twenty rupees	twelve rupees
where it exceeds four hundred rupees but does not exceed five hundred rupees	twenty-five rupees	fifteen rupees
where it exceeds five hundred rupees but does not exceed six hundred rupees	thirty rupees	eighteen rupees
where it exceeds six hundred but does not exceed rupees seven hundred rupees	thirty-five rupees	twenty-one rupees
where it exceeds seven hundred but does not exceed rupees eight hundred rupees	forty rupees	twenty-four rupees
where it exceeds eight hundred but does not exceed rupees nine hundred rupees	forty-five rupees	twenty-seven rupees
where it exceeds nine hundred but does not exceed one thousand rupees	fifty rupees	thirty rupees rupees
and for every five hundred rupees or part thereof in excess of one thousand rupees	twenty-five rupees	fifteen rupees".

[*Vide* Haryana Act 32 of 2008, s. 2]

Amendment of Article 5 of Schedule IA to Central Act 4 of 1899.—In Schedule IA to the Indian Stamp Act, 1899 (hereinafter called the principal Act), in Article 5, after clause (c), the following clause shall **be** added, namely :—

(1)	(2)
"(d) If relating to giving authority or power to a promoter or a developer, by whatever	The same duty as is leviable on a conveyance against article No. 23 on the market value of the

name called, for construction on, development of or, sale transfer (in any manner whatsoever) of. any immovable property.	property mentioned in agreement.",

Amendment to Schedule IA 10 Central Act 2 of 1899.—In Schedule I -A to the principal Act, under column “Proper Stamp Duty".—

(i) against article 19, for the existing entry, the following entry shall he substituted, namely: --

"One rupee for every one thousand or a part thereof, of the value of the shares, scrip or stock.";

(ii) against article 27—

(a) in clause- (a), for the existing entry, the fo11owing entry shall be substituted, namely: -

"0.05';ir per year of the face value of the debenture. Subject to the maximum of 0.25%.";

(b) in clause (b), for the existing entry, the following entry shall be substituted, namely:—

"0.05% per year of the face value of the debenture, subject to the maximum of 0.25%.";

(iii) against article 48—

(a) in clause (a), for the existing entry, the following entry shall be substituted, namely:—

"Three hundred rupees.";

(b) in clause (b), for the existing entry, the following entry shall be substituted, namely:—

"Three hundred rupees.";

in clause (c), for the existing entry, the following entry shall be substituted, namely:—

"Three hundred rupees.";

(d) in clause (d), for the existing entry, the following entry shall be substituted, namely: —

"Five hundred rupees.";

CO in clause (e), for the existing entry, the following entry shall be substituted, namely: —

"One thousand rupees."; and

(f) in clause (g), for the existing entry, the following entry shall be substituted, namely:.—

"One hundred rupees for each person authorized.

[*Vide* Haryana Act 17 of 2013, s. 3]

Amendment of Schedule 1-A to Central Act 2 of 1899.—In Schedule 1-A to the Indian Stamp Act, 1899, for the -existing article 55, the following article shall be substituted, namely :—

(1)	(2)
“55. Release, that is to say any instrument (not being such a release as is provided for by section 23-A) whereby any person renounces his interest, share, part or claim :—	
(a) if the release is made of ancestral property in favour of brother or sister (children of renouncer's parents) OP son or daughter or father or mother or	Fifteen rupees.

spouse or grand children or nephew or niece or co-parcener of the renouncer ;	
(b) in any other ease	The same duty as a Conveyance Po. 23(a) relating, to sale of immovable property] for the - amount equal to the market value of the share, interest, part of claim renounced.".

[*Vide* Haryana Act 10 of 2000, s. 2]

Amendment of Schedule 1-A to central Act 2 of 1899.—In schedule 1-A to the Indian Stamp Act, 1899,--

(a) for entry 23, the following entry shall be substituted, namely :--

Description of instrument	Proper Stamp Duty	
"23. Conveyance as defined in section 2 (10) not being a transfer charged or exempted under entry No.62."	Where conveyance amounts to sale of immovable property	Other conveyance
	(a)	(b)
1	2	3
where the value or amount of the consideration for such conveyance as set forth therein does not exceed fifty rupees	three **r**upees	one rupees fifty paise
where it exceeds fifty rupees but does not exceed one hundred rupees	Six rupees	three rupees
Where it exceeds one hundred rupees but does not exceed two hundred rupees	Twelve rupees	Six rupees
Where it exceeds two hundred rupees, but does not exceed three hundred rupees	Eighteen rupees	Nine rupees
Where it exceeds three hundred rupees but does not exceed five hundred rupees	Thirty rupees	Fifteen rupees
Where it exceeds five hundred rupees but does not exceed six hundred rupees	Thirty six rupees	Eighteen rupees
Where it exceeds six hundred rupees but does not exceed seven hundred rupees	Forty-eight rupees	Twenty-one rupees
Where it exceeds seven hundred rupees but does not exceed eight hundred rupees	Forty-eight rupees	Twenty-four rupees
Where it exceeds eight hundred rupees but does not exceed nine hundred rupees	Sixty rupees	Thirty rupees
Where it exceeds nice hundred rupees but does not exceed one thousand rupees	Sixty rupees	Thirty rupees
and for every five hundred rupees or party thereof in excess of one thousand rupees	Thirty rupees	Fifteen rupees

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[*Vide* Haryana Act 1 of 2004, s. 2]

Amendment of Schedule I-A to Central Act 2 of 1899.— In Schedule I-A to the Indian Stamp Act, 1899,—

(a) for entry 23, the following entry shall be substituted, namely:--

Description of instrument	**Proper stamp duty**	
"23. Conveyance as defined by section 2(10) not being a transfer charged or exempted under No. 62.	Where conveyance amounts to sale of immovable property	Other conveyances
	(a)	(b)
1	2	3
where the value or amount of the consideration for such conveyance as set forth therein does not exceed fifty rupees	six rupees and twenty-five paise	three rupees
where it exceeds fifty rupees but does not exceed one hundred rupees	twelve rupees and fifty paise	six rupees and twenty-five paise
where it exceeds one hundred rupees but does not exceed two hundred rupees	twenty-five rupees	twelve rupees and fifty paise
where it exceeds two hundred rupees but does not exceed three hundred rupees	thirty-seven rupees and fifty paise	eighteen rupees and seventy-five paise
where it exceeds three hundred rupees but does not exceed four hundred rupees	fifty rupees	twenty-five rupees
where it exceeds four hundred rupees but does not exceed five hundred rupees	sixty-two rupees and fifty paise	thirty-one rupees and twenty-five paise
where it exceeds five hundred rupees but does not exceed six hundred rupees	seventy-five rupees	thirty-seven rupees and fifty paise
where it exceeds six hundred rupees but does not exceed ,even hundred rupees	eighty-seven rupees and fifty paise	forty-three rupees and seventy-five paise
where it exceeds seven hundred rupees but does not exceed eight hundred rupees	one hundred rupees	fifty rupees
where it exceeds eight hundred rupees but does not exceed nine hundred rupees	one hundred twelve rupees and fifty	fifty-six rupees and twenty-five paise
where it exceeds nine hundred, rupees but does not exceed one thousand rupees	one hundred and twenty-five rupees	sixty-two rupees and fifty paise
And or every *five* hundred rupees or part thereof in excess of one thousand rupees	sixty-two rupees and fifty paise	thirty-one rupees and twenty-five paise

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(b) in entry 40, for item (a), the following item shall be substituted, namely :—

Description of Instrument	Proper Stamp Duty
(a) When possession of the property or any part of the property comprised in such deeds (liven by the mortgagor or agreed to be given—	
where the amount secured by such instrument does not exceed fifty rupees	Three rupees
where it exceeds fifty- rupees but does not exceed one hundred rupees	six rupees and twenty five paise
where it exceeds one hundred rupees but does not exceed two hundred rupees	twelve rupees and fifty raise
where it exceeds two hundred rupees but does not exceed three hundred rupees	eighteen rupees and seventy-five paise
where it exceeds three hundred rupees but does not exceed four hundred rupees	twenty-five rupees
where it exceeds four hundred rupees but does not exceed five hundred rupees	thirty-one rupees and twenty-five paise
where it exceeds five hundred rupees but does not exceed six hundred rupees	thirty-seven rupees and fifty paise
where it exceeds six hundred I means but does not exceed seven hundred rupees	forty-three rupees and seventy-five paise
where it exceeds seven hundred rupees but does not exceed eight hundred rupees	fifty rupees
where it exceeds eight hundred rupees but does not exceed nine hundred rupees	fifty-six rupees and twenty-five paise
where it exceeds nine hundred rupees but does not exceed one thousand rupees	sixty-two rupees and fifty paise
and for every five hundred rupees or part thereof in excess of one thousand rupees	thirty-one rupees and twenty-five raise".

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[*Vide* Haryana Act 17 of 1979, s. 2]

Amendment of Schedule 1-A to Central Act 2 of 1899.— In Schedule 1-A to the Indian Stamp Act, 1899, under column "Proper Stamp Duty",-

(a) against article 5,-

(i) in clause (a), for the existing entry, the following entry shall be substituted, namely:-

"One rupee for every 10,000/- or part thereof.";

(ii) in clause (b), for the existing entry, the following entry shall be substituted, namely:-

"Subject to a maximum of 1000/-, one rupee for every 10,000/- or part thereof of the value of the security or share.";

(b) against article 28, for the existing entry, the following entry shall be substituted, namely:-

"One rupee.";

(c) against article 36, for the existing entry, the following entry shall be substituted, namely:-

"One rupee.";

(d) against article 43,-

(i) in clause (a), for the existing entry, the following entry shall be substituted, namely:-

"One rupee.";

(ii) in clause (b), for the existing entry, the following entry shall be substituted, namely:-

"One rupee for every 10,000/- or a part thereof, of the value of the security at the time of its purchase or sale, as the case may be.".

[*Vide* Haryana Act 24 of 2017, s. 2]

Amendment of Schedule 1-A to Central Act 2 of 1899.— In Schedule 1-A to the Indian Stamp Act, 1899, under column "Proper Stamp-Duty",—

(a) against article 1, for the existing entry, the following entry shall be substituted, namely:—

"Ten rupees.";

(b) against article 2, —

(i) in clause (a), for the existing entry, the following entry shall be substituted, namely:—

"One hundred rupees.";

(ii) in clause (b), for the existing entry, the following entry shall be substituted, namely:—

"One hundred rupees.";

(c) against article 3, for the existing entry, the following entry shall be substituted, namely:—

"One thousand rupees.";

(d) against article 5, in clause (c), for the existing entry, the following entry shall be substituted, namely:--

"Two thousand rupees.";

(e) against article 7, for the existing entry, the following entry shall be substituted, namely:-

"One hundred rupees.";

(f) against article 8,-

(i) in clause (a), for the existing entry, the following entry shall be substituted, namely:-

"One hundred rupees.";

(ii) in clause (b), for the existing entry, the following entry shall be substituted, namely:-

"One hundred rupees.";

(g) against article 10,-

(i) in clause (a), for the existing entry, the following entry shall be substituted, namely:-

"One thousand rupees.";

(ii) in clause (b), for the existing entry, the following entry shall be substituted, namely:-

"Two thousand rupees.";

(h) against article 11, for the existing entry, the following entry shall be substituted, namely:-

"Five hundred rupees.";

(i) against article 12,-

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(i) in clause (a), for the existing entry, the following entry shall be substituted, namely:-

"One percent of value of the property to which the award relates.";

(ii) in clause (b), for the existing entries, the following entries shall be respectively substituted, namely:-

"One percent of value of the property to which the award relates.";

(j) against article 17, for the existing entry, the following entry shall be substituted, namely:-

"Five hundred rupees.";

(k) against article 22, for the existing entry, the following entry shall be substituted, namely:-

"One hundred rupees.";

(l) against article 24,-

(i) in clause (i), for the existing entry, the following entry shall be substituted, namely:-

"Ten rupees.";

(ii) in clause (ii), for the existing entry, the following entry shall be substituted, namely:-

"Ten rupees.";

(m) against article 25,-

(i) in clause (a), for the existing entry, the following entry shall be substituted, namely:-

"Ten rupees.";

(ii) in clause (b), for the existing entry, the following entry shall be substituted, namely:-

"Ten rupees.";

(n) against article 26,-

(i) in clause (a), for the existing entry, the following entry shall be substituted, namely:-

"One hundred rupees.";

(ii) in clause (b), for the existing entry, the following entry shall be substituted, namely:-

"One hundred rupees.";

(o) against article 29, for the existing entry, the following entry shall be substituted, namely:-

"One hundred rupees.";

(p) against article 34, for the existing entry, the following entry shall be substituted, namely:-

"One hundred rupees.";

(q) against article 39,-

(i) in clause (a), for the existing entry, the following entry shall be substituted, namely:-

"Five hundred rupees.";

(ii) in clause (b), for the existing entry, the following entry shall be substituted, namely:-

"One thousand rupees.";

(r) against article 42, for the existing entry, the following entry shall be substituted, namely:-

"Ten rupees.";

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(s) against article 46,-

(i) in clause A,-

(a) in sub-clause (a), for the existing entry, the following entry shall be substituted, namely:-

"One thousand rupees.";

(b) in sub-clause (b), for the existing entry, the following entry shall be substituted, namely:-

"One thousand rupees.";

(ii) in clause B, for the existing entry, the following entry shall be substituted, namely:-

"One hundred rupees.";

(t) against article 48, in clause (a), for the existing entry, the following entry shall be substituted, namely:-

"One thousand rupees.";

(u) against article 50, for the existing entry, the following entry shall be substituted, namely:-

"Ten rupees.";

(v) against article 57,-

(i) in clause (a), for the existing entry, the following entry shall be substituted, namely:-

"One hundred rupees.";

(ii) in clause (b), for the existing entry, the following entry shall be substituted, namely:-

"One hundred rupees.";

(w) against article 60, for the existing entry, the following entry shall be substituted, namely:-

"Ten rupees.";

(x) against article 61,-

(i) in clause (a), for the existing entry, the following entry shall be substituted, namely:-

"One hundred rupees.";

(ii) in clause (b), for the existing entry, the following entry shall be substituted, namely:-

"One hundred rupees.";

(y) against article 64,-

(i) in clause A, for the existing entry, the following entry shall be substituted, namely:-

"One hundred rupees.";

(ii) in clause B, for the existing entry, the following entry shall be substituted, namely:-

"One hundred rupees.";

(z) against article 65, for the existing entry, the following entry shall be substituted, namely:-

"Ten rupees.".

[*Vide* Haryana Act 26 of 2018, s. 2]

Amendment of Schedule 1-A to Central Act 2 of 1899.—In Schedule 1-A to the Indian Stamp Act, 1899, under column "Proper Stamp", against article 27, —

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(a) in clause (a), for the existing entry, the following entry shall be substituted, namely:—

"0.05% per year of the face value of the debenture, subject to the maximum of 0.25% or rupees twenty five lakhs whichever is lower.".

(b) in clause (b), for the existing entry, the following entry shall be substituted, namely:—

"0.05% per year of the face value of the debenture, subject to the maximum of 0.05% or rupees twenty five lakhs whichever is lower.".

[*Vide* Haryana Act 3 of 2015, s. 2]

Amendment of Schedule 1-A to Central Act 2 of 1899.—In Schedule 1-A to the Indian Stamp Act, 1899, —

(i) In article 5, against clause (d), under column 2, for the existing entry, the following entry shall be substituted, namely:-

"Two per cent of the market value of the property or the amount of such consideration as set forth in the collaboration Agreement, whichever is higher.";

(ii) after article 23 and entries thereagainst, the following article and entries thereagainst shall be added, namely:—

"23A. Conveyance, so far as it relates to reconstruction or amalgamation or merger/de-merger of companies by an order of the High Court under section 394 of the Companies Act, 1956 (Central Act 1 of 1956) or reconstruction or amalgamation or merger/de-merger of companies under sections 232 and 233 of the Companies Act, 2013 (Central Act 18 of 2012) by the Tribunal.	1.5 per cent subject to an maximum of ₹ 7.5 crore on an amount of the market value of the property or the amount of such consideration as set forth in the instrument or order, whichever is higher.";	Nil

(iii) against article 43, after clause (b) and entries the following clauses and entries thereagainst shall be added, namely:--

"(c) in case of delivery	One rupee for every ten thousand rupees or a part thereof, subject to a maximum of five hundred rupees.
(d) in case of non delivery and relating to futures and options trading.	Twenty paise for every ten thousand rupees or a part thereof, subject to a maximum of two hundred rupees.

(e) if relating to forward contracts of commodities traded through an association or otherwise.	One rupee for every one lakh rupees or a part thereof, subject to a maximum of five hundred rupees.".

[*Vide* Haryana Act 29 of 2017, s. 2]

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Amendment of Schedule:--For items Nos. 3, 4, 5(e), 6(2)(a), 6(2)(b), 15, 17, 23, 24, 25, 29, 40(c), 46 A (b), B. 48(a) (c) (d) (e) (g); 54(b), 55 (b) and 57(b) of Schedules-l of the Act, the following shall be substituted namely:--

Description of Instrument	Proper Stamp Duty
"3. **ADOPTION-DEED**, that is to say, any instrument (other than a will) recording an adoption or conferring or purporting to confer an authority to adopt.	One Thousand Rupees.
4. **AFFIDAVIT,** including an affirmation or declaration in the case of persons by law allowed to affirm or declare instead of swearing.	Fifty Rupees.
EXEMPTIONS (a) Affidavit or declaration in writing when made as a condition of enlistment under the Army Act 1950, Act, XLVI of 1950.	
or (c) for the sole purpose of enabling any receive any pension or charitable allowance.	
5. **AGREEMENT OR MEMORANDUM OF AN AGREEMENT :-**	
(e) if not otherwise provided for	Two Hundred Rupees
6. **AGREEMENT RELATING TO DEPOSIT OR TITLE DEEDS PAWN OR PLEDGE** that is to say any instrument evidencing an agreement relating to :-	
(2) the pawn or pledge of movable property, where such deposit, pawn or pledge has been made by way of security for the repayment of money advanced or to be advanced by way of loan or an existing or future debt.	
(a) If such loan or debt is repayable on demand or more than three months from the date of the instrument evidencing the agreement :-	

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If the amount of loan does not exceed Rs.2000/- ;	One Hundred Rupees
If it exceeds Rs. 2000/- and does not exceed Rs. 4000/- ;	Two Hundred Rupees
and for every Rs.4000/- or part thereof in excess of Rs. 4000/- ;	Two Hundred Rupees
(b) If such loan or debt is repayable not more than three months from the date of such instrument.	Half the duty payable under sub clause (a) subject to minimum of One hundred Rupees.
15. BOND (as defined by section 2(5), not being a debenture (No. 27), and not being otherwise provided for by this Act, or by the Court fees Act, 1870. (Act VII of 1870).	
Where the amount or value secured does not exceed Rs. 400/- ;	Twenty Rupees
Where it exceeds Rs. 400/- . and does not exceed Rs. 600/- ;	Thirty Rupees
Where it exceeds Rs. 600/- and does not exceed Rs. 800/- ;	Forty Rupees
Where it exceeds Rs, 800/- and does not exceed Rs.1000/- ;	Fifty Rupees.
and for every Rs. 500/- or part thereof in excess of Rs.1000/- ;	Twenty Five Rupees.
See Administration Bond (No.2); Bottomry Bond (No. 16), Customs Bond (No. 26), Indemnity Bond (No. 34), Respondentia Bond (No. 56), Security Bond (No. 57).	
EXEMPTIONS Bond, when executed by- (a) headmen nominated : under rules framed in accordance with the Bengal Irrigation Act, 1876, (Act III of 1876), section 99, for due performance of their duties under that Act.	
(b) any person for the purpose of guaranteeing that the local income derived from private subscriptions to a charitable dispensary or hospital or any other object of public utility shall not be less than a specified sum per mensem.	

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17. Cancellation Instrument of (including any instrument by which any instrument previously executed is cancelled), if attested and not otherwise provided for. See also Release (No. 55), Revocation of Settlement (No. 58 - B), Surrender of lease (No. 61), Revocation of Trust (No. 64 - B).	Six Hundred Rupees
23. Conveyance (as defined by Section 2 (10), not being a Transfer charged or exempted under No. 62- Where the amount or value of the consi - deration for such conveyance as set forth therein does not exceed Rs. 200/- ;	Ten Rupees
Where it exceeds Rs. 200/- but does not exceed Rs. 300/- ;	Fifteen Rupees
Where it exceeds Rs. 300/- but does not exceed Rs. 400/- ;	Twenty Rupees.
Where it exceeds Rs. 400/-but does not exceed Rs. 500/- ;	Twenty Five Rupees
Where it exceeds Rs. 500/- but does not exceed Rs. 600/- ;	Thirty Rupees
Where it exceeds Rs. 600/- but does not exceed Rs. 700/- ;	Thirty Five Rupees
Where it exceeds Rs, 700/- but does not exceed Rs. 800/- ;	Forty Rupees
Where it exceeds Rs. 800/- but does not exceed Rs. 900/- :	Forty Five Rupees
Where it exceeds Rs.900/- but does not exceed Rs. 1000/- ;	Fifty Rupees
and for every Rs. 500/- or part thereof in excess of Rs. 1000/-	Twenty Five Rupees
24. **COPY OR EXTRACT** Certified to be a true copy or extract by or by order or any public officer and not chargeable under the law for the time being in force relating to court-fees-	
(i) if the original was not chargeable with duty, or if the duty with which it was chargeable does not exceed one rupee ;	One Hundred Rupees

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(ii) in any other case not falling within the provisions of Section 6 A :	Two Hundred Rupees
EXEMPTIONS (a) Copy of any paper which a public officer is expressly required by law to make or furnish for record in any public officer for any public purpose. (b) Copy of, or extract from any register relating to births, baptisms, naming, dedications, marriages, divorces, deaths or burials.	
25. COUNTERPART OR DUPLICATE of any instrument, chargeable with duty and in respect of which the proper duty has been paid.	
(a) if the duty with which the original instrument is chargeable does not exceed Five Rupees.	One Hundred Rupees
(b) in any other case not falling within the provisions of Section 6 A .	Two Hundred Rupees
EXEMPTION Counterpart of any lease' granted to a cultivator when such lease is exempted from duty.	
29. **DIVORCE** - Instrument of, that is to say, any instrument by which any person effects the dissolution of his marriage. **DOWER** - Instrument of - See settlement (No. 58). **DUPLICATE** - See Counterpart (No. 25).	Four Hundred Rupees.
40. **MORTGAGE – DEED**, not being an agreement relating to Deposit of Title deeds, pawn or pledge (No. 6),Bottomry Bond (No. 16) Mortgage of a Crop (No. 41), Respondentia Bond (No. 56) or Security Bond (No. 57).	

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(C) When a Collateral or auxiliary or additional or substituted security or by way of further assurance for the above mentioned purpose where the principal or primary security is duly stamped for every sum secured not exceeding Rs. 1000/- ;	One Hundred Rupees
and for every Rs. 1000/- or part there of secured in excess of Rs. 1000/- ;	One Hundred Rupees
46. **PARTNERSHIP -** (A) - Instrument of	
(b) - in any other case	Two Thousand Rupees
(B) - Dissolution of	One Thousand Rupees
48. **POWER OF ATTORNEY -** [as defined by section 2(21)] - not being a proxy. (a) When executed for the sale purpose of procuring the registration of one or more documents in relation to a single transaction or for admitting execution of one or more such documents ;	One Hundred Rupees
(c) When authorizing one person or more to act in a single transaction other than the case mentioned in Clause (a) ;	Three Hundred Rupees
(d) When authorizing not more than five person to act jointly and severally in more than one transaction or generally ;	One Thousand Rupees
When authorizing more than five but not more than ten persons to act jointly and severally in more than one transaction or generally;	Two Thousand Rupees
(g) in any other case	Three Hundred Rupees for each person authorized
54. **RECONVEYANCE OF MORTGAGED PROPERTY-**	One Thousand Rupees

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(b) in any other case	
55. **RELEASE** - that is to say, any instrument (not being such a release as is provided for by Section 23-A), where by a person renounces a claim upon another person or against any specified property - (b) In any other case.	Six Hundred Rupees
57. **SECURITY BOND OR MORTGAGED** **- DEED**, executed by way of security for the due execution of an office or to account for money or other property received by virtue thereof, or executed by a surety to secure the due performance of a contract – (b) In any other case.	Five Hundred Rupees"

[*Vide* Tripura Act 18 of 2020, s. 2]

Amendment of the Schedule:--For item No. 23- of Schedule-I of the Principal Act, as inserted by the following shall be substituted, namely:-

Description of instruments	Proper stamp duty
23. CONVEYANCE [as defined by section 2(10)] not being a Transfer charged or exempted under No. 62-	
(1) In case of transfer to a female or group of female persons.	(1) 4% of the amount of value of the consideration for such conveyance.
(2) In all other cases.	
Exemption	
Assignment of Copy Right under the Copy Right Act, 1957 (Act XIV of 1957)	(2) 5% of the amount of value of the consideration for such conveyance.
Co-Partnership Deed- see partnership (No. 46)	

[*Vide* Tripura Act 5 of 2023, s. 3]

Amendment of clause 9:—Indian Stamp (Uttarakhand Amendment) Bill, 2011 (as passed by the Uttarakhand Legislative Assembly on dated 16 March, 2011) clause 9 shall be substituted as follows; namely :—

"Voting or attempting to vote under any proxy not duly stamped shall for every offence, be punishable with fine which may extend to ₹ five thousand."

[*Vide* Uttarakhand Act 20 of 2013, s. 2]

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SCHEDULE II.—[*Enactments repealed*.] *Rep. by the Repealing and Amending Act*, 1914 (10 *of* 1914), *s.* 3 *and the Second Schedule*.

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